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Book 1

Ath. To whom do you ascribe the authorship of your legal arrangements, Strangers? To a god or to some man?

Clin. To a god, Stranger, most rightfully to a god. We Cretans call Zeus our lawgiver; while in Lacedaemon, where our friend here has his home, I believe they claim Apollo as theirs. Is not that so, Megillus?

Meg. Yes.

Ath. Do you then, like Homer,[1] say that Minos used to go every ninth year to hold converse with his father Zeus, and that he was guided by his divine oracles in laying down the laws for your cities?

Clin. So our people say. And they say also that his brother Rhadamanthys,—no doubt you have heard the name,—was exceedingly just. And certainly we Cretans would maintain that he won this title owing to his righteous administration of justice in those days.

Ath. Yes, his renown is indeed glorious and well befitting a son of Zeus. And, since you and our friend Megillus were both brought up in legal institutions of so noble a kind, you would, I imagine, have no aversion to our occupying ourselves as we go along in discussion on the subject of government and laws. Certainly, as I am told, the road from Cnosus to the cave[2] and temple of Zeus is a long one, and we are sure to find, in this sultry weather, shady resting-places among the high trees along the road: in them we can rest ofttimes, as befits our age, beguiling the time with discourse, and thus complete our journey in comfort.

Clin. True, Stranger; and as one proceeds further one finds in the groves cypress-trees of wonderful height and beauty, and meadows too,

[1] Cp. *Hom. Od. 19.178.*

[2] The grotto of Dicte on Mt. Ida.

where we may rest ourselves and talk.

Ath. You say well.

Clin. Yes, indeed: and when we set eyes on them we shall say so still more emphatically. So let us be going, and good luck attend us.

Ath. Amen! And tell me now, for what reason did your law ordain the common meals you have, and your gymnastic schools and military equipment?

Clin. Our Cretan customs, Stranger, are, as I think, such as anyone may grasp easily. As you may notice, Crete, as a whole, is not a level country, like Thessaly: consequently, whereas the Thessalians mostly go on horseback, we Cretans are runners, since this land of ours is rugged and more suitable for the practice of foot-running. Under these conditions we are obliged to have light armour for running and to avoid heavy equipment; so bows and arrows are adopted as suitable because of their lightness. Thus all these customs of ours are adapted for war, and, in my opinion, this was the object which the lawgiver had in view when he ordained them all. Probably this was his reason also for instituting common meals: he saw how soldiers, all the time they are on campaign, are obliged by force of circumstances to mess in common, for the sake of their own security. And herein, as I think, he condemned the stupidity of the mass of men in failing to perceive that all are involved ceaselessly in a lifelong war against all States.

Clin.If, then, these practices are necessary in war,—namely, messing in common for safety's sake, and the appointment of relays of officers and privates to act as guards,— they must be carried out equally in time of peace. For (as he would say) "peace," as the term is commonly employed, is nothing more than a name, the truth being that every State is, by a law of nature, engaged perpetually in an informal war with every other State. And if you look at the matter from this point of view you will find it practically true that our Cretan lawgiver ordained all our legal usages, both public and private, with an eye to war, and that he therefore charged us with the task of guarding our laws safely, in the conviction that without victory in war nothing else, whether possession or institution, is of the least value, but all the goods of the vanquished fall into the hands of the victors.

Ath. Your training, Stranger, has certainly, as it seems to me, given you an excellent understanding of the legal practices of Crete. But tell me this more clearly still: by the definition you have given of the well-constituted State you appear to me to imply that it ought to be organized in such a way as to be victorious in war over all other States. Is that so?

Clin. Certainly it is; and I think that our friend here shares my opinion.

Meg. No Lacedaemonian, my good sir, could possibly say otherwise.

Ath. If this, then, is the right attitude for a State to adopt towards a State, is the right attitude for village towards village different?

Clin. By no means.

Ath. It is the same, you say?

Clin. Yes.

Ath. Well then, is the same attitude right also for one house in the village towards another, and for each man towards every other?

Clin. It is.

Ath. And must each individual man regard himself as his own enemy? Or what do we say when we come to this point?

Clin. O Stranger of Athens, for I should be loth to call you a man of Attica, since methinks you deserve rather to be named after the goddess Athena, seeing that you have made the argument more clear by taking it back again to its starting-point; whereby you will the more easily discover the justice of our recent statement that, in the mass, all men are both publicly and privately the enemies of all, and individually also each man is his own enemy.

Ath. What is your meaning, my admirable sir?

Clin. It is just in this war, my friend, that the victory over self is of all victories the first and best while self-defeat is of all defeats at once the worst and the most shameful. For these phrases signify that a war against self exists within each of us.[3]

Ath. Now let us take the argument back in the reverse direction. Seeing that individually each of us is partly superior to himself and partly inferior, are we to affirm that the same condition of things exists in house and village and State, or are we to deny it?

Clin. Do you mean the condition of being partly self-superior and partly self-inferior?

Ath. Yes.

Clin. That, too, is a proper question; for such a condition does most certainly exist, and in States above all. Every State in which the better class is victorious over the populace and the lower classes would rightly be termed "self-superior," and would be praised most justly for a victory of this kind; and conversely, when the reverse is the case.

Ath. Well then, leaving aside the question as to whether the worse

[3]Cp. *Plat. Rep. 430e ff.*: *Proverbs* xiv 32.

element is ever superior to the better (a question which would demand a more lengthy discussion), what you assert, as I now perceive, is this,—that sometimes citizens of one stock and of one State who are unjust and numerous may combine together and try to enslave by force those who are just but fewer in number, and wherever they prevail such a State would rightly be termed "self-inferior" and bad, but "self-superior" and good wherever they are worsted.

Clin. This statement is indeed most extraordinary, Stranger; none the less we cannot possibly reject it.

Ath. Stay a moment: here too is a case we must further consider. Suppose there were a number of brothers, all sons of the same parents, it would not be at all surprising if most of them were unjust and but few just.

Clin. It would not.

Ath. And, moreover, it would ill beseem you and me to go a-chasing after this form of expression, that if the bad ones conquered the whole of this family and house should be called "self-inferior," but "self-superior" if they were defeated; for our present reference to the usage of ordinary speech is not concerned with the propriety or impropriety of verbal phrases but with the essential rightness or wrongness of laws.

Clin. Very true, Stranger.

Meg. And finely spoken, too, up to this point, as I agree.

Ath. Let us also look at this point: the brothers we have just described would have, I suppose, a judge?

Clin. Certainly.

Ath. Which of the two would be the better—a judge who destroyed all the wicked among them and charged the good to govern themselves, or one who made the good members govern and, while allowing the bad to live, made them submit willingly to be governed?

Ath.And there is a third judge we must mention (third and best in point of merit),—if indeed such a judge can be found,— who in dealing with a single divided family will destroy none of them but reconcile them and succeed, by enacting laws for them, in securing amongst them thenceforward permanent friendliness.

Clin. A judge and lawgiver of that kind would be by far the best.

Ath. But mark this: his aim, in the laws he enacted for them, would be the opposite of war.

Clin. That is true.

Ath. And what of him who brings the State into harmony? In ordering its life would he have regard to external warfare rather than to the internal war, whenever it occurs, which goes by the name of

"civil" strife? For this is a war as to which it would be the desire of every man that, if possible, it should never occur in his own State, and that, if it did occur, it should come to as speedy an end as possible.

Clin. Evidently he would have regard to civil war.

Ath. And would anyone prefer that the citizens should be obliged to devote their attention to external enemies after internal concord had been secured by the destruction of one section and the victory of their opponents rather than after the establishment of friendship and peace by terms of conciliation?

Clin. Everyone would prefer the latter alternative for his own State rather than the former.

Ath. And would not the lawgiver do the same?

Clin. Of course.

Ath. Would not every lawgiver in all his legislation aim at the highest good?

Clin. Assuredly.

Ath. The highest good, however, is neither war nor civil strife—which things we should pray rather to be saved from—but peace one with another and friendly feeling. Moreover, it would seem that the victory we mentioned of a State over itself is not one of the best things but one of those which are necessary. For imagine a man supposing that a human body was best off when it was sick and aged with physic, while never giving a thought to the case of the body that needs no physic at all! Similarly, with regard to the well-being of a State or an individual, that man will never make genuine statesman who pays attention primarily solely to the needs of foreign warfare, nor will he make a finished lawgiver unless he designs his legislation for peace rather than his peace legislation for war.

Clin. This statement, Stranger, is apparently true; yet, unless I am much mistaken, our legal usages in Crete, and in Lacedaemon too, are wholly acted towards war.

Ath. Very possibly; but we must not now attack them violently, but mildly interrogate them, since both we and your legislators are earnestly interested in these matters. Pray follow the argument closely. Let us take the opinion of Tyrtaeus (an Athenian by birth and afterwards a citizen of Lacedaemon), above all men, was keenly interested in our subject. This is what he says:[4] "Though a man were the richest of men," *Tyrtaeus 12 Bergk* "though a man possessed goods in plenty (and he specifies nearly every good there is), if he failed to prove him-

[4] *Tyrt. 12 (Bergk).* Tyrtaeus wrote war-songs at Sparta about 880 B.C.

self at all times most valiant in war, no mention should I make of nor take account of him at all." No doubt you also have heard these poems; while our friend Megillus is, I imagine, surfeited with them.

Meg. I certainly am.

Clin. And I can assure you they have reached Crete also, shipped over from Lacedaemon.

Ath. Come now, let us jointly interrogate this poet somehow on this wise:

"O Tyrtaeus, most inspired of poets (for assuredly you seem to us both wise and good in that you have eulogized excellently those who excel in war), concerning this matter we three Megillus, Clinias of Cnosus and myself are already in entire accord with you, as we suppose; but we wish to be assured that both we and you are alluding to the same persons. Tell us then: do you clearly recognize, as we do, two distinct kinds of war?" In reply to this I suppose that even a much less able man than Tyrtaeus would state the truth, that there are two kinds, the one being that which we all call "civil," which is of all wars the most bitter, as we said just now, while the other kind, as I suppose we shall all agree, is that which we engage in when we quarrel with foreigners and aliens—a kind much milder than the former.

Clin. Certainly.

Ath. Come, then, which kind of warriors, fighting in which kind of war, did you praise so highly, while blaming others? Warriors, apparently, who fight in war abroad. At any rate, in your poems you have said that you cannot abide men who dare not "face the gory fray" *Tyrtaeus* "and smite the foe in close combat." *Tyrtaeus* Then we should proceed to say,

"It appears, O Tyrtaeus, that you are chiefly praising those who achieve distinction in foreign and external warfare." To this, I presume, he would agree, and say

"Yes"?

Clin. Of course.

Ath. Yet, brave though these men are, we still maintain that they are far surpassed in bravery by those who are conspicuously brave in the greatest of wars; and we also have a poet for witness,—Theognis (a citizen of Sicilian Megara), who says: "In the day of grievous feud, O Cyrnus, the loyal warrior is worth his weight in silver and gold." *Theognis 5.77-8 Bergk*[5] Such a man, in a war much more grievous, is, we say, ever so much better than the other—nearly as

[5]He wrote sententious poetry about 550 B.C.

much better, in fact, as the union of justice, prudence and wisdom with courage is better than courage by itself alone. For a man would never prove himself a loyal and sound in civil war if devoid of goodness in its entirety; whereas in the war of which Tyrtaeus speaks there are vast numbers of mercenaries ready to die fighting[6] "with well-planted feet apart," of whom the majority, with but few exceptions, prove themselves reckless, unjust, violent, and pre-eminently foolish. What, then, is the conclusion to which our present discourse is tending, and what point is it trying to make clear by these statements? Plainly it is this: both the Heaven-taught legislator of Crete and every legislator who is worth his salt will most assuredly legislate always with a single eye to the highest goodness and to that alone; and this (to quote Theognis) consists in "loyalty in danger," and one might term it "complete righteousness." But that goodness which Tyrtaeus specially praised, fair though it be and fitly glorified by the poet, deserves nevertheless to be placed no higher than fourth in order and estimation.[7]

Clin. We are degrading our own lawgiver, Stranger, to a very low level!

Ath. Nay, my good Sir, it is ourselves we are degrading, in so far as we imagine that it was with a special view to war that Lycurgus and Minos laid down all the legal usages here and in Lacedaemon.

Clin. How, then, ought we to have stated the matter?

Ath. In the way that is, as I think, true and proper when talking of a divine hero. That is to say, we should state that he enacted laws with an eye not to some one fraction, and that the most paltry, of goodness, but to goodness as a whole, and that he devised the laws themselves according to classes, though not the classes which the present devisers propound.

Ath.For everyone now brings forward and devises just the class which he needs: one man deals with inheritances and heiresses, another with cases of battery, and so on in endless variety. But what we assert is that the devising of laws, when rightly conducted, follows the procedure which we have now commenced. Indeed, I greatly admire the way you opened your exposition of the laws; for to make a start with goodness and say that that was the aim of the lawgiver is the right way. But in your further statement that he legislated wholly with reference to a fraction of goodness, and that the smallest fraction, you seemed to me to be in error, and all this latter part of my discourse

[6]Tyrt. xi. 21.

[7]i.e. courage comes after wisdom, prudence and justice.

was because of that. What then is the manner of exposition I should have liked to have heard from you? Shall I tell you?

Clin. Yes, by all means.

Ath.

"O Stranger" (thus you ought to have said),

"it is not for nothing that the laws of the Cretans are held in superlatively high repute among all the Hellenes. For they are true laws inasmuch as they effect the well-being of those who use them by supplying all that are good. Now goods are of two kinds, human and divine; and the human goods are dependent on the divine, and he who receives the greater acquires also the less, or else he is bereft of both. The lesser goods are those of which health ranks first, beauty second; the third is strength, in running and all other bodily exercises; and the fourth is wealth—no blind god Plutus, but keen of sight, provided that he has wisdom for companion. And wisdom, in turn, has first place among the goods that are divine, and rational temperance of soul comes second; from these two, when united with courage, there issues justice, as the third; and the fourth is courage. Now all these are by nature ranked before the human goods, and verily the law-giver also must so rank them. Next, it must be proclaimed to the citizens that all the other instructions they receive have these in view; and that, of these goods themselves, the human look up to the divine, and the divine to reason as their chief. And in regard to their marriage connections, and to their subsequent breeding and rearing of children, male and female, both during youth and in later life up to old age, the lawgiver must supervise the citizens, duly apportioning honor and dishonor;"

Ath.

"and in regard to all their forms of intercourse he must observe and watch their pains and pleasures and desires and all intense passions, and distribute praise and blame correctly by the means of the laws themselves. Moreover, in the matter of anger and of fear, and of all the disturbances which befall souls owing to misfortune, and of all the avoidances thereof which occur in good-fortune, and of all the experiences which confront men through disease or war or penury or their opposites,— in regard to all these definite instruction must be given as to what is the right and what the wrong disposition in each case. It is necessary, in the next place, for the law-giver to keep a watch on the methods employed by the citizens in gaining and spending money, and to supervise the associations they form with one another, and the dissolutions thereof, whether they be voluntary or under compulsion; he must observe the manner in which they conduct each of these mutual

transactions, and note where justice obtains and where it is lacking. To those that are obedient he must assign honors by law, but on the disobedient he must impose duly appointed penalties. Then finally, when he arrives at the completion of the whole constitution, he has to consider in what manner in each case the burial of the dead should be carried out, and what honors should be assigned to them. This being settled, the framer of the laws will hand over all his statutes to the charge of Wardens—guided some by wisdom, others by true opinion—to the end that Reason, having bound all into one single system, may declare them to be ancillary neither to wealth nor ambition, but to temperance and justice." In this manner, Strangers, I could have wished (and I wish it still) that you had fully explained how all these regulations are inherent in the reputed laws of Zeus and in those of the Pythian Apollo which were ordained by Minos and Lycurgus, and how their systematic arrangement is quite evident to him who, whether by art or practice, is an expert in law, although it is by no means obvious to the rest of us.

Clin. What then, Stranger, should be the next step in our argument?

Ath. We ought, as I think, to do as we did at first— start from the beginning to explain first the institutions which have to do with courage; and after that we shall, if you wish, deal with a second and a third form of goodness. And as soon as we have completed our treatment of the first theme, we shall take that as our model and by a discussion of the rest on similar lines beguile the way; and at the end of our treatment of goodness in all its forms we shall make it clear, if God will, that the rules we discussed just now had goodness for their aim.

Meg. A good suggestion! And begin with our friend here, the panegyrist of Zeus—try first to put him to the test.

Ath. Try I will, and to test you too and myself; for the argument concerns us all alike. Tell me then: do we assert that the common meals and the gymnasia were devised by the lawgiver with a view to war?

Meg. Yes.

Ath. And is there a third institution of the kind, and a fourth? For probably one ought to employ this method of enumeration also in dealing with the subdivisions (or whatever we ought to call them) of the other forms of goodness, if only one makes oneÕs meaning clear.

Meg. The third thing he devised was hunting: so I and every Lacedaemonian would say.

Ath. Let us attempt also to state what comes fourth,—and fifth too, if possible.

Meg. The fourth also I may attempt to state: it is the training, widely prevalent amongst us, in hardy endurance of pain, by means both of manual contests and of robberies carried out every time at the risk of a sound drubbing; moreover, the "Crypteia,"[8] as it is called, affords a wonderfully severe training in hardihood, as the men go barefoot in winter and sleep without coverlets and have no attendants, but wait on themselves and rove through the whole countryside both by night and by day. Moreover in our games,[9] we have severe tests of endurance, when men unclad do battle with the violence of the heat,—and there are other instances so numerous that the recital of them would be well-nigh endless.

Ath. Splendid, O Stranger of Lacedaemon! But come now, as to courage, how shall we define it? Shall we define it quite simply as battling against fears and pains only, or as against desires also and pleasures, with their dangerous enticements and flatteries, which melt men's hearts like wax—even men most reverenced in their own conceit.

Meg. The latter definition is, I think, the right one: courage is battling against them all.

Ath. Earlier in our discourse (if I am not mistaken) Clinias here used the expression "self-inferior" of a State or an individual: did you not do so, O Stranger of Cnosus?

Clin. Most certainly.

Ath. At present do we apply the term "bad" to the man who is inferior to pains, or to him also who is inferior to pleasures?

Clin. To the man who is inferior to pleasures more than to the other, in my opinion. All of us, indeed, when we speak of a man who is shamefully self-inferior, mean one who is mastered by pleasures rather than one who is mastered by pains.

Ath. Then surely the lawgiver of Zeus and he of Apollo did not enact by law a lame kind of courage, able only to defend itself on the left and unable to resist attractions and allurements on the right, but rather one able to resist on both sides?

Clin. On both sides, as I would maintain.

Ath. Let us, then, mention once more the State institutions in both your countries which give men a taste of pleasures instead of

[8] Or Secret Service. Young Spartans policed the country to suppress risings among the Helots.

[9] The "Naked Games," held about midsummer.

shunning them,—just as they did not shun pains but plunged their citizens into the midst of them and so compelled them, or induced them by rewards, to master them. Where, pray, in your laws is the same policy adopted in regard to pleasures? Let us declare what regulation of yours there is which causes the same men to be courageous toward pains and pleasures alike, conquering where they ought to conquer and in no wise worsted by their nearest and most dangerous enemies.

Meg. Although, Stranger, I was able to mention a number of laws that dealt with mastery over pains, in the case of pleasures I may not find it equally easy to produce important and conspicuous examples; but I might perhaps furnish some minor instances.

Clin. Neither could I in like manner give myself clear examples from the Cretan laws.

Ath. And no wonder, my most excellent friends. If then, in his desire to discover what is true and superlatively good, any one of us should find fault with any domestic law of his neighbors, let us take one another's remarks in good part and without resentment.

Clin. You are right, Stranger: that is what we must do.

Ath. Yes, for resentment would ill become men of our years.

Clin. Ill indeed.

Ath. Whether men are right or wrong in their censures of the Laconian polity and the Cretan—that is another story; anyhow, what is actually said by most men I, probably, am in a better position to state than either of you. For in your case (your laws being wisely framed) one of the best of your laws will be that which enjoins that none of the youth shall inquire which laws are wrong and which right, but all shall declare in unison, with one mouth and one voice, that all are rightly established by divine enactment, and shall turn a deaf ear to anyone who says otherwise; and further, that if any old man has any stricture to pass on any of your laws, he must not utter such views in the presence of any young man, but before a magistrate or one of his own age.

Clin. A very sound observation, Stranger; and just like a diviner, far away though you are from the original lawgiver, you have fairly spotted, as I think, his intention, and described it with perfect truth.

Ath. Well, there are no young people with us now; so we may be permitted by the lawgiver, old as we are, to discuss these matters among ourselves privately without offence.

Clin. That is so. Do you, then, have no scruple in censuring our laws; for there is nothing discreditable in being told of some flaw; rather it is just this which leads to a remedy, if the criticism be accepted not

peevishly but in a friendly spirit.

Ath. Good! But until I have investigated your laws as carefully as I can I shall not censure them but rather express the doubts I feel. You alone of Greeks and barbarians, so far as I can discover, possess a lawgiver who charged you to abstain from the greatest of pleasures and amusements and taste them not; but concerning pains and fears, as we said before, he held the view that anyone who shuns them continuously from childhood onward, when confronted with unavoidable hardships and fears and pains, will be put to flight by the men who are trained in such things, and will become their slave. Now I presume that this same lawgiver should have held the same view about pleasures as well, and should have argued with himself that, if our citizens grow up from their youth unpracticed in the greatest pleasures, the consequence must be that, when they find themselves amongst pleasures without being trained in the duty of resisting them and of refusing to commit any disgraceful act, because of the natural attraction of pleasures, they will suffer the same fate as those who are worsted by fears: they will, that is to say, in another and still more shameful fashion be enslaved by those who are able to hold out amidst pleasures and those who are versed in the art of pleasure,—people who are sometimes wholly vicious: thus their condition of soul will be partly enslaved and partly free, and they will not deserve to be called, without qualification, free men and men of courage. Consider, then, whether you at all approve these remarks of mine.

Clin. On the face of them, we are inclined to approve; but to yield quick and easy credence in matters of such importance would, I fear, be rash and thoughtless.

Ath. Well then, O Clinias, and thou, Stranger of Lacedaemon, suppose we discuss the second of the subjects we proposed, and take temperance next after courage: shall we discover any point in which these polities are superior to those framed at random, as we found just now in regard to their military organization?

Meg. Hardly an easy matter! Yet probably the common meals and the gymnasia are well devised to foster both these virtues.

Ath. In truth, Strangers, it seems a difficult thing for State institutions to be equally beyond criticism both in theory and in practice. Their case resembles that of the human body, where it seems impossible to prescribe any given treatment for each case without finding that this same prescription is partly beneficial and partly injurious to the body. So these common meals, for example, and these gymnasia, while they are at present beneficial to the States in many other respects, yet

in the event of civil strife they prove dangerous (as is shown by the case of the youth of Miletus, Bocotia and Thurii);[10] and, moreover, this institution, when of old standing, is thought to have corrupted the pleasures of love which are natural not to men only but also natural to beasts. For this your States are held primarily responsible, and along with them all others that especially encourage the use of gymnasia. And whether one makes the observation in earnest or in jest, one certainly should not fail to observe that when male unites with female for procreation the pleasure experienced is held to be due to nature, but contrary to nature when male mates with male or female with female, and that those first guilty of such enormities were impelled by their slavery to pleasure. And we all accuse the Cretans of concocting the story about Ganymede. Because it was the belief that they derived their laws from Zeus, they added on this story about Zeus in order that they might be following his example in enjoying this pleasure as well. Now with the story itself we have no more concern; but when men are investigating the subject of laws their investigation deals almost entirely with pleasures and pains, whether in States or in individuals. These are the two fountains which gush out by nature's impulse; and whoever draws from them a due supply at the due place and time is blessed—be it a State or an individual or any kind of creature; but whosoever does so without understanding and out of due season will fare contrariwise.

Meg. What you say, Stranger, is excellent, I suppose; nonetheless I am at a loss to know what reply I should make to it. Still, in my opinion, the Lacedaemonian lawgiver was right in ordaining the avoidance of pleasures, while as to the laws of Cnosus—our friend Clinias, if he thinks fit, will defend them. The rules about pleasures at Sparta seem to me the best in the world. For our law banished entirely from the land that institution which gives the most occasion for men to fall into excessive pleasures and riotous and follies of every description; neither in the country nor in the cities controlled by Spartiates is a drinking-club to be seen nor any of the practices which belong to such and foster to the utmost all kinds of pleasure. Indeed there is not a man who would not punish at once and most severely any drunken reveller he chanced to meet with, nor would even the feast of Dionysus serve as an excuse to save him—a revel such as I once upon a time witnessed

[10] Plato here ascribes the revolutions which occurred in these places to the intensive military training of the youth. Thurii was a Greek town in S. Italy, an off-shoot of Syhsris.

"on the wagons"[11] in your country; and at our colony of Tarentum, too, saw the whole city drunk at the Dionysia. But with us no such thing is possible.

Ath. O Stranger of Lacedaemon, all such indulgences are praiseworthy where there exists a strain of firm moral fiber, but where this is relaxed they are quite stupid. An Athenian in self-defence might at once retaliate by pointing to the looseness of the women in your country. Regarding all such practices, whether in Tarentum, Athens or Sparta, there is one answer that is held to vindicate their propriety. The universal answer to the stranger who is surprised at seeing in a State some unwonted practice is this:

"Be not surprised, O Stranger: such is the custom with us: with you, perhaps, the custom in these matters is different." But, my dear Sirs, our argument now is not concerned with the rest of mankind but with the goodness or badness of the lawgivers themselves. So let us deal more fully with the subject of drunkenness in general for it is a practice of no slight importance, and it requires no mean legislator to understand it. I am now referring not to the drinking or non-drinking of wine generally, but to drunkenness pure and simple, and the question is—ought we to deal with it as the Scythians and Persians do and the Carthaginians also, and Celts, Iberians and Thracians, who are all warlike races, or as you Spartans do; for you, as you say, abstain from it altogether, whereas the Scythians and Thracians, both men and women, take their wine neat and let it pour down over their clothes, and regard this practice of theirs as a noble and splendid practice; and the Persians indulge greatly in these and other luxurious habits which you reject, albeit in a more orderly fashion than the others.

Meg. But we, my good Sir, when we take arms in our hands, put all these people to rout.

Ath. Say not so, my dear Sir; for there have been, in fact, in the past and there will be in the future many a flight and many a pursuit which are past explaining, so that victory or defeat in battle could never be called a decisive, but rather a questionable, test of the goodness or badness of an institution. Larger States, for example, are victorious in battle over smaller States, and we find the Syracusans subjugating the Locrians, who are reputed to have been the best-governed of the peoples in that part of the world: and the Athenians the Ceians,—and we could find countless other instances of the same kind. So let us

[11] At the Feast of Dionysus in Athens it was customary for revellers mounted on wagons to indulge in scurrilous language during the processions.

leave victories and defeats out of account for the present, and discuss each several institution on its own merits in the endeavor to convince ourselves, and explain in what way one kind is good and another had. And to begin with, listen to my account of the right method of inquiring into the merits and demerits of institutions.

Meg. What is your account of it?

Ath. In my opinion all those who take up an institution for discussion and propose, at its first mention, to censure it or commend it, are proceeding in quite the wrong way. Their action is like that of a man who, when he hears somebody praising cheese as a good food, at once starts to disparage it, without having learnt either its effects or its mode of administration—in what form it should be administered and by whom and with what accompaniments, and in what condition and to people in what condition. This, as it seems to me, is exactly what we are now doing in our discourse. At the first mention of the mere name of drunkenness, straightway we fall, some of us to blaming it, others to praising it; which is most absurd. Each party relies on the aid of witnesses, and while the one party claims that its statement is convincing on the ground of the large number of witnesses produced, the other does so on the ground that those who abstain from wine are seen to be victorious in battle; and then this point also gives rise to a dispute. Now it would not be at all to my taste to go through all the rest of the legal arrangements in this fashion; and about our present subject, drunkenness, I desire to speak in quite another fashion (in my opinion, the right fashion), and I shall endeavor, if possible, to exhibit the correct method for dealing with all such subjects for indeed the view of them adopted by your two States would be assailed and controverted by thousands upon thousands of nations.

Meg. Assuredly, if we know of a right method of investigating these matters, we are bound to give it a ready hearing.

Ath. Let us adopt some such method as this. Suppose that a man were to praise the rearing of goats, and the goat itself as a fine thing to own, and suppose also that another man, who had seen goats grazing without a herd and doing damage on cultivated land, were to run them down, and find fault equally with every animal he saw that was without a master or under a bad master,—would such a man's censure, about any object whatsoever, be of the smallest value?

Meg. Certainly not.

Ath. Do we call the man who possesses only nautical science, whether or not he suffers from sea-sickness, a good commander on a ship—or what?

Meg. By no means good, if along with his skill he suffers in the way you say.

Ath. And how about the army commander? Is a man fit for command, provided that he has military science, even though he be a coward and sea-sick with a kind of tipsy terror when danger comes?

Meg. Certainly not.

Ath. And suppose he has no military skill, besides being a coward?

Meg. You are describing an utterly worthless fellow, not a commander of men at all, but of the most womanish of women.

Ath. Now take the case of any social institution whatsoever which naturally has a commander and which, under its commander, is beneficial; and suppose that someone, who had never seen the conduct of the institution under its commander, but seen it only when with no commander or bad commanders, were to commend the institution or censure it: do we imagine that either the praise or the blame of such an observer of such an institution is of any value?

Meg. Certainly not, when the man has never seen nor shared in an institution of the kind that was properly conducted.

Ath. Now stay a moment! Shall we lay it down that, of the numerous kinds of social institutions, that of banqueters and banquetings forms one?

Meg. Most certainly.

Ath. Now has anyone ever yet beheld this institution rightly conducted? Both of you can easily make answer—

"Never yet at all," for with you this institution is neither customary nor legal; but I have come across many modes of banqueting in many places, and I have also inquired into nearly all of them, and I have scarcely seen or heard of a single one that was in all points rightly conducted; for if any were right at all, it was only in a few details, and most of them were almost entirely on the wrong lines.

Clin. What do you mean by that, Stranger? Explain yourself more clearly; for since we are (as you observed) without any experience of such institutions, even if we did come across them, we would probably fail to see at once what was right in them and what wrong.

Ath. That is very probable. Try, however, to learn from my description. This you understand—that in all gatherings and associations for any purpose whatsoever it is right that each group should always have a commander.

Clin. Of course.

Ath. Moreover, we have recently said that the commander of fighting men must be courageous.

Clin. Of course.

Ath. The courageous man is less perturbed by alarms than the coward.

Clin. That is true, too.

Ath. Now if there had existed any device for putting an army in charge of a general who was absolutely impervious to fear or perturbation, should we not have made every effort to do so?

Clin. Most certainly.

Ath. But what we are discussing now is not the man who is to command an army in time of war, in meetings of foe with foe, but the man who is to command friends in friendly association with friends in time of peace.

Clin. Quite so.

Ath. Such a gathering, if accompanied by drunkenness, is not free from disturbance, is it?

Clin. Certainly not; quite the reverse, I imagine.

Ath. So those people also need, in the first place, a commander?

Clin. Undoubtedly—they above all.

Ath. Should we, if possible, provide them with a commander who is imperturbable?

Clin. Certainly.

Ath. Naturally, also, he should be wise about social gatherings. For he has both to preserve the friendliness which already exists among the company and to see that the present gathering promotes it still further.

Clin. Very true.

Ath. Then the commander we set over drunken men should be sober and wise, rather than the opposite? For a commander of drunkards who was himself drunken, young, and foolish would be very lucky if he escaped doing some serious mischief.

Clin. Uncommonly lucky.

Ath. Suppose, then, that a man were to find fault with such institutions in States where they are managed in the best possible way, having an objection to the institution in itself, he might perhaps be right in doing so but if a man abuses an institution when he sees it managed in the worst way possible, it is plain that he is ignorant, first, of the fact that it is badly conducted, and secondly, that every institution will appear similarly bad when it is carried on without a sober ruler and commander.

Ath.For surely you perceive that a sea-captain, and every commander of anything, if drunk, upsets everything, whether it be a ship or a chariot or an army or anything else that under his captaincy.

Clin. What you say, Stranger, is perfectly true. In the next place, then, tell us this:—suppose this institution of drinking were rightly conducted, of what possible benefit would it be to us? Take the case of an army, which we mentioned just now: there, given a right leader, his men will win victory in war, which is no small benefit; and so too with the other cases: but what solid advantage would accrue either to individuals or to a State from the right regulation of a wine-party?

Ath. Well, what great gain should we say would accrue to the State from the right control of one single child or even of one band of children? To the question thus put to us we should reply that the State would benefit but little from one; if, however, you are putting a general question as to what solid advantage the State gains from the education of the educated, then it is quite simple to reply that well-educated men will prove good men, and being good they will conquer their foes in battle, besides acting nobly in other ways. Thus, while education brings also victory, victory sometimes brings lack of education for men have often grown more insolent because of victory in war, and through their insolence they have become filled with countless other vices; and whereas education has never yet proved to be "Cadmeian,"[12] the victories which men win in war often have been, and will be, "Cadmeian."

Clin. You are implying, my friend, as it seems to us, that the convivial gathering, when rightly conducted, is an important element in education.

Ath. Assuredly.

Clin. Could you then show us, in the next place, how this statement is true?

Ath. The truth of my statement, which is disputed by many, it is for God to assert; but I am quite ready to give, if required, my own opinion, now that we have, in fact, embarked on a discussion of laws and constitutions.

Clin. Well, it is precisely your opinion about the questions now in dispute that we are trying to learn.

Ath. Thus, then, we must do,—you must brace yourself in the effort to learn the argument, and I to expound it as best I can. But, first of all, I have a preliminary observation to make: our city, Athens, is, in the general opinion of the Greeks, both fond of talk and full of talk, but Lacedaemon is scant of talk, while Crete is more witty[13] than

[12] i.e. involving more loss than gain—a proverbial expression, possibly derived from the fate of the "Sparti" (sprung from the dragon's teeth sown by Cadmus, founder of Thebes) who slew one another: cp. "Pyrrhic" victory.

wordy;

Ath. so I am afraid of making you think that I am a great talker about a small matter, if I spin out a discourse of prodigious length about the small matter of drunkenness. But the fact is that the right ordering of this could never be treated adequately and clearly in our discourse apart from rightness in music, nor could music, apart from education as a whole; and these require lengthy discussions. Consider, then, what we are to do: suppose we leave these matters over for the present, and take up some other legal topic instead.

Meg. O Stranger of Athens, you are not, perhaps, aware that our family is, in fact, a "proxenus"[14] of your State. It is probably true of all children that, when once they have been told that they are "proxeni" of a certain State, they conceive an affection for that State even from infancy, and each of them regards it as a second mother-land, next after his own country. That is precisely the feeling I now experience. For through hearing mere children crying out— whenever they, being the Lacedaemonians, were blaming the Athenians for anything or praising them—

"Your State, Megillus, has done us a bad turn or a good one,"— through hearing such remarks, I say, and constantly fighting your battles against those who were thus decrying your State, I acquired a deep affection for it; so that now not only do I delight in your accent, but I regard as absolutely true the common saying that

"good Athenians are always incomparably good," for they alone are good not by outward compulsion but by inner disposition. Thus, so far as I am concerned, you may speak without fear and say all you please.

Clin. My story, too, Stranger, when you hear it, will show you that you may boldly say all you wish. You have probably heard how that inspired man Epimenides, who was a family connection of ours, was born in Crete; and how ten years[15] before the Persian War, in obedience to the oracle of the god, he went to Athens and offered certain sacrifices which the god had ordained; and how, moreover, when the Athenians were alarmed at the Persians' expeditionary force, he made this prophecy—

"They will not come for ten years, and when they do come, they will return back again with all their hopes frustrated, and after suffering

[13] A polite way of alluding to the proverbial mendacity of the Cretans (cp. Ep. *Titus* i. 12: *κρῆτες ἀεὶ ψεῦσται*).

[14] A "proxenus" was a native who acted as official representative of a foreign State.

[15] Epimenides really lived about 600 B.C.

more woes than they inflict."

Clin. Then our forefathers became guest-friends of yours, and ever since both my fathers and I myself have cherished an affection for Athens.

Ath. Evidently, then, you are both ready to play your part as listeners. But as for my part, though the will is there, to compass the task is hard: still, I must try. In the first place, then, our argument requires that we should define education and describe its effects: that is the path on which our present discourse must proceed until it finally arrives at the god of Wine.

Clin. By all means let us do so, since it is your wish.

Ath. Then while I am stating how education ought to be defined, you must be considering whether you are satisfied with my statement.

Clin. Proceed with your statement.

Ath. I will. What I assert is that every man who is going to be good at any pursuit must practice that special pursuit from infancy, by using all the implements of his pursuit both in his play and in his work. For example, the man who is to make a good builder must play at building toy houses, and to make a good farmer he must play at tilling land; and those who are rearing them must provide each child with toy tools modelled on real ones. Besides this, they ought to have elementary instruction in all the necessary subjects,—the carpenter, for instance, being taught in play the use of rule and measure, the soldier taught riding or some similar accomplishment. So, by means of their games, we should endeavor to turn the tastes and desires of the children in the direction of that object which forms their ultimate goal. First and foremost, education, we say, consists in that right nurture which most strongly draws the soul of the child when at play to a love for that pursuit of which, when he becomes a man, he must possess a perfect mastery. Now consider, as I said before, whether, up to this point, you are satisfied with this statement of mine.

Clin. Certainly we are.

Ath. But we must not allow our description of education to remain indefinite. For at present, when censuring or commending a man's upbringing, we describe one man as educated and another as uneducated, though the latter may often be uncommonly well educated in the trade of a pedlar or a skipper, or some other similar occupation. But we, naturally, in our present discourse are not taking the view that such things as these make up education: the education we speak of is training from childhood in goodness, which makes a man eagerly desirous of becoming a perfect citizen, understanding how both to rule

and be ruled righteously.

Ath.This is the special form of nurture to which, as I suppose, our present argument would confine the term "education" whereas an upbringing which aims only at money-making or physical strength, or even some mental accomplishment devoid of reason and justice, it would term vulgar and illiberal and utterly unworthy of the name "education." Let us not, however, quarrel over a name, but let us abide by the statement we agreed upon just now, that those who are rightly educated become, as a rule, good, and that one should in no case disparage education, since it stands first among the finest gifts that are given to the best men; and if ever it errs from the right path, but can be put straight again, to this task every man, so long as he lives, must address himself with all his might.

Clin. You are right, and we agree with what you say.

Ath. Further, we agreed long ago that if men are capable of ruling themselves, they are good, but if incapable, bad.

Clin. Quite true.

Ath. Let us, then, re-state more clearly what we meant by this. With your permission, I will make use of an illustration in the hope of explaining the matter.

Clin. Go ahead.

Ath. May we assume that each of us by himself is a single unit?

Clin. Yes.

Ath. And that each possesses within himself two antagonistic and foolish counsellors, whom we call by the names of pleasure and pain?

Clin. That is so.

Ath. And that, besides these two, each man possesses opinions about the future, which go by the general name of "expectations"; and of these, that which precedes pain bears the special name of "fear," and that which precedes pleasure the special name of "confidence"; and in addition to all these there is "calculation," pronouncing which of them is good, which bad; and "calculation," when it has become the public decree of the State, is named "law."

Clin. I have some difficulty in keeping pace with you: assume, however, that I do so, and proceed.

Meg. I am in exactly the same predicament.

Ath. Let us conceive of the matter in this way. Let us suppose that each of us living creatures is an ingenious puppet of the gods, whether contrived by way of a toy of theirs or for some serious purpose—for as to that we know nothing; but this we do know, that these inward affections of ours, like sinews or cords, drag us along and, being opposed to

each other, pull one against the other to opposite actions; and herein lies the dividing line between goodness and badness.

Ath.For, as our argument declares, there is one of these pulling forces which every man should always follow and nohow leave hold of, counteracting thereby the pull of the other sinews: it is the leading-string, golden and holy, of "calculation," entitled the public law of the State; and whereas the other cords are hard and steely and of every possible shape and semblance, this one is flexible and uniform, since it is of gold. With that most excellent leading-string of the law we must needs co-operate always; for since calculation is excellent, but gentle rather than forceful, its leading-string needs helpers to ensure that the golden kind within us may vanquish the other kinds. In this way our story comparing ourselves to puppets will not fall flat, and the meaning of the terms "self-superior" and "self-inferior" will become somewhat more clear, and also how necessary it is for the individual man to grasp the true account of these inward pulling forces and to live in accordance therewith, and how necessary for the State (when it has received such an account either from a god or from a man who knows) to make this into a law for itself and be guided thereby in its intercourse both with itself and with all other States. Thus both badness and goodness would be differentiated for us more clearly; and these having become more evident, probably education also and the other institutions will appear less obscure; and about the institution of the wine-party in particular it may very likely be shown that it is by no means, as might be thought, a paltry matter which it is absurd to discuss at great length but rather a matter which folly merits prolonged discussion.

Clin. Quite right: let us go through with every topic that seems important for the present discussion.

Ath. Tell me now: if we give strong drink to this puppet of ours, what effect will it have on its character?

Clin. In reference to what particular do you ask this question?

Ath. To no particular, for the moment: I am putting the question in general terms—

"when this shares in that, what sort of thing does it become in consequence?" I will try to convey my meaning still more clearly: what I ask is this—does the drinking of wine intensify pleasures and pains and passions and lusts?

Clin. Yes, greatly.

Ath. And how about sensations and recollections and opinions and thoughts? Does it make them likewise more intense? Or rather, do not these quit a man entirely if he becomes surfeited with drink?

Clin. Yes, they quit him entirely.

Ath. He then arrives at the same condition of soul as when he was a young child?

Clin. He does.

Ath. So at that moment he will have very little control of himself?

Clin. Very little.

Ath. And such a man is, we say, very bad?

Clin. Very, indeed.

Ath. It appears, then, that not the grey-beard only may be in his "second childhood," but the drunkard as well.

Clin. An admirable observation, Stranger.

Ath. Is there any argument which will undertake to persuade us that this is a practice we ought to indulge in, instead of shunning it with all our might so far as we possibly can?

Clin. It appears that there is: at any rate you assert this, and you were ready just now to argue it.

Ath. You are right in your reminder, and I am still ready to do so, now that you and Megillus have both expressed your willingness to listen to me.

Clin. Of course we shall listen, if only on account of the surprising paradox that, of his own free will, a man ought to plunge into the depths of depravity.

Ath. Depravity of soul, you mean, do you not?

Clin. Yes.

Ath. And how about plunging into a bad state of body, such as leanness or ugliness or impotence? Should we be surprised if a man of his own free will ever got into such a state?

Clin. Of course we should.

Ath. Well then, do we suppose that persons who go of themselves to dispensaries to drink medicines are not aware that soon afterwards, and for many days to come, they will find themselves in a bodily condition such as would make life intolerable[16] if it were to last for ever? And we know, do we not, that men who go to the gymnasia for hard training commence by becoming weaker?

Clin. All this we know.

Ath. We know also that they go there voluntarily for the sake of the subsequent benefit ?

Clin. Quite true.

Ath. Should one not take the same view of the other institutions

[16]Evidently, drastic purgatives were commonly prescribed.

also?

Clin. Certainly.

Ath. Then one must also take the same view of the practice of wine-drinking, if one can rightly class it amongst the others.

Clin. Of course one must.

Ath. If then this practice should be shown to be quite as beneficial for us as bodily training, certainly at the outset it is superior to it, in so far as it is not, like bodily training, accompanied by pain.

Clin. That is true; but I should be surprised if we succeeded in discovering in it any benefit.

Ath. That is precisely the point which we must at once try to make plain. Tell me now: can we discern two kinds of fear, of which the one is nearly the opposite of the other?

Clin. What kinds do you mean?

Ath. These: when we expect evils to occur, we fear them.

Clin. Yes.

Ath. And often we fear reputation, when we think we shall gain a bad repute for doing or saying something base; and this fear we (like everybody else, I imagine) call shame.

Clin. Of course.

Ath. These are the two fears I was meaning; and of these the second is opposed to pains and to all other objects of fear, and opposed also to the greatest and most numerous pleasures.[17]

Clin. Very true.

Ath. Does not, then, the lawgiver, and every man who is worth anything, hold this kind of fear in the highest honor, and name it "modesty"; and to the confidence which is opposed to it does he not give the name "immodesty," and pronounce it to be for all, both publicly and privately, a very great evil?

Clin. Quite right.

Ath. And does not this fear, besides saving us in many other important respects, prove more effective than anything else in ensuring for us victory in war and security? For victory is, in fact, ensured by two things, of which the one is confidence towards enemies, the other, fear of the shame of cowardice in the eyes of friends.

Clin. That is so.

Ath. Thus each one of us ought to become both fearless and fearful; and that for the several reasons we have now explained.

[17] i.e. shame, which is fear of disgrace, induces fortitude under pain and the power of resisting vicious pleasures.

Clin. Certainly.

Ath. Moreover, when we desire to make a person fearless in respect of a number of fears, it is by drawing him, with the help of the law, into fear that we make him such.

Clin. Apparently.

Ath. And how about the opposite case, when we attempt with the aid of justice to make a man fearful? Is it not by pitting him against shamelessness and exercising him against it that we must make him victorious in the fight against his own pleasures? Or shall we say that, whereas in the case of courage it is only by fighting and conquering his innate cowardice that a man can become perfect, and no one unversed and unpracticed in contests of this sort can attain even half the excellence of which he is capable,—in the case of temperance, on the other hand, a man may attain perfection without a stubborn fight against hordes of pleasures and lusts which entice towards shamelessness and wrong-doing, and without conquering them by the aid of speech and act and skill, alike in play and at work,—and, in fact, without undergoing any of these experiences?

Clin. It would not be reasonable to suppose so.

Ath. Well then:

Ath.in the case of fear does there exist any specific, given by God to men, such that, the more a man likes to drink of it, the more, at every draught, he fancies himself plunged in misfortune and finally, though he be the bravest of men, he arrives at a state of abject terror; whereas, when he has once got relieved of the potion and slept it off, he always becomes his normal self again?

Clin. What potion of the kind can we mention, Stranger, as existing anywhere?

Ath. There is none. Supposing, however, that there had been one, would it have been of any service to the lawgiver for promoting courage? For instance, we might quite well have addressed him concerning it in this wise:

"Come now, O lawgiver,—whether it be Cretans you are legislating for or anyone else, would not your first desire be to have a test of courage and of cowardice which you might apply to your citizens?"

Clin. Obviously everyone of them would say

"Yes."

Ath.

"And would you desire a test that was safe and free from serious risks, or the reverse?"

Clin. All will agree, also, that the test must be safe.

Ath.

"And would you utilize the test by bringing men into these fears and proving them while thus affected, so as to compel them to become fearless; employing exhortations admonitions and rewards,— but degradation for all those that refused to conform wholly to the character you prescribed? And would you acquit without penalty everyone who had trained himself manfully and well, but impose a penalty on everyone who had done so badly? Or would you totally refuse to employ the potion as a test, although you have no objection to it on other grounds?"

Clin. Of course he would employ it, Stranger.

Ath. At any rate, my friend, the training involved would be wonderfully simple, as compared with our present methods, whether it were applied to individuals singly, or to small groups, or to groups ever so large. Suppose, then, that a man, actuated by a feeling of shame and loth to show himself in public before he was in the best of condition, should remain alone by himself while undergoing this training against fears and relying on the potion alone for his solitary equipment, instead of endless exercises,—he would be acting quite rightly: so too would he who, trusting in himself that by nature and practice he is already well equipped, should have no hesitation in training in company with a number of drinking companions and showing off how for speed and strength he is superior to the potency of the draughts he is obliged to drink, with the result that because of his excellence he neither commits any grave impropriety nor loses his head, and who, before they came to the last round, should quit the company, through fear of the defeat inflicted on all men by the wine-cup.

Clin. Yes, Stranger, this man too would be acting temperately.

Ath. Once more let us address the lawgiver and say:

"Be it so, O lawgiver, that for producing fear no such drug apparently has been given to men by God, nor have we devised such ourselves (for quacks I count not of our company); but does there exist a potion for inducing fearlessness and excessive and untimely confidence,—of what shall we say about this?"

Clin. Presumably, he will assert that there is one,—naming wine.

Ath. And is not this exactly the opposite of the potion described just now? For, first, it makes the person who drinks it more jovial than he was before, and the more he imbibes it, the more he becomes filled with high hopes and a sense of power, till finally, puffed up with conceit, he abounds in every kind of licence of speech and action and every kind of audacity, without a scruple as to what he says or what

he does. Everyone, I imagine, would agree that this is so.

Clin. Undoubtedly.

Ath. Let us recall our previous statement that we must cultivate in our souls two things—namely, the greatest possible confidence, and its opposite, the greatest possible fear.

Clin. Which you called, I think, the marks of modesty.

Ath. Your memory serves you well. Since courage and fearlessness ought to be practised amidst fears, we have to consider whether the opposite quality ought to be cultivated amidst conditions of the opposite kind.

Clin. It certainly seems probable.

Ath. It appears then that we ought to be placed amongst those conditions which naturally tend to make us exceptionally confident and audacious when we are practising how to be as free as possible from shamelessness and excessive audacity, and fearful of ever daring to say or suffer or do anything shameful.

Clin. So it appears.

Ath. And are not these the conditions in which we are of the character described,—anger, lust, insolence, ignorance, covetousness, and extravagance; and these also,—wealth, beauty, strength, and everything which intoxicates a man with pleasure and turns his head? And for the purpose, first, of providing a cheap and comparatively harmless test of these conditions, and, secondly, of affording practice in them, what more suitable pleasure can we mention than wine, with its playful testing—provided that it is employed at all carefully?

Ath. For consider: in the case of a man whose disposition is morose and savage (whence spring numberless iniquities), is it not more dangerous to test him by entering into money transactions with him, at one's own personal risk, than by associating with him with the help of Dionysus and his festive insight? And when a man is a slave to the pleasures of sex, is it not a more dangerous test to entrust to him one's own daughters and sons and wife, and thus imperil one's own nearest and dearest, in order to discover the disposition of his soul? In fact, one might quote innumerable instances in a vain endeavor to show the full superiority of this playful method of inspection which is without either serious consequence or costly damage. Indeed, so far as that is concerned, neither the Cretans, I imagine, nor any other people would dispute the fact that herein we have a fair test of man by man, and that for cheapness, security and speed it is superior to all other tests.

Clin. That certainly is true.

Ath. This then—the discovery of the natures and conditions of

men's souls—will prove one of the things most useful to that art whose task it is to treat them; and that art is (as I presume we say) the art of politics: is it not so?

Clin. Undoubtedly.

Book 2

Ath. In the next place, we probably ought to enquire, regarding this subject, whether the discerning of men's natural dispositions is the only gain to be derived from the right use of wine-parties, or whether it entails benefits so great as to be worthy of serious consideration. What do we say about this? Our argument evidently tends to indicate that it does entail such benefits; so how and wherein it does so let us now hear, and that with minds attentive, lest haply we be led astray by it.

Clin. Say on.

Ath. I want us to call to mind again our definition of right education. For the safekeeping of this depends, as I now conjecture, upon the correct establishment of the institution mentioned.

Clin. That is a strong statement!

Ath. What I state is this,—that in children the first childish sensations are pleasure and pain, and that it is in these first that goodness and badness come to the soul; but as to wisdom and settled true opinions, a man is lucky if they come to him even in old age and; he that is possessed of these blessings, and all that they comprise, is indeed a perfect man. I term, then, the goodness that first comes to children "education." When pleasure and love, and pain and hatred, spring up rightly in the souls of those who are unable as yet to grasp a rational account; and when, after grasping the rational account, they consent thereunto that they have been rightly trained in fitting practices:—this consent, viewed as a whole, is goodness, while the part of it that is rightly trained in respect of pleasures and pains, so as to hate what ought to be hated, right from the beginning up to the very end, and to love what ought to be loved, if you were to mark this part off in your definition and call it "education," you would be giving it, in my

opinion, its right name.

Clin. You are quite right, Stranger, as it seems to us, both in what you said before and in what you say now about education.

Ath. Very good. Now these forms of child-training, which consist in right discipline in pleasures and pains, grow slack and weakened to a great extent in the course of men's lives; so the gods, in pity for the human race thus born to misery, have ordained the feasts of thanksgiving as periods of respite from their troubles; and they have granted them as companions in their feasts the Muses and Apollo the master of music, and Dionysus, that they may at least set right again their modes of discipline by associating in their feasts with gods. We must consider, then, whether the account that is harped on nowadays is true to nature? What it says is that, almost without exception, every young creature is able of keeping either its body or its tongue quiet, and is always striving to move and to cry, leaping and skipping and delighting in dances and games, and uttering, also, noises of every description.

Ath. Now, whereas all other creatures are devoid of any perception of the various kinds of order and disorder in movement (which we term rhythm and harmony), to men the very gods, who were given, as we said, to be our fellows in the dance, have granted the pleasurable perception of rhythm and harmony, whereby they cause us to move and lead our choirs, linking us one with another by means of songs and dances; and to the choir they have given its name from the "cheer" implanted therein.[18] Shall we accept this account to begin with, and postulate that education owes its origin to Apollo and the Muses?

Clin. Yes.

Ath. Shall we assume that the uneducated man is without choir-training, and the educated man fully choir-trained?

Clin. Certainly.

Ath. Choir-training, as a whole, embraces of course both dancing and song.

Clin. Undoubtedly.

Ath. So the well-educated man will be able both to sing and dance well.

Clin. Evidently.

Ath. Let us now consider what this last statement of ours implies.

Clin. Which statement?

[18]Here *χορός* is fancifully derived from *χαρά*, joy. For similar etymologies, see the *Cratylus*, passim.

Ath. Our words are,—

"he sings well and dances well": ought we, or ought we not, to add,—

"provided that he sings good songs and dances good dances"?

Clin. We ought to add this.

Ath. How then, if a man takes the good for good and the bad for bad and treats them accordingly? Shall we regard such a man as better trained in choristry and music when he is always able both with gesture and voice to represent adequately that which he conceives to be good, though he feels neither delight in the good nor hatred of the bad,—or when, though not wholly able to represent his conception rightly by voice and gesture, he yet keeps right in his feelings of pain and pleasure, welcoming everything good and abhorring everything not good.

Clin. There is a vast difference between the two cases, Stranger, in point of education.

Ath. If, then, we three understand what constitutes goodness in respect of dance and song, we also know who is and who is not rightly educated but without this knowledge we shall never be able to discern whether there exists any safeguard for education or where it is to be found. Is not that so?

Clin. It is.

Ath. What we have next to track down, like hounds on the trail, is goodness of posture and tunes in relation to song and dance; if this eludes our pursuit, it will be in vain for us to discourse further concerning right education, whether of Greeks or of barbarians.

Clin. Yes.

Ath. Well then, however shall we define goodness of posture or of tune? Come, consider: when a manly soul is beset by troubles, and a cowardly soul by troubles identical and equal, are the postures and utterances that result in the two cases similar?

Clin. How could they be, when even their complexions differ in color?

Ath. Well said, my friend. But in, fact, while postures and tunes do exist in music,[19] which deals with rhythm and harmony, so that one can rightly speak of a tune or posture being "rhythmical" or "harmonious," one cannot rightly apply the choir masters metaphor "well-colored" to tune and posture; but one can use this language about the posture

[19] "Music" comprises both dance and song (including instrumental accompaniment), whether executed by single performers or by groups (*χορεία*). The "postures" are those of the dancer, the "tunes" those of the singer.

and tune of the brave man and the coward, and one is right in calling those of the brave man good, and those of the coward bad. To avoid a tediously long disquisition, let us sum up the whole matter by saying that the postures and tunes which attach to goodness of soul or body, or to some image thereof, are universally good, while those which attach to badness are exactly the reverse.

Clin. Your pronouncement is correct, and we now formally endorse it.

Ath. Another point:—do we all delight equally in choral dancing, or far from equally?

Clin. Very far indeed.

Ath. Then what are we to suppose it is that misleads us? Is it the fact that we do not all regard as good the same things, or is it that, although they are the same, they are thought not to be the same? For surely no one will maintain that the choric performance of vice are better than those of virtue, or that he himself enjoys the postures of turpitude, while all others delight in music of the opposite kind. Most people, however, assert that the value of music consists in its power of affording pleasure to the soul.[20] But such an assertion is quite intolerable, and it is blasphemy even to utter it. The fact which misleads us is more probably the following—

Clin. What?

Ath. Inasmuch as choric performances are representations of character, exhibited in actions and circumstances of every kind, in which, the several performers enact their parts by habit and imitative art, whenever the choric performances are congenial to them in point of diction, tune or other features (whether from natural bent or from habit, or from all these causes combined), then these performers invariably delight in such, performances and extol them as excellent; whereas those who find them repugnant to their nature, disposition or habits cannot possibly delight in them or praise them, but call them bad.

Ath.And when men are right in their natural tastes but wrong in those acquired by habituation, or right in the latter but wrong in the former, then by their expressions of praise they convey the opposite of their real sentiments; for whereas they say of a performance that

[20]i.e. music is commonly judged solely by the amount of pleasure it affords, without any regard to the quality of the pleasure. The *Athenian* proceeds to show how dangerous a doctrine this is: music, he maintains, should not be used merely to pander to the low tastes of the populace, but rather treated as an educational instrument for the elevation of public morals.

it is pleasant but bad, and feel ashamed to indulge in such bodily motions before men whose wisdom they respect, or to sing such songs (as though they seriously approved of them), they really take a delight in them in private.

Clin. Very true.

Ath. Does the man who delights in bad postures and tunes suffer any damage thereby, or do those who take pleasure in the opposite gain therefrom any benefit?

Clin. Probably.

Ath. Is it not probable or rather inevitable that the result here will be exactly the same as what takes place when a man who is living amongst the bad habits of wicked men, though he does not really abhor but rather accepts and delights in those habits, yet censures them casually, as though dimly aware of his own turpitude? In such a case it is, to be sure, inevitable that the man thus delighted becomes assimilated to those habits, good or bad, in which he delights, even though he is ashamed to praise them. Yet what blessing could we name, or what curse, greater than that of assimilation which befalls us so inevitably?

Clin. There is none, I believe.

Ath. Now where laws are, or will be in the future, rightly laid down regarding musical education and recreation, do we imagine that poets will be granted such licence that they may teach whatever form of rhythm or tune they best like themselves to the children of law-abiding citizens and the young men in the choirs, no matter what the result may be in the way of virtue or depravity?

Clin. That would be unreasonable, most certainly.

Ath. But at present this licence is allowed in practically every State, with the exception of Egypt.

Clin. How, then, does the law stand in Egypt?

Ath. It is marvellous, even in the telling. It appears that long ago they determined on the rule of which we are now speaking, that the youth of a State should practise in their rehearsals postures and tunes that are good: these they prescribed in detail and posted up in the temples, and outside this official list it was, and still is, forbidden to painters and all other producers of postures and representations to introduce any innovation or invention, whether in such productions or in any other branch of music, over and above the traditional forms.

Ath. And if you look there, you will find that the things depicted or graven there 10,000 years ago (I mean what I say, not loosely but literally 10,000) are no whit better or worse than the productions of

today, but wrought with the same art.

Clin. A marvellous state of affairs!

Ath. Say rather, worthy in the highest degree of a statesman and a legislator. Still, you would find in Egypt other things that are bad. This, however, is a true and noteworthy fact, that as regards music it has proved possible for the tunes which possess a natural correctness to be enacted by law and permanently consecrated. To effect this would be the task of a god or a godlike man,—even as in Egypt they say that the tunes preserved throughout all this lapse of time are the compositions of Isis. Hence, as I said, if one could by any means succeed in grasping no principle of correctness in tune, one might then with confidence reduce them to legal form and prescription, since the tendency of pleasure and pain to indulge constantly in fresh music has, after all, no very great power to corrupt choric forms that are consecrated, by merely scoffing at them as antiquated. In Egypt, at any rate, it seems to have had no such power of corrupting,—in fact, quite the reverse.

Clin. Such would evidently be the case, judging from what you now say.

Ath. May we confidently describe the correct method in music and play, in connection with choristry, in some such terms as this: we rejoice whenever we think we are prospering, and, conversely, whenever we rejoice we think we are prospering? Is not that so?

Clin. Yes, that is so.

Ath. Moreover, when in this state of joy we are unable to keep still.

Clin. True.

Ath. Now while our young men are fitted for actually dancing themselves, we elders regard ourselves as suitably employed in looking on at them, and enjoying their sport and merrymaking, now that our former nimbleness is leaving us; and it is our yearning regret for this that causes us to propose such contests for those who can best arouse in us through recollection, the dormant emotions of youth.

Clin. Very true.

Ath. Thus we shall not dismiss as entirely groundless the opinion now commonly expressed about merrymakers,—namely, that he who best succeeds in giving us joy and pleasure should be counted the most skilful and be awarded the prize. For, seeing that we give ourselves up on such occasions of recreation, surely the highest honor and the prize of victory, as I said just now, should be awarded to the performer who affords the greatest enjoyment to the greatest number.

Ath. Is not this the right view, and the right mode of action too,

supposing it were carried out?

Clin. Possibly.

Ath. But, my dear sir, we must not decide this matter hastily; rather we must analyze it thoroughly and examine it in some such fashion as this: suppose a man were to organize a competition, without qualifying or limiting it to gymnastic, musical or equestrian sports; and suppose that he should assemble the whole population of the State and, proclaiming that this is purely a pleasure-contest in which anyone who chooses may compete, should offer a prize to the competitor who gives the greatest amusement to the spectators,— without any restrictions as to the methods employed,—and who excels others just in doing this in the highest possible degree, and is adjudged the most pleasure-giving of the competitors: what do we suppose would be the effect of such a proclamation?

Clin. In what respect do you mean?

Ath. The natural result would be that one man would, like Homer, show up a rhapsody, another a harp-song, one a tragedy and another a comedy; nor should we be surprised if someone were even to fancy that he had the best chance of winning with a puppet-show. So where such as these and thousands others enter the competition, can we say who will deserve to win the prize?

Clin. An absurd question; for who could possibly pretend to know the answer before he had himself actually heard each of the competitors?

Ath. Very well, then; do you wish me to supply you with the answer to this absurd question?

Clin. By all means.

Ath. If the tiniest children are to be the judges, they will award the prize to the showman of puppets, will they not?

Clin. Certainly they will.

Ath. And older lads to the exhibitor of comedies; while the educated women and the young men, and the mass of the people in general, will award it to the shower of tragedies.

Clin. Most probably.

Ath. And we old men would very likely take most delight in listening to a rhapsode giving a fine recitation of the Iliad or the Odyssey or of a piece from Hesiod, and declare that he is easily the winner. Who then would rightly be the winner of the prize? That is the next question, is it not?

Clin. Yes.

Ath. Evidently we three cannot avoid saying that those who are

adjudged the winners by our own contemporaries would win rightly. For in our opinion epic poetry is by far the best to be found nowadays anywhere in any State in the world.

Clin. Of course.

Ath. Thus much I myself am willing to concede to the majority of men,—that the criterion of music should be pleasure not, however, the pleasure of any chance person; rather I should regard that music which pleases the best men and the highly educated as about the best, and as quite the best if it pleases the one man who excels all others in virtue and education. And we say that the judges of these matters need virtue for the reason that they need to possess not only wisdom in general, but especially courage. For the true judge should not take his verdicts from the dictation of the audience, nor yield weakly to the uproar of the crowd or his own lack of education; nor again, when he knows the truth, should he give his verdict carelessly through cowardice and lack of spirit, thus swearing falsely out of the same mouth with which he invoked Heaven when he first took his seat as judge.[21] For, rightly speaking, the judge sits not as a pupil, but rather as a teacher of the spectators, being ready to oppose those who offer them pleasure in a way that is unseemly or wrong; and that is what the present law of Sicily and Italy actually does: by entrusting the decision to the spectators, who award the prize by show of hands, not only has it corrupted the poets (since they adapt their works to the poor standard of pleasure of the judges, which means that the spectators are the teachers of the poets), but it has corrupted also the pleasures of the audience; for whereas they ought to be improving their standard of pleasure by listening to characters superior to their own, what they now do has just the opposite effect. What, then, is the conclusion to be drawn from this survey? Is it this, do you suppose?

Clin. What?

Ath. This is, I imagine, the third or fourth time that our discourse has described a circle and come back to this same point—namely, that education is the process of drawing and guiding children towards that principle which is pronounced right by the law and confirmed as truly right by the experience of the oldest and the most just. So in order that the soul of the child may not become habituated to having pains and pleasures in contradiction to the law and those who obey the law, but in conformity thereto, being pleased and pained at the same things

[21] Judges at musical and gymnastic contests, like all state officials, took an oath to discharge their duties with fidelity. See further, *Plat. Laws 6.764*.

as the old man,— for this reason we have what we call "chants," which evidently are in reality incantations[22] seriously designed to produce in souls that conformity and harmony of which we speak. But inasmuch as the souls of the young are unable to endure serious study, we term these "plays" and "chants," and use them as such,—

Ath.just as, when people suffer from bodily ailments and infirmities, those whose office it is try to administer to them nutriment that is wholesome in meats and drinks that are pleasant, but unwholesome nutriment in the opposite, so that they may form the right habit of approving the one kind and detesting the other. Similarly in dealing with the poet, the good legislator will use noble and laudable phrases to persuade him—and, failing persuasion, he will compel him—to portray by his rhythms the gestures, and by his harmonies the tunes, of men who are temperate, courageous, and good in all respects, and thereby to compose poems aright.

Clin. In Heaven's name, Stranger, do you believe that that is the way poetry is composed nowadays in other States? So far as my own observation goes, I know of no practices such as you describe except in my own country and in Lacedaemon; but I do know that novelties are always being introduced in dancing and all other forms of music, which changes due not to the laws, but to disorderly tastes and these are so far from being constantly uniform and stable—like the Egyptian ones you describe—that they are never for a moment uniform.

Ath. Nobly spoken, O Clinias! If, however, I seemed to you to say that the practices you refer to are in use now, very likely our mistake arose from my own failure to express my meaning clearly; probably I stated my own desires with regard to music in such a way that you imagined me to be stating present facts. To denounce things that are beyond remedy and far gone in error is a task that is by no means pleasant; but at times it is unavoidable. And now that you hold the same opinion on this subject, come, tell me, do you assert that such practices are more general among the Cretans and the Lacedaemonians than among the other Greeks?

Clin. Certainly.

Ath. Suppose now that they were to become general among the rest also,—should we say that the method of procedure then would be better than it is now?

Clin. The improvement would be immense, if things were done

[22] i.e. charms or magic formulae, canted over sick persons (or over snakes, *Euthyd.* 290A): cp. 664 B.

as they are in my country and in that of our friends here, and as, moreover, you yourself said just now they ought to be done.

Ath. Come now, let us come to an understanding on this matter. In all education and music in your countries, is not this your teaching? You oblige the poets to teach that the good man, since he is temperate and just, is fortunate and happy, whether he be great or small, strong or weak, rich or poor; whereas, though he be richer even "than Cinyras or Midas,"[23] if he be unjust, he is a wretched man and lives a miserable life.

Ath.Your poet says—if he speaks the truth—"I would spend no word on the man, and hold him in no esteem," who without justice performs or acquires all the things accounted good; and again he describes how the just man "drives his spear against the foe at close quarters," whereas the unjust man dares not "to look upon the face of bloody death," nor does he outpace in speed of foot "the north wind out of Thrace," nor acquire any other of the things called "good." For the things which most men call good are wrongly so described. Men say that the chief good is health, beauty the second, wealth the third; and they call countless other things "goods"—such as sharpness of sight and hearing, and quickness in perceiving all the objects of sense; being a king, too, and doing exactly as you please; and to possess the whole of these goods and become on the spot an immortal, that, as they say, is the crown and top of all felicity. But what you and I say is this,—that all these things are very good as possessions for men who are just and holy, but for the unjust they are (one and all, from health downwards) very bad; and we say too that sight and hearing and sensation and even of itself are very great evils for the man endowed with all the so-called goods, but lacking in justice and all virtue, if he is immortal forever, but a lesser evil for such a man if he survives but a short time. This, I imagine, is what you (like myself) will persuade or compel your poets to teach, and compel them also to educate your youth by furnishing them with rhythms and harmonies in consonance with this teaching. Am I not right? Just consider: what I assert is that what are called "evils" are good for the unjust, but evil for the just, while the so-called "goods" are really good for the good, but bad for the bad. Are you in accord with me, then,—that was my question,—or how stands the matter?

Clin. We are, apparently, partly in accord, but partly quite the

[23]Tyrtaeus xii. 6; see Bk. i. 629. Cinyras was a fabled king of Cyprus, son of Apollo and priest of Aphrodite. Midas, king of Phrygia, was noted for his wealth.

reverse.

Ath. Take the case of a man who has health and wealth and absolute power in perpetuity,—in addition to which I bestow on him, if you like, matchless strength and courage, together with immortality and freedom from all the other "evils" so called,—but a man who has within him nothing but injustice and insolence: probably I fail to convince you that the man who lives such a life is obviously not happy but wretched?

Clin. Quite true.

Ath. Well, then, what ought I to say next? Do you not think that if a man who is courageous, strong, beautiful, and rich, and who does exactly as he likes all his life long, is really unjust and insolent, he must necessarily be living a base life? Probably you will agree at any rate to call it "base"?

Clin. Certainly.

Ath. And also a bad life[24]?

Clin. We would not go so far as to admit that.

Ath. Well, would you admit the epithets "unpleasant" and "unprofitable to himself"?

Clin. How could we agree to such further descriptions?

Ath.

"How?" do you ask? Only (as it seems, my friend) if some god were to grant us concord, since at present we are fairly at discord one with another. In my opinion these facts are quite indisputable even more plainly so, my dear Clinias, than the fact that Crete is an island; and were I a legislator, I should endeavor to compel the poets and all the citizens to speak in this sense; and I should impose all but the heaviest of penalties on anyone in the land who should declare that any wicked men lead pleasant lives, or that things profitable and lucrative are different from things just; and there are many other things contrary to what is now said, as it seems, by Cretans and Lacedaemonians,—and of course by the rest of mankind,—which I should persuade my citizens to proclaim. For, come now, my most excellent sirs, in the name of Zeus and Apollo, suppose we should interrogate those very gods themselves who legislated for you, and ask:

"Is the most just life the most pleasant; or are there two lives, of which the one is most pleasant, the other most just?" If they replied that there were two, we might well ask them further, if we were to put

[24] *κακῶς ζῆν*, to live badly may mean either to live wickedly or to live wretchedly: Clinias takes it in this latter sense.

the correct question;

"Which of the two ought one to describe as the happier, those that live the most just or those that live the most pleasant life?" If they replied,

"Those that live the most pleasant life," that would be a monstrous statement in their mouths. But I prefer not to ascribe such statements to gods, but rather to ancestors and lawgivers: imagine, then, that the questions I have put have been put to an ancestor and lawgiver, and that he has stated that the man who lives the most pleasant life is the happiest. In the next place I would say to him this:

"O father, did you not desire me to live as happily as possible? Yet you never ceased bidding me constantly to live as justly as possible."

Ath. And hereby, as I think, our lawgiver or ancestor would be shown up as illogical and incapable of speaking consistently with himself, but if, on the other hand, he were to declare the most just life to be the happiest, everyone who heard him would, I suppose, enquire what is the good and charm it contains which is superior to pleasure, for which the lawgiver praises it. For, apart from pleasure, what good could accrue to a just man?

"Come, tell me, is fair fame and praise from the mouths of men and gods a noble and good thing, but unpleasant, while ill-fame is the opposite?"

"By no means, my dear lawgiver," we shall say. And is it unpleasant, but noble and good, neither to injure anyone nor be injured by anyone, while the opposite is pleasant, but ignoble and bad?

Clin. By no means.

Ath. So then the teaching which refuses to separate the pleasant from the just helps, if nothing else, to induce a man to live the holy and just life, so that any doctrine which denies this truth is, in the eyes of the lawgiver, most shameful and most hateful; for no one would voluntarily consent to be induced to commit an act, unless it involves as its consequence more pleasure than pain. Now distance has the effect of befogging the vision of nearly everybody, and of children especially; but our lawgiver will reverse the appearance by removing the fog,[25] and by one means or another—habituation, commendation, or argument—will persuade people that their notions of justice and injustice are illusory pictures, unjust objects appearing pleasant and

[25] i.e. the lawgiver will make justice clear and distinct by bringing citizens close up to it: discipline in just actions will give them a near and true view of it, and correct the wrong impression due to distance.

just objects most unpleasant to him who is opposed to justice, through being viewed from his own unjust and evil standpoint, but when seen from the standpoint of justice, both of them appear in all ways entirely the opposite.

Clin. So it appears.

Ath. In point of truth, which of the two judgements shall we say is the more authoritative,—that of the worse soul or that of the better.

Clin. That of the better, undoubtedly.

Ath. Undoubtedly, then, the unjust life is not only more base and ignoble, but also in very truth more unpleasant, than the just and holy life.

Clin. It would seem so, my friends, from our present argument.

Ath. And even if the state of the case were different from what it has now been proved to be by our argument, could a lawgiver who was worth his salt find any more useful fiction than this (if he dared to use any fiction at all in addressing the youths for their good), or one more effective in persuading all men to act justly in all things willingly and without constraint?

Clin. Truth is a noble thing, Stranger, and an enduring; yet to persuade men of it seems no easy matter.

Ath. Be it so; yet it proved easy to persuade men of the Sidonian fairy-tale,[26] incredible though it was, and of numberless others.

Clin. What tales?

Ath. The tale of the teeth that were sown, and how armed men sprang out of them. Here, indeed, the lawgiver has a notable example of how one can, if he tries, persuade the souls of the young of anything, so that the only question he has to consider in his inventing is what would do most good to the State, if it were believed; and then he must devise all possible means to ensure that the whole of the community constantly, so long as they live, use exactly the same language, so far as possible, about these matters, alike in their songs, their tales, and their discourses. If you, however, think otherwise, I have no objection to your arguing in the opposite sense.

Clin. Neither of us, I think, could possibly argue against your view.

Ath. Our next subject I must handle myself. I maintain that all the three choirs[27] must enchant the souls of the children, while still young and tender, by rehearsing all the noble things which we have already

[26] About Cadmus; cp. *Plat. Rep. 414c.*

[27] At Spartan festivals it was customary to have three choirs—of boys, young men, and older men.

recounted, or shall recount hereafter; and let this be the sum of them: in asserting that one and the same life is declared by the gods to be both most pleasant and most just, we shall not only be saying what is most true, but we shall also convince those who need convincing more forcibly than we could by any other assertion.

Clin. We must assent to what you say.

Ath. First, then, the right order of procedure will be for the Muses' choir of children to come forward first to sing these things with the utmost vigor and before the whole city; second will come the choir of those under thirty, invoking Apollo Paian[28] as witness of the truth of what is said, and praying him of grace to persuade the youth. The next singers will be the third choir, of those over thirty and under sixty; and lastly, there were left those who, being no longer able to uplift the song, shall handle the same moral themes in stories and by oracular speech.

Clin. Whom do you mean, Stranger, by these third choristers. For we do not grasp very clearly what you intend to convey about them.

Ath. Yet they are in fact the very people to whom most of our previous discourse was intended to lead up.

Clin. We are still in the dark: try to explain yourself more clearly still.

Ath. At the commencement of our discourse we said, if we recollect, that since all young creatures are by nature fiery, they are unable to keep still either body or voice, but are always crying and leaping in disorderly fashion; we said also that none of the other creatures attains a sense of order, bodily and vocal, and that this is possessed by man alone;

Ath. and that the order of motion is called "rhythm," while the order of voice (in which acute and grave are blended together) is termed "harmony," and to the combination of these two the name "choristry" is given. We stated also that the gods, in pity for us, have granted to us as fellow-choristers and choir-leaders Apollo and the Muses,—besides whom we mentioned, if we recollect, a third, Dionysus.

Clin. Certainly we recollect.

Ath. The choir of Apollo and that of the Muses have been described, and the third and remaining choir must necessarily be described, which is that of Dionysus.

Clin. How so? Tell us; for at the first mention of it, a Dionysiac choir of old men sounds mighty strange,—if you mean that men over

[28] i.e. the Healer. Cp. the medicinal sense of *ἐπᾴδειν*, enchant, in B4 above. Music is to be a medicine of the soul.

thirty, and even men over fifty and up to sixty, are really going to dance in his honor.

Ath. That is, indeed, perfectly true. It needs argument, I fancy, to show how such a procedure would be reasonable.

Clin. It does.

Ath. Are we agreed about our previous proposals?

Clin. In what respect?

Ath. That it is the duty of every man and child—bond and free, male and female,—and the duty of the whole State, to charm themselves unceasingly with the chants we have described, constantly changing them and securing variety in every way possible, so as to inspire the singers with an insatiable appetite for the hymns and with pleasure therein.

Clin. Assuredly we would agree as to the duty of doing this.

Ath. Then where should we put the best element in the State,—that which by age and judgment alike is the most influential it contains,—so that by singing its noblest songs it might do most good? Or shall we be so foolish as to dismiss that section which possesses the highest capacity for the noblest and most useful songs?

Clin. We cannot possibly dismiss it, judging from what you now say.

Ath. What seemly method can we adopt about it? Will the method be this?

Clin. What?

Ath. Every man as he grows older becomes reluctant to sing songs, and takes less pleasure in doing so; and when compelled to sing, the older he is and the more temperate, the more he will feel ashamed. Is it not so?

Clin. It is.

Ath. Surely, then, he will be more than ever ashamed to get up and sing in the theater, before people of all sorts. Moreover, if old men like that were obliged to do as the choristers do, who go lean and fasting when training their voices for a competition, they would assuredly find singing an unpleasant and degrading task, and they would undertake it with no great readiness.

Clin. That is beyond a doubt.

Ath. How then shall we encourage them to take readily to singing? Shall we not pass a law that, in the first place, no children under eighteen may touch wine at all, teaching that it is wrong to pour fire upon fire either in body or in soul, before they set about tackling their real work, and thus guarding against the excitable disposition of

the young? And next, we shall rule that the young man under thirty may take wine in moderation, but that he must entirely abstain from intoxication and heavy drinking. But when a man has reached the age of forty, he may join in the convivial gatherings and invoke Dionysus, above all other gods, inviting his presence at the rite (which is also the recreation) of the elders, which he bestowed on mankind as a medicine potent against the crabbedness of old age, that thereby we men may renew our youth, and that, through forgetfulness of care, the temper of our souls may lose its hardness and become softer and more ductile, even as iron when it has been forged in the fire. Will not this softer disposition, in the first place, render each one of them more ready and less ashamed to sing chants and "incantations" (as we have often called them), in the presence, not of a large company of strangers, but of a small number of intimate friends?

Clin. Yes! much more ready.

Ath. So then, for the purpose of inducing them to take a share in our singing, this plan would not be altogether unseemly.

Clin. By no means.

Ath. What manner of song will the men raise? Will it not, evidently, be one that suits their own condition in every case?

Clin. Of course.

Ath. What song, then, would suit godlike men? Would a choric song[29]?

Clin. At any rate, Stranger, we and our friends here would be unable to sing any other song than that which we learnt by practice in choruses.

Ath. Naturally; for in truth you never attained to the noblest singing. For your civic organization is that of an army rather than that of city-dwellers, and you keep your young people massed together like a herd of colts at grass:

Ath. none of you takes his own colt, dragging him away from his fellows, in spite of his fretting and fuming, and puts a special groom in charge of him, and trains him by rubbing him down and stroking him and using all the means proper to child-nursing, that so he may turn out not only a good soldier, but able also to manage a State and cities—in short, a man who (as we said at the first) is more of a warrior than the warriors of Tyrtaeus, inasmuch as always and everywhere, both in States and in individuals, he esteems courage as the fourth in order of the virtues, not the first.

[29] i.e. a song suited for singing by a chorus at a festival or other public occasion.

Clin. Once again, Stranger, you are—in a sort of a way—disparaging our lawgivers.

Ath. It is not intentionally, my friend, that I do so—if I am doing it but whither the argument leads us, thither, if you please, let us go. If we know of a music that is superior to that of the choirs or to that of the public theaters, let us try to supply it to those men who, as we said, are ashamed of the latter, yet are eager to take a part in that music which is noblest.

Clin. Certainly.

Ath. [30] Now, in the first place, must it not be true of everything which possesses charm as its concomitant, that its most important element is either this charm in itself, or some form of correctness, or, thirdly, utility? For instance, meat and drink and nutriment in general have, as I say, for concomitant that charm which we should term pleasure; but as regards their correctness and utility, what we call the wholesomeness of each article administered is precisely the most perfect element they contain.

Clin. Certainly.

Ath. Learning, too, is accompanied by the element of charm, which is pleasure; but that which produces its correctness and utility, its goodness and nobleness, is truth.

Clin. Quite so.

Ath. Then how about the imitative arts which produce likenesses? If they succeed in their productions, should not any concomitant pleasure which results therefrom be most properly called "charm"?

Clin. Yes.

Ath. But, speaking generally, the correctness of these things would be the result not, primarily, of pleasure, but of equality in respect of both quality and quantity.[31]

Clin. Excellent.

Ath. Then we shall rightly judge by the criterion of pleasure that object only which, in its effects, produces neither utility nor truth nor similarity, nor yet harm, and which exists solely for the sake of the

[30] The following passage (down to 669 B) deals with the considerations of which a competent judge must take account in the sphere of music and art. He must have regard to three things—"correctness" (the truth of the copy to the original), moral effect or "utility," and "charm" or pleasure. Though this last, by itself, is no criterion of artistic excellence, it is a natural "concomitant" (in the mind of the competent judge) when the work of art in question possesses a high degree of both "utility" and "correctness."

[31] i.e. a "likeness" must be "equal" to its original both in character and size.

concomitant element of charm,—which element will best be named "pleasure" whenever it is accompanied by none of the other qualities mentioned.

Clin. You mean only harmless pleasure.

Ath. Yes, and I say that this same pleasure is also play, whenever the harm or good it does is negligible.

Clin. Very true.

Ath. Should we not then assert, as a corollary, that no imitation should be judged by the criterion of pleasure or of untrue opinion, nor indeed should any kind of equality be so judged? The reason why the equal is equal, or the symmetrical symmetrical, is not at all because a man so opines, or is charmed thereby, but most of all because of truth, and least of all for any other reason.

Clin. Most certainly.

Ath. We assert, do we not, that all music is representative and imitative?

Clin. Of course.

Ath. So whenever a man states that pleasure is the criterion of music, we shall decisively reject his statement; and we shall regard such music as the least important of all (if indeed any music is important) and prefer that which possesses similarity in its imitation of the beautiful.

Clin. Very true.

Ath. Thus those who are seeking the best singing and music must seek, as it appears, not that which is pleasant, but that which is correct; and the correctness of imitation consists, as we say, in the reproduction of the original in its own proper quantity and quality.

Clin. Of course.

Ath. And this is certainly true of music, as everyone would allow,—that all its productions are imitative and representative;[32] that much, at least, they would all admit,—poets, audience, and actors alike, would they not?

Clin. They would.

Ath. Now the man who is to judge a poem[33] unerringly must know in each particular case the exact nature of the poem; for if he does not know its essence,—what its intention is and what the actual original which it represents,—then he will hardly be able to decide how far it

[32]Cp. *Plat. Laws 655d*, above. The music (songs and tunes) of dramatic compositions is specially alluded to.

[33]Or musical composition.

succeeds or fails in fulfilling its intention.

Clin. Hardly, to be sure.

Ath. And would a man who does not know what constitutes perfection be able to decide as to the goodness or badness of a poem? But I am not making myself quite clear: it might be clearer if I put it in this way—

Clin. In what way?

Ath. As regards objects of sight we have, of course, thousands of representations.

Clin. Yes.

Ath. How, then, if in this class of objects a man were to be ignorant of the nature of each of the bodies represented could he ever know whether it is perfectly executed? What I mean is this: whether it preserves the proper dimensions and the positions of each of the bodily parts, and has caught their exact number and the proper order in which one is placed next another, and their colors and shapes as well,—or whether all these things are wrought in a confused manner. Do you suppose that anyone could possibly decide these points if he were totally ignorant as to what animal was being represented?

Clin. How could he?

Ath. Well, suppose we should know that the object painted or moulded is a man, and know that art has endowed him with all his proper parts, colors, and shapes,—is it at once inevitable that the person who knows this can easily discern also whether the work is beautiful, or wherein it is deficient in beauty?

Clin. If that were so, Stranger, practically all of us would know what animals are beautiful.

Ath. You are quite right. In regard, then, to every representation—whether in painting, music or any other art—must not the judicious critic possess these three requisites: first, a knowledge of the nature of the original; next, a knowledge of the correctness of the copy; and thirdly, a knowledge of the excellence with which the copy is executed?

Clin. It would seem so, certainly.

Ath. Let us not hesitate, then, to mention the point wherein lies the difficulty of music. Just because it is more talked about than any other form of representation, it needs more caution than any. The man who blunders in this art will do himself the greatest harm, by welcoming base morals; and, moreover, his blunder is very hard to discern, inasmuch as our poets are inferior as poets to the Muses themselves.[34]

[34]In what follows, the main features censured are—incongruity, when the words,

For the Muses would never blunder so far as to assign a feminine tune and gesture to verses composed for men, or to fit the rhythms of captives and slaves to gestures framed for free men, or conversely, after constructing the rhythms and gestures of free men, to assign to the rhythms a tune or verses of an opposite style. Nor would the Muses ever combine in a single piece the cries of beasts and men, the clash of instruments, and noises of all kinds, by way of representing a single object; whereas human poets, by their senselessness in mixing such things and jumbling them up together, would furnish a theme for laughter to all the men who, in Orpheus' phrase, "have attained the full flower of joyousness." For they behold all these things jumbled together, and how, also, the poets rudely sunder rhythm and gesture from tune, putting tuneless words into meter, or leaving time and rhythm without words, and using the bare sound of harp or flute, wherein it is almost impossible to understand what is intended by this wordless rhythm and harmony, or what noteworthy original it represents.

Ath. Such methods, as one ought to realize, are clownish in the extreme in so far as they exhibit an excessive craving for speed, mechanical accuracy, and the imitation of animals' sounds, and consequently employ the pipe and the harp without the accompaniment of dance and song; for the use of either of these instruments by itself is the mark of the mountebank or the boor. Enough, then, of that matter: now as to ourselves. What we are considering is, not how those of us who are over thirty years old, or beyond fifty, ought not to make use of the Muses, but how they ought to do so. Our argument already indicates, I think, this result from our discussion,—that all men of over fifty that are fit to sing ought to have a training that is better than that of the choric Muse. For they must of necessity possess knowledge and a quick perception of rhythms and harmonies; else how shall a man know which tunes are correct?

Clin. Obviously he cannot know this at all.

Ath. It is absurd of the general crowd to imagine that they can fully understand what is harmonious and rhythmical, or the reverse, when they have been drilled to sing to the flute or step in time; and they fail to comprehend that, in doing each of these things, they do them

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tunes and gestures of an acted piece of music are out of harmony; senselessness, when tunes and gestures are divorced from words; barbarousness, when the thing represented is paltry or uncouth (such as a duck's quack); virtuosity, when the performer makes a display of the control he has over his limbs and instruments, like a mountebank or "contortionist." All these are marks of bad music from the point of view of the educationist and statesman, since they are neither "correct" nor morally elevating.

in ignorance. But the fact is that every tune which has its appropriate elements is correct, but incorrect if the elements are inappropriate.

Clin. Undoubtedly.

Ath. What then of the man who does not know in the least what the tune's elements are? Will he ever know about any tune, as we said, that it is correct?

Clin. There is no possible means of his doing so.

Ath. We are now once more, as it appears, discovering the fact that these singers of ours (whom we are now inviting and compelling, so to say, of their own free will to sing) must almost necessarily be trained up to such a point that every one of them may be able to follow both the steps[35] of the rhythms and the chords of the tunes, so that, by observing the harmonies and rhythms, they may be able to select those of an appropriate kind, which it is seemly for men of their own age and character to sing, and may in this wise sing them, and in the singing may not only enjoy innocent pleasure themselves at the moment, but also may serve as leaders to the younger men in their seemly adoption of noble manners. If they were trained up to such a point, their training would be more thorough than that of the majority, or indeed of the poets themselves.

Ath. For although it is almost necessary for a poet to have a knowledge of harmony and rhythm, it is not necessary for him to know the third point also—namely, whether the representation is noble or ignoble[36]; but for our older singers a knowledge of all these three points is necessary, to enable them to determine what is first, what second in order of nobility; otherwise none of them will ever succeed in attracting the young to virtue by his incantations. The primary intention of our argument, which was to demonstrate that our defence of the Dionysiac chorus was justifiable, has now been carried out to the best of our ability. Let us consider if that is really so. Such a gathering inevitably tends, as the drinking proceeds, to grow ever more and more uproarious; and in the case of the present day gatherings that is, as we said at the outset, an inevitable result.

Clin. Inevitable.

Ath. Everyone is uplifted above his normal self, and is merry and bubbles over with loquacious audacity himself, while turning a deaf ear to his neighbors, and regards himself as competent to rule both

[35] i.e. dance-steps and gestures: "chords" nearly equals "notes," with which the "steps" should "keep time."

[36] i.e. the composer, as such, is not concerned with the moral (or psychological) effect of the piece.

himself and everyone else.

Clin. To be sure.

Ath. And did we not say that when this takes place, the souls of the drinkers turn softer, like iron, through being heated, and younger too; whence they become ductile, just as when they were young, in the hands of the man who has the skill and the ability to train and mould them. And now, even as then, the man who is to mould them is the good legislator; he must lay down banqueting laws, able to control that banqueter who becomes confident and bold and unduly shameless, and unwilling to submit to the proper limits of silence and speech, of drinking and of music, making him consent to do in all ways the opposite,— laws able also, with the aid of justice, to fight against the entrance of such ignoble audacity, by bringing in that most noble fear which we have named "modesty" and "shame."

Clin. That is so.

Ath. And as law-wardens of these laws and cooperators therewith, there must be sober and sedate men to act as commanders over the un-sober; for to fight drunkenness without these would be a more formidable task than to fight enemies without sedate leaders. Any man who refuses willingly to obey these men and the officers of Dionysus (who are over sixty years of age) shall incur as much disgrace as the man who disobeys the officers of Ares, and even more.

Clin. Quite right.

Ath. If such was the character of the drinking and of the recreation, would not such fellow-drinkers be the better for it, and part from one another better friends than before, instead of enemies, as now? For they would be guided by laws in all their intercourse, and would listen to the directions given to the un-sober by the sober.

Clin. True, if it really were of the character you describe.

Ath. Then we must no longer, without qualification, bring that old charge against the gift of Dionysus, that it is bad and unworthy of admittance into a State. Indeed, one might enlarge considerably on this subject; for the greatest benefit that gift confers is one which one hesitates to declare to the multitude, since, when declared, it is misconceived and misunderstood.

Clin. What is that?

Ath. There is a secret stream of story and report to the effect that the god Dionysus was robbed of his soul's judgment by his stepmother Hera, and that in vengeance therefor he brought in Bacchic rites and all the frenzied choristry, and with the same aim bestowed also the gift of wine. These matters, however, I leave to those who think it safe to

say them about deities[37]; but this much I know,—that no creature is ever born in possession of that reason, or that amount of reason, which properly belongs to it when fully developed; consequently, every creature, during the period when it is still lacking in its proper intelligence, continues all in a frenzy, crying out wildly, and, as soon as it can get on its feet, leaping wildly. Let us remember how we said that in this we have the origin of music and gymnastic.[38]

Clin. We remember that, of course.

Ath. Do we not also remember how we said that from this origin there was implanted in us men the sense of rhythm and harmony, and that the joint authors thereof were Apollo and the Muses and the god Dionysus?

Clin. Certainly we remember.

Ath. Moreover, as to wine, the account given by other people apparently is that it was bestowed on us men as a punishment, to make us mad; but our own account, on the contrary, declares that it is a medicine given for the purpose of securing modesty of soul and health and strength of body.

Clin. You have recalled our account admirably, Stranger.

Ath. We may say, then, that the one half of the subject of choristry has now been disposed of. Shall we proceed at once to deal with the other half in whatever way seems best, or shall we leave it alone?

Clin. What halves do you mean? How are you dividing the subject?

Ath. In our view, choristry as a whole is identical with education as a whole; and the part of this concerned with the voice consists of rhythms and harmonies.

Clin. Yes.

Ath. And the part concerned with bodily motion possesses, in common with vocal motion, rhythm; besides which it possesses gesture as its own peculiar attribute, just as tune is the peculiar attribute of vocal motion.

Clin. Very true.

Ath. Now the vocal actions which pertain to the training of the soul in excellence we ventured somehow to name "music."

Clin. And rightly so.

Ath. As regards the bodily actions which we called playful dancing,—if such action attains to bodily excellence, we may term the

[37] i.e. the "frenzied" motion ascribed to Dionysus is, rather a natural instinct exhibited in all child-life, and D. helps to reduce it to rhythm.

[38] Cp. *Plat. Laws 653d ff.*

technical guidance of the body to this end "gymnastic."

Clin. Quite rightly.

Ath. As to music, which was referred to when we said a moment ago that the one half of choristry had been described and disposed of,—let us say the same of it now; but as to the other half, are we to speak about it, or what are we to do?

Clin. My good sir, you are conversing with Cretans and Lacedaemonians, and we have discussed the subject of music; what reply, then, to your question do you suppose that either of us will make, when the subject left still untouched is gymnastic?

Ath. You have given me a pretty clear answer, I should say, in putting this question; although it is a question, I understand it to be also (as I say) an answer—or rather, an actual injunction to give a full account of gymnastic.

Clin. You have grasped my meaning excellently: please do so.

Ath. Do it I must; and indeed it is no very hard task to speak of things well known to you both. For you are far better acquainted with this art than with the other.

Clin. That is about true.

Ath. The origin of the play[39] we are speaking of is to be found in the habitual tendency of every living creature to leap; and the human creature, by acquiring, as we said, a sense of rhythm, generated and brought forth dancing; and since the rhythm is suggested and awakened by the tune, the union of these two brought forth choristry and play.

Clin. Very true.

Ath. Of choristry we have already discussed the one part, and we shall next endeavor to discuss the other part.

Clin. By all means.

Ath. But, if you both agree, let us first put the finishing stroke to our discourse on the use of drink.

Clin. What, or what kind of, finish do you mean?

Ath. If a State shall make use of the institution now mentioned in a lawful and orderly manner, regarding it in a serious light and practising it with a view to temperance, and if in like manner and with a like object, aiming at the mastery of them, it shall allow indulgence in all other pleasures,—then they must all be made use of in the manner described.

Ath. But if, on the other hand, this institution is regarded in the

[39] i.e. playful motion, or dancing, as contrasted with "music" (or "harmony") which springs from the tendency to cry outc.

light of play, and if anyone that likes is to be allowed to drink whenever he likes and with any companions he likes, and that in conjunction with all sorts of other institutions,—then I would refuse to vote for allowing such a State or such an individual ever to indulge in drink, and I would go even beyond the practice of the Cretans and Lacedaemonians[40]; and to the Carthaginian law, which ordains that no soldier on the march should ever taste of this potion, but confine himself for the whole of the time to water-drinking only, I would add this, that in the city also no bondsman or bondsmaid should ever taste of it; and that magistrates during their year of office, and pilots and judges while on duty, should taste no wine at all; nor should any councillor, while attending any important council; nor should anyone whatever taste of it at all, except for reasons of bodily training or health, in the daytime; nor should anyone do so by night—be he man or woman—when proposing to procreate children. Many other occasions, also, might be mentioned when wine should not be drunk by men who are swayed by right reason and law. Hence, according to this argument, there would be no need for any State to have a large number of vineyards; and while all the other agricultural products, and all the foodstuffs, would be controlled, the production of wine especially would be kept within the smallest and most modest dimensions. Let this, then, Strangers, if you agree, be the finishing stroke which we put to our discourse concerning wine.

Clin. Very good; we quite agree.

[40]Cp. *Plat. Laws 1.637a, 637b.*

Book 3

Ath. So much for that, then! Now, what are we to say about the origin of government? Would not the best and easiest way of discerning it be from this standpoint?

Clin. What standpoint?

Ath. That from which one should always observe the progress of States as they move towards either goodness or badness.

Clin. What point is that?

Ath. The observation, as I suppose, of an infinitely long period of time and of the variations therein occurring.

Clin. Explain your meaning.

Ath. Tell me now: do you think you could ever ascertain the space of time that has passed since cities came into existence and men lived under civic rule?

Clin. Certainly it would be no easy task.

Ath. But you can easily see that it is vast and immeasurable?

Clin. That I most certainly can do.

Ath. During this time, have not thousands upon thousands of States come into existence, and, on a similar computation, just as many perished? And have they not in each case exhibited all kinds of constitutions over and over again? And have they not changed at one time from small to great, at another from great to small, and changed also from good to bad and from bad to good?

Clin. Necessarily.

Ath. Of this process of change let us discover, if we can, the cause; for this, perhaps, would show us what is the primary origin of constitutions, as well as their transformation.

Clin. You are right; and we must all exert ourselves,—you to expound your view about them, and we to keep pace with you.

Ath. Do you consider that there is any truth in the ancient tales?

Clin. What tales?

Ath. That the world of men has often been destroyed by floods, plagues, and many other things, in such a way that only a small portion of the human race has survived.

Clin. Everyone would regard such accounts as perfectly credible.

Ath. Come now, let us picture to ourselves one of the many catastrophes,—namely, that which occurred once upon a time through the Deluge.[41]

Clin. And what are we to imagine about it?

Ath. That the men who then escaped destruction must have been mostly herdsmen of the hills, scanty embers of the human race preserved somewhere on the mountain-tops.

Clin. Evidently.

Ath. Moreover, men of this kind must necessarily have been unskilled in the arts generally, and especially in such contrivances as men use against one another in cities for purposes of greed and rivalry and all the other villainies which they devise one against another.

Clin. It is certainly probable.

Ath. Shall we assume that the cities situated in the plains and near the sea were totally destroyed at the time?

Clin. Let us assume it.

Ath. And shall we say that all implements were lost, and that everything in the way of important arts or inventions that they may have had,—whether concerned with politics or other sciences,— perished at that time? For, supposing that things had remained all that time ordered just as they are now, how, my good sir, could anything new have ever been invented?

Clin. Do you mean that these things were unknown to the men of those days for thousands upon thousands of years, and that one or two thousand years ago some of them were revealed to Daedalus, some to Orpheus, some to Palamedes, musical arts to Marsyas and Olympus, lyric to Amphion, and, in short, a vast number of others to other persons—all dating, so to say, from yesterday or the day before?

Ath. Are you aware, Clinias, that you have left out your friend who was literally a man of yesterday?

Clin. Is it Epimenides[42] you mean?

Ath. Yes, I mean him. For he far outstripped everybody you had,

[41]Deucalion's Flood: cp. *Polit.* 270 C.

[42]Cp. *Plat. Laws 642d.*

my friend, by that invention of his of which he was the actual producer, as you Cretans say, although Hesiod[43] had divined it and spoken of it long before.

Clin. We do say so.

Ath. Shall we, then, state that, at the time when the destruction took place, human affairs were in this position: there was fearful and widespread desolation over a vast tract of land; most of the animals were destroyed, and the few herds of oxen and flocks of goats that happened to survive afforded at the first but scanty sustenance to their herdsmen?

Clin. Yes.

Ath. And as to the matters with which our present discourse is concerned—States and statecraft and legislation,—do we think they could have retained any memory whatsoever, broadly speaking, of such matters?

Clin. By no means.

Ath. So from those men, in that situation, there has sprung the whole of our present order—States and constitutions, arts and laws, with a great amount both of evil and of good?

Clin. How do you mean?

Ath. Do we imagine, my good Sir, that the men of that age, who were unversed in the ways of city life—many of them noble, many ignoble,—were perfect either in virtue or in vice?

Clin. Well said! We grasp your meaning.

Ath. As time went on and our race multiplied, all things advanced—did they not?—to the condition which now exists.

Clin. Very true.

Ath. But, in all probability, they advanced, not all at once, but by small degrees, during an immense space of time.

Clin. Yes, that is most likely.

Ath. For they all, I fancy, felt as it were still ringing in their ears a dread of going down from the highlands to the plains.

Clin. Of course.

Ath. And because there were so few of them round about in those days, were they not delighted to see one another, but for the fact that means of transport, whereby they might visit one another by sea or land, had practically all perished along with the arts? Hence

[43] *Hes. WD 640f. νήπιοι, οὐδὲ ἴασιν ὅσῳ πλέον ἥμισυ παντός, οὐδ' ὅσον ἐν μαλάχῃ τε καὶ ἀσφοδέλῳ μέγ' ὄνειαρ.* Hesiod's allusion to the "great virtue residing in mallow and asphodel" is supposed to have suggested to Epimenides his "invention" of a herbal concoction, or "elixir of life."

intercourse, I imagine, was not very easy. For iron and bronze and all the metals in the mines had been flooded and had disappeared; so that it was extremely difficult to extract fresh metal; and there was a dearth, in consequence, of felled timber. For even if there happened to be some few tools still left somewhere on the mountains, these were soon worn out, and they could not be replaced by others until men had rediscovered the art of metal-working.

Clin. They could not.

Ath. Now, how many generations, do we suppose, had passed before this took place?

Clin. A great many, evidently.

Ath. And during all this period, or even longer, all the arts that require iron and bronze and all such metals must have remained in abeyance?

Clin. Of course.

Ath. Moreover, civil strife and war also disappeared during that time, and that for many reasons.

Clin. How so?

Ath. In the first place, owing to their desolate state, they were kindly disposed and friendly towards one another; and secondly, they had no need to quarrel about food. For they had no lack of flocks and herds (except perhaps some of them at the outset), and in that age these were what men mostly lived on: thus they were well supplied with milk and meat, and they procured further supplies of food, both excellent and plentiful, by hunting. They were also well furnished with clothing and coverlets and houses, and with vessels for cooking and other kinds; for no iron is required for the arts of moulding and weaving, which two arts God gave to men to furnish them with all these necessaries, in order that the human race might have means of sprouting and increase whenever it should fall into such a state of distress. Consequently, they were not excessively poor, nor were they constrained by stress of poverty to quarrel one with another; and, on the other hand, since they were without gold and silver, they could never have become rich. Now a community which has no communion with either poverty or wealth is generally the one in which the noblest characters will be formed; for in it there is no place for the growth of insolence and injustice, of rivalries and jealousies. So these men were good, both for these reasons and because of their simple-mindedness, as it is called; for, being simple-minded, when they heard things called bad or good, they took what was said for gospel-truth and believed it. For none of them had the shrewdness of the modern man to suspect a

falsehood; but they accepted as true the statements made about gods and men, and ordered their lives by them. Thus they were entirely of the character we have just described.

Clin. Certainly Megillus and I quite agree with what you say.

Ath. And shall we not say that people living in this fashion for many generations were bound to be unskilled, as compared with either the antediluvians or the men of today, and ignorant of arts in general and especially of the arts of war as now practised by land and sea, including those warlike arts which, disguised under the names of law-suits and factions, are peculiar to cities, contrived as they are with every device of word and deed to inflict mutual hurt and injury; and that they were also more simple and brave and temperate, and in all ways more righteous? And the cause of this state of things we have already explained.

Clin. Quite true.

Ath. We must bear in mind that the whole purpose of what we have said and of what we are going to say next is this,—that we may understand what possible need of laws the men of that time had, and who their lawgiver was.

Clin. Excellent.

Ath. Shall we suppose that those men had no need of lawgivers, and that in those days it was not as yet usual to have such a thing? For those born in that age of the world's history did not as yet possess the art of writing, but lived by following custom and what is called patriarchal law.

Clin. That is certainly probable.

Ath. But this already amounts to a kind of government.

Clin. What kind?

Ath. Everybody, I believe, gives the name of "headship" to the government which then existed,—and it still continues to exist to-day among both Greeks and barbarians in many quarters.[44] And, of course, Homer mentions its existence in connection with the household system of the Cyclopes, where he says— "No halls of council and no laws are theirs,But within hollow caves on mountain heightsAloft they dwell, each making his own law." "For wife and child; of others reck they naught."*Hom. Od. 9.112*

Clin. This poet of yours seems to have been a man of genius. We have also read other verses of his, and they were extremely fine; though

[44]Cp. *Aristot. Pol. 1252b 17ff.* This "headship," which is the hereditary personal authority of the father of a family or chief of a clan, we should term "patriarchy."

in truth we have not read much of him, since we Cretans do not indulge much in foreign poetry.

Meg. But we Spartans do, and we regard Homer as the best of them; all the same, the mode of life he describes is always Ionian rather than Laconian. And now he appears to be confirming your statement admirably, when in his legendary account he ascribes the primitive habits of the Cyclopes to their savagery.

Ath. Yes, his testimony supports us; so let us take him as evidence that polities of this sort do sometimes come into existence.

Clin. Quite right.

Ath. Did they not originate with those people who lived scattered in separate clans or in single households, owing to the distress which followed after the catastrophes; for amongst these the eldest holds rule, owing to the fact that the rule proceeds from the parents, by following whom they form a single flock, like a covey of birds, and live under a patriarchal government and a kingship which is of all kingships the most just?

Clin. Most certainly.

Ath. Next, they congregate together in greater numbers, and form larger droves; and first they turn to farming on the hill-sides, and make ring-fences of rubble and walls to ward off wild beasts, till finally they have constructed a single large common dwelling.

Clin. It is certainly probable that such was the course of events.

Ath. Well, is not this also probable?

Clin. What?

Ath. That, while these larger settlements were growing out of the original small ones, each of the small settlements continued to retain, clan by clan, both the rule of the eldest and also some customs derived from its isolated condition and peculiar to itself. As those who begot and reared them were different, so these customs of theirs, relating to the gods and to themselves, differed, being more orderly where their forefathers had been orderly, and more brave where they had been brave; and as thus the fathers of each clan in due course stamped upon their children and children's children their own cast of mind, these people came (as we say) into the larger community furnished each with their own peculiar laws.

Clin. Of course.

Ath. And no doubt each clan was well pleased with its own laws, and less well with those of its neighbors.

Clin. True.

Ath. Unwittingly, as it seems, we have now set foot, as it were, on

the starting-point of legislation.

Clin. We have indeed.

Ath. The next step necessary is that these people should come together and choose out some members of each clan who, after a survey of the legal usages of all the clans, shall notify publicly to the tribal leaders and chiefs (who may be termed their "kings") which of those usages please them best, and shall recommend their adoption. These men will themselves be named "legislators," and when they have established the chiefs as "magistrates," and have framed an aristocracy, or possibly even a monarchy, from the existing plurality of "headships," they will live under the constitution thus transformed.

Clin. The next steps would certainly be such as you describe.

Ath. Let us go on to describe the rise of a third form of constitution, in which are blended all kinds and varieties of constitutions, and of States as well.[45]

Clin. What form is that?

Ath. The same that Homer himself mentioned next to the second, when he said that the third form arose in this way. His verses run thus— "Dardania he founded when as yetThe Holy keep of Ilium was not builtUpon the plain, a town for mortal folk,But still they dwelt upon the highland slopesOf many-fountained Ida."*Hom. Il. 20.216 ff.*

Ath. Indeed, these verses of his, as well as those he utters concerning the Cyclopes, are in a kind of unison with the voices of both God and Nature. For being divinely inspired in its chanting, the poetic tribe, with the aid of Graces and Muses, often grasps the truth of history.

Clin. It certainly does.

Ath. Now let us advance still further in the tale that now engages us; for possibly it may furnish some hint regarding the matter we have in view. Ought we not to do so?

Clin. Most certainly.

Ath. Ilium was founded, we say, after moving from the highlands down to a large and noble plain, on a hill of no great height which had many rivers flowing down from Ida above.

Clin. So they say.

Ath. And do we not suppose that this took place many ages after the Deluge?

Clin. Many ages after, no doubt.

[45]For this "mixed" polity of the "city of the plain," cp. the description of democracy in *Plat. Rep. 557d ff.*

Ath. At any rate they seem to have been strangely forgetful of the catastrophe now mentioned, since they placed their city, as described, under a number of rivers descending from the mount, and relied for their safety upon hillocks of no great height.

Clin. So it is evident that they were removed by quite a long interval from that calamity.

Ath. By this time, too, as mankind multiplied, many other cities had been founded.

Clin. Of course.

Ath. And these cities also made attacks on Ilium, probably by sea too, as well as by land, since by this time all made use of the sea fearlessly.

Clin. So it appears.

Ath. And after a stay of ten years the Achaeans sacked Troy.

Clin. Very true.

Ath. Now during this period of ten years, while the siege lasted, the affairs of each of the besiegers at home suffered much owing to the seditious conduct of the young men. For when the soldiers returned to their own cities and homes, these young people did not receive them fittingly and justly, but in such a way that there ensued a vast number of cases of death, slaughter, and exile. So they, being again driven out, migrated by sea; and because Dorieus[46] was the man who then banded together the exiles, they got the new name of "Dorians," instead of "Achaeans." But as to all the events that follow this, you Lacedaemonians relate them all fully in your traditions.

Meg. Quite true.

Ath. And now—as it were by divine direction—we have returned once more to the very point in our discourse on laws where we made our digression,[47] when we plunged into the subject of music and drinking-parties; and we can, so to speak, get a fresh grip upon the argument, now that it has reached this point,—the settlement of Lacedaemon, about which you said truly that it and Crete were settled under kindred laws. From the wandering course of our argument, and our excursion through various polities and settlements, we have now gained this much: we have discerned a first, a second and a third State,[48] all,

[46]We do not hear of him elsewhere; and the account here is so vague that it is hard to say what events (or traditions) are alluded to. The usual story is that Dorian invaders drove out the Achaeans from S. Greece (about 900 B.C.)

[47]Cp. *Plat. Laws 638d.*

[48]i.e., (1) the family or clan, under patriarchal "headship"; (2) the combination of clans under an aristocracy (or monarchy); (3) the "mixed" state (or "city of the

as we suppose, succeeding one another in the settlements which took place during vast ages of time. And now there has emerged this fourth State—or "nation," if you so prefer—which was once upon a time in course of establishment and is now established. Now, if we can gather from all this which of these settlements was right and which wrong, and which laws keep safe what is kept safe, and which laws ruin what is mined, and what changes in what particulars would effect the happiness of the State,—then, O Megillus and Clinias, we ought to describe these things again, making a fresh start from the beginning,—unless we have some fault to find with our previous statements.

Meg. I can assure you, Stranger, that if some god were to promise us that, in making this second attempt to investigate legislation, we shall listen to a discourse that is no worse and no shorter than that we have just been listening to, I for one would go a long way to hear it; indeed, this would seem quite a short day, although it is, as a matter of fact, close on midsummer.

Ath. So it seems that we must proceed with our enquiry.

Meg. Most certainly.

Ath. Let us, then, place ourselves in imagination at that epoch when Lacedaemon, together with Argos and Messene and the adjoining districts, had become completely subject, Megillus, to your forefathers. They determined next, according to the tradition, to divide their host into three parts, and to establish three States,—Argos, Messene and Lacedaemon.

Meg. Very true.

Ath. And Temenus became King of Argos, Cresphontes of Messene, and Proclus and Eurysthenes of Lacedaemon.

Meg. Of course.

Ath. And all the men of that time swore that they would assist these kings if anyone should try to wreck their kingdoms.

Meg. Quite so.

Ath. Is the dissolution of a kingdom, or of any government that has ever yet been dissolved, caused by any other agency than that of the rulers themselves? Or, though we made this assertion a moment ago when we happened upon this subject, have we now forgotten it?[49]

Meg. How could we possibly have forgotten?

Ath. Shall we further confirm that assertion now? For we have

plain," like Troy); and (4) the confederacy, consisting, in the example, of three States leagued together.

[49] Cp. *Plat. Laws 682d, 682e.*

come to the same view now, as it appears, in dealing with facts of history; so that we shall be examining it with reference not to a mere abstraction, but to real events. Now what actually took place was this: each of the three royal houses, and the cities under their sway, swore to one another,[50] according to the laws, binding alike on ruler and subject, which they had made,—the rulers that, as time went on and the nation advanced, they would refrain from making their rule more severe, and the subjects that, so long as the rulers kept fast to their promise, they would never upset the monarchy themselves, nor would they allow others to do so; and they swore that the kings should aid both kings and peoples when wronged, and the peoples aid both peoples and kings. Was not that the way of it?

Meg. It was.

Ath. In the polities legally established—whether by the kings or others—in the three States, was not this the most important principle?

Meg. What?

Ath. That the other two States should always help against the third, whenever it disobeyed the laws laid down.

Meg. Evidently.

Ath. And surely most people insist on this,— that the lawgivers shall enact laws of such a kind that the masses of the people accept them willingly; just as one might insist that trainers or doctors should make their treatments or cures of men's bodies pleasurable.

Meg. Exactly so.

Ath. But in fact one often has to be content if one can bring a body into a sound and healthy state with no great amount of pain.

Meg. Very true.

Ath. The men of that age possessed also another advantage which helped not a little to facilitate legislation.[51]

Meg. What was that?

Ath. Their legislators, in their efforts to establish equality of property, were free from that worst of accusations which is commonly incurred in States with laws of a different kind, whenever anyone seeks to disturb the occupation of land, or to propose the abolition of debts, since he perceives that without these measures equality could never be fully secured. In such cases, if the lawgiver attempts to disturb any of these things, everyone confronts him with the cry,

"Hands off," and they curse him for introducing redistributions of

[50] Cp. *Plat. Laws 692b.*

[51] Cp. *Plat. Laws 736c.*

land and remissions of debts, with the result that every man is rendered powerless. But the Dorians had this further advantage, that they were free from all dread of giving offence, so that they could divide up their land without dispute; and they had no large debts of old standing.[52]

Meg. True

Ath. How was it then, my good sirs, that their settlement and legislation turned out so badly?

Meg. What do you mean? What fault have you to find with it?

Ath. This, that whereas there were three States settled, two of the three[53] speedily wrecked their constitution and their laws, and one only remained stable—and that was your State, Megillus.

Meg. The question is no easy one.

Ath. Yet surely in our consideration and enquiry into this subject, indulging in an old man's sober play with laws, we ought to proceed on our journey painlessly, as we said[54] when we first started out.

Meg. Certainly, we must do as you say.

Ath. Well, what laws would offer a better subject for investigation than the laws by which those States were regulated? Or what larger or more famous States are there about whose settling we might enquire?

Meg. It would be hard to mention better instances than these.

Ath. It is fairly evident that the men of that age intended this organization of theirs to serve as an adequate protection not only for the Peloponnesus, but for the whole of Hellas as well, in case any of the barbarians should attack them just as the former dwellers around Ilium were emboldened to embark on the Trojan War through reliance on the Assyrian power as it had been in the reign of Ninus.[55] For much of the splendor of that empire still survived and the people of that age stood in fear of its confederate power, just as we men of today dread the Great King. For since Troy was a part of the Assyrian empire, the second[56] capture of Troy formed a grave charge against the Greeks. It was in view of all this that the Dorian host was at that time organizes and distributed amongst three States under brother princes, the sons of Heracles[57]; and men thought it admirably devised, and in

[52]i.e., the Dorian settlers, by right of conquest, were free to do as they pleased: none of the old owners or creditors could assert rights or claims.

[53]viz., Argos and Messene,—the third being Laconia.

[54]Cp. *Plat. Laws 625b.*

[55]The mythical founder of the Assyrian empire, husband of Semiramis, and builder of Nineveh (dated about 2200 B.C.).

[56]The first "capture" was by Heracles, in the reign of Laomedon, father of Priam. Cp. *Hom. Il. 5.640 ff.*

its equipment superior even to the host that had sailed to Troy. For men reckoned, first, that in the sons of Heracles they had better chiefs than the Pelopidae,[58] and further, that this army was superior in valor to the army which went to Troy, since the latter, which was Achaean, was worsted by the former, which was Dorian. Must we not suppose that it was in this way, and with this intention, that the men of that age organized themselves?

Meg. Certainly.

Ath. Is it not also probable that they would suppose this to be a stable arrangement, and likely to continue quite a long time, since they had shared together many toils and dangers, and were marshalled under leaders of a single family (their princes being brothers), and since, moreover, they had consulted a number of diviners and, amongst others, the Delphian Apollo?

Meg. That is certainly probable.

Ath. But it seems that these great expectations speedily vanished, except only, as we said, in regard to that small fraction, your State of Laconia; and ever since, up to the present day, this fraction has never ceased warring against the other two. For if the original intention had been realized, and if they had been in accord about their policy, it would have created a power invincible in war.

Meg. It certainly would.

Ath. How then, and by what means, was it destroyed? Is it not worth while to enquire by what stroke of fortune so grand a confederacy was wrecked?

Meg. Yes for, if one passed over these examples, one would not be likely to find elsewhere either laws or constitutions which preserve interests thus fair and great, or, on the contrary, wreck them totally.

Ath. Thus by a piece of good luck, as it seems, we have embarked on an enquiry of some importance.

Meg. Undoubtedly.

Ath. Now, my dear sir, do not men in general, like ourselves at the present moment, unconsciously fancy that every fine object they set eyes on would produce marvellous results, if only a man understood the right way to make a fine use of it? But for us to hold such an idea in regard to the matter before us would possibly be both wrong and against nature; and the same is true of all other cases where men hold

[57] viz., Temenus, king of Argos, Procles and Eurystheus of Laconia, Cresphontes of Messene.

[58] viz., Agamemnon and Menelaus.

such ideas.

Meg. What is it you mean? And what shall we say is the special point of your remarks ?

Ath. Why, my dear sir, I had a laugh at my own expense just now. For when I beheld this armament of which we are speaking, I thought it an amazingly fine thing, and that, if anyone had made a fine use of it at that time, it would have proved, as I said, a wonderful boon to the Greeks.

Meg. And was it not quite right and sensible of you to say this, and of us to endorse it?

Ath. Possibly; I conceive, however, that everyone, when he beholds a thing that is large, powerful and strong, is instantly struck by the conviction that, if its possessor knew how to employ an instrument of that magnitude and quality, he could make himself happy by many wonderful achievements.

Meg. Is not that a right conviction? Or what is your view?

Ath. Just consider what one ought to have in view in every instance, in order to justify the bestowal of such praise. And first, with regard to the matter now under discussion,—if the men who were then marshalling the army knew how to organize it properly, how would they have achieved success? Must it not have been by consolidating it firmly and by maintaining it perpetually, so that they should be both free themselves and masters over all others whom they chose, and so that both they and their children should do in general just what they pleased throughout the world of Greeks and barbarians alike? Are not these the reasons why they would be praised?

Meg. Certainly.

Ath. And in every case where a man uses the language of eulogy on seeing great wealth or eminent family distinctions or anything else of the kind, would it not be true to say that, in using it, he has this fact specially in mind,—that the possessor of such things is likely, just because of this, to realize all, or at least the most and greatest, of his desires.

Meg. That is certainly probable.

Ath. Come now, is there one object of desire—that now indicated by our argument—which is common to all men?

Meg. What is that?

Ath. The desire that, if possible, everything,—or failing that, all that is humanly possible—should happen in accordance with the demands of one's own heart.

Meg. To he sure.

Ath. Since this, then, is what we all wish always, alike in childhood and manhood and old age, it is for this, necessarily, that we should pray continually.

Meg. Of course.

Ath. Moreover, on behalf of our friends we will join in making the same prayer which they make on their own behalf.

Meg. To be sure.

Ath. And a son is a friend to his father, the boy to the man.

Meg. Certainly.

Ath. Yet the father will often pray the gods that the things which the son prays to obtain may in no wise he granted according to the son's prayers.

Meg. Do you mean, when the son who is praying is still young and foolish?

Ath. Yes, and also when the father, either through age or through the hot temper of youth, being devoid of all sense of right and justice, indulges in the vehement prayers of passion (like those of Theseus against Hippolytus[59], when he met his luckless end), while the son, on the contrary, has a sense of justice,—in this case do you suppose that the son will echo his father's prayers?

Meg. I grasp your meaning. You mean, as I suppose, that what a man ought to pray and press for is not that everything should follow his own desire, while his desire in no way follows his own reason; but it is the winning of wisdom that everyone of us, States and individuals alike, ought to pray for and strive after.

Ath. Yes. And what is more, I would recall to your recollection, as well as to my own, how it was said[60] (if you remember) at the outset that the legislator of a State, in settling his legal ordinances, must always have regard to wisdom. The injunction you gave was that the good lawgiver must frame all his laws with a view to war: I, on the other hand, maintained that, whereas by your injunction the laws would be framed with reference to one only of the four virtues, it was really essential to look to the whole of virtue, and first and above all to pay regard to the principal virtue of the four, which is wisdom and reason and opinion, together with the love and desire that accompany them. Now the argument has come back again to the same point, and I now

[59] Hippolytus was accused by his stepmother, Phaedra, of attempting to dishonor her: therefore his father (Theseus) invoked a curse upon him, and Poseidon (father of Theseus) sent a bull which scared the horses of H.'s chariot so that they upset the chariot and dragged him till he was dead.

[60] *Plat. Laws 630d ff.*

repeat my former statement,—in jest, if you will, or else in earnest; I assert that prayer is a perilous practice for him who is devoid of reason, and that what he obtains is the opposite of his desires. For I certainly expect that, as you follow the argument recently propounded, you will now discover that the cause of the ruin of those kingdoms, and of their whole design, was not cowardice or ignorance of warfare on the part either of the rulers or of those who should have been their subjects; but that what ruined them was badness of all other kinds, and especially ignorance concerning the greatest of human interests. That this was the course of events then, and is so still, whenever such events occur, and will be so likewise in the future,—this, with your permission, I will endeavor to discover in the course of the coming argument, and to make it as clear as I can to you, my very good friends.

Clin. Verbal compliments are in poor taste, Stranger; but by deed, if not by word, we shall pay you the highest of compliments by attending eagerly to your discourse; and that is what best shows whether compliments are spontaneous or the reverse.

Meg. Capital, Clinias! Let us do just as you say.

Clin. It shall be so, God willing. Only say on.

Ath. Well then, to advance further on the track of our discourse,—we assert that it was ignorance, in its greatest form, which at that time destroyed the power we have described, and which naturally produces still the same results; and if this is so, it follows that the lawgiver must try to implant in States as much wisdom as possible, and to root out folly to the utmost of his power.

Clin. Obviously.

Ath. What kind of ignorance would deserve to be called the "greatest"? Consider whether you will agree with my description; I take it to be ignorance of this kind,—

Clin. What kind?

Ath. That which we see in the man who hates, instead of loving, what he judges to be noble and good, while he loves and cherishes what he judges to be evil and unjust. That want of accord, on the part of the feelings of pain and pleasure, with the rational judgment is, I maintain, the extreme form of ignorance, and also the "greatest" because it belongs to the main mass of the soul,— for the part of the soul that feels pain and pleasure corresponds to the mass of the populace in the State.[61] So whenever this part opposes what are by nature the ruling

[61] In this comparison between the Soul and the State both are regarded as consisting of two parts or elements, the ruling and the ruled, of which the former is the noblest,

principles—knowledge, opinion, or reason,—this condition I call folly, whether it be in a State, when the masses disobey the rulers and the laws, or in an individual, when the noble elements of reason existing in the soul produce no good effect, but quite the contrary. All these I would count as the most discordant forms of ignorance, whether in the State or the individual, and not the ignorance of the artisan,—if you grasp my meaning, Strangers.

Clin. We do, my dear sir, and we agree with it.

Ath. Then let it be thus resolved and declared, that no control shall be entrusted to citizens thus ignorant, but that they shall be held in reproach for their ignorance, even though they be expert calculators, and trained in all accomplishments and in everything that fosters agility of soul, while those whose mental condition is the reverse of this shall be entitled "wise," even if—as the saying goes—

"they spell not neither do they swim"[62]; and to these latter, as to men of sense, the government shall be entrusted. For without harmony,[63] my friends, how could even the smallest fraction of wisdom exist? It is impossible. But the greatest and best of harmonies would most properly be accounted the greatest wisdom; and therein he who lives rationally has a share, whereas he who is devoid thereof will always prove to be a home-wrecker and anything rather than a saviour of the State, because of his ignorance in these matters. So let this declaration stand, as we recently said, as one of our axioms.

Clin. Yes, let it stand.

Ath. Our States, I presume, must have rulers and subjects.

Clin. Of course.

Ath. Very well then: what and how many are the agreed rights or claims in the matter of ruling and being ruled, alike in States, large or small, and in households? Is not the right of father and mother one of them? And in general would not the claim of parents to rule over offspring be a claim universally just?

Clin. Certainly.

Ath. And next to this, the right of the noble to rule over the ignoble;

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but the latter the "greatest" in bulk and extent. The ruling element in the Soul is Reason (*νοῦς, λόγος*), and in the State it is Law (*νόμος*) and its exponents: the subject element in the Soul consists of sensations, emotions and desires, which (both in hulk and in irrationality) correspond to the mass of the "volgus" in the State. Plato's usual division of the Soul is into three parts—reason (*νοῦς*), passion (*θυμός*), and desire (*ἐπιθυμία*): cp. *Plat. Rep. 435ff.*

[62] i.e., are ignorant of even the most ordinary accomplishments.

[63] Cp. *Plat. Rep. 430e; 591d.*

and then, following on these as a third claim, the right of older people to rule and of younger to be ruled.

Clin. To be sure.

Ath. The fourth right is that slaves ought to be ruled, and masters ought to rule.

Clin. Undoubtedly.

Ath. And the fifth is, I imagine, that the stronger should rule and the weaker be ruled.

Clin. A truly compulsory form of rule!

Ath. Yes, and one that is very prevalent among all kinds of creatures, being "according to nature," as Pindar of Thebes once said.[64] The most important right is, it would seem, the sixth, which ordains that the man without understanding should follow, and the wise man lead and rule. Nevertheless, my most sapient Pindar, this is a thing that I, for one, would hardly assert to be against nature, but rather according thereto—the natural rule of law, without force, over willing subjects.

Clin. A very just observation.

Ath. Heaven's favour and good-luck mark the seventh form of rule, where we bring a man forward for a casting of lots, and declare that if he gains the lot he will most justly be ruler, but if he fails he shall take his place among the ruled.

Clin. Very true.

Ath.

"Seest thou, O legislator,"—it is thus we might playfully address one of those who lightly start on the task of legislation—

"how many are the rights pertaining to rulers, and how they are essentially opposed to one another? Herein we have now discovered a source of factions, which thou must remedy. So do thou, in the first place, join with us in enquiring how it came to pass, and owing to what transgression of those rights, that the kings of Argos and Messene brought ruin alike on themselves and on the Hellenic power, splendid as it was at that epoch. Was it not through ignorance of that most true saying of Hesiod[65] that "oftimes the half is greater than the whole"?"

Clin. Most true, indeed.

Ath. Is it our view, then, that this causes ruin when it is found in

[64]Cp. *Plat. Gorg. 484b Πίνδαρος . . . λέγει ὅτι Νόμος . . . κατὰ ρύσιν ἄγει δικαιῶν τὸ βιαιότατον ὑπερτάτᾳ χεπί.*

[65]Cp. *Hes. WD 638 ff.*; *Rep.* 466 C.: the meaning is that when "the whole" is excessive, the moderate "half" is preferable; this maxim being here applied to excesses of political power.

kings rather than when found in peoples?

Clin. Probably this is, in the main, a disease of kings, in whom luxury breeds pride of life.

Ath. Is it not plain that what those kings strove for first was to get the better of the established laws, and that they were not in accord with one another about the pledge which they had approved both by word and by oath; and this discord—reputed to be wisdom, but really, as we affirm, the height of ignorance, owing to its grating dissonance and lack of harmony, brought the whole Greek world to ruin?

Clin. It would seem so, certainly.

Ath. Very well then: what precaution ought the legislator to have taken at that time in his enactments, to guard against the growth of this disorder? Verily, to perceive that now requires no great sagacity, nor is it a hard thing to declare; but the man who foresaw it in those days—if it could possibly have been foreseen—would have been a wiser man than we.

Meg. To what are you alluding?

Ath. If one looks at what has happened, Megillus, among you Lacedaemonians, it is easy to perceive, and after perceiving to state, what ought to have been done at that time.

Meg. Speak still more clearly.

Ath. The clearest statement would be this—

Meg. What?

Ath. If one neglects the rule of due measure, and gives things too great in power to things too small—sails to ships, food to bodies, offices of rule to souls—then everything is upset, and they run, through excess of insolence, some to bodily disorders, others to that offspring of insolence, injustice.[66] What, then, is our conclusion? Is it not this? There does not exist, my friends, a mortal soul whose nature, when young and irresponsible, will ever be able to stand being in the highest ruling position upon earth without getting surfeited in mind with that greatest of disorders, folly, and earning the detestation of its nearest friends; and when this occurs, it speedily ruins the soul itself and annihilates the whole of its power. To guard against this, by perceiving the due measure, is the task of the great lawgiver. So the most duly reasonable conjecture we can now frame as to what took place at that epoch appears to be this—

Meg. What?

Ath. To begin with, there was a god watching over you; and he,

[66] Cp. *Soph. OT 873*: *ὕβρις φυτεύει τύραννον*

foreseeing the future, restricted within due bounds the royal power by making your kingly line no longer single but twofold. In the next place, some man,[67] in whom human nature was blended with power divine, observing your government to be still swollen with fever, blended the self-willed force of the royal strain with the temperate potency of age, by making the power of the eight-and-twenty elders of equal weight with that of the kings in the greatest matters. Then your "third saviour,"[68] seeing your government still fretting and fuming, curbed it, as one may say, by the power of the ephors, which was not far removed from government by lot. Thus, in your case, according to this account, owing to its being blended of the right elements and possessed of due measure, the kingship not only survived itself but ensured the survival of all else. For if the matter had lain with Temenus and Cresphontes[69] and the lawgivers of their day—whosoever those lawgivers really were,—even the portion of Aristodemus[70] could never have survived, for they were not fully expert in the art of legislation; otherwise they could hardly have deemed it sufficient to moderate by means of sworn pledges[71] a youthful soul endowed with power such as might develop into a tyranny; but now God has shown of what kind the government ought to have been then, and ought to be now, if it is to endure. That we should understand this, after the occurrence, is—as I said before[72]—no great mark of sagacity, since it is by no means difficult to draw an inference from an example in the past; but if, at the time, there had been anyone who foresaw the result and was able to moderate the ruling powers and unify them,—such a man would have preserved all the grand designs then formed, and no Persian or other armament would ever have set out against Greece, or held us in contempt as a people of small account.

Clin. True.

Ath. The way they repulsed the Persians, Clinias, was disgraceful. But when I say "disgraceful," I do not imply that they did not win fine victories both by land and sea in those victorious campaigns: what I call "disgraceful" is this,—that, in the first place, one only of

[67] Lycurgus.

[68] Theopompus, king of Sparta about 750 B.C. The institution of the Ephorate is by some ascribed to him (as here), by others to Lycurgus. Cp. *Aristot. Pol. 1313a 19ff.*

[69] See *Plat. Laws 683d.*

[70] i.e., Lacedaemon: Aristodemus was father of Eurysthenes and Procles (cp. *Plat. Laws 683d*).

[71] Cp. *Plat. Laws 684a.*

[72] *Plat. Laws 691b*

those three States defended Greece, while the other two were so basely corrupt that one of them[73] actually prevented Lacedaemon from assisting Greece by warring against her with all its might, and Argos, the other,—which stood first of the three in the days of the Dorian settlement— when summoned to help against the barbarian, paid no heed and gave no help.[74] Many are the discreditable charges one would have to bring against Greece in relating the events of that war;

Ath.indeed, it would be wrong to say that Greece defended herself, for had not the bondage that threatened her been warded off by the concerted policy of the Athenians and Lacedaemonians, practically all the Greek races would have been confused together by now, and barbarians confused with Greeks and Greeks with barbarians,—just as the races under the Persian empire today are either scattered abroad or jumbled together and live in a miserable plight. Such, O Megillus and Clinias, are the charges we have to make against the so-called statesmen and lawgivers, both of the past and of the present, in order that, by investigating their causes, we may discover what different course ought to have been pursued; just as, in the case before us, we called it a blunder to establish by law a government that is great or unblended, our idea being that a State ought to be free and wise and in friendship with itself, and that the lawgiver should legislate with a view to this. Nor let it surprise us that, while we have often already proposed ends which the legislator should, as we say, aim at in his legislation, the various ends thus proposed are apparently different. One needs to reflect that wisdom and friendship, when stated to be the aim in view, are not really different aims, but identical and, if we meet with many other such terms, let not this fact disturb us.

Clin. We shall endeavor to bear this in mind as we traverse the arguments again. But for the moment, as regards friendship, wisdom and freedom,—tell us, what was it you intended to say that the lawgiver ought to aim at?

Ath. Listen. There are two mother-forms of constitution, so to call them, from which one may truly say all the rest are derived. Of these the one is properly termed monarchy, the other democracy, the extreme case of the former being the Persian polity, and of the latter the Athenian; the rest are practically all, as I said, modifications of these two. Now it is essential for a polity to partake of both these

[73] Messene

[74] Cp. *Hdt. 7.148ff.* The reference is to the Persian invasion under Mardonius in 490 B.C.; but there is no other evidence for the charge here made against Messene.

two forms, if it is to have freedom and friendliness combined with wisdom. And that is what our argument intends to enjoin, when it declares that a State which does not partake of these can never be rightly constituted.[75]

Clin. It could not.

Ath. Since the one embraced monarchy and the other freedom, unmixed and in excess, neither of them has either in due measure: your Laconian and Cretan States are better in this respect, as were the Athenian and Persian in old times— in contrast to their present condition. Shall we expound the reasons for this?

Clin. By all means—that is if we mean to complete the task we have set ourselves.

Ath. Let us attend then. When the Persians, under Cyrus, maintained the due balance between slavery and freedom, they became, first of all, free themselves, and, after that, masters of many others. For when the rulers gave a share of freedom to their subjects and advanced them to a position of equality, the soldiers were more friendly towards their officers and showed their devotion in times of danger; and if there was any wise man amongst them, able to give counsel, since the king was not jealous but allowed free speech and respected those who could help at all by their counsel,—such a man had the opportunity of contributing to the common stock the fruit of his wisdom. Consequently, at that time all their affairs made progress, owing to their freedom, friendliness and mutual interchange of reason.

Clin. Probably that is pretty much the way in which the matters you speak of took place.

Ath. How came it, then, that they were ruined in Cambyses' reign, and nearly restored again under Darius? Shall I use a kind of divination to picture this?

Clin. Yes that certainly will help us to gain a view of the object of our search.

Ath. What I now divine regarding Cyrus is this,—that, although otherwise a good and patriotic commander, he was entirely without a right education, and had paid no attention to household management.

Clin. What makes us say this?

Ath. Probably he spent all his life from boyhood in soldiering, and entrusted his children to the women folk to rear up; and they brought them up from earliest childhood as though they had already attained to Heaven's favour and felicity, and were lacking in no celestial gift; and

[75] Cp. *Plat. Laws 756e*; *Aristot. Pol. 1266a 1ff.*

so by treating them as the special favorites of Heaven, and forbidding anyone to oppose them, in anything, and compelling everyone to praise their every word and deed, they reared them up into what they were.

Clin. A fine rearing, I should say!

Ath. Say rather, a womanish rearing by royal women lately grown rich, who, while the men were absent, detained by many dangers and wars, reared up the children.

Clin. That sounds reasonable.

Ath. And their father, while gaining flocks and sheep and plenty of herds, both of men and of many other chattels, yet knew not that the children to whom he should bequeath them were without training in their father's craft, which was a hard one, fit to turn out shepherds of great strength, able to camp out in the open and to keep watch and, if need be, to go campaigning. He overlooked the fact that his sons were trained by women and eunuchs and that the indulgence shown them as "Heaven's darlings" had ruined their training, whereby they became such as they were likely to become when reared with a rearing that "spared the rod." So when, at the death of Cyrus, his sons took over the kingdom, over-pampered and undisciplined as they were, first, the one killed the other,[76] through annoyance at his being put on an equality with himself, and presently, being mad with drink and debauchery, he lost his own throne at the hands of the Medes, under the man then called the Eunuch,[77] who despised the stupidity of Cambyses.

Clin. That, certainly, is the story, and probably it is near to the truth.

Ath. Further, the story tells how the kingdom was restored to the Persians through Darius and the Seven.

Clin. It does.

Ath. Let us follow the story and see how things went.[78] Darius was not a king's son, nor was he reared luxuriously. When he came and seized the kingdom, with his six companions, he divided it into seven parts, of which some small vestiges remain even to this day; and he thought good to manage it by enacting laws into which he introduced some measure of political equality, and also incorporated in the law regulations about the tribute-money which Cyrus had promised the

[76] i.e., Cambyses killed Smerdis.

[77] i.e., the Magian, Gomates, who personated Smerdis and claimed the kingdom. After seven months' reign this usurper was slain by seven Persian nobles, of whom Darius was one (521 B.C.).

[78] Cf. *Hdt. 3.68-88.*

Persians, whereby he secured friendliness and fellowship amongst all classes of the Persians, and won over the populace by money and gifts; and because of this, the devotion of his armies won for him as much more land as Cyrus had originally bequeathed. After Darius came Xerxes, and he again was brought up with the luxurious rearing of a royal house:

"O Darius"—for it is thus one may rightly address the father—

"how is it that you have ignored the blunder of Cyrus, and have reared up Xerxes in just the same habits of life in which Cyrus reared Cambyses?" And Xerxes, being the product of the same training, ended by repeating almost exactly the misfortunes of Cambyses. Since then there has hardly ever been a single Persian king who was really, as well as nominally, "Great."[79]

Ath. And, as our argument asserts, the cause of this does not lie in luck, but in the evil life which is usually lived by the sons of excessively rich monarchs; for such an upbringing can never produce either boy or man or greybeard of surpassing goodness. To this, we say, the lawgiver must give heed,—as must we ourselves on the present occasion. It is proper, however, my Lacedaemonian friends, to give your State credit for this at least,—that you assign no different honor or training whatsoever to poverty or wealth, to the commoner or the king, beyond what your original oracle[80] declared at the bidding of some god. Nor indeed is it right that pre-eminent honors in a State should be conferred on a man because he is specially wealthy, any more than it is right to confer them because he is swift or comely or strong without any virtue, or with a virtue devoid of temperance.

Meg. What do you mean by that, Stranger?

Ath. Courage is, presumably, one part of virtue.

Meg. Certainly.

Ath. Now that you have heard the argument, judge for yourself whether you would welcome as housemate or neighbor a man who is extremely courageous, but licentious rather than temperate.

Meg. Don't suggest such a thing!

Ath. Well then,—a man wise in arts and crafts, but unjust.

Meg. Certainly not.

Ath. But justice, surely, is not bred apart from temperance.

Meg. Impossible.

Ath. Nor is he whom we recently proposed[81] as our type of

[79]The Persian monarch was commonly styled "the Great King."

[80]The laws of Lycurgus.

wisdom,—the man who has his feelings of pleasure and pain in accord with the dictates of right reason and obedient thereto.

Meg. No, indeed.

Ath. Here is a further point we must consider, in order to judge about the conferment of honors in States, when they are right and when wrong.

Meg. What point?

Ath. If temperance existed alone in a man's soul, divorced from all the rest of virtue, would it justly be held in honor or the reverse?

Meg. I cannot tell what reply to make.

Ath. Yet, in truth, you have made a reply, and a reasonable one. For if you had declared for either of the alternatives in my question, you would have said what is, to my mind, quite out of tune.

Meg. So it has turned out to be all right.

Ath. Very good. Accordingly, the additional element in objects deserving of honor or dishonor will be one that demands not speech so much as a kind of speechless silence.[82]

Meg. I suppose you mean temperance.

Ath. Yes. And of the rest, that which, with the addition of temperance, benefits us most would best deserve to be held in the highest honor, and the second in degree of benefit put second in order of honor; and so with each of the others in succession—to each it will be proper to assign the honor due to its rank.

Meg. Just so.

Ath. Well then, shall we not declare that the distribution of these things is the lawgiver's task?

Meg. Certainly.

Ath. Is it your wish that we should hand over the whole distribution to him, to deal with every case and all the details, while we—as legal enthusiasts ourselves also—confine ourselves to making a threefold division, and endeavor to distinguish what comes first in importance, and what second and third?[83]

Meg. By all means.

Ath. We declare, then, that a State which is to endure, and to be as happy as it is possible for man to be, must of necessity dispense honors rightly. And the right way is this: it shall be laid down that the

[81] Cp. *Plat. Laws 689d.*

[82] i.e., "temperance," regarded as merely an adjunct to civic merit, requires no further discussion at this point.

[83] Cp. *Plat. Laws 631b, c*; *Plat. Laws 661a ff.*; *Plat. Laws 726a ff.*; *Aristot. Nic. Eth. 1098b 12 ff.*

goods of the soul are highest in honor and come first, provided that the soul possesses temperance; second come the good and fair things of the body; and third the so-called goods of substance and property. And if any law-giver or State transgresses these rules, either by promoting wealth to honors, or by raising one of the lower goods to a higher rank by means of honors, he will be guilty of a breach both of religion and of statesmanship. Shall this be our declaration, or what?

Meg. By all means let us declare this plainly.

Ath. It was our investigation of the polity of the Persians that caused us to discuss these matters at greater length. We find that they grew still worse, the reason being, as we say, that by robbing the commons unduly of their liberty and introducing despotism in excess, they destroyed in the State the bonds of friendliness and fellowship. And when these are destroyed, the policy of the rulers no longer consults for the good of the subjects and the commons, but solely for the maintenance of their own power; if they think that it will profit them in the least degree, they are ready at any time to overturn States and to overturn and burn up friendly nations; and thus they both hate and are hated with a fierce and ruthless hatred. And when they come to need the commons, to fight in their support, they find in them no patriotism or readiness to endanger their lives in battle; so that, although they possess countless myriads of men, they are all useless for war, and they hire soldiers from abroad as though they were short of men, and imagine that their safety will be secured by hirelings and aliens.

Ath. And besides all this, they inevitably display their ignorance, inasmuch as by their acts they declare that the things reputed to be honorable and noble in a State are never anything but dross compared to silver and gold.

Meg. Very true.

Ath. So let this be the conclusion of our account of the Persian empire, and how its present evil administration is due to excess of slavery and of despotism.

Meg. By all means.

Ath. We ought to examine next, in like manner, the Attic polity, and show how complete liberty, unfettered by any authority, is vastly inferior to a moderate form of government under elected magistrates. At the time when the Persians made their onslaught upon the Greeks—and indeed one might say on nearly all the nations of Europe—we Athenians had an ancient constitution,[84] and magistrates based on

[84]That of Solon.

a fourfold grading; and we had Reverence, which acted as a kind of queen, causing us to live as the willing slaves of the existing laws. Moreover, the vastness of the Persian armament that threatened us both by sea and land, by the desperate fear it inspired, bound us still more closely in the bonds of slavery to our rulers and our laws; and because of all this, our mutual friendliness and patriotism was greatly intensified. It was just about ten years before the seafight at Salamis that the Persian force arrived under Datis, whom Darius had despatched expressly against the Athenians and Eretrians, with orders to bring them back in chains, and with the warning that death would be the penalty of failure. So within a very short time Datis, with his many myriads, captured by force the whole of the Eretrians; and to Athens he sent on an alarming account of how not a man of the Eretrians had escaped him: the soldiers of Datis had joined hands and swept the whole of Eretria clean as with a draw-net. This account—whether true, or whatever its origin—struck terror into the Greeks generally, and especially the Athenians; but when they sent out embassies in every direction to seek aid, all refused, except the Lacedaemonians; and they were hindered by the war they were then waging against Messene, and possibly by other obstacles, about which we have no information, with the result that they arrived too late by one single day for the battle which took place at Marathon. After this, endless threats and stories of huge preparations kept arriving from the Persian king.

Ath. Then, as time went on, news came that Darius was dead, and that his son, who had succeeded to the throne, was a young hothead, and still keen on the projected expedition. The Athenians imagined that all these preparations were aimed against them because of the affair at Marathon; and when they heard of how the canal had been made through Athos, and the bridge thrown over the Hellespont, and were told of the vast number of vessels in the Persian flotilla, then they felt that there was no salvation for them by land, nor yet by sea. By land they had no hopes that anyone would come to their aid; for they remembered how, on the first arrival of the Persians and their subjugation of Eretria, nobody helped them or ventured to join in the fight with them; and so they expected that the same thing would happen again on this occasion. By sea, too, they saw no hope of safety, with more than a thousand war-ships bearing down against them. One solitary hope of safety did they perceive—a slight one, it is true, and a desperate, yet the only hope—and it they derived from the events of the past, when victory in battle appeared to spring out of a desperate situation; and buoyed up by this hope, they discovered

that they must rely for refuge on themselves only and on the gods. So all this created in them a state of friendliness one towards another—both the fear which then possessed them, and that begotten of the past, which they had acquired by their subjection to the former laws—the fear to which, in our previous discussions,[85] we have often given the name of "reverence," saying that a man must be subject to this if he is to be good (though the coward is unfettered and unaffrighted by it). Unless this fear had then seized upon our people, they would never have united in self-defence, nor would they have defended their temples and tombs and fatherland, and their relatives and friends as well, in the way in which they then came to the rescue; but we would all have been broken up at that time and dispersed one by one in all directions.

Meg. What you say, Stranger, is perfectly true, and worthy of your country as well as of yourself.

Ath. That is so, Megillus: it is proper to mention the events of that period to you, since you share in the native character of your ancestors. But both you and Clinias must now consider whether what we are saying is at all pertinent to our law-making; for my narrative is not related for its own sake, but for the sake of the law-making I speak of. Just reflect: seeing that we Athenians suffered practically the same fate as the Persians—they through reducing their people to the extreme of slavery, we, on the contrary, by urging on our populace to the extreme of liberty—what are we to say was the sequel, if our earlier statements have been at all nearly correct?

Meg. Well said! Try, however, to make your meaning still more clear to us.

Ath. I will. Under the old laws, my friends, our commons had no control over anything, but were, so to say, voluntary slaves to the laws.

Meg. What laws do you mean?

Ath. Those dealing with the music of that age, in the first place,—to describe from its commencement how the life of excessive liberty grew up. Among us, at that time, music was divided into various classes and styles: one class of song was that of prayers to the gods, which bore the name of "hymns"; contrasted with this was another class, best called "dirges"; "paeans" formed another; and yet another was the "dithyramb," named, I fancy, after Dionysus. "Nomes" also were so called as being a distinct class of song; and these were further described as "citharoedic nomes."[86] So these and other kinds being

[85] Cp. *Plat. Laws 646e, 647c, 671d.*

classified and fixed, it was forbidden to set one kind of words to a different class of tune.[87] The authority whose duty it was to know these regulations, and, when known, to apply them in its judgments and to penalize the disobedient, was not a pipe nor, as now, the mob's unmusical shoutings, nor yet the clappings which mark applause: in place of this, it was a rule made by those in control of education that they themselves should listen throughout in silence, while the children and their ushers and the general crowd were kept in order by the discipline of the rod. In the matter of music the populace willingly submitted to orderly control and abstained from outrageously judging by clamor; but later on, with the progress of time, there arose as leaders of unmusical illegality poets who, though by nature poetical, were ignorant of what was just and lawful in music; and they, being frenzied and unduly possessed by a spirit of pleasure, mixed dirges with hymns and paeans with dithyrambs, and imitated flute-tunes with harp-tunes, and blended every kind of music with every other; and thus, through their folly, they unwittingly bore false witness against music, as a thing without any standard of correctness, of which the best criterion is the pleasure of the auditor, be he a good man or a bad.[88]

Ath.By compositions of such a character, set to similar words, they bred in the populace a spirit of lawlessness in regard to music, and the effrontery of supposing themselves capable of passing judgment on it. Hence the theater-goers became noisy instead of silent, as though they knew the difference between good and bad music, and in place of an aristocracy in music there sprang up a kind of base theatrocracy.[89] For if in music, and music only, there had arisen a democracy of free men, such a result would not have been so very alarming; but as it was, the universal conceit of universal wisdom and the contempt for law originated in the music, and on the heels of these came liberty. For, thinking themselves knowing, men became fearless; and audacity begat effrontery. For to be fearless of the opinion of a better man, owing to self-confidence, is nothing else than base effrontery; and it is brought about by a liberty that is audacious to excess.

Meg. Most true.

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[86]i.e., solemn chants sung to the "cithara" or lyre. "Dithyrambs" were choral odes to Dionysus; "paeans" were mostly hymns of praise to Apollo.

[87]Cp. *Plat. Laws 657c ff., 699c ff.*

[88]Cp. *Plat. Rep. 3.397a ff.*

[89]i.e., rule of the audience; as we might say, the pit and gallery sat in judgment. Cp. *Aristot. Pol. 8.6.*

Ath. Next after this form of liberty would come that which refuses to be subject to the rulers;[90] and, following on that, the shirking of submission to one's parents and elders and their admonitions; then, as the penultimate stage, comes the effort to disregard the laws; while the last stage of all is to lose all respect for oaths or pledges or divinities,—wherein men display and reproduce the character of the Titans of story, who are said to have reverted to their original state, dragging out a painful existence with never any rest from woe. What, again, is our object in saying all this? Evidently, I must, every time, rein in my discourse, like a horse, and not let it run away with me as though it had no bridle[91] in its mouth, and so "get a toss off the donkey"[92] (as the saying goes): consequently, I must once more repeat my question, and ask—

"With what object has all this been said?"

Meg. Very good.

Ath. What has now been said bears on the objects previously stated.

Meg. What were they?

Ath. We said[93] that the lawgiver must aim, in his legislation, at three objectives—to make the State he is legislating for free, and at unity with itself, and possessed of sense. That was so, was it not?

Meg. Certainly.

Ath. With these objects in view, we selected the most despotic of polities and the most absolutely free, and are now enquiring which of these is rightly constituted. When we took a moderate example of each—of despotic rule on the one hand, and liberty on the other,—we observed that there they enjoyed prosperity in the highest degree but when they advanced, the one to the extreme of slavery, the other to the extreme of liberty, then there was no gain to either the one or the other.

Meg. Most true.

Ath. With the same objects in view we surveyed,[94] also, the settling of the Doric host and the homes of Dardanus at the foot of the hills and the colony by the sea and the first men who survived the Flood, together with our previous discourses[95] concerning music and revelry,

[90] Cp. *Plat. Rep. 4.424e.*

[91] Cp. *Eur. Ba. 385.*

[92] A play on *ἀπ' ὄνου=ἀπὸ νοῦ*: to show oneself a fool: cr. Artist. *Nubes* 1274: *τί δῆτα ληρεῖς, ὥσπερ ἀπ' ὄνου καταπεσών.*

[93] Cp. *Plat. Laws 693b.*

[94] i.e., in Bk. iii. 676-693 (taken in the reverse order).

as well as all that preceded these. The object of all these discourses was to discover how best a State might be managed, and how best the individual citizen might pass his life. But as to the value of our conclusions, what test can we apply in conversing among ourselves, O Megillus and Clinias?

Clin. I think, Stranger, that I can perceive one. It is a piece of good luck for me that we have dealt with all these matters in our discourse. For I myself have now come nearly to the point when I shall need them, and my meeting with you and Megillus here was quite opportune. I will make no secret to you of what has befallen me; nay, more, I count it to be a sign from Heaven. The most part of Crete is undertaking to found a colony, and it has given charge of the undertaking to the Cnosians, and the city of Cnosus has entrusted it to me and nine others. We are bidden also to frame laws, choosing such as we please either from our own local laws or from those of other countries, taking no exception to their alien character, provided only that they seem superior. Let us, then, grant this favour to me, and yourselves also; let us select from the statements we have made, and build up by arguments the framework of a State, as though we were erecting it from the foundation. In this way we shall be at once investigating our theme, and possibly I may also make use of our framework for the State that is to be formed.

Ath. Your proclamation, Clinias, is certainly not a proclamation of war! So, if Megillus has no objection, you may count on me to do all I can to gratify your wish.

Clin. It is good to hear that.

Meg. And you can count on me too.

Clin. Splendid of you both! But, in the first place, let us try to found the State by word.

[95] i.e., in Books i. and ii.

Book 4

Ath. Come now, what is this State going to be, shall we suppose I am not asking for its present name or the name it will have to go by in the future; for this might be derived from the conditions of its settlement, or from some locality, or a river or spring or some local deity might bestow its sacred title on the new State. The point of my question about it is rather this,—is it to be an inland State, or situated on the sea-coast?

Clin. The State which I mentioned just now, Stranger, lies about eighty stades, roughly speaking, from the sea.

Ath. Well, has it harbors on the sea-board side, or is it quite without harbors?

Clin. It has excellent harbors on that side, Stranger, none better.

Ath. Dear me! how unfortunate![96] But what of the surrounding country? Is it productive in all respects, or deficient in some products?

Clin. There is practically nothing that it is deficient in.

Ath. Will there be any State bordering close on it?

Clin. None at all, and that is the reason for settling it. Owing to emigration from this district long ago, the country has lain desolate for ever so long.

Ath. How about plains, mountains and forests? What extent of each of these does it contain?

Clin. As a whole, it resembles in character the rest of Crete.

Ath. You would call it hilly rather than level?

Clin. Certainly.

Ath. Then it would not be incurably unfit for the acquisition of virtue. For if the State was to be on the sea-coast, and to have fine

[96] This remark is explained by what is said below, *Plat. Laws 705a.*

harbors, and to be deficient in many products, instead of productive of everything,—in that case it would need a mighty savior and divine lawgivers, if, with such a character, it was to avoid having a variety of luxurious and depraved habits.[97] As things are, however, there is consolation in the fact of that eighty stades. Still, it lies unduly near the sea, and the more so because, as you say, its harbors are good; that, however, we must make the best of. For the sea is, in very truth, "a right briny and bitter neighbor,"[98] although there is sweetness in its proximity for the uses of daily life; for by filling the markets of the city with foreign merchandise and retail trading, and breeding in men's souls knavish and tricky ways, it renders the city faithless and loveless, not to itself only, but to the rest of the world as well. But in this respect our State has compensation in the fact that it is all-productive; and since it is hilly, it cannot be highly productive as well as all-productive; if it were, and supplied many exports, it would be flooded in return with gold and silver money—the one condition of all, perhaps, that is most fatal, in a State, to the acquisition of noble and just habits of life,—as we said, if you remember, in our previous discourse.[99]

Clin. We remember, and we endorse what you said both then and now.

Ath. Well, then, how is our district off for timber for ship-building?

Clin. There is no fir to speak of, nor pine, and but little cypress; nor could one find much larch or plane, which shipwrights are always obliged to use for the interior fittings of ships.

Ath. Those, two, are natural features which would not be bad for the country.

Clin. Why so?

Ath. That a State should not find it easy to copy its enemies in bad habits is a good thing.

Clin. To which of our statements does this observation allude?

Ath. My dear Sir, keep a watch on me, with an eye cast back on our opening[100] statement about the Cretan laws. It asserted that those laws aimed at one single object; and whereas you declared that this object was military strength, I made the rejoinder that, while it was right that such enactments should have virtue for their aim, I did not at all approve of that aim being restricted to a part, instead of

[97] Cp. *Aristot. Pol. 7.6.*

[98] Quoted from Alcman.

[99] Cp. *Plat. Laws 679b.*

[100] Cp. *Plat. Laws 625e.*

applying to the whole. So do you now, in turn, keep a watch on my present lawmaking, as you follow it, in case I should enact any law either not tending to virtue at all, or tending only to a part of it.

Ath. For I lay it down as an axiom that no law is rightly enacted which does not aim always, like an archer, at that object, and that alone, which is constantly accompanied by something ever-beautiful,—passing over every other object, be it wealth or anything else of the kind that is devoid of beauty. To illustrate how the evil imitation of enemies, which I spoke of, comes about, when people dwell by the sea and are vexed by enemies, I will give you an example (though with no wish, of course, to recall to you painful memories). When Minos, once upon a time, reduced the people of Attica to a grievous payment of tribute, he was very powerful by sea, whereas they possessed no warships at that time such as they have now, nor was their country so rich in timber that they could easily supply themselves with a naval force. Hence they were unable quickly to copy the naval methods of their enemies and drive them off by becoming sailors themselves. And indeed it would have profited them to lose seventy times seven children rather than to become marines instead of staunch foot-soldiers; for marines are habituated to jumping ashore frequently and running back at full speed to their ships, and they think no shame of not dying boldly at their posts when the enemy attack; and excuses are readily made for them, as a matter of course, when they fling away their arms and betake themselves to what they describe as "no dishonorable flight." These "exploits" are the usual result of employing naval soldiery, and they merit, not "infinite praise," but precisely the opposite; for one ought never to habituate men to base habits, and least of all the noblest section of the citizens. That such an institution is not a noble one might have been learnt even from Homer. For he makes Odysseus abuse Agamemnon for ordering the Achaeans to haul down their ships to the sea, when they were being pressed in fight by the Trojans; and in his wrath he speaks thus:— "Dost bid our people hale their fair-benched shipsSeaward, when war and shouting close us round?So shall the Trojans see their prayers fulfilled,And so on us shall sheer destruction fall!For, when the ships are seaward drawn, no moreWill our Achaeans hold the battle up,But, backward glancing, they will quit the fray:" "Thus baneful counsel such as thine will prove."*Hom. Il. 14.96*

Ath. So Homer, too, was aware of the fact that triremes lined up in the sea alongside of infantry fighting on land are a bad thing: why, even lions, if they had habits such as these, would grow used to running away from does! Moreover, States dependent upon navies for

their power give honors, as rewards for their safety, to a section of their forces that is not the finest; for they owe their safety to the arts of the pilot, the captain and the rower— men of all kinds and not too respectable,—so that it would be impossible to assign the honors to each of them rightly. Yet, without rectitude in this, how can it still be right with a State?[101]

Clin. It is well-nigh impossible. None the less, Stranger, it was the sea-fight at Salamis, fought by the Greeks against the barbarians, which, as we Cretans at least affirm, saved Greece.

Ath. Yes, that is what is said by most of the Greeks and barbarians. But we—that is, I myself and our friend Megillus—affirm that it was the land-battle of Marathon which began the salvation of Greece, and that of Plataea which completed it; and we affirm also that, whereas these battles made the Greeks better, the sea-fights made them worse,—if one may use such an expression about battles that helped at that time to save us (for I will let you count Artemisium also as a sea-fight, as well as Salamis). Since, however, our present object is political excellence, it is the natural character of a country and its legal arrangements that we are considering; so that we differ from most people in not regarding mere safety and existence as the most precious thing men can possess, but rather the gaining of all possible goodness and the keeping of it throughout life. This too, I believe, was stated by us before.[102]

Clin. It was.

Ath. Then let us consider only this,—whether we are traversing by the same road which we took then, as being the best for states in the matter of settlements and modes of legislation.

Clin. The best by far.

Ath. In the next place tell me this: who are the people that are to be settled? Will they comprise all that wish to go from any part of Crete, supposing that there has grown up in every city a surplus population too great for the country's food supply? For you are not; I presume, collecting all who wish to go from Greece;

Ath. although I do, indeed, see in your country settlers from Argos, Aegina, and other parts of Greece. So tell us now from what quarters the present expedition of citizens is likely to be drawn.

Clin. It will probably be from the whole of Crete and of the rest of the Greeks, they seem most ready to admit people from the Pelo-

[101] Cp. *Plat. Laws 697b, 757a.*

[102] Cp. *Plat. Laws 637c.*

ponnese as fellow-settlers. For it is quite true, as you said just now, that we have some here from Argos, amongst them being the most famous of our clans, the Gortynian, which is a colony from Gortys, in the Peloponnese.

Ath. It would not be equally easy for States to conduct settlements in other cases as in those when, like a swarm of bees, a single clan goes out from a single country and settles, as a friend coming from friends, being either squeezed out by lack of room or forced by some other such pressing need. At times, too, the violence of civil strife might compel a whole section of a State to emigrate; and on one occasion an entire State went into exile, when it was totally crushed by an overpowering attack. All such cases are in one way easier to manage, as regards settling and legislation, but in another way harder. In the case where the race is one, with the same language and laws, this unity makes for friendliness, since it shares also in sacred rites and all matters of religion; but such a body does not easily tolerate laws or polities which differ from those of its homeland. Again, where such a body has seceded owing to civil strife due to the badness of the laws, but still strives to retain, owing to long habit, the very customs which caused its former ruin, then, because of this, it proves a difficult and intractable subject for the person who has control of its settlement and its laws. On the other hand, the clan that is formed by fusion of various elements would perhaps be more ready to submit to new laws, but to cause it to share in one spirit and pant (as they say) in unison like a team of horses would be a lengthy task and most difficult. But in truth legislation and the settlement of States are tasks that require men perfect above all other men in goodness.

Clin. Very probably; but tell us still more clearly the purport of these observations.

Ath. My good Sir, in returning to the subject of lawgivers in our investigation, I may probably have to cast a slur on them; but if what I say is to the point, then there will be no harm in it. Yet why should I vex myself? For practically all human affairs seem to be in this same plight.

Clin. What is it you refer to?

Ath. I was on the point of saying that no man ever makes laws, but chances and accidents of all kinds, occurring in all sorts of ways, make all our laws for us. For either it is a war that violently upsets polities and changes laws, or it is the distress due to grievous poverty. Diseases, too, often force on revolutions, owing to the inroads of pestilences and recurring bad seasons prolonged over many years. Foreseeing all this,

one might deem it proper to say—as I said just now—that no mortal man frames any law, but human affairs are nearly all matters of pure chance. But the fact is that, although one may appear to be quite right in saying this about sea-faring and the arts of the pilot, the physician, and the general, yet there really is something else that we may say with equal truth about these same things.

Clin. What is that?

Ath. That God controls all that is, and that Chance and Occasion co-operate with God in the control of all human affairs. It is, however, less harsh to admit that these two must be accompanied by a third factor, which is Art. For that the pilots' art should cooperate with Occasion—verily I, for one, should esteem that a great advantage. Is it not so?

Clin. It is.

Ath. Then we must grant that this is equally true in the other cases also, by parity of reasoning, including the case of legislation. When all the other conditions are present which a country needs to possess in the way of fortune if it is ever to be happily settled, then every such State needs to meet with a lawgiver who holds fast to truth.

Clin. Very true.

Ath. Would not, then, the man who possessed art in regard to each of the crafts mentioned be able to pray aright for that condition which, if it were given by Chance, would need only the supplement of his own art?

Clin. Certainly.

Ath. And if all the other craftsmen mentioned just now were bidden to state the object of their prayers, they could do so, could they not?

Clin. Of course.

Ath. And the lawgiver, I suppose, could do likewise?

Clin. I suppose so.

Ath.

"Come now, O lawgiver," let us say to him,

"what are we to give you, and what condition of State, to enable you, when you receive it, thence-forward to manage the State by yourself satisfactorily?"

Clin. What is the next thing that can rightly be said?

Ath. You mean, do you not, on the side of the lawgiver?

Clin. Yes.

Ath. This is what he will say:

"Give me the State under a monarchy;[103] and let the monarch be

young, and possessed by nature of a good memory, quick intelligence, courage and nobility of manner; and let that quality, which we formerly mentioned[104] as the necessary accompaniment of all the parts of virtue, attend now also on our monarch's soul, if the rest of his qualities are to be of any value."

Clin. Temperance, as I think, Megillus, is what the Stranger indicates as the necessary accompaniment. Is it not?

Ath. Yes, Clinias; temperance, that is, of the ordinary kind[105] not the kind men mean when they use academic language and identify temperance with wisdom, but that kind which by natural instinct springs up at birth in children and animals, so that some are not incontinent, others continent, in respect of pleasures; and of this we said[106] that, when isolated from the numerous so-called "goods," it was of no account. You understand, of course, what I mean.

Clin. Certainly.

Ath. Let our monarch, then, possess this natural quality in addition to the other qualities mentioned, if the State is to acquire in the quickest and best way possible the constitution it needs for the happiest kind of life. For there does not exist, nor could there ever arise, a quicker and better form of constitution than this.

Clin. How and by what argument, Stranger, could one convince oneself that to say this is to speak the truth?

Ath. It is quite easy to perceive at least this, Clinias, that the facts stand by nature's ordinance in the way described.

Clin. In what way do you mean? On condition, do you say, that there should be a monarch who was young, temperate, quick at learning, with a good memory, brave and of a noble manner?

Ath. Add also "fortunate,"—not in other respects, but only in this, that in his time there should arise a praiseworthy lawgiver, and that, by a piece of good fortune, the two of them should meet; for if this were so, then God would have done nearly everything that he does when he desires that a State should be eminently prosperous. The second best condition is that there should arise two such rulers; then comes the third best, with three rulers; and so on, the difficulty increasing in proportion as the number becomes greater, and vice versa.

[103] Cp. *Plat. Rep. 473c ff., 486a ff.*

[104] *Plat. Laws 696d.*

[105] *Plat. Laws 698a*;*Plat. Phaedo 82a ff.* The "academic" (or philosophic) identification of "virtue" with "wisdom" was a main feature in the ethics of Socrates; cp.*Plat. Rep. 430d ff.*

[106] *Plat. Laws 696d.*

Clin. You mean, apparently, that the best State would arise from a monarchy, when it has a first-rate lawgiver and a virtuous monarch, and these are the conditions under which the change into such a State could be effected most easily and quickly; and, next to this, from an oligarchy— or what is it you mean?

Ath. Not at all: the easiest step is from a monarchy, the next easiest from a monarchic constitution, the third from some form of democracy. An oligarchy, which comes fourth in order, would admit of the growth of the best State only with the greatest difficulty, since it has the largest number of rulers.

Ath. What I say is that the change takes place when nature supplies a true lawgiver, and when it happens that his policy is shared by the most powerful persons in the State; and wherever the State authorities are at once strongest and fewest in number, then and there the changes are usually carried out with speed and facility.

Clin. How so? We do not understand.

Ath. Yet surely it has been stated not once, I imagine, but many times over. But you, very likely, have never so much as set eyes on a monarchical State.

Clin. No, nor have I any craving for such a sight.

Ath. You would, however, see in it an illustration of what we spoke of just now.

Clin. What was that?

Ath. The fact that a monarch, when he decides to change the moral habits of a State, needs no great efforts nor a vast length of time, but what he does need is to lead the way himself first along the desired path, whether it be to urge the citizens towards virtue's practices or the contrary; by his personal example he should first trace out the right lines, giving praise and honor to these things, blame to those, and degrading the disobedient according to their several deeds.

Clin. Yes, we may perhaps suppose that the rest of the citizens will quickly follow the ruler who adopts such a combination of persuasion and force.

Ath. Let none, my friends, persuade us that a State could ever change its laws more quickly or more easily by any other way than by the personal guidance of the rulers: no such thing could ever occur, either now or hereafter. Indeed, that is not the result which we find it difficult or impossible to bring about; what is difficult to bring about is rather that result which has taken place but rarely throughout long ages, and which, whenever it does take place in a State, produces in that State countless blessings of every kind.

Clin. What result do you mean?

Ath. Whenever a heaven-sent desire for temperate and just institutions arises in those who hold high positions,—whether as monarchs, or because of conspicuous eminence of wealth or birth, or, haply, as displaying the character of Nestor, of whom it is said that, while he surpassed all men in the force of his eloquence, still more did he surpass them in temperance. That was, as they say, in the Trojan age, certainly not in our time; still, if any such man existed, or shall exist, or exists among us now, blessed is the life he leads, and blessed are they who join in listening to the words of temperance that proceed out of his mouth.

Ath. So likewise of power in general, the same rule holds good: whenever the greatest power coincides in man with wisdom and temperance, then the germ of the best polity is planted;[107] but in no other way will it ever come about. Regard this as a myth oracularly uttered, and let us take it as proved that the rise of a well-governed State is in one way difficult, but in another way—given, that is, the condition we mention—it is easier by far and quicker than anything else.

Clin. No doubt.

Ath. Let us apply the oracle to your State, and so try, like grey-beard boys, to model its laws by our discourse.[108]

Clin. Yes, let us proceed, and delay no longer.

Ath. Let us invoke the presence of the God at the establishment of the State; and may he hearken, and hearkening may he come, propitious and kindly to us-ward, to help us in the fashioning of the State and its laws.

Clin. Yes, may he come!

Ath. Well, what form of polity is it that we intend to impose upon the State?

Clin. What, in particular, do you refer to? Explain still more clearly. I mean, is it a democracy, an oligarchy, an aristocracy, or a monarchy? For certainly you cannot mean a tyranny: that we can never suppose.

Ath. Come now, which of you two would like to answer me first and tell me to which of these kinds his own polity at home belongs?

Meg. Is it not proper that I, as the elder, should answer first?

Clin. No doubt.

Meg. In truth, Stranger, when I reflect on the Lacedaemonian

[107] Cp. *Plat. Rep. 473d.*

[108] Cp. *Plat. Laws 746a.*

polity, I am at a loss to tell you by what name one should describe it. It seems to me to resemble a tyranny, since the board of ephors it contains is a marvellously tyrannical feature; yet sometimes it strikes me as, of all States, the nearest to a democracy. Still, it would be totally absurd to deny that it is an aristocracy; while it includes, moreover, a life monarchy, and that the most ancient of monarchies, as is affirmed, not only by ourselves, but by all the world. But now that I am questioned thus suddenly, I am really, as I said, at a loss to say definitely to which of these polities it belongs.

Clin. And I, Megillus, find myself equally perplexed; for I find it very difficult to affirm that our Cnosian polity is any one of these.

Ath. Yes, my good Sirs; for you do, in fact, partake in a number of polities. But those we named just now are not polities, but arrangements of States which rule or serve parts of themselves, and each is named after the ruling power. But if the State ought to be named after any such thing, the name it should have borne is that of the God who is the true ruler of rational men.

Clin. Who is that God?

Ath. May we, then, do a little more story-telling, if we are to answer this question suitably?

Clin. Should we not do so?

Ath. We should. Long ages before even those cities existed whose formation we have described above, there existed in the time of Cronos, it is said, a most prosperous government and settlement, on which the best of the States now existing is modelled.[109]

Clin. Evidently it is most important to hear about it.

Ath. I, for one, think so; and that is why I have introduced the mention of it.

Meg. You were perfectly right to do so; and, since your story is pertinent, you will be quite right in going on with it to the end.

Ath. I must do as you say. Well, then, tradition tells us how blissful was the life of men in that age, furnished with everything in abundance, and of spontaneous growth. And the cause thereof is said to have been this: Cronos was aware of the fact that no human being (as we have explained[110]) is capable of having irresponsible control of all human affairs without becoming filled with pride and injustice; so, pondering this fact, he then appointed as kings and rulers for our cities, not men, but beings of a race that was nobler and more divine, namely,

[109] Cp. *Politic. 271.*

[110] *Plat. Laws 691c, 691d.*

daemons. He acted just as we now do in the case of sheep and herds of tame animals: we do not set oxen as rulers over oxen, or goats over goats, but we, who are of a nobler race, ourselves rule over them. In like manner the God, in his love for humanity, set over us at that time the nobler race of daemons who, with much comfort to themselves and much to us, took charge of us and furnished peace and modesty and orderliness and justice without stint, and thus made the tribes of men free from feud and happy.

Ath. And even today this tale has a truth to tell, namely, that wherever a State has a mortal, and no god, for ruler, there the people have no rest from ills and toils; and it deems that we ought by every means to imitate the life of the age of Cronos, as tradition paints it, and order both our homes and our States in obedience to the immortal element within us, giving to reason's ordering the name of "law."[111] But if an individual man or an oligarchy or a democracy, possessed of a soul which strives after pleasures and lusts and seeks to surfeit itself therewith, having no continence and being the victim of a plague that is endless and insatiate of evil,— if such an one shall rule over a State or an individual by trampling on the laws, then there is (as I said just now) no means of salvation. This, then, is the statement, Clinias, which we have to examine, to see whether we believe it, or what we are to do.

Clin. We must, of course, believe it.

Ath. Are you aware that, according to some, there are as many kinds of laws as there are kinds of constitutions? And how many constitutions are commonly recognized we have recently recounted.[112] Please do not suppose that the problem now raised is one of small importance; rather it is of the highest importance. For we are again[113] faced with the problem as to what ought to be the aim of justice and injustice. The assertion of the people I refer to is this,— that the laws ought not to aim either at war or at goodness in general, but ought to have regard to the benefit of the established polity, whatever it may be, so that it may keep in power forever and never be dissolved; and that the natural definition of justice is best stated in this way.

Clin. In what way?

Ath. That justice is "what benefits the stronger."[114].

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[111] A double word-play: *νοῦς*=*νόμος*, and *διανομάς*=*δαίμονας*. Laws, being "the dispensation of reason," take the place of the "daemons" of the age of Cronos: the divine element in man (*τὸ δαιμόνιον*), which claims obedience, is reason (*νοῦς*).

[112] *Plat. Laws 712c.*

[113] Cp. *Plat. Laws 630b, 690b, 690c.*

Clin. Explain yourself more clearly.

Ath. This is how it is:—the laws (they say) in a State are always enacted by the stronger power? Is it not so?

Clin. That is quite true.

Ath. Do you suppose, then (so they argue), that a democracy or any other government—even a tyrant—if it has gained the mastery, will of its own accord set up laws with any other primary aim than that of securing the permanence of its own authority?

Clin. Certainly not.

Ath. Then the lawgiver will style these enactments "justice," and will punish every transgressor as guilty of injustice.

Clin. That is certainly probable.

Ath. So these enactments will thus and herein always constitute justice.

Clin. That is, at any rate, what the argument asserts.

Ath. Yes, for this is one of those "agreed claims" concerning government.[115]

Clin. What "claims"?

Ath. Those which we dealt with before,—claims as to who should govern whom. It was shown that parents should govern children, the older the younger, the high-born the low-born, and (if you remember) there were many other claims, some of which were conflicting. The claim before us is one of these, and we said that[116]—to quote Pindar—"the law marches with nature when it justifies the right of might."

Clin. Yes, that is what was said then.

Ath. Consider now, to which class of men should we entrust our State. For the condition referred to is one that has already occurred in States thousands of times.

Clin. What condition?

Ath. Where offices of rule are open to contest, the victors in the contest monopolize power in the State so completely that they offer not the smallest share in office to the vanquished party or their descendants; and each party keeps a watchful eye on the other, lest anyone should come into office and, in revenge for the former troubles, cause a rising against them. Such polities we, of course, deny to be polities, just as we deny that laws are true laws unless they are enacted in the interest of the common weal of the whole State. But where the laws

[114]Cp.*Plat. Rep. 1.338, 2.367.*

[115]Cp. *Plat. Laws 690b.*

[116]Cp. *Plat. Laws 690b*, with the footnote.

are enacted in the interest of a section, we call them feudalities[117] rather than polities; and the "justice" they ascribe to such laws is, we say, an empty name. Our reason for saying this is that in your State we shall assign office to a man, not because he is wealthy, nor because he possesses any other quality of the kind—such as strength or size or birth; but the ministration of the laws must be assigned, as we assert, to that man who is most obedient to the laws and wins the victory for obedience in the State,—the highest office to the first, the next to him that shows the second degree of mastery, and the rest must similarly be assigned, each in succession, to those that come next in order. And those who are termed "magistrates" I have now called "ministers"[118] of the laws, not for the sake of coining a new phrase, but in the belief that salvation, or ruin, for a State hangs upon nothing so much as this. For wherever in a State the law is subservient and impotent, over that State I see ruin impending; but wherever the law is lord over the magistrates, and the magistrates are servants to the law, there I descry salvation and all the blessings that the gods bestow on States.

Clin. Aye, by Heaven, Stranger; for, as befits your age, you have keen sight.

Ath. Yes; for a man's vision of such objects is at its dullest when he is young, but at its keenest when he is old.

Clin. Very true.

Ath. What, then, is to be our next step? May we not assume that our immigrants have arrived and are in the country, and should we not proceed with our address to them?

Clin. Of course.

Ath. Let us, then, speak to them thus:—

"O men, that God who, as old tradition[119] tells, holdeth the beginning, the end, and the center of all things that exist, completeth his circuit by nature's ordinance in straight, unswerving course. With him followeth Justice, as avenger of them that fall short of the divine law; and she, again, is followed by every man who would fain be happy, cleaving to her with lowly and orderly behavior; but whoso is uplifted by vainglory, or prideth himself on his riches or his honors or his comeliness of body, and through this pride joined to youth and folly, is inflamed in soul with insolence, dreaming that he has no need of ruler

[117] A word coined (like the Greek) to suggest a constitution based on "feuds" or party-divisions.

[118] "Magistrates" = rulers; "ministers" = subjects, or servants.

[119] Probably Orphic, quoted thus by the scholiast: *Ζεὺς ἀρχή, Ζεὺς μέσσα, Διὸς δ' ἐκ πάντα τέτυκται.*

or guide, but rather is competent himself to guide others,— such an one is abandoned and left behind by the God, and when left behind he taketh to him others of like nature, and by his mad prancings throweth all into confusion: to many, indeed, he seemeth to be some great one, but after no long time he payeth the penalty, not unmerited, to Justice, when he bringeth to total ruin himself, his house, and his country. Looking at these things, thus ordained, what ought the prudent man to do, or to devise, or to refrain from doing?"

Clin. The answer is plain: Every man ought so to devise as to be of the number of those who follow in the steps of the God.

Ath. What conduct, then, is dear to God and in his steps? One kind of conduct, expressed in one ancient phrase,[120] namely, that "like is dear to like" when it is moderate, whereas immoderate things are dear neither to one another nor to things moderate. In our eyes God will be "the measure of all things" in the highest degree—a degree much higher than is any "man" they talk of.[121] He, then, that is to become dear to such an one must needs become, so far as he possibly can, of a like character; and, according to the present argument, he amongst us that is temperate is dear to God, since he is like him, while he that is not temperate is unlike and at enmity,—as is also he who is unjust, and so likewise with the rest, by parity of reasoning. On this there follows, let us observe, this further rule,—and of all rules it is the noblest and truest,—that to engage in sacrifice and communion with the gods continually, by prayers and offerings and devotions of every kind, is a thing most noble and good and helpful towards the happy life, and superlatively fitting also, for the good man; but for the wicked, the very opposite.

Ath. For the wicked man is unclean of soul, whereas the good man is clean; and from him that is defiled no good man, nor god, can ever rightly receive gifts. Therefore all the great labor that impious men spend upon the gods is in vain, but that of the pious is most profitable to them all. Here, then, is the mark at which we must aim; but as to shafts we should shoot, and (so to speak) the flight of them,— what kind of shafts, think you, would fly most straight to the mark? First of all, we say, if—after the honors paid to the Olympians and

[120]Cp. *Hom. Od. 17.218*:*ὡς αἰεὶ τὸν ὁμοῖον ἄγει θεὸς ὡς τὸν ὁμοῖον.* The expression "like to like" became proverbial, like our "Birds of a feather," etc. Usually it was applied more to the bad than to the good (or "moderate") to which Plato here restricts it.

[121]An allusion to the dictum of the sophist Protagoras—"Man is the measure of all things," cp. *Cratylus* 386 A ff.; *Theaetetus* 152 A.

the gods who keep the State—we should assign the Even and the Left as their honors to the gods of the under-world, we would be aiming most straight at the mark of piety— as also in assigning to the former gods the things superior, the opposites of these.[122] Next after these gods the wise man will offer worship to the daemons, and after the daemons to the heroes. After these will come private shrines legally dedicated to ancestral deities; and next, honors paid to living parents. For to these duty enjoins that the debtor should pay back the first and greatest of debts, the most primary of all dues, and that he should acknowledge that all that he owns and has belongs to those who begot and reared him, so that he ought to give them service to the utmost of his power—with substance, with body, and with soul, all three—thus making returns for the loans of care and pain spent on the children by those who suffered on their behalf in bygone years, and recompensing the old in their old age, when they need help most. And throughout all his life he must diligently observe reverence of speech towards his parents above all things, seeing that for light and winged words there is a most heavy penalty,—for over all such matters Nemesis, messenger of Justice, is appointed to keep watch;[123] wherefore the son must yield to his parents when they are wroth, and when they give rein to their wrath either by word or deed, he must pardon them, seeing that it is most natural for a father to be especially wroth when he deems that he is wronged by his own son. When parents die, the most modest funeral rites are the best, whereby the son neither exceeds the accustomed pomp, nor falls short of what his forefathers paid to their sires; and in like manner he should duly bestow the yearly attentions, which ensure honor, on the rites already completed.

Ath. He should always venerate them, by never failing to provide a continual memorial, and assigning to the deceased a due share of the means which fortune Provides for expenditure. Every one of us, if we acted thus and observed these rules of life, would win always a due reward from the gods and from all that are mightier than ourselves, and would pass the greatest part of our lives in the enjoyment of hopes of

[122]This account of the ritual proper to the worship of the various deities is obscure. Plainly, however, it is based on the Pythagorean doctrine of "Opposites," in which the Odd (number) is "superior" to the Even, and the "Right" (side) to the Left (as also the "Male" to the "Female"). It is here laid down that "honors" (or worship) of the "superior" grade are to be offered only to the deities of Olympus, or of the State, and inferior honors only to the deities of the underworld. In Greek augury, also, the left was the side of ill omen (sinister), whereas in Roman augury the right is so.

[123]Cp. S. Matth. xii. 36: "Every idle word that men shall speak, they shall give account thereof in the day of judgement."

happiness. As regards duties to children, relations, friends and citizens, and those of service done to strangers for Heaven's sake, and of social intercourse with all those classes,—by fulfilling which a man should brighten his own life and order it as the law enjoins,— the sequel of the laws themselves, partly by persuasion and partly (when men's habits defy persuasion) by forcible and just chastisement, will render our State, with the concurrence of the gods, a blessed State and a prosperous. There are also matters which a lawgiver, if he shares my view, must necessarily regulate, though they are ill-suited for statement in the form of a law; in dealing with these he ought, in my opinion, to produce a sample for his own use and that of those for whom he is legislating, and, after expounding all other matters as best he can, pass on next to commencing the task of legislation.

Clin. What is the special form in which such matters are laid down?

Ath. It is by no means easy to embrace them all in a single model of statement (so to speak) but let us conceive of them in some such way as this, in case we may succeed in affirming something definite about them.

Clin. Tell us what that "something" is.

Ath. I should desire the people to be as docile as possible in the matter of virtue; and this evidently is what the legislator will endeavor to effect in all his legislation.

Clin. Assuredly.

Ath. I thought the address we have made might prove of some help in making them listen to its monitions with souls not utterly savage, but in a more civil and less hostile mood. So that we may be well content if as I say, it renders the hearer even but a little more docile, because a little less hostile. For there is no great plenty or abundance of persons anxious to become with all speed as good as possible; the majority, indeed, serve to show how wise Hesiod was when he said, ""smooth is the way that leadeth unto wickedness," and that "no sweat is needed to traverse it," since it is "passing short,""*Hes. WD 287ff.* but (he says)—"In front of goodness the immortal godsHave set the sweat of toil, and thereuntoLong is the road and steep, and rough withal The first ascent; but when the crest is won,'Tis easy travelling, albeit 'twas hard."*Hes. WD 287 ff.*

Clin. The poet speaks nobly, I should say.

Ath. He certainly does. Now I wish to put before you what I take to be the result of the foregoing argument.

Clin. Do so.

Ath. Let us address the lawgiver and say:

"Tell us, O lawgiver: if you knew what we ought to do and say, is it not obvious that you would state it?"

Clin. Inevitably.

Ath.

"Now did not we hear you saying a little while ago[124] that the lawgiver should not permit the poets to compose just as they please? For they would not be likely to know what saying of theirs might be contrary to the laws and injurious to the State."

Clin. That is quite true.

Ath. Would our address be reasonable, if we were to address him on behalf of the poets[125] in these terms?—

Clin. What terms?

Ath. These:—

"There is, O lawgiver, an ancient saying—constantly repeated by ourselves and endorsed by everyone else—that whenever a poet is seated on the Muses' tripod, he is not in his senses, but resembles a fountain, which gives free course to the upward rush of water and, since his art consists in imitation, he is compelled often to contradict himself, when he creates characters of contradictory moods; and he knows not which of these contradictory utterances is true. But it is not possible for the lawgiver in his law thus to compose two statements about a single matter; but he must always publish one single statement about one matter. Take an example from one of your own recent statements.[126] A funeral may be either excessive or defective or moderate: of these three alternatives you chose one, the moderate, and this you prescribe, after praising it unconditionally. I, on the other hand, if (in my poem) I had a wife of surpassing wealth, and she were to bid me bury her, would extol the tomb of excessive grandeur; while a poor and stingy man would praise the defective tomb, and the person of moderate means, if a moderate man himself, would praise the same one as you. But you should not merely speak of a thing as moderate, in the way you have now done, but you should explain what "the moderate" is, and what is its size; otherwise it is too soon for you to propose that such a statement should be made law."

Clin. Exceedingly true.

Ath. Should, then, our appointed president of the laws commence his laws with no such prefatory statement, but declare at once what

[124] *Plat. Laws 656.*

[125] Cp. *Plat. Laws 719d.*

[126] Cp. *Plat. Laws 717e.*

must be done and what not, and state the penalty which threatens disobedience, and so turn off to another law, without adding to his statutes a single word of encouragement and persuasion? Just as is the way with doctors, one treats us in this fashion, and another in that: they have two different methods, which we may recall, in order that, like children who beg the doctor to treat them by the mildest method, so we may make a like request of the lawgiver. Shall I give an illustration of what I mean? There are men that are doctors, we say, and others that are doctors' assistants; but we call the latter also, to be sure, by the name of "doctors."

Clin. We do.

Ath. These, whether they be free-born or slaves, acquire their art under the direction of their masters, by observation and practice and not by the study of nature—which is the way in which the free-born doctors have learnt the art themselves and in which they instruct their own disciples. Would you assert that we have here two classes of what are called "doctors"?

Clin. Certainly.

Ath. You are also aware that, as the sick folk in the cities comprise both slaves and free men, the slaves are usually doctored by slaves, who either run round the town or wait in their surgeries; and not one of these doctors either gives or receives any account of the several ailments of the various domestics, but prescribes for each what he deems right from experience, just as though he had exact knowledge, and with the assurance of an autocrat; then up he jumps and off he rushes to another sick domestic, and thus he relieves his master in his attendance on the sick. But the free-born doctor is mainly engaged in visiting and treating the ailments of free men, and he does so by investigating them from the commencement and according to the course of nature; he talks with the patient himself and with his friends, and thus both learns himself from the sufferers and imparts instruction to them, so far as possible; and he gives no prescription until he has gained the patient's consent, and only then, while securing the patient's continued docility by means of persuasion, does he attempt to complete the task of restoring him to health. Which of these two methods of doctoring shows the better doctor, or of training, the better trainer? Should the doctor perform one and the same function in two ways, or do it in one way only[127] and that the worse way of the two and the less humane?

Clin. The double method, Stranger, is by far the better.

[127] Cp. *Plat. Laws 634d, 634e*; *Plat. Laws 722b, 722c*; *Plat. Laws 857e.*

Ath. Do you wish us to examine the double method and the single as applied also to actual legislation?

Clin. Most certainly I wish it.

Ath. Come, tell me then, in Heaven's name,—what would be the first law to be laid down by the lawgiver? Will he not follow the order of nature, and in his ordinances regulate first the starting-point of generation in States?

Clin. Of course.

Ath. Does not the starting-point of generation in all States lie in the union and partnership of marriage?[128].

Clin. Certainly.

Ath. So it seems that, if the marriage laws were the first to be enacted, that would be the right course in every State.

Clin. Most assuredly.

Ath. Let us state the law in its simple form first: how will it run? Probably like this:—"A man shall marry when he is thirty years old and under five and thirty;[129] if he fails to do so, he shall be punished both by a fine in money and by degradation, the fine being of such and such an amount, and the degradation of such and such a kind." Such shall be the simple form of marriage law. The double form shall be this,—"A man shall marry when he is thirty years old and under thirty-five, bearing in mind that this is the way by which the human race, by nature's ordinance, shares in immortality, a thing for which nature has implanted in everyone a keen desire. The desire to win glory, instead of lying in a nameless grave, aims at a like object. Thus mankind is by nature coeval with the whole of time, in that it accompanies it continually both now and in the future; and the means by which it is immortal is this:—by leaving behind it children's children and continuing ever one and the same, it thus by reproduction shares in immortality. That a man should deprive himself thereof voluntarily is never an act of holiness; and he who denies himself wife and children is guilty of such intentional deprivation. He who obeys the law may be dismissed without penalty, but he that disobeys and does not marry when thirty-five years old shall pay a yearly fine of such and such an amount,—lest he imagine that single life brings him gain and ease,—and he shall have no share in the honors which are paid from time to time by the younger men in the State to their seniors." When one hears and compares this law with the former one, it is possible to judge

[128]Cp. *Plat. Laws 631d, 631e.*

[129]But cp. *Plat. Laws 772d.*

in each particular case whether the laws ought to be at least double in length, through combining threats with persuasion, or only single in length, through employing threats alone.

Meg. Our Laconian way, Stranger, is to prefer brevity always. But were I bidden to choose which of these two statutes I should desire to have enacted in writing in my State, I should choose the longer; and what is more, I should make the same choice in the case of every law in which, as in the example before us, these two alternatives were offered. It is necessary, however, that the laws we are now enacting should have the approval of our friend Clinias also; for it is his State which is now proposing to make use of such things.

Clin. I highly approve of all you have said, Megillus.

Ath. Still, it is extremely foolish to argue about the length or brevity of writings, for what we should value, I suppose, is not their extreme brevity or prolixity, but their excellence; and in the case of the laws mentioned just now, not only does the one form possess double the value of the other in respect of practical excellence, but the example of the two kinds of doctors, recently mentioned,[130] presents a very exact analogy. But as regards this, it appears that no legislator has ever yet observed that, while it is in their power to make use in their law-making of two methods,—namely, persuasion and force,—in so far as that is feasible in dealing with the uncultured populace, they actually employ one method only: in their legislation they do not temper compulsion with persuasion, but use untempered force alone. And I, my dear sirs, perceive still a third requisite which ought to be found in laws, but which is nowhere to be found at present.

Clin. What is it you allude to?

Ath. A matter which, by a kind of divine direction, has sprung out of the subjects we have now been discussing. It was little more than dawn when we began talking about laws, and now it is high noon, and here we are in this entrancing resting-place; all the time we have been talking of nothing but laws, yet it is only recently that we have begun, as it seems, to utter laws, and what went before was all simply preludes to laws. What is my object in saying this? It is to explain that all utterances and vocal expressions have preludes and tunings-up (as one might call them), which provide a kind of artistic preparation which assists towards the further development of the subject. Indeed, we have examples before us of preludes, admirably elaborated, in those prefixed to that class of lyric ode called the "nome,"[131] and to musical

[130]Cp. *Plat. Laws 720c.*

compositions of every description. But for the "nomes" (i.e. laws) which are real nomes—and which we designate "political"—no one has ever yet uttered a prelude, or composed or published one, just as though there were no such thing. But our present conversation proves, in my opinion, that there is such a thing; and it struck me just now that the laws we were then stating are something more than simply double, and consist of these two things combined—law, and prelude to law.

Ath. The part which we called the "despotic prescription"— comparing it to the prescriptions of the slave-doctors we mentioned—is unblended law; but the part which precedes this, and which is uttered as persuasive thereof, while it actually is "persuasion," yet serves also the same purpose as the prelude to an oration.[132] To ensure that the person to whom the lawgiver addresses the law should accept the prescription quietly—and, because quietly, in a docile spirit,—that, as I supposed, was the evident object with which the speaker uttered all his persuasive discourse.[133] Hence, according to my argument, the right term for it would be, not legal "statement," but "prelude," and no other word. Having said this, what is the next statement I would desire to make? It is this: that the lawgiver must never omit to furnish preludes, as prefaces both to the laws as a whole and to each individual statute, whereby they shall surpass their original form by as much as the "double" examples recently given surpassed the "single."

Clin. I, for my part, would charge the expert in these matters to legislate thus, and not otherwise.

Ath. You are right, I believe, Clinias, in asserting at least thus much,—that all laws have preludes, and that, in commencing each piece of legislation, one ought to preface each enactment with the prelude that naturally belongs to it—for the statement that is to follow the prelude is one of no small importance, and it makes a vast difference whether these statements are distinctly or indistinctly remembered; still, we should be wrong if we prescribed that all statutes, great and small, should be equally provided with preludes. For neither ought that to be done in the case of songs and speeches of every kind; for they all naturally have preludes, but we cannot employ them always; that is a thing which must be left in each case to the judgment of the actual orator or singer or legislator.

[131] Cp. *Plat. Laws 700b.*
[132] Cp. *Plat. Laws 718c.*
[133] Cp. *Plat. Laws 715e.*

Clin. What you say is, I believe, very true. But let us not spend more time, Stranger, in delay, but return to our main subject, and start afresh (if you agree) from the statements you made above—and made not by way of prelude. Let us, then, repeat from the start the second thoughts that are "best" (to quote the players' proverb), treating them throughout as a prelude, and not, as before, as a chance discourse; and let us handle the opening part as being confessedly a prelude. As to the worship of the gods and the attention to be paid to ancestors, our previous statement[134] is quite sufficient; it is what comes next to these that you must try to state, until the whole of the prelude has been, in our opinion, adequately set forth by you. After that you will proceed with your statement of the actual laws.

Ath. So then the prelude we previously composed concerning the gods and those next to the gods, and concerning parents, living and dead, was, as we now declare, sufficient; and you are now bidding me, I understand, to bring up, as it were, to the light of day the residue of this same subject.

Clin. Most certainly.

Ath. Well, surely it is both fitting and of the greatest mutual advantage that, next to the matters mentioned, the speaker and his hearers should deal with the question of the degree of zeal or slackness which men ought to use in respect of their souls, their bodies, and their goods, and should ponder thereon, and thus get a grasp of education as far as possible. Precisely this, then, is the statement which we must actually make and listen to next.

Clin. Perfectly right.

[134] Cp. *Plat. Laws 716b.*

Book 5

Ath. Let everyone who has just heard the ordinances concerning gods and dear forefathers now give ear. Of all a man's own belongings, the most divine is his soul, since it is most his own. A man's own belongings are invariably twofold: the stronger and better are the ruling elements, the weaker and worse those that serve; wherefore of one's own belongings one must honor those that rule above those that serve.

Ath. Thus it is that in charging men to honor their own souls next after the gods who rule and the secondary divinities, I am giving a right injunction. But there is hardly a man of us all who pays honor rightly, although he fancies he does so; for honor paid to a thing divine is beneficent, whereas nothing that is maleficent confers honor; and he that thinks to magnify his soul by words or gifts or obeisances, while he is improving it no whit in goodness, fancies indeed that he is paying it honor, but in fact does not do so. Every boy, for example, as soon as he has grown to manhood, deems himself capable of learning all things, and supposes that by lauding his soul he honors it, and by eagerly permitting it to do whatsoever it pleases. But by acting thus, as we now declare, he is not honoring his soul, but injuring it; whereas, we affirm, he ought to pay honor to it next after the gods. Again, when a man counts not himself but others responsible always for his own sins and for the most and greatest evils, and exempts himself always from blame, thereby honoring, as he fancies, his own soul,—then he is far indeed from honoring it, since he is doing it injury. Again, when a man gives way to pleasures contrary to the counsel and commendation of the lawgiver, he is by no means conferring honor on his soul, but rather dishonor, by loading it with woes and remorse. Again, in the opposite case, when toils, fears, hardships and pains are commended, and a man flinches from them, instead of stoutly enduring them,—then by

his flinching he confers no honor on his soul; for by all such actions he renders it dishonored. Again, when a man deems life at any price to be a good thing, then also he does not honor, but dishonor, to his soul; for he yields to the imagination of his soul that the conditions in Hades are altogether evil, instead of opposing it, by teaching and convincing his soul that, for all it knows, we may find, on the contrary, our greatest blessings in the realm of the gods below. Again, when a man honors beauty above goodness, this is nothing else than a literal and total dishonoring of the soul; for such a statement asserts that the body is more honorable than the soul,— but falsely, since nothing earth-born is more honorable than the things of heaven, and he that surmises otherwise concerning the soul knows not that in it he possesses, and neglects, a thing most admirable.

Ath. Again, when a man craves to acquire wealth ignobly, or feels no qualm in so acquiring it, he does not then by his gifts pay honor to his soul,—far from it, in sooth!—for what is honorable therein and noble he is bartering away for a handful of gold; yet all the gold on earth, or under it, does not equal the price of goodness. To speak shortly:—in respect of the things which the lawgiver enumerates and describes as either, on the one hand, base and evil, or, on the other hand, noble and good, if any man refuses to avoid by every means the one kind, and with all his power to practise the other kind,—such a man knows not that everyone who acts thus is treating most dishonorably and most disgracefully that most divine of things, his soul. Hardly anyone takes account of the greatest "judgment" (as men call it) upon evil-doing; that greatest judgment is this,—to grow like unto men that are wicked, and, in so growing, to shun good men and good counsels and cut oneself off from them,[135] but to cleave to the company of the wicked and follow after them; and he that is joined to such men inevitably acts and is acted upon in the way that such men bid one another to act. Now such a resultant condition is not a "judgment" (for justice and judgment are things honorable) , but a punishment, an infliction that follows on injustice; both he that undergoes this and he that undergoes it not are alike wretched,—the one in that he remains uncured, the other in that he is destroyed in order to secure the salvation of many others.[136] Thus we declare that honor, speaking generally, consists in following the better, and in doing our utmost to effect the betterment of the worse, when it admits of being bettered.

[135]Cp. *Plat. Laws 716c*, *Plat. Laws 716d.*

[136]Cp. *Plat. Laws 731c*, *Plat. Laws 854c ff.*, *Plat. Laws 957b.*

Man has no possession better fitted by nature than the soul for the avoidance of evil and the tracking and taking of what is best of all, and living in fellowship therewith, when he has taken it, for all his life thereafter. Wherefore the soul is put second[137] in order of honor; as for the third, everyone would conceive that this place naturally belongs to the honor due to the body. But here again one has to investigate the various forms of honor,—which of them are genuine, which spurious; and this is the lawgiver's task. Now he, as I suppose, declares that the honors are these and of these kinds:—the honorable body is not the fair body nor the strong nor the swift nor the large, nor yet the body that is sound in health, although this is what many believe; neither is it a body of the opposite kind to any of these; rather those bodies which hold the mean position between all these opposite extremes are by far the most temperate and stable; for while the one extreme makes the souls puffed up and proud, the other makes them lowly and spiritless.

Ath. The same holds good of the possession of goods and chattels, and they are to be valued on a similar scale. In each case, when they are in excess, they produce enmities and feuds both in States and privately, while if they are deficient they produce, as a rule, serfdom. And let no man love riches for the sake of his children, in order that he may leave them as wealthy as possible; for that is good neither for them nor for the State. For the young the means that attracts no flatterers, yet is not lacking in things necessary, is the most harmonious of all and the best; for it is in tune with us and in accord, and thus it renders our life in all respects painless. To his children it behoves a man to bequeath modesty, not money, in abundance. We imagine that chiding the young for their irreverence is the way to bequeath this; but no such result follows from the admonition commonly given nowadays to the young, when people tell them that

"youth must reverence everyone." Rather will the prudent lawgiver admonish the older folk to reverence the young, and above all to beware lest any of them be ever seen or heard by any of the young either doing or saying anything shameful; for where the old are shameless, there inevitably will also the young be very impudent. The most effective way of training the young—as well as the older people themselves—is not by admonition, but by plainly practising throughout one's own life the admonitions which one gives to others. By paying honor and reverence to his kinsfolk, and all who share in the worship of the tribal gods and are sprung from the same blood, a man will, in proportion

[137] The first place belongs to the gods (i.e. to Divine Reason) .

to his piety, secure the goodwill of the gods of Birth to bless his own begetting of children. Moreover, a man will find his friends and companions kindly disposed, in regard to life's intercourse, if he sets higher than they do the value and importance of the services he receives from them, while counting the favors he confers on them as of less value than they are deemed by his companions and friends themselves. In relation to his State and fellow-citizens that man is by far the best who, in preference to a victory at Olympia or in any other contest of war or peace, would choose to have a victorious reputation for service to his native laws, as being the one man above all others who has served them with distinction throughout his life. Further, a man should regard contracts made with strangers as specially sacred; for practically all the sins against Strangers are—as compared with those against citizens—connected more closely with an avenging deity.

Ath. For the stranger, inasmuch as he is without companions or kinsfolk, is the more to be pitied by men and gods; wherefore he that is most able to avenge succors them most readily, and the most able of all, in every case, is the Strangers' daemon and god, and these follow in the train of Zeus Xenios.[138] Whoso, then, is possessed of but a particle of forethought will take the utmost care to go through life to the very end without committing any offence in respect of Strangers. Of offences against either Strangers or natives, that which touches suppliants is in every case the most grave; for when a suppliant, after invoking a god as witness, is cheated of his compact, that god becomes the special guardian of him who is wronged, so that he will never be wronged without vengeance being taken for his wrongs. As concerns a man's social relations towards his parents, himself and his own belongings, towards the State also and friends and kindred,—whether foreign relations or domestic,—our exposition is now fairly complete. It remains to expound next the character which is most conducive to nobility of life; and after that we shall have to state all the matters which are subject, not to law, but rather to praise or blame,—as the instruments whereby the citizens are educated individually and rendered more tractable and well-inclined towards the laws which are to be imposed on them. Of all the goods, for gods and men alike, truth stands first. Thereof let every man partake from his earliest days, if he purposes to become blessed and happy, that so he may live his life as a true man so long as possible. He is a trusty man; but untrustworthy is the man who loves the voluntary lie; and senseless is the man who

[138]The supreme Guardian of the rights of hospitality.

loves the involuntary lie; and neither of these two is to be envied. For everyone that is either faithless or foolish is friendless; and since, as time goes on, he is found out, he is making for himself, in his woeful old-age, at life's close, a complete solitude, wherein his life becomes almost equally desolate whether his companions and children are living or dead. He that does no wrong is indeed a man worthy of honor; but worthy of twice as much honor as he, and more, is the man who, in addition, consents not to wrongdoers when they do wrong;[139] for while the former counts as one man, the latter counts as many, in that he informs the magistrates of the wrongdoing of the rest. And he that assists the magistrates in punishing, to the best of his power, let him be publicly proclaimed to be the Great Man of the State and perfect, the winner of the prize for excellence. Upon temperance and upon wisdom one should bestow the same praise, and upon all the other goods which he who possesses them can not only keep himself but can share also with others.

Ath. He that thus shares these should be honored as highest in merit; and he that would fain share them but cannot, as second in merit; while if a man is jealous and unwilling to share any good things with anyone in a friendly spirit, then the man himself must be blamed, but his possession must not be disesteemed any the more because of its possessor,—rather one should strive to gain it with all one's might. Let every one of us be ambitious to gain excellence, but without jealousy. For a man of this character enlarges a State, since he strives hard himself and does not thwart the others by calumny; but the jealous man, thinking that calumny of others is the best way to secure his own superiority, makes less effort himself to win true excellence, and disheartens his rivals by getting them unjustly blamed; whereby he causes the whole State to be ill-trained for competing in excellence, and renders it, for his part, less large in fair repute. Every man ought to be at once passionate and gentle in the highest degree.[140] For, on the one hand, it is impossible to escape from other men's wrongdoings, when they are cruel and hard to remedy, or even wholly irremediable, otherwise than by victorious fighting and self-defence, and by punishing most rigorously; and this no soul can achieve without noble passion. But, on the other hand, when men commit wrongs which are remediable, one should, in the first place, recognize that every wrongdoer is a wrongdoer involuntarily;[141] for no one anywhere would ever voluntarily

[139] Cp. *Plat. Laws 663a*, *Plat. Laws 829a.*

[140] Cp. *Plat. Rep. 375b ff.*, *Plat. Rep. 410c ff.*

acquire any of the greatest evils, least of all in his own most precious possessions. And most precious in very truth to every man is, as we have said, the soul. No one, therefore, will voluntarily admit into this most precious thing the greatest evil and live possessing it all his life long. Now while in general the wrong-doer and he that has these evils are to be pitied, it is permissible to show pity to the man that has evils that are remediable, and to abate one's passion and treat him gently, and not to keep on raging like a scolding wife; but in dealing with the man who is totally and obstinately perverse and wicked one must give free course to wrath. Wherefore we affirm that it behoves the good man to be always at once passionate and gentle. There is an evil, great above all others, which most men have, implanted in their souls, and which each one of them excuses in himself and makes no effort to avoid. It is the evil indicated in the saying that every man is by nature a lover of self, and that it is right that he should be such.[142] But the truth is that the cause of all sins in every case lies in the person's excessive love of self.

Ath. For the lover is blind in his view of the object loved, so that he is a bad judge[143] of things just and good and noble, in that he deems himself bound always to value what is his own more than what is true; for the man who is to attain the title of "Great" must be devoted neither to himself nor to his own belongings, but to things just, whether they happen to be actions of his own or rather those of another man. And it is from this same sin that every man has derived the further notion that his own folly is wisdom; whence it comes about that though we know practically nothing, we fancy that we know everything; and since we will not entrust to others the doing of things we do not understand, we necessarily go wrong in doing them ourselves. Wherefore every man must shun excessive self-love, and ever follow after him that is better than himself, allowing no shame to prevent him from so doing. Precepts that are less important than these and oftentimes repeated—but no less profitable—a man should repeat to himself by way of reminder; for where there is a constant efflux, there must also be a corresponding influx, and when wisdom flows away, the proper influx consists in recollection;[144] wherefore men

[141]Cp. *Plat. Laws 868c ff.*; *Plat. Laws 863b ff.*; *Plat. Prot. 345d ff*; *Plat. Tim. 86d ff.*

[142]Cp. *Eur. Fr. 460*: *ἐκεῖνο γὰρ πέπονθ' ὅπερ πάντες βροτοί: φιλῶν μάλιστ' ἐμαυτὸν οὐκ αἰσχύνομαι.* Ar. *Rhet.* 1371b 19; *Pol.* 1263b 2.

[143]Cp.*Plat. Rep. 474d ff*, *Plat. Rep. 474e ff.*

[144]Cp.*Plat. Phileb. 33e ff.*

must be restrained from untimely laughter and tears,[145] and every individual, as well as the whole State, must charge every man to try to conceal all show of extreme joy or sorrow, and to behave himself seemly, alike in good fortune and in evil, according as each man's Genius[146] ranges itself,—hoping always that God will diminish the troubles that fall upon them by the blessings which he bestows, and will change for the better the present evils; and as to their blessings, hoping that they, contrariwise, will, with the help of good fortune, be increased. In these hopes, and in the recollections of all these truths, it behoves every man to live, sparing no pains, but constantly recalling them clearly to the recollection both of himself and of his neighbor, alike when at work and when at play. Thus, as regards the right character of institutions and the right character of individuals, we have now laid down practically all the rules that are of divine sanction. Those that are of human origin we have not stated as yet, but state them we must; for our converse is with men, not gods. Pleasures, pains and desires are by nature especially human; and from these, of necessity, every mortal creature is, so to say, suspended and dependent by the strongest cords of influence.

Ath. Thus one should commend the noblest life, not merely because it is of superior fashion in respect of fair repute, but also because, if a man consents to taste it and not shun it in his youth, it is superior likewise in that which all men covet,—an excess, namely, of joy and a deficiency of pain throughout the whole of life. That this will clearly be the result, if a man tastes of it rightly, will at once be fully evident. But wherein does this "rightness" consist? That is the question which we must now, under the instruction of our Argument, consider; comparing the more pleasant life with the more painful, we must in this wise consider whether this mode is natural to us, and that other mode unnatural. We desire that pleasure should be ours, but pain we neither choose nor desire; and the neutral state we do not desire in place of pleasure, but we do desire it in exchange for pain; and we desire less pain with more pleasure, but we do not desire less pleasure with more pain; and when the two are evenly balanced, we are unable to state any clear preference. Now all these states—in their number, quantity, intensity, equality, and in the opposites thereof—have, or have not, influence on desire, to govern its choice of each. So these things being thus ordered of necessity, we desire that mode of life in

[145] Cp. *Plat. Rep. 388e f.*, *Plat. Rep. 606c ff.*

[146] i.e. divine controlling force, or destiny.

which the feelings are many, great, and intense, with those of pleasure predominating, but we do not desire the life in which the feelings of pain predominate; and contrariwise, we do not desire the life in which the feelings are few, small, and gentle, if the painful predominate, but if the pleasurable predominate, we do desire it. Further, we must regard the life in which there is an equal balance of pleasure and pain as we previously regarded the neutral state: we desire the balanced life in so far as it exceeds the painful life in point of what we like, but we do not desire it in so far as it exceeds the pleasant lives in point of the things we dislike. The lives of us men must all be regarded as naturally bound up in these feelings, and what kinds of lives we naturally desire is what we must distinguish; but if we assert that we desire anything else, we only say so through ignorance and inexperience of the lives as they really are. What, then, and how many are the lives in which a man—when he has chosen the desirable and voluntary in preference to the undesirable and the involuntary, and has made it into a private law for himself, by choosing what is at once both congenial and pleasant and most good and noble—may live as happily as man can? Let us pronounce that one of them is the temperate life, one the wise, one the brave, and let us class the healthy life as one;

Ath. and to these let us oppose four others—the foolish, the cowardly, the licentious, and the diseased. He that knows the temperate life will set it down as gentle in all respects, affording mild pleasures and mild pains, moderate appetites and desires void of frenzy; but the licentious life he will set down as violent in all directions, affording both pains and pleasures that are extreme, appetites that are intense and maddening, and desires the most frenzied possible; and whereas in the temperate life the pleasures outweigh the pains, in the licentious life the pains exceed the pleasures in extent, number, and frequency. Whence it necessarily results that the one life must be naturally more pleasant, the other more painful to us; and it is no longer possible for the man who desires a pleasant life voluntarily to live a licentious life, but it is clear by now (if our argument is right) that no man can possibly be licentious voluntarily: it is owing to ignorance or incontinence, or both, that the great bulk of mankind live lives lacking in temperance. Similarly with regard to the diseased life and the healthy life, one must observe that while both have pleasures and pains, the pleasures exceed the pains in health, but the pains the pleasures in disease. Our desire in the choice of lives is not that pain should be in excess, but the life we have judged the more pleasant is that in which pain is exceeded by pleasure. We will assert, then, that since the temperate life has its

feelings smaller, fewer and lighter than the licentious life, and the wise life than the foolish, and the brave than the cowardly, and since the one life is superior to the other in pleasure, but inferior in pain, the brave life is victorious over the cowardly and the wise over the foolish; consequently the one set of lives ranks as more pleasant than the other: the temperate, brave, wise, and healthy lives are more pleasant than the cowardly, foolish, licentious and diseased. To sum up, the life of bodily and spiritual virtue, as compared with that of vice, is not only more pleasant, but also exceeds greatly in nobility, rectitude, virtue and good fame, so that it causes the man who lives it to live ever so much more happily than he who lives the opposite life. Thus far we have stated the prelude of our laws, and here let that statement end: after the prelude must necessarily follow the tune,[147]—or rather, to be strictly accurate, a sketch of the State-organization.

Ath. Now, just as in the case of a piece of webbing, or any other woven article, it is not possible to make both warp and woof of the same materials, but the stuff of the warp must be of better quality—for it is strong and is made firm by its twistings, whereas the woof is softer and shows a due degree of flexibility[148]—from this we may see that in some such way we must mark out those who are to hold high offices in the State and those who are to hold low offices,[149] after applying in each case an adequate educational test. For of State organization there are two divisions, of which the one is the appointment of individuals to office, the other the assignment of laws to the offices. But, in truth, before we deal with all these matters we must observe the following. In dealing with a flock of any kind, the shepherd or cowherd, or the keeper of horses or any such animals, will never attempt to look after it until he has first applied to each group of animals the appropriate purge—which is to separate the sound from the unsound, and the well-bred from the ill-bred,[150] and to send off the latter to other herds, while keeping the former under his own care; for he reckons that his labor would be fruitless and unending if it were spent on bodies and souls which nature and ill-nurture have combined to ruin, and which themselves bring ruin on a stock that is sound and clean both in habit and in body,—whatever the class of beast,—unless a thorough purge be made in the existing herd. This is a matter of minor importance in the

[147] A play on the double sense of *νόμος*—law and musical "nome" or "tune" .

[148] In weaving the ancients used an upright loom, in which the fixed, vertical threads of the "warp" were of coarser fiber than the transverse threads of the "woof."

[149] Cp. *Aristot. Pol. 1265b 18 ff.*

[150] Cp. *Plat. Rep. 410a.*

case of other animals, and deserves mention only by way of illustration; but in the case of man it is of the highest importance for the lawgiver to search out and to declare what is proper for each class both as regards purging out and all other modes of treatment. For instance, in respect of civic purgings, this would be the way of it. Of the many possible modes of purging, some are milder, some more severe; those that are severest and best a lawgiver who was also a despot[151] might be able to effect, but a lawgiver without despotic power might be well content if, in establishing a new polity and laws, he could effect even the mildest of purgations. The best purge is painful, like all medicines of a drastic nature,— the purge which hales to punishments by means of justice linked with vengeance, crowning the vengeance with exile or death: it, as a rule, clears out the greatest criminals when they are incurable and cause serious damage to the State.

Ath. A milder form of purge is one of the following kind:—when, owing to scarcity of food, people are in want, and display a readiness to follow their leaders in an attack on the property of the wealthy,— then the lawgiver, regarding all such as a plague inherent in the body politic, ships them abroad as gently as possible, giving the euphemistic title of "emigration" to their evacuation. By some means or other this must be done by every legislator at the beginning, but in our case the task is now even more simple; for we have no need to contrive for the present either a form of emigration or any other purgative selection; but just as when there is a confluence of floods from many sources— some from springs, some from torrents—into a single pool we have to take diligent precautions to ensure that the water may be of the utmost possible purity, by drawing it off in some cases, and in others by making channels to divert its course.[152] Yet toil and risk, it would appear, are involved in every exercise of statecraft. Since, however, our present efforts are verbal rather than actual, let us assume that our collection of citizens is now completed, and its purity secured to our satisfaction; for we shall test thoroughly by every kind of test and by length of time the vicious among those who attempt to enter our present State as citizens, and so prevent their arrival, whereas we shall welcome the virtuous with all possible graciousness and goodwill. And let us not omit to notice this piece of good luck—that, just as we said[153] that the

[151] Cp. *Plat. Laws 709e.*

[152] The citizens who are to form the new Magnesian colony are to be drawn from various quarters, and they must be carefully tested (like streams flowing into a reservoir) before being admitted.

[153] *Plat. Laws 684e.*

colony of the Heraclidae was fortunate in avoiding fierce and dangerous strife concerning the distribution of land and money and the cancelling of debts (so we are similarly lucky) ; for when a State is obliged to settle such strife by law, it can neither leave vested interests unaltered nor yet can it in any wise alter them, and no way is left save what one might term that of "pious aspiration" and cautious change, little by little, extended over a long period, and that way is this:—there must already exist a supply of men to effect the change, who themselves, on each occasion, possess abundance of land and have many persons in their debt, and who are kind enough to wish to give a share of these things to those of them who are in want, partly by remissions and partly by distributions, making a kind of rule of moderation and believing that poverty consists, not in decreasing one's substance, but in increasing one's greed.

Ath. For this is the main foundation of the security of a State, and on this as on a firm keel it is possible to build whatever kind of civic organization may be subsequently built suitable for the arrangement described; but if the foundation be rotten, the subsequent political operations will prove by no means easy for any State. This difficulty, as we say, we avoid; it is better, however, that we should explain the means by which, if we had not actually avoided it, we might have found a way of escape. Be it explained, then, that that means consists in renouncing avarice by the aid of justice, and that there is no way of escape, broad or narrow, other than this device. So let this stand fixed for us now as a kind of pillar of the State. The properties of the citizens must be established somehow or other on a basis that is secure from intestine disputes; otherwise, for people who have ancient disputes with one another, men will not of their own free will proceed any further with political construction, if they have a grain of sense.[154] But as for those to whom—as to us now—God has given a new State to found, and one free as yet from internal feuds,—that those founders should excite enmity against themselves because of the distribution of land and houses would be a piece of folly combined with utter depravity of which no man could be capable. What then would be the plan of a right distribution? First, we must fix at the right total the number of citizens; next, we must agree about the distribution of them,—into how many sections, and each of what size, they are to be divided; and among these sections we must distribute, as equally as we can, both

[154]There may be an allusion here to Solon; the first step in his political reforms was a measure for the abolition of debts ("Seisachtheia").

the land and the houses. An adequate figure for the population could not be given without reference to the territory and to the neighboring States. Of land we need as much as is capable of supporting so many inhabitants of temperate habits, and we need no more; and as to population, we need a number such that they will be able to defend themselves against injury from adjoining peoples, and capable also of lending some aid to their neighbors when injured. These matters we shall determine, both verbally and actually, when we have inspected the territory and its neighbors; but for the present it is only a sketch in outline of our legislation that our argument will now proceed to complete. Let us assume that there are—as a suitable number—5,040 men, to be land-holders and to defend their plots;[155] and let the land and houses be likewise divided into the same number of parts—the man and his allotment forming together one division. First, let the whole number be divided into two; next into three; then follow in natural order four and five, and so on up to ten.

Ath. Regarding numbers, every man who is making laws must understand at least thus much,— what number and what kind of number will be most useful for all States. Let us choose that which contains the most numerous and most consecutive sub-divisions. Number as a whole comprises every division for all purposes; whereas the number 5,040, for purposes of war, and in peace for all purposes connected with contributions and distributions, will admit of division into no more than 59 sections, these being consecutive from one up to ten.[156] These facts about numbers must be grasped firmly and with deliberate attention by those who are appointed by law to grasp them: they are exactly as we have stated them, and the reason for stating them when founding a State is this:—in respect of gods, and shrines, and the temples which have to be set up for the various gods in the State, and the gods and daemons they are to be named after, no man of sense,—whether he be framing a new State or reforming an old one that has been corrupted,—will attempt to alter the advice from Delphi or Dodona or Ammon, or that of ancient sayings, whatever form they take—whether derived from visions or from some reported inspiration from heaven. By this advice they instituted sacrifices combined with rites, either of native origin or imported from Tuscany or Cyprus or elsewhere; and by means of such sayings they sanctified oracles and

[155]Cp. *Aristot. Pol. 1265a 30 ff.*

[156]The number 5,040 is here chosen because, for a number of moderate size, it has the greatest possible number of divisors (59) , including all the digits from 1 to 10.

statues and altars and temples, and marked off for each of them sacred glebes. Nothing of all these should the lawgiver alter in the slightest degree; to each section he should assign a god or daemon, or at the least a hero; and in the distribution of the land he should assign first to these divinities choice domains with all that pertains to them, so that, when assemblies of each of the sections take place at the appointed times, they may provide an ample supply of things requisite, and the people may fraternize with one another at the sacrifices and gain knowledge and intimacy, since nothing is of more benefit to the State than this mutual acquaintance; for where men conceal their ways one from another in darkness rather than light, there no man will ever rightly gain either his due honor or office, or the justice that is befitting. Wherefore every man in every State must above all things endeavor to show himself always true and sincere towards everyone, and no humbug, and also to allow himself to be imposed upon by no such person.

Ath. The next move in our settling of the laws is one that might at first hearing cause surprise because of its unusual character—like the move of a draughts-player who quits his "sacred line" ;[157] none the less, it will be clear to him who reasons it out and uses experience that a State will probably have a constitution no higher than second in point of excellence. Probably one might refuse to accept this, owing to unfamiliarity with lawgivers who are not also despots:[158] but it is, in fact, the most correct plan to describe the best polity, and the second best, and the third, and after describing them to give the choice to the individual who is charged with the founding of the settlement. This plan let us now adopt: let us state the polities which rank first, second, and third in excellence; and the choice let us hand over to Clinias and to whosoever else may at any time wish, ill proceeding to the selection of such things, to take over, according to his own disposition, what he values in his own country. That State and polity come first, and those laws are best, where there is observed as carefully as possible throughout the whole State the old saying[159] that

"friends have all things really in common." As to this condition,—whether it anywhere exists now, or ever will exist,—in which there is community of wives, children, and all chattels, and all that is called "private" is everywhere and by every means rooted out of our life, and

[157]The middle line on the draughtsboard: to move a piece placed on this line was equivalent to "trying one's last chance."

[158]Cp. *Plat. Laws 735d.*

[159]A Pythagorean maxim frequently cited by Plato: cp.*Plat. Rep. 424a ff*, *Eur. Orest. 725.*

so far as possible it is contrived that even things naturally "private" have become in a way "communized," —eyes, for instance, and ears and hands seem to see, hear, and act in common,— and that all men are, so far as possible, unanimous in the praise and blame they bestow, rejoicing and grieving at the same things, and that they honor with all their heart those laws which render the State as unified as possible,— no one will ever lay down another definition that is truer or better than these conditions in point of super-excellence. In such a State,—be it gods or sons of gods that dwell in it,—they dwell pleasantly, living such a life as this. Wherefore one should not look elsewhere for a model constitution, but hold fast to this one, and with all one's power seek the constitution that is as like to it as possible. That constitution which we are now engaged upon, if it came into being, would be very near to immortality, and would come second in point of merit. The third we shall investigate hereafter, if God so will; for the present, however, what is this second best polity, and how would it come to be of such a character?

Ath. First, let them portion out the land and houses, and not farm in common, since such a course is beyond the capacity of people with the birth, rearing and training we assume. And let the apportionment be made with this intention,—that the man who receives the portion should still regard it as common property of the whole State, and should tend the land, which is his fatherland, more diligently than a mother tends her children, inasmuch as it, being a goddess, is mistress over its mortal population, and should observe the same attitude also towards the local gods and daemons. And in order that these things may remain in this state for ever, these further rules must be observed: the number of hearths, as now appointed by us, must remain unchanged, and must never become either more or less. This will be securely effected, in the case of every State, in the following way: the allotment-holder shall always leave behind him one son, whichever he pleases, as the inheritor of his dwelling, to be his successor in the tendance of the deified ancestors both of family and of State, whether living or already deceased; as to the rest of the children, when a man has more than one, he should marry off the females according to the law that is to be ordained,[160] and the males he should dispose of to such of the citizens as have no male issue, by a friendly arrangement if possible; but where such arrangements prove insufficient, or where the family is too large either in females or in males, or where, on the

[160]Cp. *Plat. Laws 742c.*

other hand, it is too small, through the occurrence of sterility,—in all these cases the magistrates, whom we shall appoint as the highest and most distinguished,[161] shall consider how to deal with the excess or deficiency in families, and contrive means as best they can to secure that the 5,040 households shall remain unaltered. There are many contrivances possible: where the fertility is great, there are methods of inhibition, and contrariwise there are methods of encouraging and stimulating the birth-rate, by means of honors and dishonors, and by admonitions addressed by the old to the young, which are capable in all ways of producing the required effect. Moreover, as a final step,—in case we are in absolute desperation about the unequal condition of our 5,040 households, and are faced with a superabundance of citizens, owing to the mutual affection of those who cohabit with one another, which drives us to despair,—there still remains that ancient device which we have often mentioned, namely, the sending forth, in friendly wise from a friendly nation, of colonies consisting of such people as are deemed suitable.

Ath. On the other hand, should the State ever be attacked by a deluging wave of disease or ruinous wars, and the houses fall much below the appointed number through bereavements, we ought not to introduce new citizens trained with a bastard training of our own free will,—but "necessity (as the proverb runs) not even God himself can compel."[162] Let us then suppose that our present discourse gives the following advice:—My most excellent friends, be not slack to pay honor, as Nature ordains, to similarity and equality and identity and congruity in respect of number and of every influence productive of things fair and good. Above all, now, in the first place, guard throughout your lives the number stated; in the next place, dishonor not the due measure of the height and magnitude of your substance, as originally apportioned, by buying and selling one to another: otherwise, neither will the apportioning Lot,[163] which is divine, fight on your side, nor will the lawgiver: for now, in the first place, the law lays on the disobedient this injunction:—since it has given warning that whoso wills should take or refuse an allotment on the understanding that, first, the land is sacred to all the gods, and further, that prayers shall be made at the first, second, and third sacrifices by the priests and priestesses,—therefore the man who buys or sells the house-plot or land-plot allotted

[161] i.e. the Law wardens; cp. *Plat. Laws 755b.*

[162] A dictum of Simonides; cp. *Plat. Prot. 345b ff*; *Plat. Laws 818a.*

[163] The lot was supposed to record the verdict of God (cp. 690 C, and *Acts* i. 26),—hence its sanctity.

to him must suffer the penalty attached to this sin. The officials shall inscribe on tablets of cypress-wood written records for future reference, and shall place them in the shrines; furthermore, they shall place the charge of the execution of these matters in the hands of that magistrate who is deemed to be most keen of vision, in order that all breaches of these rules may be brought to their notice, and they may punish the man who disobeys both the law and the god. How great a blessing the ordinance now described—when the appropriate organization accompanies it—proves to all the States that obey it—that is a thing which, as the old proverb[164] says, none that is evil shall know, but only he that has become experienced and practised in virtuous habits. For in the organization described there exists no excess of money-making, and it involves the condition that no facility should or can be given to anyone to make money by means of any illiberaI trade,—inasmuch as what is called contemptible vulgarity perverts a liberal character,—and also that no one should ever claim to heap up riches from any such source.

Ath. Furthermore, upon all this there follows also a law which forbids any private person to possess any gold or silver, only coin for purposes of such daily exchange as it is almost necessary for craftsmen[165] to make use of, and all who need such things in paying wages to hirelings, whether slaves or immigrants. For these reasons we say that our people should possess coined money which is legal tender among themselves, but vaIueless elsewhere. As regards the universal Hellenic coinage,—for the sake of expeditions and foreign visits, as well as of embassies or any other missions necessary for the State, if there be need to send someone abroad,—for such objects as these it is necessary that the State should always possess Hellenic money. If a private citizen ever finds himself obliged to go abroad,[166] he may do so, after first getting leave from the magistrates; and should he come home with any surplus of foreign money, he shall deposit it with the State, and take for it an equivaIent in home coinage; but should anyone be found out keeping it for himself, the money shall be confiscated, and the man who is privy to it and fails to inform, together with the man who has imported it, shall be liable to cursing and reproach and, in addition, to a fine not less than the amount of the foreign money brought in. In marrying or giving in marriage, no one shall give or receive any dowry at all. No one shall deposit money with anyone he does not trust, nor

[164]The proverb was, perhaps,*οὐδεὶς ἄπειρος εἴσεται*,—like "experientia docet".

[165]They require coined money for their business dealings with one another: cp.*Plat. Rep. 371b ff.*

[166]Cp. *Plat. Laws 950d.*

lend at interest, since it is permissible for the borrower to refuse entirely to pay back either interest or principal. That these are the best rules for a State to observe in practice, one would perceive rightly if one viewed them in relation to the primary intention. The intention of the judicious statesman is, we say, not at all the intention which the majority would ascribe to him; they would say that the good Iawgiver should desire that the State, for which he is benevolentIy legislating, should be as large and as rich as possible, possessed of silver and gold, and bearing rule over as many people as possible both by land and sea; and they would add that he should desire the State to be as good and as happy as possible, if he is a true legislator. Of these objects some are possible of attainment, some impossible; such as are possible the organizer of the State will desire; the impossible he will neither vainly desire nor attempt. That happiness and goodness should go together is well-nigh inevitable,[167] so he will desire the people to be both good and happy; but it is impossible for them to be at once both good and excessively rich—rich at least as most men count riches;

Ath. for they reckon as rich those who possess, in a rare degree, goods worth a vast deal of money, and these even a wicked man might possess. And since this is so, I would never concede to them that the rich man is really happy if he is not also good; while, if a man is superlatively good, it is impossible that he should be also superlatively rich.

"Why so?" it may be asked. Because, we would reply, the gain derived from both right and wrong is more than double that from right alone, whereas the expenditure of those who refuse to spend either nobly or ignobIy is only one-half the expenditure of those who are noble and like spending on noble objects; consequently, the wealth of men who double their gains and halve their expenditure will never be exceeded by the men whose procedure in both respects is just the opposite.[168] Now of these men, the one is good, and the other not bad, so long as he is niggardly, but utterly bad when he is not niggardly,

[167] i.e. if the citizens are to be happy they must be good. In what follows it is shown that good men cannot be very rich nor very rich men good, therefore also the very rich cannot be happy.

[168] e.g. *A* (a good man) gains (justly) £300, of which he spends £100 on necessaries and £100 on noble objects, leaving him a balance of £l00. *B* (a not-good man) gains (justly and unjustly) £600, of which he spends £l00 on necessaries, and nothing on noble objects, leaving him a balance of £500. The third type (*C*) is worse than *B* because he not only gains but also spends wrongly. Type *A* shows how the good man is neither very rich nor very poor,—*B*, how the bad man may be very rich,—*C*, how the bad may be very poor.

and (as we have just said) at no time good. For while the one man, since he takes both justly and unjustly and spends neither justly nor unjustly, is rich (and the utterly bad man, being lavish as a rule, is very poor) ,— the other man, who spends on noble objects, and gains by just means only, is never likely to become either superlatively rich or extremely poor. Accordingly, what we have stated is true,—that the very rich are not good, and not being good, neither are they happy. Now the fundamental purpose of our laws was this,—that the citizens should be as happy as possible, and in the highest degree united in mutual friendship. Friendly the citizens will never be where they have frequent legal actions with one another and frequent illegal acts, but rather where these are the fewest and least possible. We say that in the State there must be neither gold nor silver, nor must there be much money-making by means of vulgar trading or usury or the fattening of gelded beasts, but only such profit as farming offers and yields, and of this only so much as will not drive a man by his money-making to neglect the objects for which money exists: these objects are the soul and the body, which without gymnastic and the other branches of education would never become things of value. Wherefore we have asserted (and that not once only)[169] that the pursuit of money is to be honored last of all: of all the three objects which concern every man, the concern for money, rightly directed, comes third and last; that for the body comes second; and that for the soul, first.

Ath. Accordingly, if it prescribes its honors in this order, the polity which we are describing has its laws correctly laid down; but if any of the laws therein enacted shall evidently make health of more honor in the State than temperance, or wealth than health and temperance, it will quite clearly be a wrong enactment. Thus the lawgiver must oft-times put this question to himself— "What is it that I intend?" and, "Am I succeeding in this, or am I wide of the mark?" In this way he might, perhaps, get through the task of legislation himself, and save others the trouble of it; but in no other way could he ever possibly do so. The man who has received an allotment shall hold it, as we say, on the terms stated. It would indeed have been a splendid thing if each person, on entering the colony, had had all else equal as well. Since this, however, is impossible, and one man will arrive with more money and another with less, it is necessary for many reasons, and for the sake of equaIizing chances in public life, that there should be unequal valuations, in order that offices and contributions may be assigned in

[169]Cp. *Plat. Laws 631c*, *Plat. Laws 697b*, *Plat. Laws 728e.*

accordance with the assessed valuation in each case,—being framed not in proportion only to the moral excellence of a man's ancestors or of himself, nor to his bodily strength and comeliness, but in proportion also to his wealth or poverty,—so that by a rule of symmetrical inequality[170] they may receive offices and honors as equally as possible, and may have no quarrelling. For these reasons we must make four classes, graded by size of property, and called first, second, third and fourth (or by some other names) , alike when the individuals remain in the same class and when, through a change from poverty to wealth or from wealth to poverty, they pass over each to that class to which he belongs. The kind of law that I would enact as proper to follow next after the foregoing would be this: It is, as we assert, necessary in a State which is to avoid that greatest of plagues, which is better termed disruption than dissension,[171] that none of its citizens should be in a condition of either painful poverty or wealth, since both these conditions produce both these results; consequently the lawgiver must now declare a limit for both these conditions. The limit of poverty shall be the value of the allotment: this must remain fixed, and its diminution in any particular instance no magistrate should overlook, nor any other citizen who aspires to goodness.

Ath. And having set this as the (inferior) limit, the lawgiver shall allow a man to possess twice this amount, or three times, or four times. Should anyone acquire more than this—whether by discovery or gift or money-making, or through gaining a sum exceeding the due measure by some other such piece of luck, if he makes the surplus over to the State and the gods who keep the State, he shall be well-esteemed and free from penalty. But if anyone disobeys this law, whoso wishes may get half by laying information, and the man that is convicted shall pay out an equal share of his own property, and the half shall go to the gods. All the property of every man over and above his allotment shall be publicly written out and be in the keeping of the magistrates appointed by law, so that legal rights pertaining to all matters of property may be easy to decide and perfectly clear. In the next place, the lawgiver must first plant his city as nearly as possible in the center of the country, choosing a spot which has all the other conveniences also which a city requires, and which it is easy enough to perceive and specify. After this, he must divide off twelve portions of land,—when he has first set

[170] i.e. of, proportional distribution: cp. *Plat. Laws 757a* for "political" as distinct from "arithmetical," equality.

[171] Or "class discord."

apart a sacred glebe for Hestia, Zeus and Athena, to which he shall give the name "acropolis" and circle it round with a ring-wall; starting from this he must divide up both the city itself and all the country into the twelve portions. The twelve portions must be equalized by making those consisting of good land small, and those of inferior land larger. He must mark off 5,040 allotments, and each of these he must cut in two and join two pieces to form each several allotment, so that each contains a near piece and a distant piece,—joining the piece next the city with the piece furthest off, the second nearest with the second furthest, and so on with all the rest.[172] And in dealing with these separate portions, they must employ the device we mentioned a moment ago, about poor land and good, and secure equality by making the assigned portions of larger or smaller size. And he must divide the citizens also into twelve parts, making all the twelve parts as equal as possible in respect of the value of the rest of their property, after a census has been made of all. After this they must also appoint twelve allotments for the twelve gods, and name and consecrate the portion allotted to each god, giving it the name of "phyle."[173] And they must also divide the twelve sections of the city in the same manner as they divided the rest of the country; and each citizen must take as his share two dwellings, one near the center of the country the other near the outskirts. Thus the settlement shall be completed.

Ath. But we must by all means notice this,—that all the arrangements now described will never be likely to meet with such favorable conditions that the whole program can be carried out according to plan. This requires that the citizens will raise no objection to such a mode of living together, and will tolerate being restricted for life to fixed and limited amounts of property and to families such as we have stated, and being deprived of gold and of the other things which the lawgiver is clearly obliged by our regulations to forbid, and will submit also to the arrangements he has defined for country and city, with the dwellings set in the center and round the circumference,—almost as if he were telling nothing but dreams, or moulding, so to say, a city and citizens out of wax. These criticisms are not altogether unfair, and the lawgiver should reconsider the points that follow. So he that is legislating speaks to us again in this wise:

"Do not suppose, my friends, that I in these my discourses fail to observe the truth of what is now set out in this criticism. But in dealing

[172]Cp. *Plat. Laws 776a.*

[173]i.e. tribe.

with all schemes for the future, the fairest plan, I think, is this—that the person who exhibits the pattern on which the undertaking is to be modelled should omit no detail of perfect beauty and truth; but where any of them is impossible of realization, that particular detail he should omit and leave unexecuted, but contrive to execute instead whatever of the remaining details comes nearest to this and is by nature most closely akin to the right procedure; and he should allow the lawgiver to express his ideal completely; and when this is done, then and then only should they both consult together as to how far their proposals are expedient and how much of the legislation is impracticable. For the constructor of even the most trivial object, if he is to be of any merit, must make it in all points consistent with itself." So now we must endeavor to discern—after we have decided on our division into twelve parts—in what fashion the divisions that come next to these and are the offspring of these, up to the ultimate figure, 5,040, (determining as they do, the phratries and demes[174] and villages, as well as the military companies and platoons, and also the coinage-system, dry and liquid measures, and weights),— how, I say, all these numerations are to be fixed by the law so as to be of the right size and consistent one with another.

Ath. Moreover, he should not hesitate, through fear of what might appear to be peddling detail, to prescribe that, of all the utensils which the citizens may possess, none shall be allowed to be of undue size. He must recognize it as a universal rule that the divisions and variations of numbers are applicable to all purposes—both to their own arithmetical variations and to the geometrical variations of surfaces and solids, and also to those of sounds, and of motions, whether in a straight line up and down or circular.[175] The lawgiver must keep all these in view and charge all the citizens to hold fast, so far as they can, to this organized numerical system. For in relation to economics, to politics and to all the arts, no single branch of educational science possesses so great an influence as the study of numbers: its chief advantage is that it wakes up the man who is by nature drowsy and slow of wit, and makes him quick to learn, mindful and sharp-witted, progressing beyond his natural capacity by art divine. All these subjects of education will prove fair and fitting, provided that you can remove illiberality and avarice, by means of other laws and institutions, from the souls of those

[174] "Phratries" and "demes" were sub-divisions of the "phyle" or tribe.

[175] i.e. the laws of arithmetic apply also to plane and solid geometry, acoustics, and kinetics.

who are to acquire them adequately and to profit by them; otherwise you will find that you have unwittingly turned out a "sharper," as we call him, instead of a sage: examples of this we can see today in the effect produced on the Egyptians and Phoenicians[176] and many other nations by the illiberal character of their property, and their other institutions,—whether these results are due to their having had a bad lawgiver, or to some adverse fortune that befell them, or else, possibly, to some natural disadvantage. For that, too, is a point, O Megillus and Clinias, which we must not fail to notice,—that some districts are naturally superior to others for the breeding of men of a good or bad type; and we must not conflict with this natural difference in our legislation. Some districts are ill-conditioned or well-conditioned owing to a variety of winds or to sunshine, others owing to their waters, others owing simply to the produce of the soil, which offers produce either good or bad for their bodies, and equally able to effect similar results in their souls as well. Of all these, those districts would be by far the best which have a kind of heavenly breeze, and where the portions of land are under the care of daemons,[177] so that they receive those that come from time to time to settle there either graciously or ungraciously. These districts the judicious lawgiver will examine, so far as examination of such matters is possible for mere man; and he will try to frame his laws accordingly. And you too, Clinias, must adopt the same course; when you are proposing to colonize the country, you must attend to these matters first.

Clin. Your discourse, Stranger, is most excellent, and I must do as you advise.

[176] Cp. *Plat. Rep. 436a.*
[177] Cp. *Plat. Laws 745d ad fin.*

Book 6

Ath. Well then, after all that has now been said, you will next come, I suppose, to the task of appointing magistrates for your State.

Clin. That is so.

Ath. In this there are two branches of civic organization involved,— first, the appointment of magistracies and magistrates, with the fixing of the right number required and the proper method of appointment; and next the assignment to each magistracy of such and so many laws as are in each case appropriate.[178] But before we make our selection, let us pause for a moment, and make a statement concerning it of a pertinent kind.

Clin. What statement is that?

Ath. It is this:— It is a fact clear to everyone that, the work of legislation being a great one, the placing of unfit officers in charge of well-framed laws in a well-equipped State not only robs those laws of all their value and gives rise to widespread ridicule, but is likely also to prove the most fertile source of damage and danger in such States.

Clin. Undoubtedly.

Ath. Let us then, my friend, mark this result in dealing now with your polity and State. You see that it is necessary, in the first place, that those who rightly undertake official functions should in every case have been fully tested— both themselves and their families— from their earliest years up to the time of their selection; and, secondly, that those who are to be the selectors should have been reared in law-abiding habits, and be well trained for the task of rightly rejecting or accepting those candidates who deserve their approval or disapproval. Yet as regards this point, can we suppose that men who have but

[178] Cp. *Plat. Laws 735a.*

recently come together, with no knowledge of one another and with no training, could ever possibly select their officials in a faultless manner?

Clin. It is practically impossible.

Ath. Yet,

"with the hand on the plough," as they say,

"there is no looking back."[179] And so it must be now with you and me; for you, as you tell me,[180] have given your pledge to the Cretan nation that you, with your nine colleagues, will devote yourself to the founding of that State; and I, for my part, have promised to lend you aid in the course of our present imaginative sketch.

Ath. And indeed I should be loth to leave our sketch headless;[181] for it would look entirely shapeless if it wandered about in that guise.

Clin. I heartily approve of what you say, Stranger.

Ath. And what is more, I shall act as I say to the best of my power.

Clin. By all means let us do as we say.

Ath. It shall be done, if God will and if we can thus far master our old age.

Clin. Probably God will be willing.

Ath. Probably he will; and with him as leader let us observe this also—

Clin. What?

Ath. How bold and adventurous is the fashion in which we shall now have founded this State of ours.

Clin. What is now specially in your mind, and what makes you say so?

Ath. The fact that we are legislating lightheartedly and boldly for inexperienced men, in the hope that they will accept the laws we have now enacted. Thus much at least is plain, Clinias, to almost everyone— even to the meanest intelligence— that they will not readily accept any of those laws at the start; but if those laws could remain unchanged until those who have imbibed them in infancy, and have been reared up in them and grown fully used to them, have taken part in elections to office in every department of State,—then, when this has been effected (if any means or method can be found to effect it rightly) , we have, as I think, a strong security that, after this transitional period of disciplined adolescence, the State will remain firm.

Clin. It is certainly reasonable to suppose so.

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[179] Literally, a contest does not at all admit excuses; i.e. once engaged in it, you cannot draw back.

[180] *Plat. Laws 702b*, *Plat. Laws 702c.*

[181] Cp. *Plat. Gorg. 505d ff.*

Ath. Let us then consider whether we might succeed in providing an adequate means to this end on the following lines. For I declare, Clinias, that you Cnosians, above all other Cretans, not only ought to deal in no perfunctory manner with the soil which you are now settling, but ought also to take the utmost care that the first officials are appointed in the best and most secure way possible. The selection of the rest of them will be a less serious task; but it is imperatively necessary for you to choose your Law-wardens first with the utmost care.

Clin. What means can we find for this, or what rule?

Ath. This: I assert, O ye sons of Crete, that, since the Cnosians take precedence over most of the Cretan cities, they should combine with those who have come into this community to select thirty-seven persons in all from their own number and the community—nineteen from the latter body, and the rest from Cnosus itself; and those men the Cnosians should make over to your State, and they should make you in person a citizen of this colony and one of the eighteen—using persuasion or, possibly, a reasonable degree of compulsion.

Clin. Why, pray, have not you also, Stranger, and Megillus lent us a hand in our constitution?

Ath. Athens is haughty, Clinias, and Sparta also is haughty, and both are far distant: but for you this course is in all respects proper, as it is likewise for the rest of the founders of the colony, to whom also our recent remarks about you apply. Let us, then, assume that this would be the most equitable arrangement under the conditions at present existing. Later on, if the constitution still remains, the selection of officials shall take place as follows:—In the selection of officials all men shall take part who carry arms, as horse-soldiers or foot-soldiers, or who have served in war so far as their age and ability allowed. They shall make the selection in that shrine which the State shall deem the most sacred; and each man shall bring to the altar of the god, written on a tablet, the name of his nominee, with his father's name and that of his tribe and of the deme he belongs to, and beside these he shall write also his own name in like manner. Any man who chooses shall be permitted to remove any tablet which seems to him to be improperly written, and to place it in the market-place for not less than thirty days. The officials shall publicly exhibit, for all the State to see, those of the tablets that are adjudged to come first, to the number of 300; and all the citizens shall vote again in like manner, each for whomsoever of these he wishes. Of these, the officials shall again exhibit publicly the names of those who are adjudged first, up to the number of 100. The

third time, he that wishes shall vote for whomsoever he wishes out of the hundred, passing between slain victims[182] as he does so: then they shall test the thirty-seven men who have secured most votes, and declare them to be magistrates. Who, then, are the men, O Clinias and Megillus, who shall establish in our State all these regulations concerning magisterial offices and tests? We perceive (do we not?) that for States that are thus getting into harness for the first time some such persons there must necessarily be; but who they can be, before any officials exist, it is impossible to see. Yet somehow or other they must be there—and men, too, of no mean quality, but of the highest quality possible. For, as the saying goes,

"well begun is half done,"[183] and every man always commends a good beginning;

Ath. but it is truly, as I think, something more than the half, and no man has ever yet commended as it deserves a beginning that is well made.

Clin. Very true.

Ath. Let us not then wittingly leave this first step unmentioned, nor fail to make it quite clear to ourselves how it is to be brought about. I, however, am by no means fertile in resource, save for one statement which, in view of the present situation, it is both necessary and useful to make.

Clin. What statement is that?

Ath. I assert that the State for whose settlement we are planning has nobody in the way of parents except that State which is founding it, though I am quite aware that many of the colony-States often have been, and will be, at feud with those which founded them. But now, on the present occasion, just as a child in the present helplessness of childhood—in spite of the likelihood of his being at enmity with his parents at some future date—loves his parents and is loved by them, and always flies for help to his kindred and finds in them, and them alone, his allies,—so now, as I assert, this relationship exists ready-made for the Cnosians towards the young State, owing to their care for it, and for the young State towards the Cnosians. I state once more, as I stated just now,[184]—for there is no harm in duplicating a good statement—that the Cnosians must take a share in caring for all these matters, choosing out not less than 100 men of those who have come

[182] An ancient method of solemnly ratifying an agreement; cp. *Genesis* 15. 9 ff.

[183] Literally, the beginning is the half of every work.

[184] *Plat. Laws 752d.*

into the colony, the oldest and best of them they are able to select; and of the Cnosians themselves let there be another hundred. This joint body[185] must, I say, go to the new State and arrange in common that the magistrates be appointed according to the laws and be tested after appointment. When this has been done, then the Cnosians must dwell in Cnosus, and the young State must endeavor by its own efforts to secure for itself safety and success. As to the men who belong to the thirty and seven,[186] let us select them for the following purposes: First, they shall act as Wardens of the laws, and secondly as Keepers of the registers in which every man writes out for the officials the amount of his property, omitting four minae if he be of the highest property-class, three if he be of the second class, two if he be of the third, and one if he be of the fourth class. And should anyone be proved to possess anything else beyond what is registered, all such surplus shall be confiscated; and in addition he shall be liable to be brought to trial by anyone who wishes to prosecute—a trial neither noble nor fair of name, if he be convicted of despising law because of lucre. So he that wishes shall charge him with profiteering, and prosecute him by law before the Law-wardens themselves;

Ath. and if the defendant be convicted, he shall take no share of the public goods, and whenever the State makes a distribution, he shall go portionless, save for his allotment, and he shall be registered as a convicted criminal, where anyone who chooses may read his sentence, as long as he lives. A Law-warden shall hold office for no more than twenty years, and he shall be voted into office when he is not under fifty years of age. If he is elected at the age of sixty, he shall hold office for ten years only; and by the same rule, the more he exceeds the minimum age, the shorter shall be his term of office; so that if he lives beyond the age of seventy, he must no longer fancy that he can remain among these officials holding an office of such high importance. So, for the Law-wardens, let us state that these three duties are imposed on them, and as we proceed with the laws, each fresh law will impose upon these men whatever additional duties they ought to be charged with beyond those now stated. And now we may go on to describe the selection of the other officials. Commanders must be selected next, and as subordinates to them, for purposes of war, hipparchs, phylarchs, and officers to marshal the ranks of the foot-phylae,—to whom the name of

[185]This body of 200 is to be appointed, as a temporary expedient, to give the State a start by selecting its first necessary officials.

[186]See above, *Plat. Laws 752e.*

"taxiarchs,"[187] which is in fact the very name which most men give to them, would be specially appropriate. Of these, commanders shall be nominated by the Law-wardens from among the members of our State only; and from those nominated the selection shall be made by all who either are serving or have served in war, according to their several ages. And if anyone deems that someone of the men not nominated is better than one of those nominated, he shall state the name of his nominee and of the man whom he is to replace, and, taking the oath about the matter, he shall propose his substitute; and whichever of the two is decided on by vote shall be included in the list for selection. And the three men, who have been appointed by the majority of votes to serve as commanders and controllers of military affairs, shall be tested as were the Law-wardens. The selected commanders shall nominate for themselves taxiarchs, twelve for each tribe; and here, in the case of the taxiarchs, just as in the case of the commanders, there shall be a right of counter-nomination, and a similar procedure of voting and testing. For the present—before that prytaneis[188] and a Boule have been elected—this assembly shall be convened by the Law-wardens, and they shall seat it in the holiest and roomiest place available, the hoplites on one side, the horse-soldiers on another, and in the third place, next to these, all who belong to the military forces.

Ath. All shall vote for the commanders, all who carry shields for the taxiarchs; all the cavalry shall elect for themselves phylarchs; the commanders shall appoint for themselves captains of skirmishers, archers, or any other branch of service. The appointment of hipparchs we have still remaining. They shall be nominated by the same persons who nominated the commanders, and the mode of selection and counter-nomination shall be the same in their case as in that of the commanders: the cavalry shall vote for them in full sight of the infantry, and the two who secure most votes shall be captains of all the cavalrymen. No more than two challenges of votes shall be allowed: if anyone makes a third challenge, it shall be decided by those who had charge of the count on the occasion in question. The Boule (or Council) shall consist of thirty dozen—as the number 360 is well-adapted for the sub-divisions: they shall be divided into four groups; and 90 councillors shall be voted for from each of the property-classes.[189] First, for councillors from the highest property-class all the citizens shall be compelled to vote, and

[187] i.e. rank-leaders.

[188] i.e. members of a "prytany," or twelfth part of the Boule (or Council) : for the functions of these bodies, see *Plat. Laws 758b.*

[189] Cp. *Aristot. Pol. 1266a 14 ff.*

whoever disobeys shall be fined with the fine decreed. When these have been voted for, their names shall be recorded. On the next day those from the second class shall be voted for, the procedure being similar to that on the first day. On the third day, for councillors from the third class anyone who chooses shall vote; and the voting shall be compulsory for members of the first three classes, but those of the fourth and lowest class shall be let off the fine, in case any of them do not wish to vote. On the fourth day, for those from the fourth and lowest class all shall vote; and if any member of the third or fourth class does not wish to vote, he shall be let off the fine; but any member of the first or second class who fails to vote shall be fined—three times the amount of the first fine in the case of a member of the second class, and four times in the case of one of the first class. On the fifth day the officials shall publish the names recorded for all the citizens to see; and for these every man shall vote, or else be fined with the first fine; and when they have selected 180 from each of the classes, they shall choose out by lot one-half of this number, and test them; and these shall be the Councillors for the year.

Ath. The selection of officials that is thus made will form a mean between a monarchic constitution and a democratic; and midway between these our constitution should always stand. For slaves will never be friends with masters, nor bad men with good, even when they occupy equal positions—for when equality is given to unequal things, the resultant will be unequal, unless due measure is applied; and it is because of these two conditions that political organizations are filled with feuds. There is an old and true saying that

"equality produces amity," which is right well and fitly spoken; but what the equality is which is capable of doing this is a very troublesome question, since it is very far from being clear. For there are two kinds of equality[190] which, though identical in name, are often almost opposites in their practical results. The one of these any State or lawgiver is competent to apply in the assignment of honors,—namely, the equality determined by measure, weight and number,—by simply employing the lot to give even results in the distributions; but the truest and best form of equality is not an easy thing for everyone to discern. It is the judgment of Zeus, and men it never assists save in small measure, but in

[190] Cp. *Plat. Gorg. 508a ff*, *Plat. Gorg. 508b ff*; *Aristot. Pol. 1301b 29 ff.*;*Aristot. Nic. Eth. 1131b 27*, *Aristot. Nic. Eth. 1158b 30 ff.* The "arithmetical" equality which merely counts heads and treats all alike is here contrasted with that truer "proportional" equality which takes account of human inequality, and on which "distributive justice" (as Aristotle terms it) is based: cp. also 744 C.

so far as it does assist either States or individuals, it produces all things good; for it dispenses more to the greater and less to the smaller, giving due measure to each according to nature; and with regard to honors also, by granting the greater to those that are greater in goodness, and the less to those of the opposite character in respect of goodness and education, it assigns in proportion what is fitting to each. Indeed, it is precisely this which constitutes for us "political justice," which is the object we must strive for, Clinias; this equality is what we must aim at, now that we are settling the State that is being planted. And whoever founds a State elsewhere at any time must make this same object the aim of his legislation,—not the advantage of a few tyrants, or of one, or of some form of democracy, but justice always; and this consists in what we have just stated, namely, the natural equality given on each occasion to things unequal. None the less, it is necessary for every State at times to employ even this equality in a modified degree, if it is to avoid involving itself in intestine discord, in one section or another,—for the reasonable and considerate, wherever employed, is an infringement of the perfect and exact, as being contrary to strict justice; for the same reason it is necessary to make use also of the equality of the lot, on account of the discontent of the masses, and in doing so to pray, calling upon God and Good Luck to guide for them the lot aright towards the highest justice.

Ath. Thus it is that necessity compels us to employ both forms of equality; but that form, which needs good luck, we should employ as seldom as possible. The State which means to survive must necessarily act thus, my friends, for the reasons we have stated. For just as a ship when sailing on the sea requires continual watchfulness both by night and day, so likewise a State, when it lives amidst the surge of surrounding States and is in danger of being entrapped by all sorts of plots, requires to have officers linked up with officers from day to night and from night to day, and guardians succeeding guardians, and being succeeded in turn, without a break. But since a crowd of men is incapable of ever performing any of these duties smartly, the bulk of the Councillors must necessarily be left to stay most of their time at their private business, to attend to their domestic affairs; and we must assign a twelfth part of them to each of the twelve months, to furnish guards in rotation, so as promptly to meet any person coming either from somewhere abroad or from their own State, in case he desires to give information or to make enquiries about some matter of international importance; and so as to make replies, and, when the State has asked questions, to receive the replies; and above all, in

view of the manifold innovations that are wont to occur constantly in States, to prevent if possible their occurrence, and in case they do occur, to ensure that the State may perceive and remedy the occurrence as quickly as possible. For these reasons, this presidential section of the State must always have the control of the summoning and dissolving of assemblies, both the regular legal assemblies and those of an emergency character. Thus a twelfth part of the Council will be the body that manages all these matters, and each such part shall rest in turn for eleven-twelfths of the year: in common with the rest of the officials, this twelfth section of the Council must keep its watch in the State over these matters continually. This disposition of affairs in the city will prove a reasonable arrangement. But what control are we to have, and what system, for all the rest of the country? Now that all the city and the whole country have each been divided up into twelve parts, must not supervisors be appointed for the roads of the city itself, the dwellings, buildings, harbors, market, springs, and for the sacred glebes also and the temples, and all such things?

Clin. Certainly.

Ath. Let us state, then, that for the temples there must be temple-keepers and priests and priestesses; and for roads and buildings and the due ordering thereof, and for men, and beasts too, to prevent their doing wrong, and to secure that the order proper to States is observed both within the city bounds and in the suburbs, we must select three kinds of officers: those who deal with the matters just mentioned we shall call "city-stewards," and those dealing with the ordering of the market, "market-stewards." Priests of temples, or priestesses, who hold hereditary priesthoods should not be disturbed; but if,—as is likely to be the case in such matters with a people who are being organized for the first time,—few or none have them already established, then we must establish priests and priestesses to be temple-keepers for the gods. In establishing all these offices, we must make the appointments partly by election and partly by lot,[191] mingling democratic with non-democratic methods, to secure mutual friendliness, in every rural and urban district, so that all may be as unanimous as possible.[192] As to the priests, we shall entrust it to the god himself to ensure his own good pleasure, by committing their appointment to the divine chance of the lot; but each person who gains the lot we shall test, first, as to whether he is sound and true-born, and secondly, as to whether he comes from

[191] Cp. *Aristot. Pol. 1300a 19 ff.*

[192] Cp. *Plat. Laws 738d ff.*, *Plat. Laws 771e.*

houses that are as pure as possible, being himself clean from murder and all such offences against religion, and of parents that have lived by the same rule. They ought to bring from Delphi laws about all matters of religion, and appoint interpreters[193] thereof, and make use of those laws. Each priestly office should last for one year and no longer; and the person who is to officiate in sacred matters efficiently according to the laws of religion should be not less than sixty years old: and the same rules shall hold good also for priestesses. For the interpreters the tribes shall vote four at a time, by three votings, for four men, one from each tribe;[194] and when the three men for whom most votes are cast have been tested, they shall send the other nine to Delphi for the oracle to select one from each triad; and the rules as to their age and testing shall be the same as for the priests. These men shall hold office for life as interpreters; and when one falls out, the four tribes[195] shall elect a substitute from the tribe he belonged to.

Ath. As treasurers to control the sacred funds in each of the temples, and the sacred glebes, with their produce and their rents, we must choose from the highest property-classes three men for the largest temples, two for the smaller, and one for the least extensive; and the method of selecting and testing these shall be the same as that adopted in the case of the commanders. Such shall be the regulations concerning matters of religion. Nothing, so far as possible, shall be left unguarded. As regards the city, the task of guarding shall be in charge of the commanders, taxiarchs, hipparchs, phylarchs and prytaneis, and also of the city-stewards and market-stewards, wherever we have such officials properly selected and appointed. All the rest of the country must be guarded in the following manner: we have marked out the whole country as nearly as possible into twelve equal portions: to each portion one tribe shall be assigned by lot, and it shall provide five men to act as land-stewards and phrourarchs (watch-captains); it shall be the duty of each of the Five to select twelve young men from his own tribe of an age neither under 25 nor over 30. To these groups of twelve the twelve portions of the country shall be assigned, one to each in rotation for a month at a time, so that all of them may gain experience and knowledge of all parts of the country. The period of office and of service for guards and officers shall be two years. From the portion

[193] i.e. official exponents of sacred law; cp. *Plat. Laws 775a*, *Plat. Laws 828b*.

[194] The 12 tribes are divided into 3 groups of 4 each: each group appoints 3, making 9 in all: the other 3 required to make up the full number (12) are selected by the Oracle from the 9 candidates next on the list.

[195] i.e. the tribal group by which he was elected.

in which they are stationed first by the lot they shall pass on month by month to the next district, under the leadership of the phrourarchs, in a direction from left to right,— and that will be from west to east. When the first year is completed, in order that as many as possible of the guards may not only become familiar with the country in one season of the year, but may also learn about what occurs in each several district at different seasons, their leaders shall lead them back again in the reverse direction, constantly changing their district, until they have completed their second year of service. For the third year they must elect other land-stewards and phrourarchs.

Ath. During their periods of residence in each district their duties shall be as follows: first, in order to ensure that the country shall be fenced as well as possible against enemies, they shall make channels wherever needed, and dig moats and build crosswalls, so as to keep out to the best of their power those who attempt in any way to damage the country and its wealth; and for these purposes they shall make use of the beasts of burden and the servants in each district, employing the former and supervising the latter, and choosing always, so far as possible, the times when these people are free from their own business. In all respects they must make movement as difficult as possible for enemies, but for friends—whether men, mules or cattle—as easy as possible, by attending to the roads, that they all may become as level as possible, and to the rain-waters, that they may benefit instead of injuring the country, as they flow down from the heights into all the hollow valleys in the mountains: they shall dam the outflows of their flooded dales by means of walls and channels, so that by storing up or absorbing the rains from heaven, and by forming pools or springs in all the low-lying fields and districts, they may cause even the driest spots to be abundantly supplied with good water. As to spring-waters, be they streams or fountains, they shall beautify and embellish them by means of plantations and buildings, and by connecting the pools by hewn tunnels they shall make them all abundant, and by using water-pipes they shall beautify at all seasons of the year any sacred glebe or grove that may be close at hand, by directing the streams right into the temples of the gods. And everywhere in such spots the young men should erect gymnasia both for themselves and for the old men—providing warm baths for the old: they should keep there a plentiful supply of dry wood, and give a kindly welcome and a helping hand to sick folk and to those whose bodies are worn with the toils of husbandry—a welcome far better than a doctor who is none too skilful. They shall carry on these, and all similar operations, in the country

districts, by way of ornament as well as use, and to furnish recreation also of no ungraceful kind. The serious duties in this department shall be as follows:—The Sixty must guard each their own district, not only because of enemies, but in view also of those who profess to be friends. And if one either of the foreign neighbors or of the citizens injures another citizen, be the culprit a slave or a freeman, the judges for the complainant shall be the Five officers themselves in petty cases, and the Five each with their twelve subordinates in more serious cases, where the damages claimed are up to three minae. No judge or official should hold office without being subject to an audit, excepting only those who, like kings, form a court of final appeal.

Ath. So too with regard to these land-stewards if they do any violence to those whom they supervise, by imposing unfair charges, or by trying to plunder some of their farm-stores without their consent, or if they take a gift intended as a bribe, or distribute goods unjustly—for yielding to seduction they shall be branded with disgrace throughout the whole State; and in respect of all other wrongs they have committed against people in the district, up to the value of one mina, they shall voluntarily submit to trial before the villagers and neighbors; and should they on any occasion, in respect of either a greater or lesser wrong, refuse thus to submit,—trusting that by their moving on every month to a new district they will escape trial,—in such cases the injured party must institute proceedings at the public courts, and if he win his suit, he shall exact the double penalty from the defendant who has absconded and refused to submit voluntarily to trial. The mode of life of the officers and land-stewards during their two years of service shall be of the following kind. First, in each of the districts there shall be common meals, at which all shall mess together. If a man absents himself by day, or by sleeping away at night, without orders from the officers or some urgent cause, and if the Five inform against him and post his name up in the market-place as guilty of deserting his watch, then he shall suffer degradation for being a traitor to his public duty, and whoever meets him and desires to punish him may give him a beating with impunity. And if any one of the officers themselves commits any such act, it will be proper for all the Sixty to keep an eye on him; and if any of them notices or hears of such an act, but fails to prosecute, he shall be held guilty under the same laws, and shall be punished more severely than the young men; he shall be entirely disqualified from holding posts of command over the young men. Over these matters the Law-wardens shall exercise most careful supervision, to prevent if possible their occurrence, and, where they

do occur, to ensure that they meet with the punishment they deserve. Now it is needful that every man should hold the view, regarding men in general, that the man who has not been a servant will never become a praiseworthy master, and that the right way to gain honor is by serving honorably rather than by ruling honorably—doing service first to the laws, since this is service to the gods, and, secondly, the young always serving the elder folk and those who have lived honorable lives. In the next place, he who is made a land-steward must have partaken of the daily rations, which are coarse and uncooked, during the two years of service.

Ath. For whenever the Twelve have been chosen, being assembled together with the Five, they shall resolve that, acting like servants, they will keep no servants or slaves to wait on themselves, nor will they employ any attendants belonging to the other farmers or villagers for their own private needs, but only for public requirements; and in all other respects they shall determine to live a self-supporting life, acting as their own ministers and masters, and thoroughly exploring, moreover, the whole country both by summer and winter, under arms, for the purpose both of fencing and of learning each several district. For that all should have an accurate knowledge of their own country is a branch of learning that is probably second to none: so the young men ought to practise running with hounds and all other forms of hunting, as much for this reason as for the general enjoyment and benefit derived from such sports. With regard, then, to this branch of service—both the men themselves and their duties, whether we choose to call them secret-service men or land-stewards or by any other name—every single man who means to guard his own State efficiently shall do his duty zealously to the best of his power. The next step in our choice of officials is to appoint market-stewards and city-stewards. After the land-stewards (sixty in number) will come the three city-stewards, who shall divide the twelve sections of the city into three parts, and shall copy the land-stewards in having charge of the streets of the city and of the various roads that run into the city from the country, and of the buildings, to see that all these conform to the requirements of the law; and they shall also have charge of all the water-supplies conveyed and passed on to them by the guards in good condition, to ensure that they shall be both pure and plentiful as they pour into the cisterns, and may thus both beautify and benefit the city. Thus it is needful that these men also should have both the ability and the leisure to attend to public affairs. Therefore for the office of city-steward every citizen shall nominate whatever person he chooses from the highest property-class;

and when these have been voted on, and they have arrived at the six men for whom most votes have been cast, then those whose duty it is shall select the three by lot; and after passing the scrutiny, these men shall execute the office according to the laws ordained for them. Next to these they must elect five market-stewards from the second and first property-classes: in all other respects the mode of their election shall be similar to that of the city-stewards; from the ten candidates chosen by voting they shall select the five by lot, and after scrutiny declare them appointed.

Ath. All shall vote for every official: any man who refuses to do so, if reported to the officials, shall be fined fifty drachmae, besides being declared to be a bad citizen. Whoso wishes shall attend the Ecclesia and the public assembly; and for members of the second and first property-classes attendance shall be compulsory, anyone who is found to be absent from the assemblies being fined ten drachmae; but for a member of the third or fourth class it shall not be compulsory, and he shall escape without a fine, unless the officials for some urgent reason charge everyone to attend. The market-stewards must see to it that the market is conducted as appointed by law: they must supervise the temples and fountains in the market, to see that no one does any damage; in case anyone does damage, if he be a slave or a stranger, they shall punish him with stripes and bonds, while if a native is guilty of such misconduct, they shall have power to inflict a fine up to a hundred drachmae of their own motion, and to fine a wrongdoer up to twice that amount, when acting in conjunction with the city-stewards. Similarly, the city-stewards shall have power of fining and punishing in their own sphere, fining up to a mina of their own motion, and up to twice that sum in conjunction with the market-stewards. It will be proper next to appoint officials for music and gymnastics,—two grades for each department, the one for education, the other for managing competitions. By education-officers the law means supervisors of gymnasia and schools, both in respect of their discipline and teaching and of the control of the attendances and accommodation both for girls and boys. By competition-officers it means umpires for the competitors both in gymnastic and in music, these also being of two grades. For competitions there should be the same umpires both for men and for horses; but in the case of music it will be proper to have separate umpires for solos and for mimetic performances,— I mean, for instance, one set chosen for rhapsodists, harpers, flute-players, and all such musicians, and another set for choral performers. We ought to choose first the officials for the playful exercise of choirs of children and lads and

girls in dances and all other regular methods of music;

Ath. and for these one officer suffices, and he must be not under forty years of age. And for solo performances one umpire, of not less than thirty years, is sufficient, to act as introducer[196] and to pass an adequate judgment upon the competitors. The officer and manager of the choirs they must appoint in the following way. All those who are devoted to these subjects shall attend the assembly, and if they refuse to attend they shall be liable to a fine—a matter which the Law-wardens shall decide: any others who are unwilling to attend shall be subject to no compulsion. Every elector must make his nomination from the list of those who are experts: in the scrutiny, affirmation and negation shall be confined to one point only—on the one side, that the candidate is expert, on the other side, that he is not expert; and whichever of the ten who come first on votes is elected after the scrutiny shall be the officer for the year in charge of the choirs according to law. In the same way as these they shall appoint the officer elected to preside for the year over those who enter for competitions in solos and joint performances on the flute. Next it is proper to choose umpires for the athletic contests of horses and men from among the third and the second property-classes: this election it shall be compulsory for the first three classes to attend, but the lowest class shall be exempt from fines for non-attendance. Three shall be appointed: twenty having been first selected by show of hand, three out of the twenty shall be chosen by lot; and they shall be subject also to the approval of the scrutineers. Should any candidate be disqualified in any voting or testing for office, they shall elect a substitute, and carry out the scrutiny by the same method as in the case of the original candidate. In the department we have been dealing with, we have still to appoint an officer who shall preside over the whole range of education of both boys and girls. For this purpose there shall be one officer legally appointed: he shall not be under fifty years of age, and shall be the father of legitimate children of either sex, or preferably of both sexes. Both the candidate that is put first, and the elector who puts him first, must be convinced that of the highest offices of State this is by far the most important.

Ath. For in the case of every creature—plant or animal, tame[197] and wild alike—it is the first shoot, if it sprouts out well, that is most effective in bringing to its proper development the essential excellence of the creature in question. Man, as we affirm, is a tame creature:

[196] i.e. to take entries and assign places to the competitors.

[197] i.e. "domesticated" animals, and "garden" plants.

none the less, while he is wont to become an animal most godlike and tame when he happens to possess a happy nature combined with right education, if his training be deficient or bad, he turns out the wildest of all earth's creatures. Wherefore the lawgiver must not permit them to treat the education of children as a matter of secondary or casual importance; but, inasmuch as the presiding official must be well selected, he must begin first by charging them to appoint as president, to the best of their power, that one of the citizens who is in every way the most excellent. Therefore all the officials—excepting the Council and the prytaneis—shall go to the temple of Apollo, and shall each cast his vote for whichever one of the Law-wardens he deems likely best to control educational affairs. He who gains most votes, after passing a scrutiny held by the selecting officials, other than the Law-wardens, shall hold office for five years: in the sixth year they shall elect another man for this office in a similar manner. If anyone holding a public office dies more than thirty days before his office terminates, those whose proper duty it is must appoint a substitute in the same manner. If a guardian of orphans dies, the relations, who are residents, on both the father's and mother's side, as far as cousin's children, shall appoint a substitute within ten days, failing which they shall each be fined one drachma per diem until they have appointed the guardian for the children. A State, indeed, would be no State if it had no law-courts properly established; but a judge who was dumb and who said as little as litigants at a preliminary inquiry,[198] as do arbitrators,[199] would never prove efficient in deciding questions of justice; consequently it is not easy for a large body of men to judge well, nor yet for a small one, if of poor ability. The matter in dispute on either side must always be made clear, and for elucidating the point at issue, lapse of time, deliberation and frequent questionings are of advantage.

Ath. Therefore those who challenge each other must go first to the neighbors and friends who know most about the actions in dispute: if a man fails to get an adequate decision from them, he shall repair to another court; and if these two courts are unable to settle the matter, the third court shall put an end to the case. In a sense we may say that the establishment of law-courts coincides with the election of officials; for every official must be also a judge of certain matters, while a judge, even if not an official, may be said to be an official of

[198] i.e. an inquiry into the grounds of a proposed action at law, to decide whether or not it should be brought into court.

[199] i.e. persons appointed to settle points in dispute, so as to avoid a legal trial in the regular courts.

no little importance on the day when he concludes a suit by pronouncing his judgment. Assuming then that the judges are officials, let us declare who will make suitable judges, and of what matters, and how many shall deal with each case. The most elementary form of court is that which the two parties arrange for themselves, choosing judges by mutual agreement; of the rest, there shall be two forms of trial,—the one when a private person accuses a private person of injuring him and desires to gain a verdict by bringing him to trial, and the other when a person believes that the State is being injured by one of the citizens and desires to succor the common weal. Who and what sort the judges are must now be explained. First, we must have a court common to all private persons who are having their third[200] dispute with one another. It shall be formed in this way. On the day preceding the commencement of a new year of office—which commences with the month next after the summer solstice—all the officials, whether holding office for one year only or longer, shall assemble in the same temple and, after adjuring the god, they shall dedicate, so to say, one judge from each body of officials, namely, that member of each body whom they deem the best man and the most likely to decide the suits for his fellow-citizens during the ensuing year in the best and holiest way. These being chosen, they shall undergo a scrutiny before those who have chosen them; and should any be disqualified, they shall choose a substitute in like manner. Those who pass the scrutiny shall act as judges for those who have escaped the other courts, and they shall cast their votes openly. The Councillors, and all the other officials, who have elected them, shall be obliged to attend these trials, both to hear and to see; and anyone else that wishes may attend. Anyone who accuses a judge of deliberately giving an unjust judgment shall go to the Law-wardens and lay his charge before them: a judge that is convicted on such a charge shall submit to pay double the amount of the damage done to the injured party; and if he be held to deserve a greater penalty, the judges of the case shall estimate what additional punishment must be inflicted, or what payment made to the State and to the person who took proceedings.

Ath. In the matter of offences against the State it is necessary, first of all, that a share in the trial should be given to the populace, for when a wrong is done to the State, it is the whole of the people that are wronged, and they would justly be vexed if they had no share in

[200] Apparently, this refers to the third court (of appeal) mentioned above, *Plat. Laws 767a 2 ff.*

such trials; so, while it is right that both the beginning and the ending of such a suit should be assigned to the people, the examination shall take place before three of the highest officials mutually agreed upon by both defendant and plaintiff: should they be unable by themselves to reach an agreement, the Council must revise the choice of each of them. In private suits also, so far as possible, all the citizens must have a share; for the man that has no share in helping to judge imagines that he has no part or lot in the State at all. Therefore there must also be courts for each tribe, and judges appointed by lot and to meet the sudden occasion must judge the cases, unbiased by appeals; but the final verdict in all such cases must rest with that court which we declare to be organized in the most incorruptible way that is humanly possible, specially for the benefit of those who have failed to obtain a settlement of their case either before the neighbors or in the tribal courts.[201] Thus as concerns the law-courts—which, as we say, cannot easily be called either "offices" or "non-offices" without ambiguity—this outline sketch serves to describe them in part, though there is a good deal it omits; for detailed legislation and definition concerning suits would most properly be placed at the conclusion of the legislative code.[202] So let these matters be directed to wait for us at the conclusion; and I should say that the other official posts have had most of the legislation they require for their establishment. But a full and precise account concerning each and all of the State departments and the whole of the civic organization it is impossible to give clearly until our review has embraced every section of its subject, from the first to the very last, in proper order. So now, at the point where we stand—when our exposition has reached so far as to include the election of the officials—we may find a fit place to terminate our previous subject, and to commence the subject of legislation, which no longer needs any postponements or delays.

Clin. The previous subject, Stranger, you have treated to our entire satisfaction; but we welcome still more heartily the way you have linked up your past statements with your future statements—the end with the beginning.

Ath. It seems, then, that up to now our ancients' game of reason[203]

[201] The whole of this account (*Plat. Laws 766e-768c*) of courts and judges is confused and confusing. It would seem that 2 classes of suits are indicated, public and private, and 3 kinds of courts, viz. (1) local courts (composed of neighbors) , (2) tribal courts, (3) courts of appeal.

[202] Cp. *Plat. Laws 853a ff.*, *Plat. Laws 956b.*

[203] i.e. the "game" of legislation, cp. *Plat. Laws 685a*, *Plat. Laws 712b.*

has been finely played.

Clin. You are showing, I think, how fine is the serious work of our citizens.

Ath. Very probably: but let us see whether you agree with me about another point.

Clin. What is it, and whom does it concern?

Ath. You know how, for instance, the painter's art in depicting each several subject seems never to get to an end, and in its embellishing it seems as if it would never stop laying on colors or taking them off—or whatever the professional painters term the process—and reach a point where the picture admits of no further improvement in respect of beauty and lucidity.

Clin. I, too, remember hearing something of the fact you mention, although I am by no means practised in that kind of art.

Ath. You are none the worse for that. We may still use this fact, which it has occurred to us to mention, to illustrate the following point. Suppose that a man should propose to paint an object of extreme beauty, and that this should never grow worse, but always better, as time went on, do you not see that, since the painter is mortal, unless he leaves a successor who is able to repair the picture if it suffers through time, and also in the future to improve it by touching up any deficiency left by his own imperfect craftsmanship, his interminable toil will have results of but short duration?

Clin. True.

Ath. Well then, do you not think that the purpose of the lawgiver is similar? He purposes, first, to write down the laws, so far as he can, with complete precision; next, when in the course of time he puts his decrees to the test of practice, you cannot suppose that any lawgiver will be so foolish as not to perceive that very many things must necessarily be left over, which it will be the duty of some successor to make right, in order that the constitution and the system of the State he has organized may always grow better, and never in any way worse.[204]

Clin. This, of course, is what everyone naturally desires.

Ath. Suppose then that a man knew of a device indicating the way in which he could teach another man by deed and word to understand in a greater or less degree how he should conserve or amend laws, surely he would never cease declaring it until he had accomplished his purpose.

[204] Cp. *Polit. 298a ff.*

Clin. He certainly would not.

Ath. Must not we three act thus on the present occasion?

Clin. What is it you mean?

Ath. We are about to make laws, and Law-wardens have been appointed by us; therefore, since we are in the evening of life, while those compared to us are youthful, we should not only legislate, as we say, ourselves, but also make legislators, as well as Law-wardens, of these very same men, so far as we can.

Clin. We should,—if, that is to say, we are capable of so doing.

Ath. At any rate we must try, and try hard.

Clin. By all means.

Ath. Let us address them thus:—

"Beloved Keepers of the Laws, in many departments of our legislation we shall leave out a vast number of matters (for we needs must do so) ; yet, notwithstanding, all important matters, as well as the general description, we shall include, so far as we can, in our outline sketch. Your help will be required to fill in this outline; and you must listen to what I say about the aim you should have before you in doing so. Megillus, Clinias and I have often stated to one another that aim, and we agree that it is rightly stated; so we desire you to be in immediate unison with us, as our disciples, and to aim at those objects at which, as we three have agreed, the lawgiver and Law-warden ought to aim. The sum and substance of our agreement was simply this: that whatsoever be the way in which a member of our community—be he of the male or female sex, young or old,—may become a good citizen, possessed of the excellence of soul which belongs to man, whether derived from some pursuit or disposition, or from some form of diet, or from desire or opinion or mental study, to the attainment of this end all his efforts throughout the whole of his life shall be directed; and not a single person shall show himself preferring any object which impedes this aim; in fine, even as regards the State, he must allow it to be revolutionized, if it seems necessary, rather than voluntarily submit to the yoke of slavery under the rule of the worse, or else he must himself quit the State as an exile: all such sufferings men must endure rather than change to a polity which naturally makes men worse."

Ath. "This is what we previously agreed upon[205]: so do you now keep both these objects of ours in view as you revise the laws, and censure all the laws which are unable to effect them, but welcome all such as are able to do so, and, adopting them wholeheartedly, rule

[205] *Plat. Laws 688e*, *Plat. Laws 742e.*

your lives by them. All other practices, which tend towards "goods" (so-called), other than these, you must bid farewell to." For a beginning of the laws which are to follow, we must commence with things sacred. First, we must consider anew[206] the number 5,040, and the number of convenient subdivisions which we found it to contain both as a whole and when divided up into tribes: the tribal number is, as we said, a twelfth part of the whole number, being in its nature precisely 20 X 21. Our whole number has twelve subdivisions, and the tribal number also has twelve; and each such portion must be regarded as a sacred gift of God, conformed to the months and to the revolution of the universe. Wherefore also every State is guided by native instinct to hold them sacred, although some men possibly have made their divisions more correctly than others, or have consecrated them more happily. We, in any case, affirm now that we are perfectly correct in first selecting the number 5,040, which admits of division by all the numbers from 1 to 12, excepting only 11—and this omission is very easily remedied, since the mere subtraction of two hearths from the total restores an integral number as quotient:[207] that this is really true we could show, at our leisure, by a fairly short explanation. For the present, then, we shall trust to the oracular statement just delivered, and we shall employ these subdivisions, and give to each portion the name of a God, or of a child of Gods, and bestow on it altars and all that belongs thereto; and at these we shall appoint two assemblies every month for sacrifice—of which twelve (yearly) shall be for the whole tribal division, and twelve for its urban section only; the object of these shall be, first, to offer thanksgiving to the gods and their attendants, and secondly, to promote fellowship amongst ourselves and the mutual acquaintance we spoke of, and association of every sort. For, in view of the fellowship and intercourse of marriage, it is necessary to eliminate ignorance, both on the part of the husband concerning the woman he marries and the family she comes from, and on the part of the father concerning the man to whom he gives his daughter; for it is all-important in such matters to avoid, if possible, any mistake.

Ath. To achieve this serious purpose, sportive dances should be arranged for boys and girls; and at these they should both view and be viewed, in a reasonable way and on occasions that offer a suitable pretext, with bodies unclad, save so far as sober modesty prescribes. Of all such matters the officers of the choirs shall be the supervisors

[206] Cp. *Plat. Laws 737e.*

[207] 5,040 = (11 X 458) + 2.

and controllers, and also, in conjunction with the Law-wardens, the lawgivers of all that we leave unprescribed.[208] It is, as we said, necessary that in regard to all matters involving a host of petty details the law-giver should leave omissions, and that rules and amendments should be made from year to year by those who have constant experience of them from year to year and are taught by practice, until it be decided that a satisfactory code has been made out to regulate all such proceedings. A fair and sufficient period to assign for such experimental work would be ten years, both for sacrifices and for dances in all their several details; each body of officials, acting in conjunction with the original lawgiver, if he be still alive, or by themselves, if he be dead, shall report to the Law-wardens whatever is omitted in their own department, and shall make it good, until each detail seems to have reached its proper completion: this done, they shall decree them as fixed rules, and employ them as well as the rest of the laws originally decreed by the law-giver. In these they must never make any change voluntarily; but if it should ever be thought that a necessity for change has arisen, all the people must be consulted, as well as all the officials, and they must seek advice from all the divine oracles; and if there is a general consent by all, then they may make a change, but under no other conditions at any time; and the objector to change shall always prevail according to law. When any man of twenty-five[209] years of age, viewing and being viewed by others, believes that he has found in any quarter a mate to his liking and suitable for the joint procreation of children, he shall marry, in every case before he is thirty-five; but first let him hearken to the direction as to how he should seek what is proper and fitting, for, as Clinias maintains, one ought to introduce each law by a prelude suitable thereto.[210]

Clin. A very proper reminder, Stranger,—and you have chosen, in my opinion, a most opportune point in your discourse for making it.

Ath. You are right. So let us say to the son of noble sires: My child, you must make a marriage that will commend itself to men of sense, who would counsel you neither to shun entirely connection with a poor family, nor to pursue connection with a rich one, but, other things being equal, to prefer always an alliance with a family of moderate means. Such a course will benefit both the State and the united families,[211] since in respect of excellence what is evenly

[208] Cp. *Plat. Laws 764e.*

[209] But cp. *Plat. Laws 721b.*

[210] Cp. *Plat. Laws 720e.*

balanced and symmetrical is infinitely superior to what is untempered. The man who knows he is unduly hasty and violent in all his actions should win a bride sprung from steady parents; while the man that is of a contrary nature should proceed to mate himself with one of the opposite kind. Regarding marriage as a whole there shall be one general rule: each man must seek to form such a marriage as shall benefit the State, rather than such as best pleases himself. There is a natural tendency for everyone to make for the mate that most resembles himself, whence it results that the whole State becomes ill-balanced both in wealth and in moral habits; and because of this, the consequences we least desire are those that generally befall most States. To make express enactments about these matters by law—that, for instance, a rich man must not marry into a rich family, nor a man of wide power with a powerful family, or that man of hasty tempers must be obliged to seek alliances with those of slower tempers, and the slow with the hasty—this, besides being ridiculous, would cause widespread resentment; for people do not find it easy to perceive that a State should be like a bowl of mixed wine, where the wine when first poured in foams madly, but as soon as it is chastened by the sober deity of water, it forms a fair alliance, and produces a potion that is good and moderate. That this is precisely what happens in the blending of children is a thing which hardly anyone is capable of perceiving; therefrom in the legal code we must omit such rules, and merely try by the spell of words to persuade each one to value the equality of his children more highly than the equality of a marriage with inordinate wealth, and by means of reproaches to divert from his object him who has set his heart on marrying for money, although we may not compel him by a written law.

Ath. Concerning marriage these shall be the exhortations given, in addition to those previously given,[212] declaring how it is a duty to lay hold on the ever-living reality by providing servants for God in our own stead; and this we do by leaving behind us children's children. All this and more one might say in a proper prelude concerning marriage and the duty of marrying. Should any man, however, refuse to obey willingly, and keep himself aloof and unpartnered in the State, and reach the age of thirty-five unmarried, an annual fine shall be imposed upon him, of a hundred drachmae if he be of the highest property-

[211] Cp. *Pol. 310c ff.*

[212] *Plat. Laws 721b.* By reproduction man secures a continuous share in the life of the divine Universe; cp. 903 C.

class, if of the second, seventy, if of the third, sixty, if of the fourth, thirty. This fine shall be consecrated to Hera.[213] He that fails to pay the fine in full every year shall owe ten times the amount of it, and the treasurer of the goddess shall exact this sum, or, failing to exact it, he shall owe it himself, and in the audit he shall in every case be liable to account for such a sum. This shall be the money-fine in which the man who refuses to marry shall be mulcted, and as to honor, he shall receive none from the younger men, and no young man shall of his own free-will pay any regard to him: if he attempt to punish any person, everyone shall come to the assistance of the person maltreated and defend him, and whoever is present and fails thus to give assistance shall be declared by law to be both a cowardly and a bad citizen. Concerning dowries it has been stated before,[214] and it shall be stated again, that an equal exchange consists in neither giving nor receiving any gift, for all those who belong to this State have the necessaries of life provided for them; and the result of this rule will be less insolence on the part of the wives and less humiliation and servility on the part of the husband because of money. Whoso obeys this rule will be acting nobly; but he that disobeys—by giving or receiving for raiment[215] a sum of over fifty drachmae, or over one mina, or over one and a half minae, or (if a member of the highest property-class) over two minae,—shall owe to the public treasury a sum equal thereto, and the sum given or received shall be consecrated to Hera and Zeus, and the treasurers of these deities shall exact it,— just as it was the rule,[216] in cases of refusal to marry, that the treasurers of Hera should exact the fine in each instance, or else pay it out of their own pockets. The right of betrothal belongs in the first place to the father, next to the grandfather, thirdly to the full brothers; failing any of these, it rightly belongs next to relatives on the mother's side in like order; in case of any unwonted misfortune, the right shall belong to the nearest of kin in each case, acting in conjunction with the guardians.[217]

Ath. Concerning the preliminary marriage-sacrifice and all other sacred ceremonies proper to be performed before, during, or after marriage, each man shall enquire of the Interpreters, and believe that, in

[213] As goddess of marriage.

[214] *Plat. Laws 742c.*

[215] i.e. for the bride's "trousseau," given by her father to the bridegroom. Fifty drachmae is the maximum value allowed for the lowest class, a mina for the next lowest, and so on upwards.

[216] Cp. *Plat. Laws 774b.*

[217] For these "guardians" (of orphans) see *Plat. Laws 926e.*

obeying their directions, he will have done all things duly. Concerning marriage-feasts,—both parties should invite their male and female friends, not more than five on each side, and an equal number of the kinsfolk and connections of both houses: in no case must the expense exceed what the person's means permit—one mina for the richest class, half that amount for the second, and so on in proportion, according as the valuation grows less. He that obeys the law should be praised by all; but he that disobeys the Law-wardens shall punish as a man of poor taste and ill-trained in the "nomes"[218] of the nuptial Muses. Drinking to excess is a practice that is nowhere seemly[219]—save only at the feasts of the God, the Giver of wine,—nor yet safe; and certainly it is not so for those who take marriage seriously; for at such a time above all it behoves both bride and bridegroom to be sober, seeing that the change in their life is a great one, and in order to ensure, so far as possible, in every case that the child that is begotten may be sprung from the loins of sober parents: for what shall be, with God's help, the night or day of its begetting is quite uncertain. Moreover, it is not right that procreation should be the work of bodies dissolved by excess of wine, but rather that the embryo should be compacted firmly, steadily and quietly in the womb. But the man that is steeped in wine moves and is moved himself in every way, writhing both in body and soul; consequently, when drunk, a man is clumsy and bad at sowing seed, and is thus likely to beget unstable and untrusty offspring, crooked in form and character. Wherefore he must be very careful throughout all the year and the whole of his life—and most especially during the time he is begetting—to commit no act that involves either bodily ailment or violence and injustice; for these he will inevitably stamp on the souls and bodies of the offspring, and will generate them in every way inferior. From acts of such a kind he must especially abstain on the day and night of his marriage; for the Beginning that sits enshrined as a goddess[220] among mortals is the Savior of all, provided that she receives the honor due to her from each one who approaches her.

Ath. The man who marries must part from his father and mother, and take one of the two houses[221] in his allotment, to be, as it were, the nest and home of his chicks, and make therein his marriage and the dwelling and home of himself and his children. For in friendships the

[218] Cp. *Plat. Laws 700b*, *Plat. Laws 722d.*

[219] Cp. *Plat. Laws 674a.*

[220] For the importance of *ἀρχή* (here personified) cp. *Plat. Laws 753e*, *Plat. Laws 765e*; possibly *ἀρχὴ σώζει πάντα* was a proverb.

[221] Cp. *Plat. Laws 745c*, *Plat. Laws 745d.*

presence of some degree of longing seems to cement various dispositions and bind them together; but unabated proximity, since it lacks the longing due to an interval, causes friends to fall away from one another owing to an excessive surfeit of each other's company. Therefore the married pair must leave their own houses to their parents and the bride's relations, and act themselves as if they had gone off to a colony, visiting and being visited in their home, begetting and rearing children, and so handing on life, like a torch,[222] from one generation to another, and ever worshipping the gods as the laws direct. Next, as regards possessions, what should a man possess to form a reasonable amount of substance? As to most chattels, it is easy enough both to see what they should be and to acquire them; but servants present all kinds of difficulties. The reason is that our language about them is partly right and partly wrong; for the language we use both contradicts and agrees with our practical experience of them.

Meg. What mean we by this? We are still in the dark, Stranger, as to what you refer to.

Ath. That is quite natural, Megillus. For probably the most vexed problem in all Hellas is the problem of the Helot-system of the Lacedaemonians, which some maintain to be good, others bad; a less violent dispute rages round the subjection of the Mariandyni[223] to the slave-system of the Heracleotes, and that of the class of Penestae to the Thessalians.[224] In view of these and similar instances, what ought we to do about this question of owning servants?[225] The point I happened to mention in the course of my argument,—and about which you naturally asked me what I referred to,—was this. We know, of course, that we would all agree that one ought to own slaves that are as docile and good as possible; for in the past many slaves have proved themselves better in every form of excellence than brothers or sons, and have saved their masters and their goods and their whole houses. Surely we know that this language is used about slaves?

Meg. Certainly.

Ath. And is not the opposite kind of language also used,—that the soul of a slave has no soundness in it, and that a sensible man should never trust that class at all? And our wisest poet, too, in

[222] Cp. *Plat. Rep. 328a.*

[223] These ancient inhabitants of N.E. Bithynia were conquered by the people of Heraclea Pontica and make tributary vassals.

[224] Cp. *Aristot. Pol. 1269a 36.* "Penestae" (= serfs) were the old Aeolian inhabitants of Thessaly, subdued by the Heraclid invaders.

[225] Cp. *Aristot. Pol. 1259b 22 ff.*

speaking of Zeus, declared that—"Of half their wits far-thundering Zeus bereavesThose men on whom the day of bondage falls."*Hom. Od. 17.322*Thus each party adopts a different attitude of mind: the one places no trust at all in the servant-class, but, treating them like brute beasts, with goads and whips they make the servants' souls not merely thrice but fifty times enslaved; whereas the other party act in precisely the opposite way.

Meg. Just so.

Clin. Since this difference of opinion exists, Stranger, what ought we to do about our own country, in regard to the owning of slaves and their punishment?

Ath. Well now, Clinias, since man is an intractable creature, it is plain that he is not at all likely to be or become easy to deal with in respect of the necessary distinction between slave and free-born master in actual experience.

Clin. That is evident.

Ath. The slave is no easy chattel. For actual experience shows how many evils result from slavery,—as in the frequent revolts in Messenia, and in the States where there are many servants kept who speak the same tongue, not to speak of the crimes of all sorts committed by the "Corsairs,"[226] as they are called, who haunt the coasts of Italy, and the reprisals therefor. In view of all these facts, it is really a puzzle to know how to deal with all such matters. Two means only are left for us to try—the one is, not to allow the slaves, if they are to tolerate slavery quietly, to be all of the same nation, but, so far as possible, to have them of different races,—and the other is to accord them proper treatment, and that not only for their sakes, but still more for the sake of ourselves. Proper treatment of servants consists in using no violence towards them, and in hurting them even less, if possible, than our own equals. For it is his way of dealing with men whom it is easy for him to wrong that shows most clearly whether a man is genuine or hypocritical in his reverence for justice and hatred of injustice. He, therefore, that in dealing with slaves proves himself, in his character and action, undefiled by what is unholy or unjust will best be able to sow a crop of goodness,—and this we may say, and justly say, of every master, or king, and of everyone who possesses any kind of absolute power over a person weaker than himself.

Ath. We ought to punish slaves justly, and not to make them

[226] The peculiar term *περίδινοι* (circling round) seems to have been applied especially to these sea-rovers of the Tarentine coast.

conceited by merely admonishing them as we would free men. An address to a servant should be mostly a simple command: there should be no jesting with servants, either male or female, for by a course of excessively foolish indulgence in their treatment of their slaves, masters often make life harder both for themselves, as rulers, and for their slaves, as subject to rule.

Clin. That is true.

Ath. Suppose, then, that we are now, to the best of our power, provided with servants sufficient in number and quality to assist in every kind of task, should we not, in the next place, describe our dwellings?

Clin. Most certainly.

Ath. It would seem that our city, being new and houseless hitherto, must provide for practically the whole of its house-building, arranging all the details of its architecture, including temples and walls. These things are really, Clinias, prior to marriage; but since our construction is now a verbal one, this is a very suitable place to deal with them; when we come to the actual construction of the State, we shall, God willing, make the houses precede marriage, and crown all our architectural work with our marriage-laws. For the present we shall confine ourselves to a brief outline of our building regulations.

Clin. Certainly.

Ath. The temples we must erect all round the market-place, and in a circle round the whole city, on the highest spots, for the sake of ease in fencing them and of cleanliness: beside the temples we will set the houses of the officials and the law-courts, in which, as being most holy places, they will give and receive judgments,— partly because therein they deal with holy matters, and partly because they are the seats of holy gods; and in these will fittingly be held trials for murder and for all crimes worthy of death. As to walls, Megillus, I would agree with your Sparta in letting the walls lie sleeping in the ground, and not wake them up, and that for the following reasons. It is a fine saying of the poet,[227] and often repeated, that walls should be made of bronze and iron rather than of earth.

Ath. But our plan, in addition to this, would deserve to raise roars of laughter,—I mean the plan of sending young men into the country every year to dig and trench and build, so as to keep the enemy out[228]

[227]Unknown. Cp. *Aristot. Pol. 1330b 32 ff.*, and the saying of Lycurgas (quoted by Plutarch, *Lycurg.* xix.) *οὐκ ἂν εἴη ἀτείχιστος πόλις ἅτις ἀνδράσι οὐ πλίνθοις ἐστεφάνωται.* "Earth" (like *πλίνθοι*) here means really stone, the soil of Greece being rocky.

and prevent their ever setting foot on the borders of the land—if we were also to build a wall round; for, in the first place, a wall is by no means an advantage to a city as regards health, and, moreover, it usually causes a soft habit of soul in the inhabitants, by inviting them to seek refuge within it instead of repelling the enemy; instead of securing their safety by keeping watch night and day, it tempts them to believe that their safety is ensured if they are fenced in with walls and gates and go to sleep, like men born to shirk toil, little knowing that ease is really the fruit of toil, whereas a new crop of toils is the inevitable outcome, as I think, of dishonorable ease and sloth. But if men really must have a wall, then the building of the private houses must be arranged from the start in such a way that the whole city may form a single wall; all the houses must have good walls, built regularly and in a similar style, facing the roads,[229] so that the whole city will have the form of a single house, which will render its appearance not unpleasing, besides being far and away the best plan for ensuring safety and ease for defence. To see that the original buildings remain will fittingly be the special charge of the inmates; and the city-stewards should supervise them, and compel by fines those who are negligent, and also watch over the cleanliness of everything in the city, and prevent any private person from encroaching on State property either by buildings or diggings. These officers must also keep a watch over the proper flowing of the rain-water, and over all other matters, whether within or without the city, that it is right for them to manage. All such details—and all else that the lawgiver is unable to deal with and omits— the Law-wardens shall regulate by supplementary decrees, taking account of the practical requirements. And now that these buildings and those of the market-place, and the gymnasia, and all the schools have been erected and await their inmates, and the theaters their spectators, let us proceed to the subject which comes next after marriage, taking our legislation in order.

Clin. By all means.

Ath. Let us regard the marriage ceremony as now completed, Clinias; next will come the period before child-birth, which will extend to a full year: how the bride and bridegroom ought to pass this time in a State that will be unlike most other States,—that is to be our next theme, and it is not the easiest of things to explain; we have

[228] Cp. *Plat. Laws 760e.*

[229] These "roads" (or streets) would divide the city into blocks, surrounded by continuous walls formed by the outer circle of houses, all of the same size and shape.

uttered not a few hard sayings before, but none of them all will the mass find harder to accept than this. All the same, what we believe to be right and true must by all means be stated,[230] Clinias.

Clin. Certainly.

Ath. Whoever proposes to publish laws for States, regulating the conduct of the citizens in State affairs and public matters, and deems that there is no need to make laws for their private conduct, even in necessary matters, but that everyone should be allowed to spend his day just as he pleases, instead of its being compulsory for everything, public and private, to be done by a regular rule, and supposes that, if he leaves private conduct unregulated by law, the citizens will still consent to regulate their public and civil life by law—this man is wrong in his proposal. For what reason have I said this? For this reason,—because we shall assert that the married people must take their meals at the public messes neither more nor less than they did during the time preceding marriage. When the customs of the public mess first arose in your countries—probably dictated by a war or by some event of equal potency, when you were short of men and in dire straits,—it seemed an astonishing institution; but after you had had experience of these public messes and had been obliged to adopt them, the custom seemed to contribute admirably towards security; and in some such way as that the public mess came to be one of your established institutions.[231]

Clin. That is likely enough.

Ath. So, though this was once, as I said, an astonishing and alarming institution to impose on people, a man who tried to impose it as a law nowadays would not find it an equally difficult task. But the practice which follows on this institution, and which, if carried out, would be really successful,—although at present it nowhere is carried out, and so causes the lawgiver (if he tries) to be practically carding his wool (as the proverb has it) into the fire, and laboring in vain at an endless tale of toils,— this practice it is neither easy to state nor, when stated, to carry into effect.

Clin. Why do you show so much hesitation, Stranger, in mentioning this?

Ath. Listen now, so that we may not spend much time on the matter to no purpose. Everything that takes place in the State, if it participates in order and law, confers all kinds of blessings; but most things that are either without order or badly-ordered counteract the

[230] Cp. *Plat. Laws 821a*; *Epist.* 7. 330 A.

[231] Cp. *Aristot. Pol. 1272a 2 ff.*

effects of the well-ordered. And it is into this plight that the practice we are discussing has fallen. In your case, Clinias and Megillus, public meals for men are, as I said, rightly and admirably established by a divine necessity, but for women this institution is left, quite wrongly, unprescribed by law, nor are public meals for them brought to the light of day;

Ath. instead of this, the female sex, that very section of humanity which, owing to its frailty, is in other respects most secretive and intriguing, is abandoned to its disorderly condition through the perverse compliance of the lawgiver. Owing to your neglect of that sex, you have had an influx of many consequences which would have been much better than they now are if they had been under legal control. For it is not merely, as one might suppose, a matter affecting one-half of our whole task—this matter of neglecting to regulate women,— but in as far as females are inferior in goodness to males, just in so far it affects more than the half. It is better, then, for the welfare of the State to revise and reform this institution, and to regulate all the institutions for both men and women in common. At present, however, the human race is so far from having reached this happy position, that a man of discretion must actually avoid all mention of the practice in districts and States where even the existence of public meals is absolutely without any formal recognition. How then shall one attempt, without being laughed at, actually to compel women to take food and drink publicly and exposed to the view of all? The female sex would more readily endure anything rather than this: accustomed as they are to live a retired and private life, women will use every means to resist being led out into the light, and they will prove much too strong for the lawgiver. So that elsewhere, as I said, women would not so much as listen to the mention of the right rule without shrieks of indignation; but in our State perhaps they will. So if we agree that our discourse about the polity as a whole must not—so far as theory goes—prove abortive, I am willing to explain how this institution is good and fitting, if you are equally desirous to listen, but otherwise to leave it alone.

Clin. Nay, Stranger, we are both inexpressibly desirous to listen.

Ath. Let us listen, then. And do not be surprised if you find me taking the subject up again from an early point. For we are now enjoying leisure, and there is no pressing reason to hinder us from considering laws from all possible points of view.

Clin. Very true.

Ath. Let us, then, revert again to our first statements.[232] Thus

much at least every man ought to understand,—that either the human race never had a beginning at all, and will never have an end, but always was and always will be, or else it must have been in existence an incalculable length of time from the date when it first began.

Clin. Undoubtedly.

Ath. Well then, do we not suppose that all the world over and in all sorts of ways there have been risings and fallings of States, and institutions of every variety of order and disorder, and appetites for food—both meats and drinks—of every kind, and all sorts of variations in the seasons, during which it is probable that the animals underwent innumerable changes?

Clin. Certainly.

Ath. Are we to believe, then, that vines, not previously existing, appeared at a certain stage; and olives, likewise, and the gifts of Demeter and Kore?[233] And that some Triptolemus was the minister of such fruits? And during the period that these fruits were as yet non-existent, must we not suppose that the animals turned, as they do now, to feeding on one another.

Clin. Of course.

Ath. The custom of men sacrificing one another is, in fact, one that survives even now among many peoples; whereas amongst others we hear of how the opposite custom existed, when they were forbidden so much as to eat an ox, and their offerings to the gods consisted, not of animals, but of cakes of meal and grain steeped in honey, and other such bloodless sacrifices, and from flesh they abstained as though it were unholy to eat it or to stain with blood the altars of the gods; instead of that, those of us men who then existed lived what is called an "Orphic life," keeping wholly to inanimate food and, contrariwise, abstaining wholly from things animate.

Clin. Certainly what you say is widely reported and easy to credit.

Ath. Someone might ask us—

"For what purpose have you now said all this?"

Clin. A correct surmise, Stranger.

Ath. So I will try, if I can, Clinias, to explain the subject which comes next in order.

Clin. Say on.

Ath. I observe that with men all things depend on a threefold need

[232] *Plat. Laws 676a.*

[233] Or Persephone, daughter of the Earth-mother, Demeter. Triptolemus was a mythical hero of EIeusis, worshipped as the inventor and patron of agriculture.

and desire, wherein if they proceed rightly, the result is goodness, if badly, the opposite. Of these desires they possess those for food and drink as soon as they are born; and about the whole sphere of food every creature has an instinctive lust, and is full of craving, and quite deaf to any suggestion that they ought to do anything else than satisfy their tastes and desires for all such objects, and thus rid themselves entirely of all pain.

Ath. Thirdly comes our greatest need and keenest lust, which, though the latest to emerge, influences the soul of men with most raging frenzy—the lust for the sowing of offspring that burns with utmost violence. These three morbid states[234] we must direct towards what is most good, instead of what is (nominally) most pleasant, trying to check them by means of the three greatest forces—fear, law, and true reasoning,—reinforced by the Muses and the Gods of Games, so as to quench thereby their increase and inflow. So let us place the subject of the production of children next after that of marriage, and after their production, their nurture and education. If our discourse proceeds on these lines, possibly each of our laws will attain completion, and when we come to the public meals, by approaching these at close quarters we shall probably discern more clearly whether such associations ought to be for men only, or for women as well; and thus we shall not only prescribe the preliminaries that are still without legal regulation, and place them as fences before the common meals, but also, as I said just now, we shall discuss more exactly the character of the common meals, and thus be more likely to prescribe for them laws that are suitable and fitting.

Clin. You are perfectly right.

Ath. Let us, then, bear in mind the things we mentioned a moment ago; for probably we shall need them all presently.

Clin. What are the things you bid us remember?

Ath. Those we distinguished by the three terms we used: we spoke, you recollect, of eating, secondly of drinking, and thirdly of sexual excitement.

Clin. We shall certainly remember the things you now bid us, Stranger.

Ath. Very good. Let us now come to the nuptials, so as to instruct them how and in what manner they ought to produce children, and, if we fail to persuade them, to threaten them by certain laws.

[234] The soul is in a "diseased" state when wholly dominated by any irrational desire or passion.

Clin. How?

Ath. The bride and bridegroom must set their minds to produce for the State children of the greatest possible goodness and beauty. All people that are partners in any action produce results that are fair and good whensoever they apply their minds to themselves and the action, but the opposite results when either they have no minds or fail to apply them.

Ath. The bridegroom, therefore, shall apply his mind both to the bride and to the work of procreation, and the bride shall do likewise, especially during the period when they have no children yet born. In charge of them there shall be the women-inspectors whom we have chosen,—more or fewer of them, according to the number and times of their appointments, decided by the officials; and they shall meet every day at the temple of Eileithyia,[235] for a third of an hour, or more; and at their meetings they shall report to one another any case they may have noticed where any man or woman of the procreative age is devoting his attention to other things instead of to the rules ordained at the marriage sacrifices and ceremonies. The period of procreation and supervision shall be ten years and no longer, whenever there is an abundant issue of offspring; but in case any are without issue to the end of this period, they shall take counsel in common to decide what terms are advantageous for both parties, in conjunction with their kindred and the women-officials, and be divorced. If any dispute arises as to what is fitting and advantageous for each party, they shall choose ten of the Law-wardens, and abide by the regulations they shall permit or impose. The women-inspectors shall enter the houses of the young people, and, partly by threats, partly by admonition, stop them from their sin and folly: if they cannot do so, they shall go and report the case to the Law-wardens, and they shall prevent them. If they also prove unable, they shall inform the State Council, posting up a sworn statement that they are "verily unable to reform So-and-so." The man that is thus posted up,— if he fails to defeat those who have thus posted him in the law-courts,—shall suffer the following disqualifications: he shall not attend any marriage or children's birthday feasts, and if he does so, anyone who wishes may with impunity punish him with blows. The same law shall hold good for the women: the offender shall have no part in women's excursions, honors, or invitations to weddings or birthday feasts, if she has been similarly posted up as disorderly and has lost her suit. And when they shall have finished producing children

[235] Goddess of childbirth.

according to the laws, if the man have sexual intercourse with a strange woman, or the woman with a man, while the latter are still within the procreative age-limit, they shall be liable to the same penalty as was stated for those still producing children.

Ath. Thereafter the man and woman that are sober-minded in these matters shall be well-reputed in every way; but the opposite kind of esteem, or rather disesteem, shall be shown to persons of the opposite character. Sexual conduct shall lie unmentioned or unprescribed by law when the majority show due propriety therein; but if they are disorderly, then what is thus prescribed shall be executed according to the laws then enacted. For everyone the first year is the beginning of the whole life: it ought to be inscribed as life's beginning for both boy and girl in their ancestral shrines: beside it, on a whited wall in every phratry, there should be written up the number of the archons who give its number to the year; and the names of the living members of the phratry shall be written always close together, and those of the deceased shall be erased. The limit of the marriage-age shall be from sixteen to twenty years—the longest time allowed—for a girl, and for a boy from thirty to thirty-five. The limit for official posts shall be forty for a woman and thirty for a man. For military services the limit shall be from twenty years up to sixty for a man; for women they shall ordain what is possible and fitting in each case, after they have finished bearing children, and up to the age of fifty, in whatever kind of military work it may be thought right to employ their services.

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Ath. Now that our children, of both sexes, are born, our proper course will be to deal in the next place with their nurture and education. This is a subject which it is wholly impossible to pass over; but obviously it can be treated more suitably by way of precept and exhortation than by legislation. For in the private life of the family many trivial things are apt to be done which escape general notice,—things which are the result of individual feelings of pain, pleasure, or desire, and which contravene the instructions of the lawgiver; and these will produce in the citizens a multiplicity of contradictory tendencies. This is bad for a State. For while, on the one hand, it is improper and undignified to impose penalties on these practices by law, because of their triviality and the frequency of their occurrence, on the other hand, it detracts from the authority of the law which stands written when men grow used to breaking the law in trivial matters repeatedly. Hence, while it is impossible to pass over these practices in silence, it is difficult to legislate concerning them. The practices I refer to I will try to make clear by bringing some specimens, as it were, to the light; for at present my words rather resemble a "dark speech."

Clin. That is quite true.

Ath. When we said[236] that right nurture must be manifestly capable of making both bodies and souls in all respects as beautiful and good as possible, we spoke, I presume, truly?

Clin. Certainly we did.

Ath. And I suppose that (to take the simplest point) the most beautiful bodies must grow up from earliest infancy as straight as possible.

[236] *Plat. Laws 643d.*

Clin. Most certainly.

Ath. Well then, do we not observe that in every living creature the first shoot makes by far the largest and longest growth; so that many people stoutly maintain that in point of height men grow more in the first five years of life than in the next twenty?

Clin. That is true.

Ath. But we know, don't we, that when growth occurs rapidly, without plenty of suitable exercise, it produces in the body countless evils?

Clin. Certainly.

Ath. And when bodies receive most food, then they require most exercise?

Clin. What is that, Stranger? Are we to prescribe most exercise for new-born babes and tiny infants?

Ath. Nay, even earlier than that,—we shall prescribe it for those nourished inside the bodies of their mothers.

Clin. What do you mean, my dear sir? Is it unborn babes you are talking of?

Ath. It is. Still it is by no means surprising that you know nothing of this pre-natal gymnastic; but, strange though it is, I should like to explain it to you.

Clin. By all means do so.

Ath. In our country it is easier to understand a practice of this kind, because there are people there who carry their sports to excess. At Athens we find not only boys but sometimes old men rearing birds and training such creatures to fight one another. But they are far from thinking that the training they give them by exciting their pugnacity provides sufficient exercise; in addition to this, each man takes up his bird and keeps it tucked away in his fist, if it is small, or under his arm, if it is large, and in this way they walk many a long mile in order to improve the condition, not of their own bodies, but of these creatures. Thus clearly do they show to any observant person that all bodies benefit, as by a tonic, when they are moved by any kind of shaking or motion, whether they are moved by their own action—as in a swing or in a rowing-boat—or are carried along on horseback or by any other rapidly moving bodies; and that this is the reason why bodies can deal successfully with their supplies of meat and drink and provide us with health and beauty, and strength as well. This being the state of the case, what does it behove us to do in the future? Shall we risk ridicule, and lay down a law that the pregnant woman shall walk, and that the child, while still soft, shall be molded like wax, and be kept

in swaddling clothes till it is two years old? And shall we also compel the nurses by legal penalties to keep carrying the children somehow, either to the fields or to the temples or to their relatives, all the time until they are able to stand upright; and after that, still to persevere in carrying them until they are three years old, as a precaution against the danger of distorting their legs by over-pressure while they are still young?

Ath. And that the nurses shall be as strong as possible? And shall we impose a written penalty for every failure to carry out these injunctions? Such a course is quite out of the question; for it would lead to a superabundance of that consequence which we mentioned a moment ago.

Clin. What was that?

Ath. The consequence of our incurring ridicule in abundance, in addition to meeting with a blank refusal to obey on the part of the nurses, with their womanish and servile minds.

Clin. What reason, then, had we for saying that these rules ought to be stated?

Ath. The reason was this: the minds of the masters and of the freemen in the States may perhaps listen, and so come to the right conclusion that, unless private affairs in a State are rightly managed, it is vain to suppose that any stable code of laws can exist for public affairs; and when he perceives this, the individual citizen may of himself adopt as laws the rules we have now stated, and, by so doing and thus ordering aright both his household and his State, may achieve happiness.

Clin. Such a result seems quite probable.

Ath. Consequently we must not desist from this kind of legislation until we have described in detail the treatment suited for the souls of young children in the same manner as we commenced our advice regarding their bodies.

Clin. You are quite right.

Ath. Let us take this, then, as a fundamental assumption in both cases,—that for both body and soul of the very young a process of nursing and moving, that is as continuous as possible both by day and by night, is in all cases salutary, and especially in the case of the youngest: it is like having them always rocked— if that were possible—on the sea. As it is, with new-born infants one should reproduce this condition as nearly as possible. Further evidence of this may be seen in the fact that this course is adopted and its usefulness recognized both by those who nurse small children and by those who administer remedies in cases

of Corybantism.[237] Thus when mothers have children suffering from sleeplessness, and want to lull them to rest, the treatment they apply is to give them, not quiet, but motion, for they rock them constantly in their arms; and instead of silence, they use a kind of crooning noise; and thus they literally cast a spell upon the children (like the victims of Bacchic frenzy) by employing the combined movements of dance and song as a remedy.

Clin. And what, Stranger, are we to suppose is the main cause of this?

Ath. It is easy enough to see.

Clin. How so?

Ath. Both these affections are forms of fright; and frights are due to a poor condition of soul. So whenever one applies an external shaking to affections of this kind, the external motion thus applied overpowers the internal motion of fear and frenzy, and by thus overpowering it, it brings about a manifest calm in the soul and a cessation of the grievous palpitation of the heart which had existed in each case. Thus it produces very satisfactory results. The children it puts to sleep; the Bacchants, who are awake, it brings into a sound state of mind instead of a frenzied condition, by means of dancing and playing, with the help of whatsoever gods they chance to be worshipping with sacrifice. This is—to put it shortly—quite a plausible account of the matter.

Clin. Most plausible.

Ath. Seeing, then, that these causes produce the effects described, in the case of the people mentioned one should observe this point,—that every soul that is subjected to fright from youth will be specially liable to become timid: and this, as all would aver, is not to practice courage, but cowardice.

Clin. Of course it is.

Ath. The opposite course, of practicing courage from youth up, consists, we shall say, in the conquering of the frights and fears that assail us.

Clin. That is true.

Ath. Let us say, then, that this factor—namely, the exercise of quite young children by the various motions—contributes greatly towards developing one part of the soul's virtue.

Clin. Certainly.

[237] "Corybantism" is a technical term for a state of morbid mental excitement (cp. "tarantism") derived from "Corybantes," the name given to the frenzied worshippers of Bacchus.

Ath. Moreover, cheerfulness of soul and its opposite will constitute no small part of stoutheartedness and faintheartedness.

Clin. Of course.

Ath. What way can we find, then, for implanting at once in the newborn child whichever of these qualities we desire? We must endeavor to indicate how and to what extent we have them at our command.

Clin. By all means.

Ath. The doctrine held amongst us, I may explain, is this,—that whereas luxurious living renders the disposition of the young morose and irascible and too easily moved by trifles, its opposite (which is uttermost and cruel enslavement) makes them lowly and mean-spirited and misanthropic, and thus unfit to associate with others.

Clin. In what way, then, should the State at large rear up infants that are still incapable of understanding speech or receiving other kinds of education?

Ath. In this way: it is usual for every creature that is born—and the human child as much as any— to utter at once a loud outcry; and, what is more, the child is the most liable of them all to be afflicted with tears as well as outcries.

Clin. Quite true.

Ath. When nurses are trying to discover what a baby wants, they judge by these very same signs in offering it things. If it remains silent when the thing is offered, they conclude that it is the right thing, but the wrong thing if it weeps and cries out. Thus infants indicate what they like by means of weepings and outcries—truly no happy signals!—and this period of infancy lasts not less than three years, which is no small fraction of one's time to spend ill or well.

Clin. You are right.

Ath. When a man is peevish and not cheerful at all, do you not regard him as a doleful person and more full, as a rule, of complaints than a good man ought to be?

Clin. I certainly regard him as such.

Ath. Well then, suppose one should try to secure by every available means that our nursling should experience the least possible amount of grief or fear or pain of any kind, may we not believe that by this means the soul of the nursling would be rendered more bright and cheerful?

Clin. Plainly it would, Stranger; and most of all if one should provide him with many pleasures.

Ath. There, my good sir, I must part company with Clinias. For in our eyes such a proceeding is the worst possible form of corruption, for it occurs in every instance at the very beginning of the child's

nurture.[238] But let us consider whether I am right.

Clin. Explain your view.

Ath. I believe that the issue before us is one of extreme importance. You also, Megillus, consider the matter, I pray, and lend us the aid of your judgment. What I maintain is this: that the right life ought neither to pursue pleasures nor to shun pains entirely; but it ought to embrace that middle state of cheerfulness (as I termed it a moment ago), which—as we all rightly suppose, on the strength of an inspired utterance—is the very condition of God himself. And I maintain that whosoever of us would be godlike must pursue this state of soul, neither becoming himself prone at all to pleasures, even as he will not be devoid of pain, not allowing any other person—old or young, man or woman—to be in this condition and least of all, so far as possible, the new-born babe. For because of the force of habit, it is in infancy that the whole character is most effectually determined.[239] I should assert further—were it not that it would be taken as a jest—that women with child, above all others, should be cared for during their years of pregnancy, lest any of them should indulge in repeated and intense pleasures or pains, instead of cultivating, during the whole of that period, a cheerful, bright and calm demeanor.

Clin. There is no need for you, Stranger, to ask Megillus which of us two has made the truer statement. For I myself grant you that all men ought to shun the life of unmixed pain and pleasure, and follow always a middle path. So all is well both with your statement and with my reply.

Ath. You are perfectly right, Clinias. So then let the three of us together consider this next point.

Clin. What is that?

Ath. That all the regulations which we are now expounding are what are commonly termed "unwritten laws." And these as a whole are just the same as what men call "ancestral customs." Moreover, the view which was recently[240] impressed upon us, that one should neither speak of these as "laws" nor yet leave them without mention, was a right view. For it is these that act as bonds in every constitution, forming a link between all its laws (both those already enacted in writing and those still to be enacted), exactly like ancestral customs

[238] Cp. *Plat. Rep. 377b.*

[239] Cp. *Aristot. Nic. Eth. 1103 a 17*: *ἡ δὲ ἠθικὴ ἀρετὴ ἐξ ἔθους περιγίνεται, ὅθεν καὶ τοὔνομα ἔσχηκε μικρὸν παρεγκλῖνον ἀπὸ τοῦ ἔθους* (ethical virtue is the result of habit, and its name *ethical* is also derived from *ethos* (habit)).

[240] *Plat. Laws 788b.*

of great antiquity, which, if well established and practiced, serve to wrap up securely the laws already written, whereas if they perversely go aside from the right way, like builders' props that collapse under the middle of a house, they bring everything else tumbling down along with them, one thing buried under another, first the props themselves and then the fair superstructure, once the ancient supports have fallen down. Bearing this in mind, Clinias, we must clamp together this State of yours, which is a new one, by every possible means, omitting nothing great or small in the way of laws, customs and institutions; for it is by all such means that a State is clamped together, and neither kind of law is permanent without the other. Consequently, we need not be surprised if the influx of a number of apparently trivial customs or usages should make our laws rather long.

Clin. What you say is quite true, and we will bear it in mind.

Ath. If one could carry out these regulations methodically, and not merely apply them casually, in the case of girls and boys up to the age of three, they would conduce greatly to the benefit of our infant nurslings.

Ath. To form the character of the child over three and up to six years old there will be need of games: by then punishment must be used to prevent their getting pampered,—not, however, punishment of a degrading kind, but just as we said before,[241] in the case of slaves, that one should avoid enraging the persons punished by using degrading punishments, or pampering them by leaving them unpunished, so in the case of the free-born the same rule holds good. Children of this age have games which come by natural instinct; and they generally invent them of themselves whenever they meet together. As soon as they have reached the age of three, all the children from three to six must meet together at the village temples, those belonging to each village assembling at the same place. Moreover, the nurses of these children must watch over their behavior, whether it be orderly or disorderly; and over the nurses themselves and the whole band of children one of the twelve women already elected must be appointed annually to take charge of each band, the appointment resting with the Law-wardens. These women shall be elected by the women who have charge of the supervision of marriage,[242] one out of each tribe and all of a like age. The woman thus appointed shall pay an official visit to the temple every day, and she shall employ a State servant and deal summarily

[241] Cp. *Plat. Laws 777a.*

[242] Cp. *Plat. Laws 784a.*

with male or female slaves and strangers, but in the case of citizens, if the person protests against the punishment, she shall bring him for trial before the city stewards; but if no protest is made, she shall inflict summary justice equally on citizens. After the age of six, each sex shall be kept separate, boys spending their time with boys, and likewise girls with girls; and when it is necessary for them to begin lessons, the boys must go to teachers of riding, archery, javelin-throwing and slinging, and the girls also, if they agree to it, must share in the lessons, and especially such as relate to the use of arms. For, as regards the view now prevalent regarding these matters, it is based on almost universal ignorance.

Clin. What view?

Ath. The view that, in the case of hands, right and left are by nature different in respect of their utility for special acts; but, as a matter of fact, in the case of the feet and the lower limbs there is plainly no difference in working capacity; and it is due to the folly of nurses and mothers that we have all become limping, so to say, in our hands. For in natural ability the two limbs are almost equally balanced; but we ourselves by habitually using them in a wrong way have made them different.

Ath. In actions of trifling importance this does not matter—as for example, whether a man uses the left hand for the fiddle and the right hand for the bow, and things of that sort; but to follow these precedents and to use the hands in this way on other occasions, when there is no necessity, is very like foolishness. This is shown by the Scythian custom not only of using the left hand to draw the bow and the right to fit the arrow to it, but also of using both hands alike for both actions. And there are countless other instances of a similar kind, in connection with driving horses and other occupations, which teach us that those who treat the left hand as weaker than the right are confuted by nature. But this, as we have said, matters little in the case of fiddle-bows of horn and similar implements; but when it is a case of using iron instruments of war—bows, darts and the like—it matters a great deal, and most of all when weapon is to be used against weapon at close quarters. There is a vast difference here between the taught and the untaught, the trained and the untrained warrior. For just as the athlete who is thoroughly practiced in the pancratium or in boxing or wrestling is capable of fighting on his left side, and does not move that side as if it were numb or lame, whenever he is compelled to bring it into action through his opponent shifting to the other side,—in precisely the same way, I take it, in regard to the use of weapons of

war and everything else, it ought to be considered the correct thing that the man who possesses two sets of limbs, fit both for offensive and defensive action, should, so far as possible, suffer neither of these to go unpracticed or untaught. Indeed, if a man were gifted by nature with the frame of a Geryon or a Briareus, with his hundred hands he ought to be able to throw a hundred darts. So all these matters must be the care of the male and female officers, the women overseeing the games and the feeding of the children, and the men their lessons, to the intent that all the boys and girls may be sound of hand and foot, and may in no wise, if possible, get their natures warped by their habits. The lessons may, for practical convenience, be divided under two heads—the gymnastical, which concern the body, and the musical, which aim at goodness of soul. Of gymnastic there are two kinds, dancing and wrestling. Of dancing there is one branch in which the style of the Muse is imitated, preserving both freedom and nobility, and another which aims at physical soundness, agility and beauty by securing for the various parts and members of the body the proper degree of flexibility and extension and bestowing also the rhythmical motion which belongs to each, and which accompanies the whole of dancing and is diffused throughout it completely.

Ath. As to the devices introduced by Antaeus or Cercyon[243] in the art of wrestling for the sake of empty glory, or in boxing by Epeius or Amycus, since they are useless in the business of war, they merit no eulogy. But the exercises of stand-up wrestling, with the twisting free of neck, hands and sides, when practiced with ardor and with a firm and graceful pose, and directed towards strength and health,—these must not be omitted, since they are useful for all purposes; but we must charge both the pupils and their teachers— when we reach this point in our legislation—that the latter should impart these lessons gently, and the former receive them gratefully. Nor should we omit such mimic dances as are fitting for use by our choirs,—for instance, the sword-dance of the Curetes[244] here in Crete, and that of the Dioscori[245] in Lacedaemon; and at Athens, too, our Virgin-Lady[246] gladdened by the pastime of the dance deemed it not seemly to sport with empty hands, but rather to tread the measure vested in full panoply. These examples

[243]Mythical giants and wrestlers, to whom were ascribed such devices as the use of the legs in wrestling. Epeius is mentioned as a boxer in *Hom. Il. 23.668*; and the mythical Amycus is said to have invented the use of ἱμάντες (boxing-gloves).

[244]Priests of the Idaean Zeus.

[245]Castor and Pollux.

[246]Athene.

it would well become the boys and girls to copy, and so cultivate the favor of the goddess, alike for service in war and for use at festivals. It shall be the rule for the children, from the age of six until they reach military age, whenever they approach any god and form processions, to be always equipped with arms and horses, and with dance and march, now quick, now slow, to make their supplications to the gods and the children of gods. Contests, too, and preliminary trials must be carried out with a view to the objects stated, if at all; for these objects are useful both in peace and war, alike for the State and for private families; but all other kinds of work and play and bodily exercise are not worthy of a gentleman. And now, O Megillus and Clinias, I have pretty fully described that gymnastic training which—as I said[247] early in our discourse—requires description: here it is in its full completeness. So if you know of a better gymnastic than this, disclose it.

Clin. It is no easy thing, Stranger, to reject your account of gymnastic training and competition, and produce a better one.

Ath. The subject which comes next to this, and deals with the gifts of Apollo and the Muses, is one which we previously[248] thought we had done with, and that the only subject left was gymnastic; but I plainly see now, not only what still remains to be said to everybody, but also that it ought to come first. Let us, then, state these points in order.

Clin. By all means let us do so.

Ath. Give ear to me now, albeit ye have already done so in the past. None the less, one must take great heed, now as before, both in the telling and in the hearing of a thing that is supremely strange and novel. To make the statement that I am going to make is an alarming task; yet I will summon up my courage, and not shrink from it.

Clin. What is the statement you refer to, Stranger?

Ath. I assert that there exists in every State a complete ignorance about children's games—how that they are of decisive importance for legislation, as determining whether the laws enacted are to be permanent or not. For when the program of games is prescribed and secures that the same children always play the same games and delight in the same toys in the same way and under the same conditions, it allows the real and serious laws also to remain undisturbed; but when these games vary and suffer innovations, amongst other constant alterations the children are always shifting their fancy from one game to another,

[247] *Plat. Laws 672d*, *Plat. Laws 673a ff.*; cp. also *Plat. Laws 813d ff.*

[248] *Plat. Laws 673b.*

so that neither in respect of their own bodily gestures nor in respect of their equipment have they any fixed and acknowledged standard of propriety and impropriety; but the man they hold in special honor is he who is always innovating or introducing some novel device in the matter of form or color or something of the sort; whereas it would be perfectly true to say that a State can have no worse pest than a man of that description, since he privily alters the characters of the young, and causes them to contemn what is old and esteem what is new. And I repeat again that there is no greater mischief a State can suffer than such a dictum and doctrine: just listen while I tell you how great an evil it is.

Clin. Do you mean the way people rail at antiquity in States?

Ath. Precisely.

Clin. That is a theme on which you will find us no grudging listeners, but the most sympathetic possible.

Ath. I should certainly expect it to be so.

Clin. Only say on.

Ath. Come now, let us listen to one another and address one another on this subject with greater care than ever. Nothing, as we shall find, is more perilous than change in respect of everything, save only what is bad,—in respect of seasons, winds, bodily diet, mental disposition, everything in short with the solitary exception, as I said just now, of the bad. Accordingly, if one considers the human body, and sees how it grows used to all kinds of meats and drinks and exercises, even though at first upset by them, and how presently out of these very materials it grows flesh that is akin to them, and acquiring thus a familiar acquaintance with, and fondness for, all this diet, lives a most healthy and pleasant life;

Ath. and further, should a man be forced again to change back to one of the highly-reputed diets, how he is upset and ill at first, and recovers with difficulty as he gets used again to the food,—it is precisely the same, we must suppose, with the intellects of men and the nature of their souls. For if there exist laws under which men have been reared up and which (by the blessing of Heaven) have remained unaltered for many centuries, so that there exists no recollection or report of their ever having been different from what they now are,—then the whole soul is forbidden by reverence and fear to alter any of the things established of old. By hook or by crook, then, the lawgiver must devise a means whereby this shall be true of his State. Now here is where I discover the means desired:—Alterations in children's

games are regarded by all lawgivers (as we said above[249]) as being mere matters of play, and not as the causes of serious mischief; hence, instead of forbidding them, they give in to them and adopt them. They fail to reflect that those children who innovate in their games grow up into men different from their fathers; and being thus different themselves, they seek a different mode of life, and having sought this, they come to desire other institutions and laws; and none of them dreads the consequent approach of that result which we described just now as the greatest of all banes to a State. The evil wrought by changes in outward forms would be of less importance; but frequent changes in matters involving moral approval and disapproval are, as I maintain, of extreme importance, and require the utmost caution.

Clin. Most certainly.

Ath. Well, then, do we still put our trust in those former statements of ours,[250] in which we said that matters of rhythm and music generally are imitations of the manners of good or bad men? Or how do we stand?

Clin. Our view at least remains unaltered.

Ath. We assert, then, that every means must be employed, not only to prevent our children from desiring to copy different models in dancing or singing, but also to prevent anyone from tempting them by the inducement of pleasures of all sorts.

Clin. Quite right.

Ath. To attain this end, can any one of us suggest a better device than that of the Egyptians?[251]

Clin. What device is that?

Ath. The device of consecrating all dancing and all music. First, they should ordain the sacred feasts, by drawing up an annual list of what feasts are to be held, and on what dates, and in honor of what special gods and children of gods and daemons; and they should ordain next what hymn is to be sung at each of the religious sacrifices, and with what dances each such sacrifice is to be graced; these ordinances should be first made by certain persons, and then the whole body of citizens, after making a public sacrifice to the Fates and all the other deities, should consecrate with a libation these ordinances—dedicating each of the hymns to their respective gods and divinities. And if any man proposes other hymns or dances besides these for any god, the

[249] *Plat. Laws 797b*, *Plat. Laws 797C.*

[250] *Plat. Laws 654e ff.*, *Plat. Laws 668a.*

[251] Cp. *Plat. Laws 656d.*

priests and priestesses will be acting in accordance with both religion and law when, with the help of the Law-wardens, they expel him from the feast; and if the man resists expulsion, he shall be liable, so long as he lives, to be prosecuted for impiety by anyone who chooses.

Clin. That is right.

Ath. Since we find ourselves now dealing with this theme, let us behave as befits ourselves.[252]

Clin. In what respect?

Ath. Every young man—not to speak of old men—on hearing or seeing anything unusual and strange, is likely to avoid jumping to a hasty and impulsive solution of his doubts about it, and to stand still; just as a man who has come to a crossroads and is not quite sure of his way, if he be travelling alone, will question himself, or if travelling with others, will question them too about the matter in doubt, and refuse to proceed until he has made sure by investigation of the direction of his path. We must now do likewise. In our discourse about laws, the point which has now occurred to us being strange, we are bound to investigate it closely; and in a matter so weighty we, at our age, must not lightly assume or assert that we can make any reliable statement about it on the spur of the moment.

Clin. That is very true.

Ath. We shall, therefore, devote some time to this subject, and only when we have investigated it thoroughly shall we regard our conclusions as certain. But lest we be uselessly hindered from completing the ordinance which accompanies the laws with which we are now concerned, let us proceed to their conclusion. For very probably (if Heaven so will) this exposition, when completely brought to its conclusion, may also clear up the problem now before us.

Clin. Well said, Stranger: let us do just as you say.

Ath. Let the strange fact be granted, we say, that our hymns are now made into "nomes" (laws),[253] just as the men of old, it would seem, gave this name to harp-tunes,— so that they, too, perhaps, would not wholly disagree with our present suggestion, but one of them may have divined it vaguely, as in a dream by night or a waking vision: anyhow, let this be the decree on the matter:—In violation of public tunes and sacred songs and the whole choristry of the young, just as in violation of any other "nome" (law), no person shall utter a note or move a

[252] i.e. with the caution proper to old men.

[253] A play on the double sense of *νόμος*,—law and chant or tune: cp. 700 B, 722 D, 734 E.

limb in the dance. He that obeys shall be free of all penalty; but he that disobeys shall (as we said just now) be punished by the Law-wardens, the priestesses and the priests. Shall we now lay down these enactments in our statement?

Clin. Yes, lay them down.

Ath. How shall we enact these rules by law in such a way as to escape ridicule? Let us consider yet another point concerning them. The safest plan is to begin by framing in our discourse some typical cases,[254] so to call them; one such case I may describe in this way. Suppose that, when a sacrifice is being performed and the offerings duly burned, some private worshipper—a son or a brother —when standing beside the altar and the offering, should blaspheme most blasphemously, would not his voice bring upon his father and the rest of the family a feeling of despair and evil forebodings?

Clin. It would.

Ath. Well, in our part of the world this is what happens, one may almost say, in nearly every one of the States. Whenever a magistrate holds a public sacrifice, the next thing is for a crowd of choirs— not merely one—to advance and take their stand, not at a distance from the altars, but often quite close to them; and then they let out a flood of blasphemy over the sacred offerings, racking the souls of their audience with words, rhythms and tunes most dolorous, and the man that succeeds at once in drawing most tears from the sacrificing city carries off the palm of victory. Must we not reject[255] such a custom as this? For if it is ever really necessary that the citizens should listen to such doleful strains, it would be more fitting that the choirs that attend should be hired from abroad, and that not on holy days but only on fast-days— just as a corpse is escorted with Carian music by hired mourners. Such music would also form the fitting accompaniment for hymns of this kind; and the garb befitting these funeral hymns would not be any crowns nor gilded ornaments, but just the opposite, for I want to get done with this subject as soon as I can. Only I would have us ask ourselves again[256] this single question,—are we satisfied to lay this down as our first typical rule for hymns?

Clin. What rule?

Ath. That of auspicious speech; and must we have a kind of hymn

[254] *ἐκμαγεῖον*(mold or impression) is here used, much like *εἶδος*, of a class or type of cases needing legal regulation.

[255] Music should he used as an ennobling educational instrument, promoting self-control, not as a means of exciting vulgar sentiment and passion.

[256] Cp. *Plat. Laws 800b.*

that is altogether in all respects auspicious? Or shall I ordain that it shall be so, without further questioning?

Clin. By all means ordain it so; for that is a law carried by a unanimous vote.

Ath. What then, next to auspicious speech, should be the second law of music? Is it not that prayers should be made on each occasion to those gods to whom offering is made?

Clin. Certainly.

Ath. The third law, I suppose, will be this,—that the poets, knowing that prayers are requests addressed to gods, must take the utmost care lest unwittingly they request a bad thing as though it were a good thing; for if such a prayer were made, it would prove, I fancy, a ludicrous blunder.

Clin. Of course.

Ath. Did not our argument convince us, a little while ago,[257] that no Plutus either in gold or in silver should dwell enshrined within the State?

Clin. It did.

Ath. What then shall we say that this statement serves to illustrate? Is it not this,—that the tribe of poets is not wholly capable of discerning very well what is good and what not? For surely when a poet, suffering from this error, composes prayers either in speech or in song, he will be making our citizens contradict ourselves in their prayers for things of the greatest moment; yet this, as we have said,[258] is an error than which few are greater. So shall we also lay down this as one of our laws and typical cases regarding music?

Clin. What law? Explain it to us more clearly.

Ath. The law that the poet shall compose nothing which goes beyond the limits of what the State holds to be legal and right, fair and good; nor shall he show his compositions to any private person until they have first been shown to the judges appointed to deal with these matters, and to the Law-wardens, and have been approved by them. And in fact we have judges appointed in those whom we selected to be the legislators of music and in the supervisor of education. Well then, I repeat my question,—is this to be laid down as our third law, typical case, and example? What think you?

Clin. Be it laid down by all means.

Ath. Next to these, it will be most proper to sing hymns and praise

[257] *Plat. Laws 742d.* Plutus is the god of wealth.

[258] *Plat. Laws 801b.*

to the gods, coupled with prayers; and after the gods will come prayers combined with praise to daemons and heroes, as is befitting to each.

Clin. To be sure.

Ath. This done, we may proceed at once without scruple to formulate this law:—all citizens who have attained the goal of life and have wrought with body or soul noble works and toilsome, and have been obedient to the laws, shall be regarded as fitting objects for praise.

Clin. Certainly.

Ath. But truly it is not safe to honor with hymns and praises those still living, before they have traversed the whole of life and reached a noble end. All such honors shall be equally shared by women as well as men who have been conspicuous for their excellence. As to the songs and the dances, this is the fashion in which they should be arranged. Among the compositions of the ancients there exist many fine old pieces of music, and likewise dances, from which we may select without scruple for the constitution we are founding such as are fitting and proper. To examine these and make the selection, we shall choose out men not under fifty years of age; and whichever of the ancient songs are approved we shall adopt, but whichever fail to reach our standard, or are altogether unsuitable, we shall either reject entirely or revise and remodel. For this purpose we shall call in the advice of poets and musicians, and make use of their poetical ability, without, however, trusting to their tastes or their wishes, except in rare instances; and by thus expounding the intentions of the lawgiver, we shall organize to his satisfaction dancing, singing, and the whole of choristry. In truth, every unregulated musical pursuit becomes, when brought under regulation, a thousand times better, even when no honeyed strains are served up: all alike provide pleasure.[259] For if a man has been reared from childhood up to the age of steadiness and sense in the use of music that is sober and regulated, then he detests the opposite kind whenever he hears it, and calls it "vulgar"; whereas if he has been reared in the common honeyed kind of music, he declares the opposite of this to be cold and unpleasing. Hence, as we said just now, in respect of the pleasure or displeasure they cause neither kind excels the other; where the superiority lies is in the fact that the one kind always makes those who are reared in it better, the other worse.

Clin. Finely spoken!

Ath. Further, it will be right for the lawgiver to set apart suit-

[259] i.e. a "regulated" style of music pleases the educated just as much as the other sort pleases the uneducated. Cp. *Plat. Laws 658e.*

able songs for males and females by making a rough division of them; and he must necessarily adapt them to harmonies and rhythms, for it would be a horrible thing for discord to exist between theme and tune, meter and rhythm, as a result of providing the songs with unsuitable accompaniments. So the lawgiver must of necessity ordain at least the outline of these. And while it is necessary for him to assign both words and music for both types of song as defined by the natural difference of the two sexes, he must also clearly declare wherein the feminine type consists. Now we may affirm that what is noble and of a manly tendency is masculine, while that which inclines rather to decorum and sedateness is to be regarded rather as feminine both in law and in discourse.

Ath. Such then is our regulation of the matter. We have next to discuss the question of the teaching and imparting of these subjects—how, by whom, and when each of them should be practiced. Just as a shipwright at the commencement of his building outlines the shape of his vessel by laying down her keel, so I appear to myself to be doing just the same—trying to frame, that is, the shapes of lives according to the modes of their souls, and thus literally laying down their keels, by rightly considering by what means and by what modes of living we shall best navigate our barque of life through this voyage of existence. And notwithstanding that human affairs are unworthy of earnest effort, necessity counsels us to be in earnest; and that is our misfortune. Yet, since we are where we are, it is no doubt becoming that we should show this earnestness in a suitable direction. But no doubt I may be faced—and rightly faced—with the question,

"What do I mean by this?"

Clin. Certainly.

Ath. What I assert is this,—that a man ought to be in serious earnest about serious things, and not about trifles; and that the object really worthy of all serious and blessed effort is God, while man is contrived, as we said above,[260] to be a plaything of God, and the best part of him is really just that; and thus I say that every man and woman ought to pass through life in accordance with this character, playing at the noblest of pastimes, being otherwise minded than they now are.

Clin. How so?

Ath. Now they imagine that serious work should be done for the sake of play; for they think that it is for the sake of peace that the

[260] *Plat. Laws 644d.*

serious work of war needs to be well conducted. But as a matter of fact we, it would seem, do not find in war, either as existing or likely to exist, either real play or education worthy of the name, which is what we assert to be in our eyes the most serious thing. It is the life of peace that everyone should live as much and as well as he can. What then is the right way? We should live out our lives playing at certain pastimes—sacrificing, singing and dancing—so as to be able to win Heaven's favor and to repel our foes and vanquish them in fight.

Ath. By means of what kinds of song and dance both these aims may be effected,—this has been, in part, stated in outline, and the paths of procedure have been marked out, in the belief that the poet is right when he says—"Telemachus, thine own wit will in partInstruct thee, and the rest will Heaven supply;For to the will of Heaven thou owest birthAnd all thy nurture, I would fain believe."*Hom. Od. 3.26*It behoves our nurslings also to be of this same mind, and to believe that what we have said is sufficient, and that the heavenly powers will suggest to them all else that concerns sacrifice and the dance,— in honor of what gods and at what seasons respectively they are to play and win their favor, and thus mold their lives according to the shape of their nature, inasmuch as they are puppets[261] for the most part, yet share occasionally in truth.

Meg. You have a very mean opinion, Stranger, of the human race.

Ath. Marvel not, Megillus, but forgive me. For when I spoke thus, I had my mind set on God, and was feeling the emotion to which I gave utterance. Let us grant, however, if you wish, that the human race is not a mean thing, but worthy of serious attention. To pursue our subject,—we have described[262] buildings for public gymnasia as well as schools in three divisions within the city, and also in three divisions round about the City training-grounds and race-courses for horses, arranged for archery and other long-distance shooting, and for the teaching and practicing of the youth: if, however, our previous description of these was inadequate, let them now be described and legally regulated. In all these establishments there should reside teachers attracted by pay from abroad for each several subject, to instruct the pupils in all matters relating to war and to music; and no father shall either send his son as a pupil or keep him away from the training-school at his own sweet will, but every "man jack" of them all (as the saying goes) must, so far as possible, be compelled to be educated,

[261] Cp. *Plat. Laws 644d-e.*

[262] *Plat. Laws 764c, Plat. Laws 779d.*

inasmuch as they are children of the State even more than children of their parents. For females, too, my law will lay down the same regulations as for men, and training of an identical kind. I will unhesitatingly affirm that neither riding nor gymnastics, which are proper for men, are improper for women.

Ath. I believe the old tales I have heard, and I know now of my own observation, that there are practically countless myriads of women called Sauromatides, in the district of Pontus, upon whom equally with men is imposed the duty of handling bows and other weapons, as well as horses, and who practice it equally. In addition to this I allege the following argument. Since this state of things can exist, I affirm that the practice which at present prevails in our districts is a most irrational one—namely, that men and women should not all follow the same pursuits with one accord and with all their might. For thus from the same taxation and trouble there arises and exists half a State only instead of a whole one, in nearly every instance; yet surely this would be a surprising blunder for a lawgiver to commit.

Clin. So it would seem; yet truly a vast number of the things now mentioned, Stranger, are in conflict with our ordinary polities.

Ath. Well, but I said[263] that we should allow the argument to run its full course, and when this is done we should adopt the conclusion we approve.

Clin. In this you spoke most reasonably; and you have made me now chide myself for what I said. So say on now what seems good to you.

Ath. What seems good to me, Clinias, as I said before,[264] is this,—that if the possibility of such a state of things taking place had not been sufficiently proved by facts, then it might have been possible to gainsay our statement; but as it is, the man who rejects our law must try some other method, nor shall we be hereby precluded from asserting in our doctrine that the female sex must share with the male, to the greatest extent possible, both in education and in all else. For in truth we ought to conceive of the matter in this light. Suppose that women do not share with men in the whole of their mode of life, must they not have a different system of their own?

Clin. They must.

Ath. Then which of the systems now in vogue shall we prescribe in preference to that fellowship which we are now imposing upon them?

[263] Cp. *Plat. Laws 746c*, *Plat. Laws 799e.*

[264] *Plat. Laws 805a.*

Shall it be that of the Thracians, and many other tribes, who employ their women in tilling the ground and minding oxen and sheep and toiling just like slaves? Or that which obtains with us and all the people of our district? The way women are treated with us at present is this—we huddle all our goods together, as the saying goes, within four walls, and then hand over the dispensing of them to the women, together with the control of the shuttles and all kinds of wool-work.

Ath. Or again, shall we prescribe for them, Megillus, that midway system, the Laconian? Must the girls share in gymnastics and music, and the women abstain from wool-work, but weave themselves instead a life that is not trivial at all nor useless, but arduous, advancing as it were halfway in the path of domestic tendance and management and child-nurture, but taking no share in military service; so that, even if it should chance to be necessary for them to fight in defence of their city and their children, they will be unable to handle with skill either a bow (like the Amazons) or any other missile, nor could they take spear and shield, after the fashion of the Goddess,[265] so as to be able nobly to resist the wasting of their native land, and to strike terror—if nothing more—into the enemy at the sight of them marshalled in battle-array? If they lived in this manner, they certainly would not dare to adopt the fashion of the Sauromatides, whose women would seem like men beside them. So in regard to this matter, let who will commend your Laconian lawgivers: as to my view, it must stand as it is. The lawgiver ought to be whole-hearted, not half-hearted,—letting the female sex indulge in luxury and expense and disorderly ways of life,[266] while supervising the male sex; for thus he is actually bequeathing to the State the half only, instead of the whole, of a life of complete prosperity.

Meg. What are we to do, Clinias? Shall we allow the Stranger to run down our Sparta in this fashion?

Clin. Yes: now that we have granted him free speech we must let him be, until we have discussed the laws fully.

Meg. You are right.

Ath. May I, then, endeavor without more delay to proceed with my exposition?

Clin. By all means.

Ath. What manner of life would men live, supposing that they possessed a moderate supply of all the necessaries, and that they had entrusted all the crafts to other hands, and that their farms were hired

[265] For Athene as a warrior, cp. *Plat. Laws 796b.*

[266] Cp. *Aristot. Pol. 1269b 12 ff.*

out to slaves, and yielded them produce enough for their modest needs? Let us further suppose that they had public mess-rooms—separate rooms for men, and others close by for their households, including the girls and their mothers—

Ath. and that each of these rooms was in charge of a master or mistress, to dismiss the company and to watch over their behavior daily; and, at the close of the meal, that the master and all the company poured a libation in honor of those gods to whom that night and day were dedicated, and so finally retired home. Supposing them to be thus organized, is there no necessary work, of a really appropriate kind, left for them, but must every one of them continue fattening himself like a beast?[267] That, we assert, is neither right nor good; nor is it possible for one who lives thus to miss his due reward; and the due reward of an idle beast, fattened in sloth, is, as a rule, to fall a prey to another beast—one of those which are worn to skin and bone through toil hardily endured. Now it is probable that if we look to find this state of leisure fully realized exactly as described, we shall be disappointed, so long as women and children and houses remain private, and all these things are established as the private property of individuals; but if the second-best State,[268] as now described, could exist, we might be well content with it. And, we assert, there does remain for men living this life a task that is by no means small or trivial, but rather one that a just law imposes upon them as the weightiest task of all. For as compared with the life that aims at a Pythian or Olympian victory and is wholly lacking in leisure for other tasks, that life we speak of—which most truly deserves the name of "life"—is doubly (nay, far more than doubly) lacking in leisure, seeing that it is occupied with the care of bodily and spiritual excellence in general. For there ought to be no other secondary task to hinder the work of supplying the body with its proper exercise and nourishment, or the soul with learning and moral training: nay, every night and day is not sufficient for the man who is occupied therein to win from them their fruit in full and ample measure. So this being nature's law, a program must be framed for all the freeborn men, prescribing how they shall pass their time continuously, from dawn to dawn and sunrise on each successive day. It would be undignified for a lawgiver to mention a host of petty matters connected with the domestic arrangements—such as, in particular, the

[267] Cp. *Aristot. Pol. 1334a.13 ff.*

[268] i.e. the (Magnesian) State described in the *Laws*, in contrast to the Ideal (communistic) State of the *Republic*.

rules about that wakefulness at night which is proper for men who propose to guard a whole State adequately and continuously.

Ath. That any citizen, indeed, should spend the whole of any night in sleep, instead of setting an example to his household by being himself always the first to awaken and rise—such a practice must be counted by all a shameful one, unworthy of a free man, whether it be called a custom or a law. Moreover, that the mistress of a house should be awakened by maids, instead of being herself the first to wake up all the others—this is a shameful practice; and that it is so all the servants must declare to one another—bondman and bondmaid and boy, yea, even (were it possible) every stone in the house. And, when awake by night, they must certainly transact a large share of business, both political and economical, the magistrates in the city, and the masters and mistresses in their own houses. For much sleep is not naturally suitable either to our bodies or souls, nor yet to employment on any such matters. For when asleep no man is worth anything, any more than if he were dead: on the contrary, every one of us who cares most greatly for life and thought keeps awake as long as possible, only reserving so much time for sleep as his health requires— and that is but little, once the habit is well formed. And rulers that are watchful by night in cities are a terror to evil-doers, be they citizens or enemies, but objects of respect and admiration to the just and temperate; and they confer benefit alike on themselves and on the whole State. The night, if spent in this way, will—in addition to all the other benefits described—lend greater fortitude to the souls of all who reside in these States. With the return of daylight the children should go to their teachers; for just as no sheep or other witless creature ought to exist without a herdsman, so children cannot live without a tutor, nor slaves without a master. And, of all wild creatures, the child is the most intractable; for in so far as it, above all others, possesses a fount of reason that is as yet uncurbed, it is a treacherous, sly and most insolent creature. Wherefore the child must be strapped up, as it were, with many bridles—first, when he leaves the care of nurse and mother, with tutors, to guide his childish ignorance, and after that with teachers of all sorts of subjects and lessons, treating him as becomes a freeborn child. On the other hand, he must be treated as a slave;[269] and any free man that meets him shall punish both the child himself and his tutor or teacher, if any of them does wrong.

[269]The child is of two-fold nature,—semi-rational; as such he needs a double "bridle," that of instruction (proper to free men), and that of chastisement (proper to slaves).

Ath. And if anyone thus meets them and fails to punish them duly, he shall, in the first place, be liable to the deepest degradation; and the Law-warden who is chosen as president over the children shall keep his eye on the man who has met with the wrong-doings mentioned and has failed either to inflict the needed punishment at all, or else to inflict it rightly. Moreover, this Law-warden shall exercise special supervision, with a keen eye, over the rearing of the children, to keep their growing natures in the straight way, by turning them always towards goodness, as the laws direct. But how is the law itself to give an adequate education to this Law-warden of ours? For, up to the present, the law has not as yet made any clear or adequate statement: it has mentioned some things, but omitted others. But in dealing with this warden it must omit nothing, but fully expound every ordinance that he may be both expositor and nurturer to the rest. Matters of choristry of tunes and dancing, and what types are to be selected, remodelled, and consecrated—all this has already been dealt with;[270] but with regard to the kind of literature that is written but without meter we have never put the question—O excellent supervisor of children, of what sort ought this prose to be, and in what fashion are your charges to deal with it? You know from our discourse[271] what are the military exercises they ought to learn and to practice, but the matters that have not as yet, my friend, been fully declared to you by the lawgiver are these—first, literature, next, lyre-playing; also arithmetic, of which I said that there ought to be as much as everyone needs to learn for purposes of war, house-management and civic administration; together with what it is useful for these same purposes to learn about the courses of the heavenly bodies—stars and sun and moon—in so far as every State is obliged to take them into account. What I allude to is this—the arranging of days into monthly periods, and of months into a year, in each instance, so that the seasons, with their respective sacrifices and feasts, may each be assigned its due position by being held as nature dictates, and that thus they may create fresh liveliness and alertness in the State, and may pay their due honors to the gods, and may render the citizens more intelligent about these matters. These points, my friend, have not all as yet been explained to you sufficiently by the lawgiver. Now attend carefully to what is next to be said. In the first place, you are, as we said, insufficiently instructed as yet concerning letters. The point we complain of is this—that the law has

[270] *Plat. Laws 799a ff., Plat. Laws 802a.*

[271] Cp. *Plat. Laws 796a.*

not yet told you clearly whether the man who is to be a good citizen must pursue this study with precision, or neglect it altogether; and so likewise with regard to the lyre. That he must not neglect them we now affirm.

Ath. For the study of letters, about three years is a reasonable period for a child of ten years old; and for lyre-playing, he should begin at thirteen and continue at it for three years. And whether he likes or dislikes the study, neither the child nor his father shall be permitted either to cut short or to prolong the years of study contrary to the law; and anyone who disobeys shall be disqualified for the school honors which we shall mention presently.[272] And, during these periods, what are the subjects which the children must learn and the teachers teach—this you yourself must learn first. They must work at letters sufficiently to be able to read and write. But superior speed or beauty of handwriting need not be required in the case of those whose progress within the appointed period is too slow. With regard to lessons in reading, there are written compositions not set to music, whether in meter or without rhythmical divisions—compositions merely uttered in prose, void of rhythm and harmony; and some of the many composers of this sort have bequeathed to us writings of a dangerous character. How will you deal with these, O my most excellent Law-wardens? Or what method of dealing with them will the lawgiver rightly ordain? He will be vastly perplexed, I verily believe.

Clin. What does this mean, Stranger? Evidently you are addressing yourself, and are really perplexed.

Ath. You are right in your supposition, Clinias. As you are my partners in this investigation of laws, I am bound to explain to you both what seems easy and what hard.

Clin. Well, what is it about them that you are now alluding to, and what has come over you?

Ath. I will tell you: it is no easy matter to gainsay tens of thousands of tongues.

Clin. Come now,—do you believe that the points in which our previous conclusions about laws contradicted ordinary opinion were few and trifling?

Ath. Your observation is most just. I take it that you are bidding me, now that the path which is abhorrent to many is attractive to others possibly not less numerous (or if less numerous, certainly not less competent),—you are, I say, bidding me adventure myself with

[272] Cp. *Plat. Laws 832e.*

the latter company and proceed boldly along the path of legislation marked out in our present discourse, without flinching.

Clin. Certainly.

Ath. Then I will not flinch. I verily affirm that we have composers of verses innumerable—hexameters, trimeters, and every meter you could mention,—some of whom aim at the serious, others at the comic; on whose writings, as we are told by our tens of thousands of people, we ought to rear and soak the young, if we are to give them a correct education, making them, by means of recitations, lengthy listeners and large learners, who learn off whole poets by heart. Others there are who compile select summaries of all the poets, and piece together whole passages, telling us that a boy must commit these to memory and learn them off if we are to have him turn out good and wise as a result of a wide and varied range of instruction.[273] Would you have me now state frankly to these poets what is wrong about their declarations and what right?

Clin. Of course.

Ath. What single statement can I make about all these people that will be adequate? This, perhaps,—in which everyone will agree with me,—that every poet has uttered much that is well, and much also that is ill; and this being so, I affirm that a wide range of learning involves danger to children.

Clin. What advice then would you give the Law-warden?

Ath. About what?

Clin. About the pattern by which he should be guided in respect of the particular subjects which he permits or forbids all the children to learn. Tell us, and without scruple.

Ath. My good Clinias, I have had, it would seem, a stroke of luck.

Clin. How so?

Ath. In the fact that I am not wholly at a loss for a pattern. For in looking back now at the discussions which we have been pursuing from dawn up to this present hour—and that, as I fancy, not without some guidance from Heaven—it appeared to me that they were framed exactly like a poem. And it was not surprising, perhaps, that there came over me a feeling of intense delight when I gazed thus on our discourses all marshalled, as it were, in close array; for of all the many discourses which I have listened to or learnt about, whether in poems

[273] Cp. Heraclitus's saying (*Frag.* 16): *πολυμαθίη νόον οὐ διδάσκει*; and the contempt shown for the versatile smatterer in *Phaedrus* 275 A (*πολυήκοοι . . . δοξόσοφοι γεγονότες ἀντὶ σοφῶν*).

or in a loose flood of speech like ours, they struck me as being not only the most adequate, but also the most suitable for the ears of the young. Nowhere, I think, could I find a better pattern than this to put before the Law-warden who is educator, that he may charge the teachers to teach the children these discourses of ours, and such as resemble and accord with these; and if it should be that in his search he should light on poems of composers, or prose-writings, or merely verbal and unwritten discourses, akin to these of ours, he must in no wise let them go, but get them written down.

Ath. In the first place, he must compel the teachers themselves to learn these discourses, and to praise them, and if any of the teachers fail to approve of them, he must not employ them as colleagues; only those who agree with his praise of the discourses should he employ, and entrust to them the teaching and training of the youth. Here and herewith let me end my homily concerning writing-masters and writings.

Clin. Judged by our original intention, Stranger, I certainly do not think that we have diverged from the line of argument we intended; but about the matter as a whole it is hard, no doubt, to be sure whether or not we are right.

Ath. That, Clinias, (as we have often said) will probably become clearer of itself[274] when we arrive at the end of our whole exposition concerning laws.

Clin. Very true.

Ath. After the writing-master, must we not address the lyre-master next?

Clin. Certainly.

Ath. When assigning to the lyre-masters their proper duties in regard to the teaching and general training in these subjects, we must, as I think, bear in mind our previous declarations.[275]

Clin. Declarations about what?

Ath. We said, I fancy, that the sixty-year-old singers of hymns to Dionysus ought to be exceptionally keen of perception regarding rhythms and harmonic compositions, in order that when dealing with musical representations of a good kind or a bad, by which the soul is emotionally affected, they may be able to pick out the reproductions of the good kind and of the bad, and having rejected the latter, may produce the other in public, and charm the souls of the children by singing

[274] Cp. *Plat. Laws 799d.*

[275] *Plat. Laws 664e.*, *Plat. Laws 679a.*

them, and so challenge them all to accompany them in acquiring virtue by means of these representations.

Clin. Very true.

Ath. So, to attain this object, both the lyre-master and his pupil must use the notes of the lyre, because of the distinctness of its strings, assigning to the notes of the song notes in tune with them;[276] but as to divergence of sound and variety in the notes of the harp, when the strings sound the one tune and the composer of the melody another, or when there results a combination of low and high notes, of slow and quick time, of sharp and grave, and all sorts of rhythmical variations are adapted to the notes of the lyre,—no such complications should be employed in dealing with pupils who have to absorb quickly, within three years, the useful elements of music. For the jarring of opposites with one another impedes easy learning; and the young should above all things learn easily, since the necessary lessons imposed upon them are neither few nor small,—which lessons our discourse will indicate in time as it proceeds.

Ath. So let our educator regulate these matters in the manner stated. As regards the character of the actual tunes and words which the choir-masters ought to teach, all this we have already[277] explained at length. We stated that in each case they should be adapted to a suitable festival and dedicated, and thus prove a benefit to the States, by furnishing them with felicitous enjoyment.

Clin. This, too, you have explained truly.

Ath. Yes, most truly. These matters also let the man who is appointed our Director of Music take over and supervise, with the help of kindly fortune; and let us supplement our former statements concerning dancing and bodily gymnastics in general. Just as, in the case of music, we have supplied the regulations about tuition that were missing, so also let us now do in the case of gymnastics. Shall we not say that both girls and boys must learn both dancing and gymnastics?

Clin. Yes.

Ath. Then for their practices it would be most proper that boys should have dancing-masters, and girls mistresses.

Clin. I grant it.

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[276] i.e. the notes of the instrument must be in accord with those of the singer's voice. "The *tune*, as composed by the poet, is supposed to have comparatively few notes, to be in slowish time, and low down in the register; whereas the complicated *variation*, which he is condemning, has many notes, is in quick time, and high up in the register." (*England.*)

[277] *Plat. Laws 799a.*, *Plat. Laws 802a.*

Ath. Let us once more summon the man who will have most of these duties to perform, the Director of the Children,—who, in supervising both music and gymnastic, will have but little time to spare.

Clin. How will he be able, at his age, to supervise so many affairs?

Ath. Quite easily. For the law has granted him, and will continue to grant him, such men or women as he wishes to take to assist him in this task of supervision: he will know himself the right persons to choose, and he will be anxious to make no blunder in these matters, recognizing the greatness of his office and wisely holding it in high respect, and holding also the rational conviction that, when the young have been, and are being, well brought up, all goes "swimmingly," but otherwise—the consequences are such as it is wrong to speak of, nor will we mention them, in dealing with a new State, out of consideration for the over-superstitious.[278] Concerning these matters also, which relate to dancing and gymnastic movements, we have already spoken at length.[279] We are establishing gymnasia and all physical exercises connected with military training,—the use of the bow and all kinds of missiles, light skirmishing and heavy-armed fighting of every description, tactical evolutions, company-marching, camp-formations, and all the details of cavalry training.

Ath. In all these subjects there should be public instructors, paid by the State; and their pupils should be not only the boys and men in the State, but also the girls and women who understand all these matters—being practiced in all military drill and fighting while still girls and, when grown to womanhood, taking part in evolutions and rank-forming and the piling and shouldering of arms,— and that, if for no other reason, at least for this reason, that, if ever the guards of the children and of the rest of the city should be obliged to leave the city and march out in full force, these women should be able at least to take their place; while if, on the other hand—and this is quite a possible contingency—an invading army of foreigners, fierce and strong, should force a battle round the city itself, then it would be a sore disgrace to the State if its women were so ill brought up as not even to be willing to do as do the mother-birds, which fight the strongest beasts in defence of their broods, but, instead of facing all risks, even death itself, to run straight to the temples and crowd all the shrines and holy places, and drown mankind in the disgrace of being the most craven

[278] i.e. they would regard the mere mention of possible evil (esp. in connection with anything new-born) as of ill-omen.

[279] *Plat. Laws 795d.*

of living creatures.

Clin. By Heaven, Stranger, if ever this took place in a city, it would be a most unseemly thing, apart from the mischief of it.

Ath. Shall we, then, lay down this law,—that up to the point stated women must not neglect military training, but all citizens, men and women alike, must pay attention to it?

Clin. I, for one, agree.

Ath. As regards wrestling, some points have been explained;[280] but we have not explained what is, in my opinion, the most important point, nor is it easy to express it in words without the help of a practical illustration. This point, then, we shall decide about[281] when word accompanied by deed can clearly demonstrate this fact, among the others mentioned,—that wrestling of this kind is of all motions by far the most nearly allied to military fighting; and also that it is not the latter that should be learned for the sake of the former, but, on the contrary, it is the former that should be practiced for the sake of the latter.[282]

Clin. There, at any rate, you are right.

Ath. For the present let this suffice as an account of the functions of the wrestling-school. Motion of the whole body, other than wrestling, has for its main division what may be rightly termed dancing[283]; and we ought to consider it as consisting of two kinds,—the one representing the solemn movement of beautiful bodies, the other the ignoble movement of ugly bodies; and of these again there are two subdivisions.

Ath. Of the noble kind there is, on the one hand, the motion of fighting, and that of fair bodies and brave souls engaged in violent effort; and, on the other hand, there is the motion of a temperate soul living in a state of prosperity and moderate pleasures; and this latter kind of dancing one will call, in accordance with its nature, "pacific." The warlike division, being distinct from the pacific, one may rightly term "pyrrhiche"[284]; it represents modes of eluding all kinds of blows and shots by swervings and duckings and side-leaps upward or crouching; and also the opposite kinds of motion, which lead to active postures of offence, when it strives to represent the movements involved in shoot-

[280] *Plat. Laws 795d*, *Plat. Laws 795e.*

[281] Cp. *Plat. Laws 832e.*

[282] Cp. *Plat. Laws 803d.*

[283] Here a wide term, embracing all kinds of bodily gestures and posturing.

[284] The technical name for a war-dance ("polka") in quick time (possibly connected by P. with *πῦρ, πυρετός*)

ing with bows or darts, and blows of every description. In all these cases the action and the tension of the sinews are correct when there is a representation of fair bodies and souls in which most of the limbs of the body are extended straight: this kind of representation is right, but the opposite kind we pronounce to be wrong. In pacific dancing, the point we must consider in every case is whether the performer in his dances keeps always rightly, or improperly, to the noble kind of dancing, in the way that befits law-abiding men. So, in the first place, we must draw a line between questionable dancing and dancing that is above question. All the dancing that is of a Bacchic kind and cultivated by those who indulge in drunken imitations of Pans, Sileni and Satyrs (as they call them), when performing certain rites of expiation and initiation,—all this class of dancing cannot easily be defined either as pacific or as warlike, or as of any one distinct kind. The most correct way of defining it seems to me to be this— to separate it off both from pacific and from warlike dancing, and to pronounce that this kind of dancing is unfitted for our citizens: and having thus disposed of it and dismissed it, we will now return to the warlike and pacific kinds which do beyond question belong to us. That of the unwarlike Muse, in which men pay honor to the gods and the children of the gods by dances, will consist, broadly speaking, of all dancing performed under a sense of prosperity: of this we may make two subdivisions— the one being of a more joyful description, and proper to men who have escaped out of toils and perils into a state of bliss,—and the other connected rather with the preservation and increase of pre-existent blessings, and exhibiting, accordingly, joyousness of a less ardent kind.

Ath. Under these conditions every man moves his body more violently when his joys are greater, less violently when they are smaller; also, he moves it less violently when he is more sedate and better trained in courage, but when he is cowardly and untrained in temperance, he indulges in greater and more violent changes of motion; and in general, no one who is using his voice, whether in song or in speech, is able to keep his body wholly at rest. Hence, when the representation of things spoken by means of gestures arose, it produced the whole art of dancing. In all these instances, one man of us moves in tune with his theme, another out of tune. Many of the names bestowed in ancient times are deserving of notice and of praise for their excellence and descriptiveness: one such is the name given to the dances of men who are in a prosperous state and indulge in pleasures of a moderate kind: how true and how musical was the name so rationally bestowed on those dances by the man (whoever he was) who first called them all “Em-

meleiai,"[285] and established two species of fair dances—the warlike, termed "pyrrhiche," and the pacific, termed "emmeleia"—bestowing on each its appropriate and harmonious name. These dances the law-giver should describe in outline, and the Law-warden should search them out and, having investigated them, he should combine the dancing with the rest of the music, and assign what is proper of it to each of the sacrificial feasts, distributing it over all the feasts; and when he has thus consecrated all these things in due order, he should thenceforth make no change in all that appertains to either dancing or singing, but this one and the same city and body of citizens should continue in one and the same way, enjoying the same pleasures and living alike in all ways possible, and so pass their lives happily and well. What concerns the actions of fair and noble souls in the matter of that kind of choristry which we have approved as right has now been fully discussed. The actions of ugly bodies and ugly ideas and of the men engaged in ludicrous comic-acting, in regard to both speech and dance, and the representations given by all these comedians—all this subject we must necessarily consider and estimate. For it is impossible to learn the serious without the comic, or any one of a pair of contraries without the other, if one is to he a wise man; but to put both into practice is equally impossible, if one is to share in even a small measure of virtue; in fact, it is precisely for this reason that one should learn them,—in order to avoid ever doing or saying anything ludicrous, through ignorance, when one ought not; we will impose such mimicry on slaves and foreign hirelings, and no serious attention shall ever be paid to it, nor shall any free man or free woman be seen learning it, and there must always be some novel feature in their mimic shows.[286]

Ath. Let such, then, be the regulations for all those laughable amusements which we all call "comedy," as laid down both by law and by argument. Now as to what are called our "serious" poets, the tragedians,—suppose that some of them were to approach us and put some such question as this,—

"O Strangers, are we, or are we not, to pay visits to your city and country, and traffic in poetry? Or what have you decided to do about this?" What would be the right answer to make to these inspired persons regarding the matter? In my judgment, this should be the answer,[287]—"Most excellent of Strangers, we ourselves, to the best of

[285] A decorous, stately dance ("minuet").

[286] i.e. lest the public taste should be debased by the repeated exhibition of any one piece of vulgarity.

our ability, are the authors of a tragedy at once superlatively fair and good; at least, all our polity is framed as a representation of the fairest and best life, which is in reality, as we assert, the truest tragedy. Thus we are composers of the same things as yourselves, rivals of yours as artists and actors of the fairest drama, which, as our hope is, true law, and it alone, is by nature competent to complete. Do not imagine, then, that we will ever thus lightly allow you to set up your stage beside us in the marketplace, and give permission to those imported actors of yours, with their dulcet tones and their voices louder than ours, to harangue women and children and the whole populace, and to say not the same things as we say about the same institutions, but, on the contrary, things that are, for the most part, just the opposite. In truth, both we ourselves and the whole State would be absolutely mad, were it to allow you to do as I have said, before the magistrates had decided whether or not your compositions are deserving of utterance and suited for publication. So now, ye children and offspring of Muses mild, do ye first display your chants side by side with ours before the rulers; and if your utterances seem to be the same as ours or better, then we will grant you a chorus,[288] but if not, my friends, we can never do so." Let such, then, be the customs ordained to go with the laws regarding all choristry and the learning thereof—keeping distinct those for slaves and those for masters,—if you agree.

Clin. Of course we now agree to it.

Ath. There still remain, for the freeborn, three branches of learning: of these the first is reckoning and arithmetic; the second is the art of measuring length and surface and solid; the third deals with the course of the stars, and how they naturally travel in relation to one another. All these sciences should not be studied with minute accuracy by the majority of pupils, but only by a select few—and who these are we shall say when we have come near the end,—since that will be the proper place:[289] but for the bulk of the pupils, while it would be shameful for most of them not to understand all those parts of them that are most truly termed "necessary," yet it is not easy nor even at all possible for every student to go into them minutely. The necessary part of them it is impossible to reject, and probably this is what was in the mind of the original author of the proverb,[290]

"Not even God will ever be seen fighting against Necessity,"—

[287] Cp. *Plat. Rep. 398a*, *Plat. Rep. 398b.*

[288] i.e. grant you leave to "stage" your play.

[289] Cp. *Plat. Laws 962c*, *Plat. Laws 965a.*

[290] Cp. *Plat. Laws 741a.*

meaning by this, I suppose, all kinds of necessity that are divine, since in relation to human necessities (to which most people apply the saying when they quote it) it is of all sayings far and away the most fatuous.

Clin. What necessities then, Stranger, belong to these sciences, that are not of this sort, but divine?

Ath. Those, as I believe, which must be practiced and learned by every god, daemon, and hero, if he is to be competent seriously to supervise mankind: a man certainly would be far from becoming godlike if he were incapable of learning the nature of one and of two, and of even and odd numbers in general, and if he knew nothing at all about counting, and could not count even day and night as distinct objects, and if he were ignorant of the circuit of the sun and moon and all the other stars. To suppose, then, that all these studies[291] are not "necessary" for a man who means to understand almost any single one of the fairest sciences, is a most foolish supposition. The first thing we must grasp correctly is this—which of these branches of study must be learnt, and how many, and at what periods, and which of them in conjunction with which, and which by themselves apart from all others, and the method of combining them; this done, and with these studies as introductory, we may proceed to the learning of the rest. For such is the natural order of procedure as determined by Necessity, against whom, as we declare, no god fights now, nor ever will fight.

Clin. Yes, Stranger, this account of yours does seem to be in accord with nature, and true.

Ath. That is indeed the truth of the matter, Clinias; but to give legal enactment to this program of ours is difficult. We will, if you agree, enact this more precisely on a later occasion.

Clin. You appear to us, Stranger, to be scared by the neglect of such studies which is the habit in our countries; but you are wrong to be scared. Do not be deterred on that account, but try to proceed with your statement.

Ath. I am indeed scared about the habit you mention, but I am still more alarmed about the people who take up these very sciences for study, and do so badly.[292] Complete and absolute ignorance of them is never alarming, nor is it a very great evil; much more mischievous is a wide variety of knowledge and learning combined with bad training.

[291] i.e. arithmetic, geometry, and astronomy: some elementary ("necessary") knowledge of all three is indispensable for a through study of one branch of science.

[292] Cp. *Plat. Laws 886a.*

Clin. That is true.

Ath. One ought to declare, then, that the freeborn children should learn as much of these subjects as the innumerable crowd of children in Egypt[293] learn along with their letters. First, as regards counting, lessons have been invented for the merest infants to learn, by way of play and fun,—modes of dividing up apples and chaplets, so that the same totals are adjusted to larger and smaller groups, and modes of sorting out boxers and wrestlers, in byes and pairs, taking them alternately or consecutively, in their natural order. Moreover, by way of play, the teachers mix together bowls made of gold, bronze, silver and the like, and others distribute them, as I said, by groups of a single kind, adapting the rules of elementary arithmetic to play; and thus they are of service to the pupils for their future tasks of drilling, leading and marching armies, or of household management, and they render them both more helpful in every way to themselves and more alert. The next step of the teachers is to clear away, by lessons in weights and measures, a certain kind of ignorance, both absurd and disgraceful, which is naturally inherent in all men touching lines, surfaces and solids.

Clin. What ignorance do you mean, and of what kind is it?

Ath. My dear Clinias, when I was told quite lately of our condition in regard to this matter, I was utterly astounded myself: it seemed to me to be the condition of guzzling swine rather than of human beings, and I was ashamed, not only of myself, but of all the Greek world.[294]

Clin. Why? Tell us what you mean, Stranger.

Ath. I am doing so. But I can explain it better by putting a question. Answer me briefly: you know what a line is?

Clin. Yes.

Ath. And surface?

Clin. Certainly.

Ath. And do you know that these are two things, and that the third thing, next to these, is the solid?

Clin. I do.

Ath. Do you not, then, believe that all these are commensurable one with another?

Clin. Yes.

Ath. And you believe, I suppose, that line is really commensurable

[293]The Egyptian priests are said to have specially drilled their scholars in arithmetic and geometry—partly with a view to their use in land-mensuration.

[294]Cp. *Plat. Rep. 528c.*

with line, surface with surface, and solid with solid?

Clin. Absolutely.

Ath. But supposing that some of them are neither absolutely nor moderately commensurable, some being commensurable and some not, whereas you regard them all as commensurable,—what do you think of your mental state with respect to them?

Clin. Evidently it is a sorry state.

Ath. Again, as regards the relation of line and surface to solid, or of surface and line to each other—do not all we Greeks imagine that these are somehow commensurable with one another?

Clin. Most certainly.

Ath. But if they cannot be thus measured by any way or means, while, as I said, all we Greeks imagine that they can, are we not right in being ashamed for them all, and saying to them,

"O most noble Greeks, this is one of those "necessary" things which we said[295] it is disgraceful not to know, although there is nothing very grand in knowing such things."

Clin. Of course.

Ath. In addition to these there are other matters, closely related to them, in which we find many errors arising that are nearly akin to the errors mentioned.

Clin. What are they?

Ath. Problems concerning the essential nature of the commensurable and the incommensurable. For students who are not to be absolutely worthless it is necessary to examine these and to distinguish the two kinds, and, by proposing such problems one to another, to compete in a game that is worthy of them,—for this is a much more refined pastime than draughts for old men.

Clin. No doubt. And, after all, draughts and these studies do not seem to be so very far apart.

Ath. I assert, then, Clinias, that these subjects must be learnt by the young; for they are, in truth, neither harmful nor hard, and when learnt by way of play they will do no damage at all to our State, but will do it good. Should anyone disagree, however, we must listen to him.

Clin. Of course.

Ath. Well then, if this is clearly the case, obviously we shall adopt these subjects; but if it seems clearly to be otherwise, we shall rule them out.

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[295] *Plat. Laws 818a*: cp. *Aristot. Pol. 1338a.9 ff.*

Clin. Yes, obviously.

Ath. Shall we not, then, lay these down as necessary subjects of instruction, so that there may be no gap in our code of laws? Yet we ought to lay them down provisionally—like pledges capable of redemption—apart from the rest of our constitution, in case they fail to satisfy either us who enact them or you for whom they are enacted.

Clin. Yes, that is the right way to lay them down.

Ath. Consider next whether or not we approve of the children learning astronomy.

Clin. Just tell us your opinion.

Ath. About this there is a very strange fact—indeed, quite intolerable.

Clin. What is that?

Ath. We commonly assert that men ought not to enquire concerning the greatest god and about the universe, nor busy themselves in searching out their causes, since it is actually impious to do so; whereas the right course, in all probability, is exactly the opposite.

Clin. Explain yourself.

Ath. My statement sounds paradoxical, and it might be thought to be unbecoming in an old man; but the fact is that, when a man believes that a science is fair and true and beneficial to the State and altogether well-pleasing to God, he cannot possibly refrain any longer from declaring it.[296]

Clin. That is reasonable; but what science of this kind shall we find on the subject of stars?

Ath. At present, my good sirs, nearly all we Greeks say what is false about those mighty deities, the Sun and Moon.

Clin. What is the falsehood?

Ath. We assert that they, and some other stars along with them, never travel along the same path; and we call them "planets."[297]

Clin. Yes, by Zeus, Stranger, that is true; for I, during my life, have often noticed how Phosphorus and Hesperus and other stars never travel on the same course, but "wander" all ways; but as to the Sun and Moon, we all know that they are constantly doing this.

Ath. It is precisely for this reason, Megillus and Clinias, that I now assert that our citizens and our children ought to learn so much concerning all these facts about the gods of Heaven as to enable them

[296] Cp. *Plat. Laws 779b.*

[297] i.e. "wanderers."

not to blaspheme about them, but always to speak piously both at sacrifices and when they pray reverently at prayers.

Clin. You are right, provided that, in the first place, it is possible to learn the subject you mention; and provided also that learning will make us correct any mistakes we may be making about them now,—then I, too, agree that a subject of such importance should be learned. This being so, do you make every effort to expound the matter, and we will endeavor to follow you and learn.

Ath. Well, the matter I speak of is not an easy one to learn; nor yet is it altogether difficult and demanding very prolonged study. In proof of this—although I was told of it neither in the days of my youth nor long ago, I may be able to explain it to you in a comparatively short time. Whereas, if it had been a difficult subject, I should never have been able to explain it to you at all—I at my age to you at yours.

Clin. Very true. But what is this science which you describe as marvellous and fitting for the young to learn, and which we are ignorant about? Do try to tell us thus much, at least, about it, with all possible clearness,

Ath. I must try. The opinion, my friends, that the Sun and Moon and the rest of the stars "wander" is not correct; the truth is precisely the opposite: each of them always travels in a circle one and the same path,—not many paths, although it appears to move along many paths; and the quickest of the stars is wrongly opined to be the slowest, and vice versa.[298] If these are the real facts and we imagine otherwise,—well, suppose we held a similar notion about horses racing at Olympia, or about long-distance runners, and proclaimed the quickest to be slowest and the slowest quickest, and sang chants lauding the loser as the winner, why, then, the laudations we bestowed on the runners would be neither right nor acceptable, though they were but mortal men. But in the present case, when we commit the same error about gods, do we not think that what would have been ludicrous and wrong there and then is, here and now and in dealing with this subject, by no means ludicrous and assuredly not pleasing to the gods, when concerning gods we repeat a tale that is false?

Clin. Very true, if the facts are as you say.

Ath. Then, if we demonstrate that they really are so, shall all these subjects be learnt up to the point mentioned, and, failing that demonstration, be left alone? Is that to be our agreement?

Clin. Certainly.

[298] Cp. *Plat. Tim. 39d ff.*

Ath. We may now say that our regulations concerning subjects of education have been completed. The subject of hunting, and similar pursuits, must now be dealt with in a similar manner. The duty laid upon the lawgiver probably goes further than the bare task of enacting laws: in addition to laws, there is something else which falls naturally between advice and law— a thing which has often cropped up in the course of our discussion,[299] as, for example, in connection with the nurture of young children: such matters, we say, should not be left unregulated, but it would be most foolish to regard those regulations as enacted laws. When, then, the laws and the whole constitution have been thus written down, our praise of the citizen who is preeminent for virtue will not be complete when we say that the virtuous man is he who is the best servant of the laws and the most obedient;

Ath. a more complete statement will be this,—that the virtuous man is he who passes through life consistently obeying the written rules of the lawgiver, as given in his legislation, approbation and disapprobation.[300] This statement is the most correct way of praising the citizen; and in this way, moreover, the lawgiver must not only write down the laws, but in addition to the laws, and combined with them, he must write down his decisions as to what things are good and what bad; and the perfect citizen must abide by these decisions no less than by the rules enforced by legal penalties. The subject now before us we may adduce as a witness to show more clearly what we mean. Hunting is a large and complex matter, all of which is now generally embraced under this single name. Of the hunting of water-animals there are many varieties, and many of the hunting of fowls; and very many varieties also of hunts of land-animals—not of beasts only, but also, mark you, of men, both in war and often, too, in friendship, a kind of hunt that is partly approved and partly disapproved;[301] and then there are robberies and hunts carried on by pirates and by bands. When the lawgiver is making laws about hunting, he is necessarily bound to make this point clear, and to lay down minatory directions by imposing regulations and penalties for all these kinds. What then ought to be done about these matters? The lawgiver, for his part, will be right in prais-

[299] *Plat. Laws 788a ff.*, *Plat. Laws 793a ff.*

[300] i.e. for perfect virtue there is required not only obedience to statute law, but also conformity with all the other rules of conduct laid down by the lawgiver in the less rigid form of advice ("approbation" and "disapprobation").

[301] Cp. *Plat. Soph. 222d ff* where *ἡ τῶν ἐρώντων θήρα* (the lovers' chase) is mentioned as a sub-species of *θηρευτική*: and in *Symposium* 203 D the God of Love is described as a mighty hunter (*θηρευτὴς δεινός*).

ing or blaming hunting with an eye to the toils and pursuits of the young; and the young man will be right in listening and obeying, and in allowing neither pleasure nor toil to hinder him, and in holding in greater respect the orders that are sanctioned by praise, and carrying them out, rather than those which are enacted by law under threat of penalties. After these prefatory observations there will follow adequate praise and blame of hunting—praise of the kind which renders the souls of the young better, and blame of the kind which does the opposite. Our next step will be to address the young people with prayer—

"O friends, would that you might never be seized with any desire or craving for hunting by sea, or for angling, or for ever pursuing water-animals with creels that do your lazy hunting for you, whether you sleep or wake. "

Ath. "And may no longing for man-hunting by sea and piracy overtake you, and render you cruel and lawless hunters; and may the thought of committing robbery in country or city not so much as cross your minds. Neither may there seize upon any of the young the crafty craving for snaring birds— no very gentlemanly pursuit! Thus there is left for our athletes only the hunting and capture of land-animals. Of this branch of hunting, the kind called night-stalking, which is the job of lazy men who sleep in turn, is one that deserves no praise; nor does that kind deserve praise in which there are intervals of rest from toil, when men master the wild force of beasts by nets and traps instead of doing so by the victorious might of a toil-loving soul. Accordingly, the only kind left for all, and the best kind, is the hunting of quadrupeds with horses and dogs and the hunter's own limbs, when men hunt in person, and subdue all the creatures by means of their own running, striking and shooting—all the men, that is to say, who cultivate the courage that is divine." Concerning the whole of this subject, the exposition we have now given will serve as the praise and blame; and the law will run thus,—

"None shall hinder these truly sacred hunters from hunting wheresoever and howsoever they wish; but the night-trapper who trusts to nets and snares no one shall ever allow to hunt anywhere. The fowler no man shall hinder on fallow land or mountain; but he that finds him on tilled fields or on sacred glebes shall drive him off. The fisherman shall be allowed to hunt in all waters except havens and sacred rivers and pools and lakes, but only on condition that he makes no use of muddying juices."[302] So now, at last, we may say that all our laws

[302] i.e. vegetable juices which taint the water and paralyze the fish.

about education are complete.

Clin. You may rightly say so.

Book 8

Ath. Our next task is, with the help of the Delphic oracles, to arrange and ordain by law the festivals, prescribing what sacrifices, and to what deities, it will be good and right for the State to offer: the times and the number of them, however, it is, no doubt, our own business to ordain by ourselves.

Clin. Very likely, as regards the number of them.

Ath. Then let us first state the number. There shall be not less than 365 feasts, so that some one official may always be doing sacrifice to some god or daemon on behalf of the State, the people, and their property.[303] The interpreters, the priests, the priestesses and the prophets shall assemble, and, in company with the Law-wardens, they shall ordain what the lawgiver is obliged to omit: moreover, these same persons shall determine wherein such omissions consist. For the law will state that there are twelve feasts to the twelve gods who give their names to the several tribes: to each of these they shall perform monthly sacrifices and assign choirs and musical contests, and also gymnastic contests, as is suitable both to the gods themselves and to the several seasons of the year; and they shall ordain also women's festivals, prescribing how many of these shall be for women only, and how many open also to men. Further, they must determine, in conformity with the law, the rites proper to the nether gods, and how many of the celestial gods should be invoked, and what of the rites connected with them should not be mingled but kept apart, and put them in the twelfth month, which is sacred to Pluto; and this god should not be disliked by men who are warriors, but honored as one who is always most good to the human race; for, as I would assert in all seriousness,

[303] Cp. *Plat. Laws 771d.*

union is in no way better for soul and body than dissolution.

Ath. Moreover, if they are to arrange these matters adequately, these persons must believe that no other State exists which can compare with ours in respect of the degree in which it possesses leisure and control over the necessities of life;[304] and believe also that it, like an individual, ought to lead a good life. But for a good and blessed life, the first requisite is neither to do wrong oneself nor to suffer wrong from others. Of these, the former is not very hard, but it is very hard to secure immunity from suffering wrong;[305] indeed, it is impossible to gain this perfectly, except by becoming perfectly good. So likewise a State may obtain a life of peace if it becomes good, but if bad, a life of war both abroad and at home. This being so, all men must train for war not in war-time, but while they are living in peace.[306] Therefore, a judicious State must carry out a march, every month, for not less than one whole day, or more (according as the rulers decree),[307] paying no heed to cold weather or hot: all shall join in it—men, women and children—whenever the rulers decide to march them out en masse, and at other times they shall go in sections. Along with sacrifices, they must continually devise noble games, to serve as festival-contests, modelled as closely as possible on those of war. At each of these they must distribute prizes and awards of merit, and compose for one another speeches of praise and blame, according to the character each one exhibits not only in the contests, but in his life generally, magnifying him who is accounted most good and blaming him who is not. Such speeches not everyone shall compose; for, first, no one who is under fifty years old shall compose one, and further, no one shall do so who, though he may be fully proficient in poetry and music, has not as yet performed any noble or notable deed. But, even though they be not musical, those poems shall be sung which are composed by men[308] who are personally good and honored in the State as performers of noble deeds. The adjudication of these shall lie with the Educator and the rest of the Law-wardens, who shall grant them the sole privilege of free speech in song; whereas to the others no permission shall be given; nor yet shall anyone venture to sing an unauthorized song— not even

[304] Cp. *Plat. Laws 832c.*, *Plat. Laws 835d*, *Plat. Laws 835e.*

[305] Cp. *Plat. Laws 663a*, *Plat. Laws 904e.* "Perfect goodness" helps to secure this "immunity" because it includes the virtue of "courage": people do not lightly provoke the brave warrior.

[306] Cp. *Plat. Laws 803d*, *Plat. Laws 814d.*

[307] Cp. *Plat. Laws 830d.*

[308] Cp. *Plat. Laws 936a.*

should it be sweeter than the hymns of Orpheus or of Thamyras,—but only such sacred poems as have won the judges' approval and have been presented to the gods, or those by good men which have been adjudged to have duly distributed praise or blame. In regard both to military operations and to freedom of poetic speech I state that the same rules shall apply equally to both men and women.

Ath. The lawgiver ought to commune with himself and reason thus—

"Come now, what men am I to rear up, when I have made ready the whole State? Are they not to be competitors in the greatest of contests, wherein their antagonists will be numberless?"

"Most certainly," one would rightly reply. What then? Suppose we had been rearing boxers or pancratiasts or competitors in any similar branch of athletics, should we have gone straight into the contest without previously engaging in daily combat with someone? If we were boxers, for a great many days before the contest we should have been learning how to fight, and working hard, practicing in mimicry all those methods we meant to employ on the day we should be fighting for victory, and imitating the real thing as nearly as possible: thus, we should don padded gloves instead of proper ring-gloves, so as to get the best possible practice in giving blows and dodging them; and if we chanced to be very short of training-mates, do you suppose that we should be deterred by fear of the laughter of fools from hanging up a lifeless dummy and practicing on it? Indeed, if ever we were in a desert, and without either live or lifeless training-mates, would we not have recourse to shadow-fighting of the most literal kind, against ourselves? Or what else should one call the practice of pugilistic posturing?

Clin. There is no other name for it, Stranger, than the one you have just given to it.

Ath. What then? Is the fighting force of our State to venture to come forward every time to fight for their lives, their children, their goods, and for the whole State, after a less thorough preparation than the competitors we have been describing? And so is their lawgiver, through fear lest these training-bouts may appear ridiculous to some, to refrain from laying down laws whereby he will ordain field-operations, of which the minor kind, without heavy arms, will take place daily, if possible,—and to this end both the choristry and all the gymnastic shall be directed,—while the others, as a major kind of gymnastics in full armor, he shall order to be held at least once a month? In this latter kind they will engage in contests with one another throughout the whole country, contending in the capturing of

forts and in ambuscades and in all forms of mimic warfare;

Ath. in fact, they shall do literal fighting with balls[309] and darts as nearly real as possible,—though the points of the darts shall be made less dangerous,—in order that their games of combat may not be devoid of some element of alarm, but may provide terrors and indicate to some extent who is stout-hearted and who not: to the former the lawgiver shall duly assign honors, to the latter degradation, that thus he may prepare the whole State to be serviceable throughout life in the real contest. Moreover, if a man gets killed in these sham fights, inasmuch as the murder is involuntary, he shall pronounce the slayer to be pure of hands, when he has been legally purified; for he will reflect that, when a few men die, others equally good will grow up in their place, whereas, once fear is, so to speak, dead, he will be unable to find a test to distinguish, in all such cases, the good from the bad,— and that is a far greater evil than the other for a State.

Clin. We, at least, Stranger, would certainly agree that every State should both ordain and practice these things.

Ath. Are we all aware of the reason why such choristry and such contests do not at present exist anywhere in the States, except to a very small extent? Shall we say that this is due to the ignorance of the populace and of those who legislate for them?

Clin. Possibly.

Ath. Not so, by any means, my ingenious Clinias! What we ought to say is that there are two causes, and both most weighty ones.

Clin. What are they?

Ath. The first springs from a lust for wealth which allows a man no leisure time for attention to anything else save his own private property; and when the soul of every citizen hangs upon this, it is incapable of attending to matters other than daily gain. Whatsoever science or pursuit leads to this, every man individually is most ready to learn and to practice; but all else he laughs to scorn. This we must assert to be one particular cause why a State is unwilling to be in earnest about this, or any other, fine and noble pursuit; and why, on the other hand, every individual, because of his greed for silver and gold, is willing to toil at every art and device, noble or ignoble, if he is likely to get rich by it,—willing, too, to perform actions both holy and unholy—nay, utterly shameful—without a scruple, provided only that he is able to sate himself to repletion, like a beast, with all manner of foods and

[309] "Sphaeromachia" was a (hand) ball contest between opposing sides (something like our hockey or polo matches).

drinks and wenchings.

Clin. True.

Ath. Then let this which I describe be laid down as one cause which hinders the States from adequately practicing either military operations or any other noble pursuits and which turns men who are of a quiet nature [310] into traders, ship-owners, and servants, while of the bold it makes pirates, burglars, temple-robbers, fighters and despots,—and that though, in some cases, they are not ill-natured, but merely ill-fortuned.

Clin. How so?

Ath. Well, how could I describe otherwise than as utterly unfortunate men who are compelled to go through life with hunger[311] always in their own souls?

Clin. This, then, is one cause: what is the second cause you speak of, Stranger?

Ath. You are right in reminding me.

Meg. One cause, as you assert, is this lifelong insatiable pursuit, which wholly engrosses each man, and hinders each and all from rightly practicing military operations. Be it so: now tell us the second cause.

Ath. Do you think that I am delaying to do so because I am at a loss?

Meg. No; but we think that, owing to a sort of hatred against the character you describe, you are castigating it more severely than is required by the argument now on hand.

Ath. Your rebuke is just, Strangers; you want, it seems, to hear what comes next.

Clin. Only say on.

Ath. There lies a cause, as I affirm, in those non-polities which I have often mentioned[312] in our previous discourse,—namely, democracy, oligarchy, and tyranny. For none of these is a polity, but the truest name for them all would be "faction-State"; for none of them is a form of voluntary rule over willing subjects, but a voluntary rule over unwilling subjects accompanied always by some kind of force; and the ruler, through fear of the subject, will never voluntarily allow him to become noble or wealthy or strong or brave or in any way warlike. These, then, are the two main causes of nearly everything, and certainly of the conditions we described. The polity, however, for which

[310] Cp. *Plat. Laws 691b*, *Plat. Rep. 410c.*

[311] i.e. for gold. Cp. Virgil's "auri sacra fames."

[312] *Plat. Laws 712c ff.*, *Plat. Laws 713e ff.*

we are now legislating has escaped both these causes; for not only does it enjoy a great amount of leisure,[313] but the citizens also are free from one another's domination, and as a consequence of these laws of ours they will be the least likely of men to be money-lovers. Hence it is both natural and logical that of all existing polities this type alone should welcome the system above described, which combines military schooling with sport, when we have rightly completed that description.

Clin. Very good.

Ath. The next step, then, is to remind ourselves, with regard to all gymnastic contests, that all such as afford training for war should be instituted, and should have prizes assigned to them, but all that do not do so must be set aside. What these contests consist in, it will be well to have described and ordained at the beginning. First, then, should we not ordain contests in running and speed in general?

Clin. We should.

Ath. Most important of all things for war is, no doubt, general activity of the body, of hands as well as feet—activity of foot for flight and pursuit, and of hand for the stand-up fighting at close quarters which calls for sturdiness and strength.

Clin. No doubt.

Ath. Yet, surely, neither of these is of the greatest service when it lacks weapons.

Clin. Certainly not.

Ath. So at our contests the herald (as is now the practice) shall summon first the short-distance runner: he shall enter fully armed; and for an unarmed competitor we shall offer no prize. First, then, there shall enter the man who, with his arms, is to run the furlong,—second, the runner of the quarter-mile,— third, the half-miler,—fourth, the runner of the three-quarters,—and fifth, that runner whom we shall despatch first, fully armed, to run a distance of four miles to a temple of Ares and back; he shall be in heavier armor, and be called a hoplite, and he shall run over a smooth course, while his antagonist[314] shall be dressed in the full equipment of an archer, and shall run a course of twelve miles over hills and varied country to a temple of Apollo and Artemis. And having thus set up the contests, we shall await the return of these runners, and to the winner of each race we shall award the prize.

[313] Cp. *Plat. Laws 806d*, *Plat. Laws 828d*, *Plat. Laws 828e*, etc.

[314] In this 5th race the hoplite, running the shorter course competes (on time) against the archer, running the longer course.

Clin. Very right.

Ath. Let us plan these contests in three divisions—one for children, one for youths, and one for men. We shall ordain that the course for the youths' races shall be two-thirds of the full course, and that for children one-half, when they compete either as archers or as hoplites. In the case of females, we shall ordain races of a furlong, a quarter-mile, a half-mile, and a three-quarters for girls under the age of puberty, who shall be stripped, and shall race on the course itself; and girls over thirteen shall continue to take part until married,[315] up to the age of twenty at most, or at least eighteen; but these, when they come forward and compete in these races, must be clad in decent apparel. Let such, then, be the rules concerning races for men and women. As to trials of strength, instead of wrestling and the other "strong-man" events now in vogue, we shall ordain fencing in armor, both in solo-contests and in team-competitions of anything from two to ten a side.

Ath. As regards the hits which a winner is to make or avoid, and how many points he must score,—just as now in the case of wrestling, those who deal with this art have fixed by law the points of good wrestling and bad, so likewise we must summon the experts in fencing under arms, and bid them help us to draw up laws by which to decide the proper winner in such fights, what he must do and what he must avoid,—and similarly the rules for determining the loser. For females also, up to the age of marriage, the same laws shall be laid down. And in the place of the pancratium we must establish a general tourney for peltasts, who shall compete with bows, targes, javelins, and stones flung either by hand or by sling; and for these, too, we shall prescribe laws for assigning the rewards and prizes to the man who best conforms to the rules governing such contests. After these, the next thing to ordain will be horse-racing. Here, in a country like Crete, there is not much need of horses—not in great numbers,—so that inevitably less attention is paid either to the rearing or the racing of horses. As to chariots, we have no one who keeps them, nor is anyone here likely to cherish any great ambition respecting them, so that to establish contests for them would run counter to native custom, and would not only seem, but be, a foolish act. If, however, we establish prizes for races of riding-horses— both for young colts, and for three-year-olds, and for those of full age—we shall be adapting the sport of horse-racing to the character of the country. Of these horsemen there shall be established by law a competitive contest, and the phylarchs and hipparchs shall

[315] Cp. *Plat. Laws 785b.*

act as public judges both of all the races and of the armed competitors. For unarmed competitors we should be wrong in establishing prizes, either here or in the gymnastic sports. And for a Cretan there is credit in being a mounted archer or javelin-man, so we shall have contests and matches of a sportive kind between these also. As to women,—it is not worth while to make compulsory laws and rules about their taking part in such sports; but if, as a result of earlier training which has grown into a habit, their nature allows, and does not forbid, girls or maidens to take part, let them do so without blame. So now at length we have reached the end both of competition and instruction in gymnastic, so far as concerns our education by means of contests and of daily teaching. Most of our account of music has likewise been completed; the regulations about rhapsodes, however, and their retinue, and the choral contests which must accompany festivals are matters to be arranged after the gods and demi-gods have had their months, days and years assigned to them; then it will be seen whether they should be biennial fixtures or quadrennial, or what mode and manner of arranging them the gods may suggest.

Ath. Then also, one expects, the musical contests will be held in sections, as arranged by the Masters of the Games and the Educator of the youth and the Law-wardens, meeting for this special purpose and acting in person as legislators to determine what persons, and when and with whom, are to frame the contests for all the choruses and choristry. Of what character each of these ought to be in respect of words, songs and tunes, blended with rhythm and dance, has frequently been stated[316] by the original lawgiver; the secondary lawgivers should follow him in their enactments, and they should arrange the contests at convenient times to suit the several sacrifices, and thus appoint festivals for the State to observe. Now as to these and the like matters, it is by no means hard to perceive how they should be given legal regulation, nor indeed would a shifting of their positions cause much gain or loss to the State. But the things which do make no small difference, and of which it is hard to persuade men—these form a task especially for God (were it possible that orders should come from him): as it is, they are likely to require a bold man who, valuing candor above all else, will declare what he deems best for city and citizens, and in the midst of corrupted souls will enjoin what is fitting and in keeping with all the constitution, and gainsay the mightiest lusts, acting alone by himself with no man to help him save, as his solitary leader, Reason.

[316] In Books VI and VII.

Clin. What is it we are reasoning about now, Stranger? For we are still in the dark.

Ath. Naturally: but I will try to explain myself more clearly. When in my discourse I came to the subject of education,[317] I saw young men and maidens consorting with one another affectionately; and, naturally, a feeling of alarm came upon me, as I asked myself how one is to manage a State like this in which young men and maidens are well-nourished but exempt from those severe and menial labors which are the surest means of quenching wantonness, and where the chief occupation of everyone all through life consists in sacrifices, feasts and dances. In a State such as this, how will the young abstain from those desires which frequently plunge many into ruin,—all those desires from which reason, in its endeavor to be law,[318] enjoins abstinence?

Ath. That the laws previously ordained serve to repress the majority of desires is not surprising; thus, for example, the proscription of excessive wealth is of no small benefit for promoting temperance, and the whole of our education-system contains laws useful for the same purpose; in addition to this, there is the watchful eye of the magistrates, trained to fix its gaze always on this point and to keep constant watch on the young people. These means, then, are sufficient (so far as any human means suffice) to deal with the other desires. But when we come to the amorous passions of children of both sexes and of men for women and women for men,— passions which have been the cause of countless woes both to individuals and to whole States,—how is one to guard against these, or what remedy can one apply so as to find a way of escape in all such cases from a danger such as this? It is extremely difficult, Clinias. For whereas, in regard to other matters not a few, Crete generally and Lacedaemon furnish us (and rightly) with no little assistance in the framing of laws which differ from those in common use,—in regard to the passions of sex (for we are alone by ourselves) they contradict us absolutely. If we were to follow in nature's steps and enact that law which held good before the days of Laius,[319] declaring that it is right to refrain from indulging in the same kind of intercourse with men and boys[320] as with women, and adducing as evidence thereof the nature of wild beasts, and pointing out how male does not touch male for this purpose, since it is unnatural,—in all this we would probably be using an argument neither convincing nor in any

[317] *Plat. Laws 771e.*

[318] A play on *νόμος=νοῦς*; cp. *Plat. Laws 836e*, *Plat. Laws 714a.*

[319] King of Thebes, father of Oedipus.

[320] Cp. *Plat. Laws 636b.*, *Plat. Sym.181-2.*

way consonant with your States. Moreover, that object which, as we affirm, the lawgiver ought always to have in view does not agree with these practices. For the enquiry we always make is this —which of the proposed laws tends toward virtue and which not. Come then, suppose we grant that this practice is now legalized, and that it is noble and in no way ignoble, how far would it promote virtue? Will it engender in the soul of him who is seduced a courageous character, or in the soul of the seducer the quality of temperance? Nobody would ever believe this; on the contrary, as all men will blame the cowardice of the man who always yields to pleasures and is never able to hold out against them, will they not likewise reproach that man who plays the woman's part with the resemblance he bears to his model? Is there any man, then, who will ordain by law a practice like that? Not one, I should say, if he has a notion of what true law is. What then do we declare to be the truth about this matter?

Ath. It is necessary to discern the real nature of friendship and desire and love (so-called), if we are to determine them rightly; for what causes the utmost confusion and obscurity is the fact that this single term embraces these two things, and also a third kind compounded of them both.

Clin. How so?

Ath. Friendship is the name we give to the affection of like for like, in point of goodness, and of equal for equal; and also to that of the needy for the rich, which is of the opposite kind; and when either of these feelings is intense we call it "love."

Clin. True.

Ath. The friendship which occurs between opposites is terrible and fierce and seldom reciprocal amongst men, while that based on similarity is gentle and reciprocal throughout life. The kind which arises from a blend of these presents difficulties,—first, to discover what the man affected by this third kind of love really desires to obtain, and, in the next place, because the man himself is at a loss, being dragged in opposite directions by the two tendencies,—of which the one bids him to enjoy the bloom of his beloved, while the other forbids him. For he that is in love with the body and hungering after its bloom,[321] as it were that of a ripening peach, urges himself on to take his fill of it, paying no respect to the disposition of the beloved; whereas he that counts bodily desire as but secondary, and puts longing looks in place of love,[322] with soul lusting really for soul, regards the bodily

[321] Cp. *Plat. Sym. 183d ff.*

satisfaction of the body as an outrage, and, reverently worshipping temperance, courage, nobility and wisdom, will desire to live always chastely in company with the chaste object of his love. But the love which is blended of these two kinds is that which we have described just now as third. Since, then, love has so many varieties, ought the law to prohibit them all and prevent them from existing in our midst, or shall we not plainly wish that the kind of love which belongs to virtue and desires the young to be as good as possible should exist within our State, while we shall prohibit, if possible, the other two kinds? Or what is our view, my dear Megillus?

Meg. Your description of the subject, Stranger, is perfectly correct.

Ath. It seems that, as I expected, I have gained your assent; so there is no need for me to investigate your law, and its attitude towards such matters, but simply to accept your agreement to my statement. Later on I will try to charm Clinias also into agreeing with me on this subject. So let your joint admission stand at that, and let us by all means proceed with our laws.

Meg. Quite right.

Ath. I know of a device at present for enacting this law, which is in one way easy, but in another quite the hardest possible.

Meg. Explain your meaning.

Ath. Even at present, as we are aware, most men, however lawless they are, are effectively and strictly precluded from sexual commerce with beautiful persons,—and that not against their will, but with their own most willing consent.

Meg. On what occasions do you mean?

Ath. Whenever any man has a brother or sister who is beautiful. So too in the case of a son or daughter, the same unwritten law is most effective in guarding men from sleeping with them, either openly or secretly, or wishing to have any connection with them,—nay, most men never so much as feel any desire for such connection.

Meg. That is true.

Ath. Is it not, then, by a brief sentence that all such pleasures are quenched?

Meg. What sentence do you mean?

Ath. The sentence that these acts are by no means holy, but hated of God and most shamefully shameful. And does not the reason lie in this, that nobody speaks of them otherwise, but every one of us, from the day of his birth, hears this opinion expressed always and every-

[322] A play on the assonance *ὀρῶν=ἐρῶν*.

where, not only in comic speech, but often also in serious tragedy—as when there is brought on to the stage a Thyestes or an Oedipus, or a Macareus having secret intercourse with a sister, and all these are seen inflicting death upon themselves willingly as a punishment for their sins?

Meg. Thus much at least you are quite right in saying—that public opinion has a surprising influence, when there is no attempt by anybody ever to breathe a word that contradicts the law.

Ath. Then is it not true, as I said just now, that when a lawgiver wishes to subdue one of those lusts which especially subdue men, it is easy for him at least to learn the method of mastering them,—that it is by consecrating this public opinion in the eyes of all alike—bond and free, women and children, and the whole State—that he will effect the firmest security for this law.

Meg. Certainly; but how it will ever be possible for him to bring it about that all are willing to say such a thing—

Ath. A very proper observation. That was precisely the reason why I stated that in reference to this law I know of a device for making a natural use of reproductive intercourse,—on the one hand, by abstaining from the male and not slaying of set purpose the human stock, nor sowing seed on rocks and stones where it can never take root and have fruitful increase; and, on the other hand, by abstaining from every female field in which you would not desire the seed to spring up. This law, when it has become permanent and prevails—if it has rightly become dominant in other cases, just as it prevails now regarding intercourse with parents,—is the cause of countless blessings. For, in the first place, it follows the dictates of nature, and it serves to keep men from sexual rage and frenzy and all kinds of fornication, and from all excess in meats and drinks, and it ensures in husbands fondness for their own wives: other blessings also would ensue, in infinite number, if one could make sure of this law. Possibly, however, some young bystander, rash and of superabundant virility, on hearing of the passing of this law, would denounce us for making foolish and impossible rules, and fill all the place with his outcries; and it was in view of this that I made the statement[323] that I knew of a device to secure the permanence of this law when passed which is at once the easiest of all devices and the hardest. For while it is very easy to perceive that this is possible, and how it is possible—since we affirm that this rule, when duly consecrated, will dominate all souls, and cause

[323] *Plat. Laws 838b.*

them to dread the laws enacted and yield them entire obedience,—yet it has now come to this, that men think that, even so, it is unlikely to come about,—just in the same way as, in the case of the institution of public meals, people refuse to believe that it is possible for the whole State to be able to continue this practice constantly; and that, too, in spite of the evidence of facts and the existence of the practice in your countries; and even there, as applied to women, the practice is regarded as non-natural. Thus it was that, because of the strength of this unbelief, I said that it is most difficult to get both these matters permanently legalized.

Meg. And you were right in that.

Ath. Still, to show that it is not beyond the power of man, but possible, would you like me to try to state an argument which is not without some plausibility?

Clin. Certainly.

Ath. Would a man be more ready to abstain from sex-indulgence, and to consent to carry out the law on this matter soberly, if he had his body not ill-trained, but in good condition, than if he had it in bad condition?

Clin. He would be much more ready if it were not ill-trained.

Ath. Do we not know by report about Iccus[324] of Tarentum, because of his contests at Olympia and elsewhere,— how, spurred on by ambition and skill, and possessing courage combined with temperance in his soul, during all the period of his training (as the story goes) he never touched a woman, nor yet a boy? And the same story is told about Crison and Astylus and Diopompus and very many others. And yet, Clinias, these men were not only much worse educated in soul than your citizens and mine, but they also possessed much more sexual vigor of body.

Clin. That this really happened in the case of these athletes is indeed, as you say, confidently affirmed by the ancients.

Ath. Well then, if those men had the fortitude to abstain from that which most men count bliss for the sake of victory in wrestling, running, and the like, shall our boys be unable to hold out in order to win a much nobler victory—that which is the noblest of all victories, as we shall tell them from their childhood's days, charming them into belief, we hope, by tales and sentences and songs.

Clin. What victory?

Ath. Victory over pleasures,—which if they win, they will live a life

[324] Cp. *Plat. Prot. 316d ff.*

of bliss, but if they lose, the very opposite. Furthermore, will not the dread that this is a thing utterly unholy give them power to master those impulses which men inferior to themselves have mastered?

Clin. It is certainly reasonable to suppose so.

Ath. Now that we have reached this point in regard to our regulation, but have fallen into a strait because of the cowardice of the many, I maintain that our regulation on this head must go forward and proclaim that our citizens must not be worse than fowls and many other animals which are produced in large broods, and which live chaste and celibate lives without sexual intercourse until they arrive at the age for breeding; and when they reach this age they pair off, as instinct moves them, male with female and female with male; and thereafter they live in a way that is holy and just, remaining constant to their first contracts of love: surely our citizens should at least be better than these animals. If, however, they become corrupted by most of the other Hellenes or barbarians, through seeing and hearing that among them the "lawless Love" (as it is called) is of very great power, and thus become unable to overcome it, then the Law-wardens, acting as lawgivers, must devise for them a second law.

Clin. What law do you recommend them to make if that which is now proposed slips out of their grasp?

Ath. Evidently that law which comes next to it as second.

Clin. What is that?

Ath. One ought to put the force of pleasures as far as possible out of gear, by diverting its increase and nutriment to another part of the body by means of exercise. This would come about if indulgence in sexual intercourse were devoid of shamelessness; for if, owing to shame, people indulged in it but seldom, in consequence of this rare indulgence they would find it a less tyrannical mistress. Let them, therefore, regard privacy in such actions as honorable—sanctioned both by custom and by unwritten law; and want of privacy—yet not the entire avoidance of such actions—as dishonorable. Thus we shall have a second standard of what is honorable and shameful established by law and possessing a second degree of rectitude; and those people of depraved character, whom we describe as "self-inferior,"[325] and who form a single kind, shall be hemmed in by three kinds of force and compelled to refrain from law-breaking.

Clin. What kinds?

Ath. That of godly fear, and that of love of honor, and that which

[325] Cp. *Plat. Laws 626e.*

is desirous of fair forms of soul, not fair bodies. The things I now mention are, perhaps, like the visionary ideals in a story; yet in very truth, if only they were realized, they would prove a great blessing in every State. Possibly, should God so grant, we might forcibly effect one of two things in this matter of sex-relations,—either that no one should venture to touch any of the noble and freeborn save his own wedded wife, nor sow any unholy and bastard seed in fornication, nor any unnatural and barren seed in sodomy,—or else we should entirely abolish love for males, and in regard to that for women, if we enact a law that any man who has intercourse with any women save those who have been brought to his house under the sanction of Heaven and holy marriage, whether purchased or otherwise acquired, if detected in such intercourse by any man or woman, shall be disqualified from any civic commendation, as being really an alien,— probably such a law would be approved as right.

Ath. So let this law—whether we ought to call it one law or two—be laid down concerning sexual commerce and love affairs in general, as regards right and wrong conduct in our mutual intercourse due to these desires.

Meg. For my own part, Stranger, I should warmly welcome this law; but Clinias must tell us himself what his view is on the matter.

Clin. I shall do so, Megillus, when I deem the occasion suitable; but for the present let us allow the Stranger to proceed still further with his laws.

Meg. You are right.

Ath. Well, now we have arrived at this point in our progress, that common meals have been established—a thing which elsewhere, as we say, would be difficult, but in Crete no one would question its correctness. As concerns the manner of them,—whether we should adopt the Cretan fashion, or the Lacedaemonian, or whether we can find a third fashion that is better than either,—this does not seem to me a difficult problem to decide, nor indeed would its decision prove of much benefit, since these meals are now actually established in a satisfactory way. Next to this comes the question of organizing the food-supply, and how to make this fit in with the meals. In other States this supply would include all kinds of food and come from many sources, certainly from twice as many sources as it will in our State; for most of the Greeks arrange for their food to be derived from both land and sea, but our people will derive it only from the land. This makes the lawgiver's task easier; for in this case half the number of laws, or less, will suffice, and the laws, too, will be better fitted for

free men. For the lawgiver of our State is rid, for the most part, of shipping and merchandise and peddling and inn-keeping and customs and mines and loans and usury, and countless matters of a like kind; he can say good-bye to all such, and legislate for farmers and shepherds and bee-keepers, and concerning the preservation and supervision of the instruments employed in these occupations. This he will do, now that he has already enacted the most important laws, which deal with marriage, and with the birth and nurture and education of the children, and with the appointment of magistrates in the State. For the present he must turn, in his legislating, to the subject of food and of those whose labors contribute to its supply. First, then, let there be a code of laws termed "agricultural."

Ath. The first law—that of Zeus the Boundary-god—shall be stated thus: No man shall move boundary-marks of land, whether they be those of a neighbor who is a native citizen or those of a foreigner (in case he holds adjoining land on a frontier), realizing that to do this is truly to be guilty of "moving the sacrosanct"[326]; sooner let a man try to move the largest rock which is not a boundary-mark than a small stone which forms a boundary, sanctioned by Heaven, between friendly and hostile ground. For of the one kind Zeus the Clansmen's god is witness, of the other Zeus the Strangers' god; which gods, when aroused, bring wars most deadly. He that obeys the law shall not suffer the evils which it inflicts; but whoso despises it shall be liable to a double penalty, the first from the hand of Heaven, the second from the law. No one shall voluntarily move the boundary-marks of the land of neighbors: if any man shall move them, whosoever wishes shall report him to the land-holders, and they shall bring him to the law court. And if a man be convicted,—since by such an act the convicted man is secretly and violently merging lands in one,—the court shall estimate what the loser must suffer or pay. Further, many small wrongs are done against neighbors which, owing to their frequent repetition, engender an immense amount of enmity, and make of neighborhood a grievous and bitter thing. Wherefore every neighbor must guard most carefully against doing any unfriendly act to his neighbor, and must above all things take special care always not to encroach in the least degree on his land; for whereas it is an easy thing and open to anyone to do an injury, to do a benefit is by no means open to everyone. Whosoever encroaches on his neighbor's ground, overstepping

[326]For the proverbial saying *μὴ κινεῖν τἀκίνητα* (like Hands off! or Let sleeping dogs lie), cp. *Plat. Laws 684e*, *Plat. Laws 913b*.

the boundaries, shall pay for the damage; and, by way of cure for his shamelessness and incivility, he shall also pay out to the injured party twice the cost of the damage. In all such matters the land-stewards shall act as inspectors, judges and valuers,—the whole staff of the district, as we have said above,[327] in respect of the more important cases, and, in respect of the less important, those of them who are "phrourarchs." If anyone encroaches on pasture-land, these officials shall inspect the damage, and decide and assess it. And if any, yielding to his taste for bees, secures for himself another man's swarm by attracting them with the rattling of pans, he shall pay for the damage. And if a man, in burning his own stuff, fails to have a care for that of his neighbor, he shall be fined in a fine fixed by the officials.

Ath. So too if a man, when planting trees, fail to leave the due space between them and his neighbor's plot: this has been adequately stated by many lawgivers, whose laws we should make use of, instead of requiring the Chief Organizer of the State to legislate about all the numerous small details which are within the competence of any chance lawgiver. Thus, regarding water-supplies also, there are excellent old laws laid down for farmers, which we, in our exposition, need not draw upon. Let this suffice:—he that desires to bring water to his own land may do so, commencing at the public cisterns, but he must not undercut the exposed wells of any private person: he may lead it by whatever way he wishes, except through a house, temple or tomb, and he must do no damage beyond the actual work of channelling. If, in any spot, the rain-water filters through owing to the natural dryness of the soil, and there is a scarcity of necessary moisture, then the owner shall dig in his own ground down to the chalk subsoil, and if he fails to find water at this depth, he shall procure from his neighbors just so much as he requires for drinking purposes for all his household; and if his neighbors also are stinted in their supplies, he shall apply for a ration of water from the land-stewards, and fetch it day by day, and so share the water with his neighbors. And if, when rain comes, any dweller on lower ground damages the farmer above him, or the adjoining dweller, by preventing its outflow,—or if, conversely, the man on higher ground damages the man below by letting out the floods carelessly,—and if, in consequence, they refuse to accommodate one another in this matter, any person who wishes shall call in a city-steward, if it is in the city, or a land-steward, if in the country, and get an order as to what each

[327] *Plat. Laws 760a.* The "phrourarchs" were the (5) officers of the (60) country police.

party is to do; and the man who does not abide by the order shall be liable to be charged with envy and frowardness, and if convicted he shall pay to the injured party double the damage, for refusing to obey the magistrates. As concerns the fruit-harvest, the rule of sharing for all shall be this—this goddess has bestowed on us two gifts, one the plaything of Dionysus which goes unstored, the other produced by nature for putting in store.[328] So let this law be enacted concerning the fruit-harvest:—whosoever shall taste of the coarse crop of grapes or figs before the season of vintage, which coincides with the rising of Arcturus, whether it be on his own land or on that of others, shall owe fifty sacred drachmae to Dionysus if he has cut them from his own trees, if from his neighbor's trees, a mina, and if from others, two-thirds of a mina.

Ath. And if any man wishes to harvest "choice" grapes or "choice" figs (as they are now called), he shall gather them how and when he will if they are from his own trees, but if they are from another man's, and without his consent, he shall be fined every time, in pursuance of the law,[329] "thou shalt not shift what thou hast not set." And if a slave, without the consent of the master of the plots, touches any of such fruit, he shall be beaten with stripes as many as the grapes in the bunch or the figs on the fig-tree. If a resident alien buys a choice crop, he shall harvest it if he wishes. If a foreigner sojourning in the country desires to eat of the crop as he passes along the road, he, with one attendant, shall, if he wishes, take some of the choice fruit with-out price, as a gift of hospitality; but the law shall forbid our foreigners to share in the so-called "coarse" fruit, and the like; and should either a master or a slave touch these, in ignorance, the slave shall be punished with stripes, and the free man shall be sent off with a reproof and be instructed to touch only the other crop, which is unfitted for storing to make raisins for wine or dried figs. As to pears, apples, pomegranates, and all such fruits, it shall be no disgrace to take them privily; but the man that is caught at it, if he be under thirty years of age, shall be beaten and driven off without wounds; and for such blows a free man shall have no right to sue. A foreigner shall be allowed to share in these fruits in the same way as in the grape crop; and if a man above thirty touch them, eating on the spot and not taking any away, he shall have a share in all such fruits, like the foreigner; but if he disobeys the law,

[328] i.e. (1) choice (or "dessert") fruit, for immediate use, and (2) coarse fruit, of poorer quality, for storing in bulk or making into wine.

[329] Cp. *Plat. Laws 913c*, *Plat. Laws 913d.*

he shall be liable to be disqualified in seeking honors, in case anyone brings these facts to the notice of the judges at the time. Water above all else in a garden is nourishing; but it is easy to spoil. For while soil and sun and wind, which jointly with water nourish growing plants, are not easy to spoil by means of sorcery or diverting or theft, all these things may happen to water; hence it requires the assistance of law. Let this, then, be the law concerning it:—if anyone wantonly spoil another man's water, whether in spring or in pond, by means of sorcery, digging, or theft, the injured party shall sue him before the city-stewards, recording the amount of the damage sustained; and whosoever is convicted of damaging by poisons shall, in addition to the fine, clean out the springs or the basin of the water, in whatever way the laws of the interpreters declare it right for the purification to be made on each occasion and for each plaintiff.

Ath. Touching the bringing home of all crops, whoso wills shall be permitted to fetch his own stuff through any place, provided that either he does no damage or else gains himself three times as much profit as the damage he costs his neighbor; the authority in this matter shall rest with the magistrates, as in all other cases where a man willingly injures an unwilling party either by force or secretly—whether it be the party himself he injures or some of his chattels, by means of his own chattels; in all such cases the plaintiff must report to the magistrates to get redress, where the damage is under three minas; but if a man makes a larger claim than this against another, he shall bring a suit before the public courts and punish the injurer. If any of the magistrates be thought to have given an unjust verdict in deciding the penalties, he shall be liable to pay to the injured party double the amount; and whoso wishes shall bring up the wrong-doings of the magistrates before the public courts in the case of each complaint. And since there are countless petty cases for which penalties must be laid down, concerning written complaints and citations and evidence of citation,—whether the citation requires two or more witnesses,—and all matters of the like kind,—these cases cannot be left without legal regulation, but at the same time they do not deserve the attention of an aged lawgiver; so the young lawgivers shall make laws for these cases, modelling their small rules on the great ones of our earlier enactments, and learning by experience how far they are necessary in practice, until it be decided that they are all adequately laid down; and then, having permanently fixed them, they shall live in the practice of them, now that they are set out in due form. Moreover, for craftsmen we ought to make regulations in this wise. First, no resident citizen shall be numbered among those

who engage in technical crafts, nor any servant of a resident. For a citizen possesses a sufficient craft, and one that needs long practice and many studies, in the keeping and conserving of the public system of the State, a task which demands his full attention: and there hardly exists a human being with sufficient capacity to carry on two pursuits or two crafts thoroughly, nor yet to practice one himself and supervise another in practicing a second.

Ath. So we must first of all lay down this as a fundamental rule in the State: no man who is a smith shall act as a joiner, nor shall a joiner supervise others at smith-work, instead of his own craft, under the pretext that, in thus supervising many servants working for him, he naturally supervises them more carefully because he gains more profit from that source than from his own craft; but each several craftsman in the State shall have one single craft,[330] and gain from it his living. This law the city-stewards shall labor to guard, and they shall punish the resident citizen, if he turn aside to any craft rather than to the pursuit of virtue, with reproofs and degradation, until they restore him to his own proper course; and if a foreigner pursue two crafts, they shall punish him by imprisonment, money-fines, and expulsion from the State, and so compel him to act as one man and not many. And as regards wages due to craftsmen, and the cancelings of work ordered, and any injustices done to them by another, or to another by them, the city-stewards shall act as arbitrators up to a value of fifty drachmae, and in respect of larger sums the public courts shall adjudicate as the law directs. No toll shall be paid in the State by anyone either on exported goods or on imports. Frankincense and all such foreign spices for use in religious rites, and purple and all dyes not produced in the country, and all pertaining to any other craft requiring foreign imported materials for a use that is not necessary, no one shall import; nor, on the other hand, shall he export any of the stuff which should of necessity remain in the country: and of all such matters the inspectors and supervisors shall consist of those twelve Law-wardens who remain next in order when five of the oldest are left out. In regard to arms and all instruments of war, if there is need to import any craft or plant or metal or rope or animal for military purposes, the hipparchs and generals shall have control of both imports and exports, when the State both gives and takes, and the Law-wardens shall enact suitable and adequate laws therefor; but no trading for the sake of gain, either in this matter or in any other, shall be carried on anywhere

[330] Cp. *Plat. Rep. 369e ff.*, *Plat. Rep. 434a.*

within the boundaries of our State and country. Touching food-supply and the distribution of agricultural produce, a system approaching that legalized in Crete would probably prove satisfactory. The whole produce of the soil must be divided by all into twelve parts, according to the method of its consumption.

Ath. And each twelfth part—of wheat and barley, for instance (and all the rest of the crops must be distributed in the same way as these, as well as all marketable animals in each district)—must be divided proportionately into three shares, of which the first shall be for the freeborn citizens, and the second for their servants; the third share shall be for craftsmen and foreigners generally, including any resident aliens who may be dwelling together and in need of necessary sustenance, and all who have come into the country at any time to transact either public or private business; and this third share of all the necessaries shall be the only one liable to compulsory sale,[331] it being forbidden to sell any portion of the other two shares compulsorily. What, then, will be the best way of making these divisions? It is plain, to begin with, that our division is in one way equal, in another, unequal.

Clin. How do you mean?

Ath. Of each of these products of the soil, necessarily some parts are worse and some better.

Clin. Of course.

Ath. In respect of this, no one of the three shares shall have an undue advantage,—neither that given to the masters, nor that of the slaves, nor that of the foreigners,—but the distribution shall assign to all the same equality of similarity. Each citizen shall take two shares and have control of the distribution of them to slaves and free men respectively, in the quantity and of the quality he desires to distribute. The surplus over and above this must be distributed by weight and number as follows,—the owner must take the number of all the animals that have to be fed on the produce of the soil, and make his distribution accordingly. In the next place, there must be dwellings for the citizens separately arranged. A suitable arrangement for them will be this. There should be twelve villages, one in the middle of each of the twelve districts; and in each village we shall first select temples and a market-place for the gods and demigods; and if there exist any local deities of the Magnetes[332] or any shrines of other ancient gods whose memory is still preserved, we shall pay to them the same worship as did the

[331]For sales to foreigners, see below *Plat. Laws 849a.*: they had to buy their share of food-stuff, but the other two shares were not to be forced on to the market.

[332]The original inhabitants of the site of Clinias's new colony (cp. *Plat. Laws 702b*,

men of old; and everywhere we shall erect temples to Hestia and Zeus and Athena, and whatever other deity is the patron of the district concerned. First, buildings shall be erected round about these temples, and wherever the ground is highest, to form a stronghold, as well fenced as possible, for the garrison; and all the rest of the land we shall provide for by dividing the craftsmen into thirteen sections, of which one shall settle in the city (and this section shall be subdivided again into twelve parts, like the whole city itself, and distributed round about it in the suburbs); and in each village we shall settle the classes of craftsmen that are serviceable to farmers. Of all these the chiefs of the land-stewards shall be the supervisors, determining how many and what craftsmen each place requires, and where they shall dwell so as to be of least trouble and greatest use to the farmers.

Ath. And in like manner the board of city stewards shall diligently supervise the craftsmen in the city. All matters concerning the markets must be managed by the market-stewards. In addition to supervising the temples adjoining the market, to prevent any damage being done to them, they shall, secondly, supervise personal conduct, keeping an eye on temperate and outrageous behavior, so as to punish him who needs punishment. They shall watch over commodities put up for sale, to see that the sales which citizens are directed to make to foreigners are always legally conducted. There shall be this one law—that on the first day of the month the portion of the goods which is to be sold to foreigners shall be brought out by the managers—that is, the foreigners or slaves who act as managers for the citizens; and the first commodity shall be the twelfth share of corn, and the foreigner shall buy corn, and all that goes with it, at this first market. On the tenth day of the month, fluids sufficient to last through the month shall be sold by the one party and bought by the other. Thirdly, on the twentieth day, there shall be a sale of live-stock, as much as each party can buy or sell to suit their requirements, and also of all utensils or goods which the farmers have for sale, such as skins or any kind of clothing or woven stuff or felt or any such material; and these the foreigners must obtain from others by purchase. But neither these goods, nor barley or wheat ground into flour, nor any other kind of foodstuff whatsoever, may be sold by way of retail trade to the citizens or their slaves, or bought from any such retailer (but to the craftsmen and their slaves in the foreigners' market a foreigner may sell and traffic in wine and corn by way of what is generally termed "retail trade"); and the butchers

Plat. Laws 860e): they subsequently migrated to Magnesia in Asia Minor.

shall cut up the animals and distribute the meat to the foreigners and craftsmen and their servants. Any foreigner who wishes shall buy any kind of fuel in bulk, on any day, from the managers in the districts; and he shall sell it to the foreigners in what quantity and at what time he pleases. As to all other goods and utensils that each party requires, they shall be brought for sale to the public market, each kind to its appointed place, wherever the Law-wardens and market-stewards, with the help of the city-stewards, have marked out suitable sites and set up the stalls for market-stuff: there they shall exchange coins for goods and goods for coins, and no man shall give up his share to the other without receiving its equivalent;

Ath. and if any does thus give it up, as it were on credit, he shall make the best of his bargain,[333] whether or not he recovers what is due to him, since in such transactions he can no longer sue. And if the purchase or sale is greater or more costly than is allowed by the law stating the limits of increase or decrease of property beyond which both of these transactions are forbidden, the amount of difference must at once (in the case of excess) be registered with the Law-wardens, and (in the case of deficiency) be cancelled. The same rule shall hold good regarding the registration of property in the case of resident aliens. Whosoever wishes shall enter on residence as an alien on fixed terms, since residence is permitted to a foreigner who is willing and able to reside, provided that he has a craft and remains in the country not more than twenty years from the date of his registration, without the payment of even a small aliens' tax, except virtuous conduct, or indeed any other tax for any buying or selling; and when his time has expired, he shall depart, taking with him his own property. And if within the period of twenty years it should happen that he has proved his merit by doing some signal service to the State, and if he believes that he can persuade the Council and Assembly to grant his request and authorize a postponement of his departure, or even an extension of his residence for life, whatever request he thus succeeds in persuading the State to grant to him shall be carried out for him in full. For the children of resident aliens, who are craftsmen and over fifteen years of age, the period of residence shall commence from the fifteenth year, and such an one, after remaining for twenty years from that date, shall depart whither he pleases, or if he desires to remain, he shall gain permission in like manner, and so remain; and he that departs shall go after first cancelling the entries which were previously made by him in the register

[333] Cp. *Plat. Laws 742c*, *Plat. Laws 915e.*

at the magistrates' office.

Book 9

Ath. The method of our legislation requires that we should deal next with the judicial proceedings connected with all the transactions hitherto described. The matters which involve such proceedings have been stated[334] in part (those, namely, which concern farming and all industries dependent thereon), but we have not stated as yet the most important of such matters; so our next step must be to state them in full, enumerating in detail what penalty must attach to each offence, and before what court it must be tried.

Clin. True.

Ath. It is, in a sense, a shameful thing to make all those laws that we are proposing to make in a State like ours, which is, as we say, to be well managed and furnished with all that is right for the practice of virtue. In such a State, the mere supposition that any citizen will grow up to share in the worst forms of depravity practiced in other States, so that one must forestall and denounce by law the appearance of any such character, and, in order to warn them off or punish them, enact laws against them, as though they were certain to appear,—this, as I have said, is in a sense shameful. But we are not now legislating, like the ancient lawgivers, for heroes and sons of gods,[335]—when, as the story goes, both the lawgivers themselves and their subjects were men of divine descent: we, on the contrary, are but mortal men legislating for the seed of men, and therefore it is permitted to us to dread lest any of our citizens should prove horny-hearted and attain to such hardness of temper as to be beyond melting; and just as those "horn-struck"[336]

[334] *Plat. Laws 842e.*

[335] Cp. *Plat. Laws 713b.*

[336] i.e. "hard-shelled"; seeds struck by a beast's horn were vulgarly supposed to become "horny" and unfit for cooking.

beans cannot be softened by boiling on the fire, so these men should be uninfluenced by laws, however powerful. So, for the sake of these gentlemen, no very gentle law shall be stated first concerning temple-robbery, in case anyone dares to commit this crime. That a rightly nurtured citizen should be infected with this disease is a thing that we should neither desire nor expect; but such attempts might often be made by their servants, and by foreigners or foreigners' slaves.

Ath. Chiefly, then, on their account, and also as a precaution against the general infirmity of human nature, I will state the law about temple-robbing, and all other crimes of a like kind which are hard, if not impossible, to cure. And, in accordance with our rule as already approved,[337] we must prefix to all such laws preludes as brief as possible. By way of argument and admonition one might address in the following terms the man whom an evil desire urges by day and wakes up at night, driving him to rob some sacred object—

"My good man, the evil force that now moves you and prompts you to go temple-robbing is neither of human origin nor of divine, but it is some impulse bred of old in men from ancient wrongs unexpiated, which courses round wreaking ruin; and it you must guard against with all your strength. How you must thus guard, now learn. When there comes upon you any such intention, betake yourself to the rites of guilt-averting, betake yourself as suppliant to the shrines of the curse-lifting deities, betake yourself to the company of the men who are reputed virtuous; and thus learn, partly from others, partly by self-instruction, that every man is bound to honor what is noble and just; but the company of evil men shun wholly, and turn not back. And if it be so that by thus acting your disease grows less, well; but if not, then deem death the more noble way, and quit yourself of life." As we chant this prelude to those who purpose all these unholy deeds, destructive of civic life, the law itself we must leave unvoiced[338] for him who obeys; but for him who disobeys we must suffer the law, following on the prelude, to utter aloud this chant:

"Whosoever is caught robbing a temple, if he be a foreigner or a slave, his curse shall be branded on his forehead and on his hands, and he shall be scourged with so many stripes as the judges decree, and he shall be cast out naked beyond the borders of the country;" for, after paying this penalty, he might perchance be disciplined into a better life. For no penalty that is legally imposed aims at evil, but it effects,

[337] Cp. *Plat. Laws 718b.*
[338] Cp. *Plat. Laws 871a.*

as a rule, one or other of two results,— it makes the person who suffers it either better or less bad.[339] But if any citizen is ever convicted of such an act,—that is, of committing some great and infamous wrong against gods, parents, or State—the judge shall regard him as already incurable, reckoning that, in spite of all the training and nurture he has had from infancy, he has not refrained from the worst iniquity.

Ath. For him the penalty is death, the least of evils; and, moreover, by serving as an example, he will benefit others, when himself disgraced and removed from sight beyond the borders of the country; but his children and family, if they shun their father's ways, shall be honored, and honorable mention shall be made of them, seeing that they have done well and bravely in leaving the ways of vice for those of virtue. That the goods of any such criminal should be confiscated would not be fitting in a State in which the allotments must remain always identical and equal in number. Whosoever is held to have done a wrong which deserves a money-fine must pay the fine exacted when the fine comes within the limits of the surplus he has over when his allotment has been equipped, but not what exceeds this: the precise facts in such cases the Law-wardens must find out from the registers,[340] and they must inform the judges of the true state of each case, in order to prevent any allotment falling out of cultivation through lack of money. And if any man is held to deserve a larger fine, in case none of his friends are willing to go bail or, by clubbing together, to pay the sum and set him free, then we must punish him by long imprisonment, of a public kind, and by measures of degradation; but no one shall be absolutely outlawed for any single crime, even though he be banished from the country.[341] The punishments to be inflicted shall be death, or imprisonment, or stripes, or seats or stations or exposures of a degrading kind at temples or at outermost boundaries, or money-fines of the kind we have stated,—where such punishments are required. In cases where the penalty is death, the judges shall be the Law-wardens together with the court of last year's magistrates selected by merit.[342] In respect of these cases the younger lawgivers must attend to the indictments and summonses and all such matters, and the procedure involved, while it is our task to regulate by law the method of voting. The votes shall be cast openly, and, before this takes place, our judges shall be seated, facing the plaintiff and defendant, in a closely-packed

[339]Cp. *Plat. Laws 862d.*, *Plat. Laws 934a.*
[340]Cp. *Plat. Laws 745a*; *Plat. Laws 745b.*
[341]Cp. *Plat. Laws 865e ff.*, *Plat. Laws 877c ff.*
[342]Cp. *Plat. Laws 767d.*

row in order of seniority, and all the citizens who have leisure to do so shall attend and listen attentively to the trials. One speech shall be made by the plaintiff first, and secondly one by the defendant; and after these speeches the oldest judge shall lead off with his survey of the case, in which he shall review in detail the statements made; and after the oldest, each of the other judges in turn must discuss every point which he has noticed in which either of the litigants has been guilty of making any kind of omission or blunder in his statement; and he that has no such criticism to make shall pass on the task of reviewing to his neighbor;

Ath. and when such of the statements as the judges have pronounced relevant have been confirmed by affixing to the documents the signatures of all the judges, they shall lay them up at the altar of Hestia. On the morrow again they shall assemble at the same place and discuss the case, and they shall make their pronouncements in the same manner, and shall again sign the statements. And after doing this thrice,—during which proceedings they shall pay full attention to evidence and witnesses,—each of the judges shall cast a sacred vote, promising by Hestia to give just and true judgment to the best of his power; and thus they shall bring to its end this form of trial. Next to cases which concern religion come those which concern the dissolution of the polity. Whosoever enslaves the laws by making them subject to men, and makes the State subject to a faction, and acts illegally in doing all this by violence and in stirring up civil strife,—such a man must be deemed the worst of all enemies to the whole State. And the man who, though he takes part in none of these doings, yet fails to observe them, while he has a share in the chief offices of State, or else, though he observes them, fails to defend his country and punish them, owing to his cowardice,—a citizen of such a kind must be counted second in order of badness. Every man who is of the least worth shall inform the magistrates by prosecuting the plotter on a charge of violent and illegal revolution: they shall have the same judges as the temple-robbers had, and the whole trial shall be conducted just as it was in their case, and the death penalty shall be imposed by a majority of votes. As a summary rule, the disgrace or punishment inflicted on a father shall not descend upon his children, except in a case where not only the father, but his father and grandfather before him, have all been condemned on a capital charge: in such a case, the children, while retaining their own property, excepting only the allotment with its full equipment, shall be deported by the State to their original country and State. And from the sons of citizens who happen to have more than

one son over ten years old, ten shall be chosen by lot—after application made by the father or by the paternal or maternal grandfather,—and the names thus chosen shall be sent to Delphi; and that man whom the oracle names shall be established as the allotment-holder in the house of those departed,—be it with happier fortune!

Clin. Very good.

Ath. Moreover, a third general law shall be laid down, dealing with the judges to be employed and the manner of the trials, in cases where one man prosecutes another on a charge of treason; and concerning the offspring, likewise, whether they are to remain in their country or be expelled, this one law shall apply to the three cases of the traitor, the temple-robber, and the man who wrecks the State laws by violence. For the thief also, whether he steals a great thing or a small, one law and one legal penalty shall be enacted for all alike[343]: first, he must pay twice the value of the stolen article, if he loses his case and possesses enough property over and above his allotment wherewith to pay; but if not, he must be put in prison until either he has paid the sum or has been let off by the prosecutor. And if a man be cast in a suit for theft from the State, on obtaining pardon from the State, or after payment of double the sum stolen, he shall be let out of prison.

Clin. How comes it, Stranger, that we are ruling that it makes no difference to the thief whether the thing he steals be great or small, and whether the place it is stolen from be holy or unhallowed, or whatever other differences may exist in the manner of a theft; whereas the lawgiver ought to suit the punishment to the crime by inflicting dissimilar penalties in these varying cases?

Ath. Well said, Clinias! You have collided with me when I was going, as it were, full steam ahead, and so have woken me up. You have reminded me of a previous reflection of mine, how that none of the attempts hitherto made at legislation have ever been carried out rightly—as in fact we may infer from the instance before us. What do I mean to imply by this remark? It was no bad comparison we made[344] when we compared all existing legislation to the doctoring of slaves by slaves. For one should carefully notice this, that if any of the doctors who practice medicine by purely empirical methods, devoid of theory, were to come upon a free-born doctor conversing with a free-born patient, and using arguments, much as a philosopher would, dealing with the course of the ailment from its origin and surveying

[343] But cp. *Plat. Laws 859b ff.*, *Plat. Laws 933e ff.*

[344] *Plat. Laws 720a.*

the natural constitution of the human body,—he would at once break out into a roar of laughter, and the language he would use would be none other than that which always comes ready to the tongue of most so-called "doctors":

"You fool," he would say,

"you are not doctoring your patient, but schooling him, so to say, as though what he wanted was to be made, not a sound man, but a doctor."

Clin. And in saying so, would he not be right?

Ath. Possibly, provided that he should also take the view that the man who treats of laws in the way that we are now doing is schooling the citizens rather than legislating. Would he not seem to be right in saying that, too?

Clin. Probably.

Ath. How fortunate we are in the conclusion we have now come to!

Clin. What conclusion?

Ath. This,—that there is no need to legislate, but only to become students ourselves, and endeavor to discern in regard to every polity how the best form might come about, and how that which is the least elaborate possible. Moreover, we are now allowed, as it seems, to study, if we choose, the best form of legislation, or, if we choose, the least elaborate. So let us make our choice between these two.

Clin. The choice we propose, Stranger, is an absurd one: we should be acting like legislators who were driven by some overpowering necessity to pass laws on the spot, because it is impossible for them to do so on the morrow. But for us (if Heaven will) it is quite possible to do as bricklayers do, or men starting on any other kind of construction,—that is, to collect material piecemeal, from which we may select what is suitable for the edifice we intend to build, and, what is more, select it at our leisure. Let us assume, then, that we are not now building under compulsion, but that we are still at leisure, and engaged partly in collecting material and partly in putting it together; so that we may rightly say that our laws are being in part already erected and in part collected.

Ath. In this way, Clinias, our survey of laws will at any rate follow nature's course more closely. Now let us consider, I adjure you, the following point about legislators.

Clin. What point?

Ath. We have in our States not only the writings and written speeches of many other people, but also the writings and speeches of the lawgiver.

Clin. Certainly.

Ath. Are we, then, to pay attention to the compositions of the others— poets, and all who, either with or without meter, have composed and put on record their counsels concerning life,—but to pay no attention to those of the lawgivers? Or should we not attend to them above all others?

Clin. Yes, far above all.

Ath. But we surely do not mean that the lawgiver alone of all the writers is not to give counsel about what is noble, good and just, teaching what these are, and how those who intend to be happy must practice them.

Clin. Of course he must do so.

Ath. Well then, is it more disgraceful on the part of Homer and Tyrtaeus and the rest of the poets to lay down in their writings bad rules about life and its pursuits, and less disgraceful on the part of Lycurgus and Solon and all the legislators who have written?

Ath. Or rather, is it not right that, of all the writings which exist in States, those which concern laws should be seen, when unrolled, to be by far the fairest and best, and all other writings to be either modelled on them or, if disagreeing with them, contemptible? Are we to conceive that the written laws in our States should resemble persons moved by love and wisdom, such as a father or a mother, or that they should order and threaten, like some tyrant and despot, who writes his decree on the wall, and there is an end of it? So let us now consider whether we are going to try to discuss laws with this intention—showing zeal, at any rate, whether or not we may prove successful; and if, in proceeding on this course, we must meet with mishap, so be it. Yet we pray that it may be well with us, and if God wills, it shall be well.

Clin. You are right: let us do as you say.

Ath. First of all, since we have started on it, we must examine closely the law about temple-robbers and all forms of thieving and wrongdoing; nor should we be vexed by the fact that, although we enacted some points while legislating, there are some points still under consideration: for we are in process of becoming lawgivers, and may perhaps become so, but we are not lawgivers as yet. So if we agree to consider the matters I have mentioned in the way I have mentioned, let us so consider them.

Clin. Most certainly.

Ath. In respect of goodness and justice as a whole, let us try to discern this,—how far we now agree with ourselves, and how far we differ (for we should certainly say that we desire, if nothing else, to

differ at least from the majority of men), and how far also the majority agree or differ among themselves.

Clin. What differences of ours have you in mind?

Ath. I will try to explain. Concerning justice in general, and men, things, or actions that are just, we all agree that these are all beautiful, so that no one would be regarded as saying what was wrong even if he should maintain that just men, however ugly in body, are quite beautiful in respect of their very just character.

Clin. Would not that be right?

Ath. Perhaps; but let us observe this,—that if all things which belong to justice are beautiful, that "all" includes for us passions[345] nearly as much as actions.

Clin. Well, what then?

Ath. Every just action, in so far as it shares in justice, practically in the same degree partakes of beauty.

Clin. Yes.

Ath. It is agreed also—if our argument is to be consistent— that a passion which shares in justice, becomes, so far, beautiful.

Clin. True.

Ath. But if we agree that a passion though just is unseemly, then justice and beauty will be at discord, when just things are called most unseemly.

Clin. What do you mean by that?

Ath. It is not hard to grasp. The laws we enacted a short time ago might seem to enjoin what is absolutely contrary to our present statements.

Clin. What statements?

Ath. We laid it down[346] that it is just to put to death the temple-robber and the enemy of the rightly-enacted laws; and then, when we were minded to enact a host of similar rules, we held our hand, since we perceived that such rules involve passions infinite both in number and in magnitude, and that, although they are eminently just, they are also eminently unseemly. Thus the just and the beautiful will seem to us at one moment wholly identical, at another, utterly opposed, will they not?

Clin. I am afraid so.

Ath. Thus it is that by the multitude the beautiful and the just are flung apart, and inconsistent language is used about them.

[345] i.e. "sufferings."

[346] *Plat. Laws 854b.*

Clin. It certainly seems so, Stranger.

Ath. Then let us look again at our own view, and see how far it is consistent in this respect.

Clin. What kind of consistency, and in respect of what, do you mean?

Ath. I believe that I expressly stated[347] in our previous discourse,—or, if I did not do it before, please assume that I now assert—

Clin. What?

Ath. That all bad men are in all respects unwillingly bad; and, this being so, our next statement must agree therewith.

Clin. What statement do you mean?

Ath. This,—that the unjust man is, indeed, bad, but the bad man is unwillingly bad.[348] But it is illogical to suppose that a willing deed is done unwillingly; therefore he that commits an unjust act does so unwillingly in the opinion of him who assumes that injustice is involuntary—a conclusion which I also must now allow; for I agree that all men do unjust acts unwillingly; so, since I hold this view—and do not share the opinion of those who, through contentiousness or arrogance, assert that, while there are some who are unjust against their will, yet there are also many who are unjust willingly,—how am I to prove consistent with my own statements? Suppose you two, Megillus and Clinias, put this question to me—

"If this is the state of the case, Stranger, what counsel do you give us in regard to legislating for the Magnesian State? Shall we legislate or shall we not?"

"Legislate by all means," I shall reply.

Ath.

"Will you make a distinction, then, between voluntary and involuntary wrongdoings, and are we to enact heavier penalties for the crimes and wrongdoings that are voluntary, and lighter penalties for the others? Or shall we enact equal penalties for all, on the view that there is no such thing as a voluntary act of injustice?"

Clin. What you say, Stranger, is quite right: so what use are we to

[347] *Plat. Laws 731c*, *Plat. Laws 734b*: cp. *Aristot. Nic. Eth. 1109b.30 ff.*

[348] In what follows, the *Athenian*, adopting the Socratic dictum that "vice is involuntary" (cp. *Plat. Tim. 86e ff.*), applies it to the special vice of injustice; but here his view is found to conflict with the popular view which distinguishes between voluntary and involuntary acts of injustice, and assigns to them different legal penalties. If this popular distinction is wrong, the lawgiver must either (a) simply apply the Socratic rule, and enact that all unjust acts are involuntary and deserve therefore equal penalties, or (b) draw a new distinction, which *Ath.* proceeds to do in 861 E ff. (see note ad loc.).

make of our present arguments?

Ath. A very proper question! The use we shall make of them, to begin with, is this—

Clin. What?

Ath. Let us recall how, a moment ago, we rightly stated that in regard to justice we are suffering from the greatest confusion and inconsistency. Grasping this fact, let us again question ourselves,—

"As to our perplexity about these matters, since we have neither got it clear nor defined the point of difference between those two kinds of wrongdoing, voluntary and involuntary, which are treated as legally distinct in every State by every legislator who has ever yet appeared,—as to this, is the statement we recently made to stand, like a divine oracle, as a mere ex cathedra statement, unsupported by any proof, and to serve as a kind of master-enactment[349]?" That is impossible; and before we legislate we are bound first to make it clear somehow that these wrong-doings are two-fold, and wherein their difference consists, in order that when we impose the penalty on either kind, everyone may follow our rules, and be able to form some judgment regarding the suitability or otherwise of our enactments.

Clin. What you say, Stranger, appears to us to be excellent: we ought to do one of two things,—either not assert that all unjust acts are involuntary, or else make our distinctions first, then prove the correctness of that assertion.

Ath. Of these alternatives the first is to me quite intolerable—namely, not to assert what I hold to be the truth,—for that would be neither a lawful thing to do nor a pious. But as to the question how such acts are two-fold,—if the difference does not lie in that between the voluntary and the involuntary, then we must try to explain it by means of some other distinction.[350]

Clin. Well, certainly, Stranger, about this matter there is no other plan we can possibly adopt.

Ath. It shall be done. Come now, in dealings and intercourse

[349]Literally, to legislate down (i.e. over-rule the popular objection to our Socratic view).

[350]The proper distinction to be drawn (as *Ath.* proceeds to argue) is not that between voluntary and involuntary acts of injustice (since there are no such voluntary acts), but that between "injuries" (*βλάβαι*, acts causing loss) and "acts of injustice." Injustice is really a quality of the agent rather than of the act, and (like all vice) is a form of un-reason: as the slave of un-reason, the unjust man is never a free agent. Hence the task of the lawgiver is two fold, (1) to make good the "injuries," and (2) to cure the agent of his "injustice" by restoring the power of reason ("moral sense") in his soul.

between citizens, injuries committed by one against another are of frequent occurrence, and they involve plenty of the voluntary as well as of the involuntary.

Clin. To be sure!

Ath. Let no one put down all injuries as acts of injustice and then regard the unjust acts involved as two-fold in the way described, namely, that they are partly voluntary and partly involuntary (for, of the total, the involuntary injuries are not less than the voluntary either in number or in magnitude); but consider whether in saying what I am now going to say I am speaking sense or absolute nonsense. For what I assert, Megillus and Clinias, is not that, if one man harms another involuntarily and without wishing it, he acts unjustly though involuntarily, nor shall I legislate in this way, pronouncing this to be an involuntary act of injustice, but I will pronounce that such an injury is not an injustice at all, whether it be a greater injury or a less. And, if my view prevails, we shall often say that the author of a benefit wrongly done commits an injustice; for as a rule, my friends, neither when a man gives some material object to another, nor when he takes it away, ought one to term such an act absolutely just or unjust, but only when a man of just character and disposition does any benefit or injury to another,—that is what the lawgiver must look at; he must consider these two things, injustice and injury, and the injury inflicted he must make good so far as possible by legal means; he must conserve what is lost, restore what has been broken down, make whole what is wounded or dead; and when the several injuries have been atoned for by compensation, he must endeavor always by means of the laws to convert the parties who have inflicted them and those who have suffered them from a state of discord to a state of amity.

Clin. He will be right in doing that.

Ath. As regards unjust injuries and gains, in case one man causes another to gain by acting unjustly towards him, all such cases as are curable we must cure, regarding them as diseases of the soul. And we should affirm that our cure for injustice lies in this direction—

Clin. What direction?

Ath. In this,—that whenever any man commits any unjust act, great or small, the law shall instruct him and absolutely compel him for the future either never willingly to dare to do such a deed, or else to do it ever so much less often, in addition to paying for the injury. To effect this, whether by action or speech, by means of pleasures and pains, honors and dishonors, money-fines and money-gifts, and in general by whatsoever means one can employ to make men hate

injustice and love (or at any rate not hate) justice,—this is precisely the task of laws most noble. But for all those whom he perceives to be incurable in respect of these matters, what penalty shall the lawgiver enact, and what law?

Ath. The lawgiver will realize that in all such cases not only is it better for the sinners themselves to live no longer, but also that they will prove of a double benefit to others by quitting life—since they will both serve as a warning to the rest not to act unjustly, and also rid the State of wicked men,[351]—and thus he will of necessity inflict death as the chastisement for their sins, in cases of this kind, and of this kind only.

Clin. What you have said seems very reasonable; but we should be glad to hear a still clearer statement respecting the difference between injury and injustice, and how the distinction between the voluntary and the involuntary applies in these cases.

Ath. I must endeavor to do as you bid me, and explain the matter. No doubt in conversing with one another you say and hear said at least thus much about the soul, that one element in its nature (be it affection or part) is "passion," which is an inbred quality of a contentious and pugnacious kind, and one that overturns many things by its irrational force.

Clin. Of course.

Ath. Moreover, we distinguish "pleasure" from passion, and we assert that its mastering power is of an opposite kind, since it effects all that its intention desires by a mixture of persuasion and deceit.

Clin. Exactly.

Ath. Nor would it be untrue to say that the third cause of sins is ignorance.[352] This cause, however, the lawgiver would do well to subdivide into two, counting ignorance in its simple form to be the cause of minor sins, and in its double form—where the folly is due to the man being gripped not by ignorance only, but also by a conceit of wisdom,[353] as though he had full knowledge of things he knows nothing at all about,—counting this to be the cause of great and brutal sins when it is joined with strength and might, but the cause of childish and senile sins when it is joined with weakness; and these last he will count as sins and he will ordain laws, as for sinners, but laws that will be, above all others, of the most mild and merciful kind.

[351]Cp. *Plat. Laws 957e*, *Plat. Rep. 410a*

[352]Cp. *Plat. Laws 864d.*, *Plat. Laws 908e*; *Aristot. Nic. Eth. 1110b.18 ff.*

[353]Cp. *Plat. Laws 732a*, *Plat. Phileb. 48e.*

Clin. That is reasonable.

Ath. And pretty well everyone speaks of one man being "superior," another "inferior," to pleasure or to passion; and they are so.

Clin. Most certainly.

Ath. But we have never heard it said that one man is "superior," another "inferior," to ignorance.[354]

Clin. Quite true.

Ath. And we assert that all these things urge each man often to go counter to the actual bent of his own inclination.

Clin. Very frequently.

Ath. Now I will define for you, clearly and without complication, my notion of justice and injustice. The domination of passion and fear and pleasure and pain and envies and desires in the soul, whether they do any injury or not, I term generally "injustice"; but the belief in the highest good— in whatsoever way either States or individuals think they can attain to it,—if this prevails in their souls and regulates every man, even if some damage be done, we must assert that everything thus done is just, and that in each man the part subject to this governance is also just, and best for the whole life of mankind, although most men suppose that such damage is an involuntary injustice. But we are not now concerned with a verbal dispute. Since, however, it has been shown that there are three kinds of sinning, we must first of all recall these still more clearly to mind. Of these, one kind, as we know, is painful; and that we term passion and fear.[355]

Clin. Quite so.

Ath. The second kind consists of pleasure and desires; the third, which is a distinct kind, consists of hopes and untrue belief regarding the attainment of the highest good. And when this last kind is subdivided into three,[356] five classes are made, as we now assert; and for these five classes we must enact distinct laws, of two main types.

Clin. What are they?

Ath. The one concerns acts done on each occasion by violent and open means, the other acts done privily under cover of darkness and deceit, or sometimes acts done in both these ways,—and for acts of this last kind the laws will be most severe, if they are to prove adequate.

Clin. Naturally.

Ath. Let us revert next to that point from which we digressed,[357]

[354] i.e. ignorance is not regarded as an active force (like passion or pleasure) capable of opposing reason and tyrannizing over the soul.

[355] Cp. *Plat. Phileb. 40d*, *Plat. Phileb. 40e.*

[356] Cp. *Plat. Laws 863c*, *Plat. Laws 863d.*

and proceed with our enactment of the laws. We had, I believe, laid down the laws dealing with those who plunder the gods and with traitors, and also with those who wreck the laws with intent to overthrow the existing constitution. An act of this kind a man might commit when mad, or when suffering from some disease or from excessive senility, or in a state of childishness, whereby he is no better than a madman. If any case of this kind is ever brought to the notice of the selected judges, either on the information of the doer of the act or on that of him who is pleading for the doer, and if it be judged that he was in this state of madness when he broke the law, then he shall certainly pay for the damage he has done, but only the exact sum, and he shall be acquitted of the other charges, unless it be that he has killed a man and has not purged his hands from blood: in this case he shall depart into another country and place, and dwell there as an exile for a year; and should he return within the time fixed by the law or set foot at all within his own country, he shall be put in the public jail by the Law-wardens for the space of two years, and not let out of jail until after that time.

Ath. We need not hesitate to enact laws about every class of murder on similar lines, now that we have made a beginning. First we shall deal with the cases that are violent and involuntary. If a man has killed a friend in a contest or in public games—whether his death has been immediate or as the after-effect of wounds,—or similarly if he has killed him in war or in some action of training for war, either when practicing javelin-work without armor or when engaged in some warlike maneuver in heavy armor,—then, when he has been purified as the Delphic rule on this matter directs, he shall be accounted pure. So too with respect to all doctors, if the patient dies against the will of his doctor, the doctor shall be accounted legally pure. And if one man kills another of his own act, but involuntarily,—whether it be with his own unarmed body, or by a tool or a weapon, or by a dose of drink or of solid food, or by application of fire or of cold, or by deprivation of air, and whether he does it himself with his own body or by means of other bodies,— in all cases it shall be accounted to be his own personal act, and he shall pay the following penalties. If he kill a slave, he shall secure the master against damage and loss, reckoning as if it were a slave of his own that had been destroyed, or else he shall be liable to a penalty of double the value of the dead man,—and the judges shall make an assessment of his value,—and he must also employ means of purification greater

[357] i.e. *Plat. Laws 857b.*

and more numerous than those employed by persons who kill a man at games, and those interpreters[358] whom the oracle names shall be in charge of these rites; but if it be a slave of his own that he has killed, he shall be set free after the legal purification. And if anyone kill a free man involuntarily, he shall undergo the same purifications as the man that has killed a slave; and there is an ancient tale, told of old, to which he must not fail to pay regard. The tale is this,—that the man slain by violence, who has lived in a free and proud spirit, is wroth with his slayer when newly slain, and being filled also with dread and horror on account of his own violent end, when he sees his murderer going about in the very haunts which he himself had frequented, he is horror-stricken; and being disquieted himself, he takes conscience as his ally, and with all his might disquiets his slayer—both the man himself and his doings. Wherefore it is right for the slayer to retire before his victim for a full year, in all its seasons, and to vacate all the spots he owned in all parts of his native land;

Ath. and if the dead man be a Stranger, he shall be barred also from the Stranger's country for the same period. If a man willingly obeys this law, he that is nearest of kin to the dead man, having the supervision of the performance of all these rules, shall pardon him and live at peace with him, and in doing so he will be acting with perfect propriety; but if a man disobeys, and dares, in the first place, to approach the altars and to do sacrifice while still unpurified, and if he refuses, further, to fulfil the times appointed in exile, then the next of kin to the dead man shall prosecute the slayer for murder, and in case of conviction all the penalties shall be doubled. And should the nearest relative fail to prosecute for the crime, it shall be as though the pollution had passed on to him, through the victim claiming atonement for his fate; and whoso pleases shall bring a charge against him, and compel him by law to quit his country for five years. And if a Stranger involuntarily kills a Stranger who is resident in the State, whoso pleases shall prosecute him under the same laws; and if he be a resident alien, he shall be exiled for a year, while if he be altogether a Stranger—whether the man slain be a Stranger or resident alien or citizen—in addition to the purifications imposed, he shall be barred for all his life from the country which ordains these laws; and if he transgresses the law, and comes back to it, the Law-wardens shall punish him with death; and if he has any property, they shall hand it over to the next of kin of the victim. And should he come back unwillingly, in case

[358]Cp. *Plat. Laws 759c.*

he be shipwrecked off the coast of the country, he shall camp with his feet in the sea, and watch for a ship to take him off; or in case he be brought in by people forcibly by land, the first magistrate of the State that meets with him shall loose him, and send him out over the border unharmed. If a person with his own hand kills a free man, and the deed be done in passion, in a case of this kind we must begin by making a distinction between two varieties of the crime. For murder is committed in passion by those who, on a sudden and without intent to kill, destroy a man by blows or some such means in an immediate attack, when the deed is at once followed by repentance; and it is also a case of murder done in passion whenever men who are insulted by shameful words or actions seek for vengeance, and end by killing a man with deliberate intent to kill, and feel no repentance for the deed.

Ath. We must lay it down, as it seems, that these murders are of two kinds, both as a rule done in passion, and most properly described as lying midway between the voluntary and the involuntary. None the less, each of these kinds tends to resemble one or other of these contraries; for the man who retains his passion and takes vengeance, not suddenly on the spur of the moment, but after lapse of time, and with deliberate intent, resembles the voluntary murderer; whereas the man who does not nurse his rage, but gives way to it at once on the spur of the moment and without deliberate intent, has a likeness to the involuntary murderer; yet neither is he wholly involuntary, but bears a resemblance thereto. Thus murders done in passion are difficult to define,—whether one should treat them in law as voluntary or involuntary. The best and truest way is to class them both as resemblances, and to distinguish them by the mark of deliberate intent or lack of intent, and to impose more severe penalties on those who slay with intent and in anger, and milder penalties on those who do so without intent and on a sudden. For that which resembles a greater evil must be more heavily punished, that which resembles a lesser evil more lightly. So our laws also must do likewise.

Clin. They must, most certainly.

Ath. Returning, then, to our task, let us make this pronouncement:—If a man with his own hand slay a free man, and the deed be done in rage without deliberate intent, he shall suffer such other penalties as it is proper for the man to suffer who has slain without passion, and he shall be compelled to go into exile for two years, thereby chastising his own passion. And he that slays in passion and with deliberate intent shall be treated in other respects like the former, but shall be exiled for three years—instead of two, like the other,—receiving a

longer period of punishment because of the greatness of his passion. As regards the return home, in such cases it shall be on this wise. (It is a difficult matter to legislate for with exactness; for sometimes the more dangerous of the two murderers in the eye of the law might prove the more gentle and the gentler the more dangerous, and the latter might have committed the murder more savagely, the former more gently; though as a rule matters turn out in the way we have stated: so, regarding all these regulations the Law-wardens must act as supervisors). When the period of exile in each case has elapsed, they must send twelve of their number to the borders of the country to act as judges—they having made during the interval a still closer investigation into the actions of the exiles;

Ath. and these men shall serve also as judges in regard to the matter of giving them pardon and admitting them back; and the exiles must abide by the verdicts of these magistrates. And if either of them, after his return, again yields to rage and commits the same act, he shall be exiled, and never again return; and if he returns, he shall suffer the same fate as the returned Stranger.[359] He that slays a slave of his own shall purify himself; and if he kill another man's slave in rage, he shall pay to the owner twice the damage. And if anyone of all these types of slayers disobeys the law and, being unpurified, defiles the market and the games and other sacred assemblies, whoso pleases shall prosecute both that member of the dead man's kindred who permits this and the slayer himself, and shall compel the one of them to exact, and the other to pay, double the amount of the money-fines and of the other exactions[360]; and the sum so paid he shall keep for himself as the law directs. If a slave kills his own master in rage, the kindred of the dead man shall treat the slayer how they please,—save that they must not in any wise let him live,—and shall be held guiltless. And if a slave kill a free man (other than his master) in rage, his masters shall hand over the slave to the kindred of the dead man, and they shall be compelled to put the criminal to death, doing so in whatever manner they choose. If in a fit of rage a father or mother slays a son or daughter by means of blows or some kind of violence,—an occurrence which, though rare, does sometimes happen,—the slayer must make the same purifications as the other slayers, and be exiled for three years; and when the slayers have returned, the wife must be separated from the husband and the husband from the wife, and they must never again have a child, nor

[359] Cp. *Plat. Laws 855c.*

[360] Such as the costs of the purification-rites.

shall they ever share a home with those whom the slayer has robbed of child or brother, nor shall they take part in their worship; he that is disobedient and impious concerning this matter shall be liable to an action for impiety at the hands of whoso pleases. And if a husband in a fit of rage kills his wedded wife, or if a wife in like manner kills her husband, they must undergo the same purifications, and remain exiled for three years. And when one who has committed such a crime returns, he shall never take part in worship with his children, nor sit at table with them; and if either the parent or the child disobeys, he shall be liable to a charge of impiety at the hands of whoso pleases.

Ath. And if in rage a brother kill a brother or a sister, or a sister kill a brother or a sister, it shall be declared that they must undergo the same purifications and banishment as have been ordained for parents and children,—namely, that the homicide shall never share in the house or in the worship of those brothers or parents whom he has robbed of brothers or of children; and if anyone disobeys, he will rightly and justly be liable to the law laid down concerning such cases of impiety. If any man gets into such an uncontrollable rage with his parents as actually to dare to kill a parent in the madness of his rage, then, in case the dead person before dying voluntarily acquits the culprit of murder, he shall be held pure, after he has purified himself in the same manner as those who have committed an involuntary murder, and done as they in all other respects; but in case the dead person does not so acquit him, then he that has done such a deed is liable to a number of laws: for outrage he will be liable to most heavy penalties, and likewise for impiety and temple-robbing, since he has robbed his parent of life; so that if "to die a hundred deaths" were possible for any one man, that a parricide or a matricide, who did the deed in rage, should undergo a hundred deaths would be a fate most just. Since every law will forbid the man to kill father or mother, the very authors of his existence, even for the sake of saving his own life, and will ordain that he must suffer and endure everything rather than commit such an act,— in what other way than this can such a man be fittingly dealt with by law, and receive his due reward? Be it enacted, therefore, that for the man who in rage slays father or mother the penalty is death. If a brother kill a brother in fight during a civil war, or in any such way, acting in self-defence against the other, who first started the brawl, he shall be counted as one who has slain an enemy, and be held guiltless; so too, when a citizen has killed a citizen in like manner, or a Stranger a Stranger. And if a citizen kill a Stranger in self-defence, or a Stranger a citizen, he shall be accounted pure in the same way.

So likewise, if a slave kill a slave; but if a slave kill a free man in self-defence, he shall be liable to the same laws as he that kills a father. And what has been said about remission of the charge in the case of the murder of a father shall hold equally good in all such cases—if any man voluntarily acquit any culprit of this charge, the purifications for the culprit shall be made as though the murder were involuntary, and one year of exile shall be imposed by law. Let us take this as an adequate statement respecting murder-cases that involve violence, and are involuntary and done in passion. Next to these we must state the regulations regarding such acts when voluntary and involving iniquity of all kinds and premeditated,—acts caused by yielding to pleasure or lust or envy.

Clin. You are right.

Ath. First, let us once more state, as best we can, how many these causes are likely to be. The greatest is lust, which masters a soul that is made savage by desires; and it occurs especially in connection with that object for which the most frequent and intense craving afflicts the bulk of men,—the power which wealth possesses over them, owing to the badness of their nature and lack of culture, to breed in them countless lustings after its insatiable and endless acquisition. And of this lack of culture the cause is to be found in the ill-praising of wealth in the common talk of both Greeks and barbarians; for by exalting it as the first of "goods,"[361] when it should come but third, they ruin both posterity and themselves. The noblest and best course of all in all States is that the truth should be stated about wealth,—namely, that it exists for the sake of the body, and the body for the sake of the soul; so that, while the objects for which it really exists are "goods," yet wealth itself will come third, after goodness of body and of soul. So this law will serve as an instructor, to teach that the man who intends to be happy must seek not to be wealthy, but to be justly and temperately wealthy; and if this were so, no murders that needed purging by murders would occur in States. But, as things now stand, this love of riches is—as we said[362] when we began this subject—one cause, and a very great cause, which produces the most serious of trials for willful murder. A second cause is the temper of the ambitious soul, which breeds envies that are dangerous associates for the man that feels the envy, in the first place, and dangerous also for the best citizens in

[361] Cp. *Plat. Laws 697b*, *Plat. Laws 831c*; *Aristot. Pol. 1323a.25 ff*; *Aristot. Nic. Eth. 1098 b 13 ff.*

[362] *Plat. Laws 831c*; cp. *Aristot. Pol. 1271a.17.*

the State. Thirdly, fears bred of cowardice and iniquity have wrought many murders,—in cases where men do or have done things concerning which they desire that no one should share their secret; consequently, if there are any who might expose their secret, they remove them by death, whenever they can do so by no other means. Concerning all these matters, the preludes mentioned shall be pronounced, and, in addition to them, that story which is believed by many when they hear it from the lips of those who seriously relate such things at their mystic rites,—that vengeance for such acts is exacted in Hades,[363] and that those who return again to this earth[364] are bound to pay the natural penalty,—each culprit the same, that is, which he inflicted on his victim,—and that their life on earth must end in their meeting a like fate at the hands of another.

Ath. To him who obeys, and fully dreads such a penalty, there is no need to add to the prelude by reciting the law on the subject; but to the disobedient this is the law which shall be stated in the written code:—Whosoever of deliberate intent and unjustly slays with his own hand any of the tribesmen shall, in the first place, be debarred from the lawful assemblies, and shall not defile either temples or market or harbors or any other place of meeting, whether or not any person warns off the doer of such deeds—for he is warned off by the law, which is, and always will continue, warning him thus publicly, on behalf of the whole State; and the man who fails to prosecute him when he ought, or fails to warn him of the fact that he is thus debarred, if he be of kin to the dead man on either the male or female side, and not further removed than a cousin,[365] shall, first, receive upon himself the defilement and the wrath of the gods, since the curse of the law brings also upon him that of the divine voice, and, secondly, he shall be liable to the action of whosoever pleases to punish him on behalf of the dead man. And he that wishes to punish him shall duly perform all that concerns the observance of the purifications proper therefore, and whatsoever else the god prescribes as lawful in these cases, and he shall recite the pronouncement of warning; and thus he shall go and compel the culprit to submit to the execution of the penalty according to law. That it is necessary that these proceedings should be accompanied by certain invocations and sacrifices to those gods whose concern it is that murders should not occur in States, it is easy for the lawgiver to

[363]Cp. *Plat. Laws 722d*: whereas the law coerces, its "prelude" seeks to persuade.

[364]This implies the (Pythagorean) doctrine of re-incarnation: cp. *Plat. Laws 904c*, *Plat. Rep. 614e ff.*, *Plat. Tim. 90e ff.*

[365]Cp. *Plat. Laws 877c Plat. Laws 877d.*

demonstrate: who these gods are, and what method for bringing such prosecutions would be the most correct in point of ritual,—this the Law-wardens, in conjunction with the interpreters and seers and with the god, shall ordain; and so they shall bring these prosecutions. And the judges in these cases shall be the same persons who form—as we described[366]—the final court of trial for robbers of temples. He that is convicted shall be punished by death, and he shall not be buried in the land of the victim, because of the shamelessness as well as impiety of his act. If the culprit flees and refuses to come up for judgment, he shall be exiled with an unending exile; and if any such person sets foot in the country of the murdered man, he of the dead man's relatives or of the citizens that first meets with him shall slay him with impunity, or else bind him and hand him over to those magistrates who have judged the case, to be slain. The prosecutor, in a murder-charge, must at once demand bail from the defendant; and the latter shall provide three substantial securities—as approved by the court of the judges in such cases—, who guarantee to produce him at the trial; and if a man be unwilling or unable to provide these sureties, the court must take, bind and keep him, and produce him at the trial of the case.

Ath. If a man does not slay another with his own hand, but plots death for him, and after killing him by design and plotting resides in the State, being responsible for the murder and not innocent or pure of heart in respect of it,—in his case the prosecutions on this charge shall proceed in the same way, except in the matter of bail. And the person convicted shall be allowed to have burial at home; but all else shall be carried out in his case in the same way as in the case last described. And these same regulations shall govern all cases where Strangers are at law with Strangers, or citizens and Strangers at law with each other, or slaves with slaves, in respect both of actual murder and of plotting to murder, except as regards bail; and as to this, just as it has been said that the actual murderers must be secured by guarantors, so these persons too must provide security to the person who proclaims the murder. If a slave willfully slay a free man, either by his own hand or by plotting, and be convicted at the trial, the public executioner of the State shall drag him in the direction of the tomb of the dead man to a spot from which he can see the tomb, and there scourge him with as many stripes as the prosecutor shall prescribe; and if the murderer be still alive after the beating, he shall put him to death. And if a man kill a slave when he is doing no wrong, actuated by fear lest the slave should

[366] *Plat. Laws 855c.*

expose his own foul and evil deeds, or for any other such reason, just as he would have been liable to a charge of murder for slaying a citizen, so likewise he shall be liable in the same way for the death of such a slave. Should cases occur of a kind for which it is a formidable and most unwelcome task to legislate, and yet impossible not to legislate,—such as murders of kinsfolk, either by a man's own hand or by plotting, which are wholly willful and wicked,—crimes that occur for the most part in States with bad organization and nurture, but may occur at times even in a country where one would not expect them,—we must again recite the story we uttered[367] a moment ago, if haply anyone, on hearing us, may become more strongly disposed in consequence voluntarily to abstain from murders of the most impious kind. The myth or story (or whatever one should call it) has been clearly stated, as derived from ancient priests, to the effect that Justice, the avenger of kindred blood, acting as overseer, employs the law just mentioned, and has ordained that the doer of such a deed must of necessity suffer the same as he has done: if ever a man has slain his father, he must endure to suffer the same violent fate at his own children's hands in days to come; or if he has slain his mother, he must of necessity come to birth sharing in the female nature, and when thus born be removed from life by the hands of his offspring in afterdays;

Ath. for of the pollution of common blood there is no other purification, nor does the stain of pollution admit of being washed off before the soul which committed the act pays back murder for murder, like for like, and thus by propitiation lays to rest the wrath of all the kindred. Wherefore, in dread of such vengeances from Heaven a man should refrain himself; if, however, any should be overtaken by a disaster so lamentable that they have the audacity deliberately and of free will to reave soul from body for father, mother, brethren or children, in such cases the ordinance of the law of the mortal lawgiver stands thus:— The warnings of exclusion from customary places, and the sureties, are the same as those prescribed for former cases; and if any man be convicted of such a murder, and of having slain any of the persons named, the officers of the judges and magistrates shall kill him and cast him out naked at an appointed cross-roads outside the city; and all the magistrates, acting on behalf of the whole State, shall take each a stone and cast it on the head of the corpse, and thus make atonement for the whole State; and after this they shall carry the corpse to the borders of the land and cast it out unburied,

[367] *Plat. Laws 870d, Plat. Laws 870e.*

according to law. Now he that slays the person who is, as men say, nearest and dearest of all,—what penalty should he suffer? I mean the man that slays himself,—violently robbing himself of his Fate-given share of life, when this is not legally ordered by the State, and when he is not compelled to it by the occurrence of some intolerable and inevitable misfortune, nor by falling into some disgrace that is beyond remedy or endurance,—but merely inflicting upon himself this iniquitous penalty owing to sloth and unmanly cowardice. In this case, the rest of the matters—concerning the rules about rites of purification and of burial—come within the cognizance of the god, and regarding these the next of kin must seek information from the interpreters and the laws dealing with these matters, and act in accordance with their instructions: but for those thus destroyed the tombs shall be, first, in an isolated position with not even one adjacent, and, secondly, they shall be buried in those borders of the twelve districts which are barren and nameless, without note, and with neither headstone nor name to indicate the tombs. If a mule or any other animal murder anyone,—except when they do it when taking part in a public competition,—the relatives shall prosecute the slayer for murder, and so many of the land-stewards as are appointed by the relatives shall decide the case, and the convicted beast they shall kill and cast out beyond the borders of the country.

Ath. If a lifeless thing rob a man of life—except it be lightning or some bolt from heaven,—if it be anything else than these which kills someone, either through his falling against it or its falling upon him, then the relative shall set the nearest neighbor to pass judgment on it, thus making atonement on behalf of himself and all his kindred, and the thing convicted they shall cast beyond the borders, as was stated in respect of animals. If anyone be found evidently dead, and if his slayer be unknown and undiscoverable after careful search, then the warnings shall be the same as in the other cases, including the warning of death to the doer of the deed, and the prosecutor, when he has proved his claim, shall give public warning in the market-place to the slayer of So-and-so, convicted of murder, not to set foot in holy places nor anywhere in the country of the victim, since, if he appears and is known, he shall be put to death and be cast out from the country of the victim without burial. So let this stand as one section of our code of law dealing with murder. Thus far we have dealt with crimes of the kind described; in what follows we shall describe the cases and the circumstances under which the slayer will rightly be pronounced guiltless. If a man catch and slay a thief who is entering his house by

night to steal goods, he shall be guiltless; and if a man in self-defence slay a footpad, he shall be guiltless. The man who forcibly violates a free woman or boy shall be slain with impunity by the person thus violently outraged, or by his father or brother or sons. And should a man discover his wedded wife being violated, if he kills the violator he shall be guiltless before the law. And if a man slay anyone when warding off death from his father (when he is doing no wrong), or from his mother or children or brethren, or from the mother of his own children, he shall be wholly guiltless. Thus let it be laid down by law respecting the nurture and training of living souls,—which when gained make life livable, but when missed, unlivable,—and respecting the punishments which ought to be imposed in cases of violent death. The regulations regarding the nurture and training of the body have been stated[368]: but what comes next, namely, violent actions, both voluntary and involuntary, done by one against another,—these we must define as clearly as we can, stating their character and number and what punishment each duly deserves: such enactments, as it seems, will rightly follow on the foregoing. Next in order after cases of death even the least competent of those who essay legislation would place cases of wounds and maiming. Wounds, just like murders, must be classed under several heads,—the involuntary, those done in passion, those done in fear, and all those that are voluntary and deliberate.

Ath. Concerning all such cases we must make a prefatory pronouncement to this effect:—It is really necessary for men to make themselves laws and to live according to laws, or else to differ not at all from the most savage of beasts. The reason thereof is this,—that no man's nature is naturally able both to perceive what is of benefit to the civic life of men and, perceiving it, to be alike able and willing to practice what is best. For, in the first place, it is difficult to perceive that a true civic art necessarily cares for the public, not the private, interest,—for the public interest bind States together, whereas the private interest rends them asunder,—and to perceive also that it benefits both public and private interests alike when the public interest, rather than the private, is well enacted. And, secondly, even if a man fully grasps the truth of this as a principle of art, should he afterwards get control of the State and become an irresponsible autocrat, he would never prove able to abide by this view and to continue always fostering the public interest in the State as the object of first importance, to which the private interest is but secondary; rather, his mortal nature

[368] *Plat. Laws 813d.*

will always urge him on to grasping and self-interested action, irrationally avoiding pain and pursuing pleasure; both these objects it will prefer above justice and goodness, and by causing darkness within itself it will fill to the uttermost both itself and the whole State with all manner of evils. Yet if ever there should arise a man competent by nature and by a birthright of divine grace to assume such an office, he would have no need of rulers over him; for no law or ordinance is mightier than Knowledge,[369] nor is it right for Reason to be subject or in thrall to anything, but to be lord of all things, if it is really true to its name and free in its inner nature. But at present such a nature exists nowhere at all, except in small degree; wherefore we must choose what is second best, namely, ordinance and law, which see and discern the general principle, but are unable to see every instance in detail. This declaration has been made for the sake of what follows: now we shall ordain what the man who has wounded, or in some way injured, another must suffer or pay. And here, of course, it is open to anyone, in regard to any case, to interrupt us, and quite properly, with the question—

"What wounds has the man you speak of inflicted, and on whom, and how and when? For cases of wounding are countless in their variety, and they differ vastly from one another." So it is impossible for us either to commit all these cases to the law courts for trial, or to commit none of them.

Ath. Yet in regard to them all there is one point that we must of necessity commit for decision,—the question of fact, whether or not each of the alleged acts took place; and it is practically impossible for the lawgiver to refuse in all cases to commit to the courts the question regarding the proper penalty or fine to be inflicted on the culprit, and himself to pass laws respecting all such cases, great and small.

Clin. What, then, is to be our next statement?

Ath. This,—that some matters are to be committed to the courts, while others are not to be so committed, but enacted by the lawgiver.

Clin. What are the matters to be enacted, and what are to be handed over to the law courts for decision?

Ath. It will be best to make the following statement next,— that in a State where the courts are poor and dumb and decide their cases privily, secreting their own opinions, or (and this is a still more dangerous practice) when they make their decisions not silently but filled with tumult, like theaters, roaring out praise or blame of each speaker

[369] Cp. *Plat. Prot. 352b ff.*; *Aristot. Nic. Eth. 1145 b 24 ff.*

in turn,—then the whole State, as a rule, is faced with a difficult situation. To be compelled by some necessity to legislate for law courts of this kind is no happy task; but when one is so compelled, one must commit to them the right of fixing penalties only in a very few cases, dealing oneself with most cases by express legislation—if indeed one ever legislates at all for a State of that description. On the other hand, in a State where the courts have the best possible constitution, and the prospective judges are well-trained and tested most strictly, there it is right, and most fitting and proper, that we should commit to such judges for decision most of the questions regarding what penalties convicted criminals should suffer or pay. On the present occasion we may well be pardoned if we refrain from ordaining for them by law the points that are most important and most numerous, which even ill-educated judges could discern, and could assign to each offence the penalty merited by the wrong as suffered and committed; and seeing that the people for whom we are legislating are themselves likely, as we suppose, to become not the least capable of judges of such matters, we must commit most of them to them. None the less, that course which we frequently adopted[370] when laying down our former laws, both by word and action— when we stated an outline and typical cases of punishments, and gave the judges examples, so as to prevent their ever overstepping the bounds of justice,—that course was a perfectly right one then, and now also we ought to adopt it, when we return again at last to the task of legislation.

Ath. So let our written law concerning wounding run thus—If any man purposing of intent to kill a friendly person—save such as the law sends him against,—wounds him, but is unable to kill him, he that has thus purposed and dealt the wound does not deserve to be pitied; rather he is to be regarded exactly as a slayer, and must be compelled to submit to trial for murder; yet out of respect for his escape from sheer ill-fortune and for his Genius [371]—who in pity alike for him and for the wounded man saved the wound of the one from proving fatal and the fortune and crime of the other from proving accursed,—in gratitude to this Genius, and in compliance therewith, the wounder shall be relieved of the death-penalty, but shall be deported for life to a neighboring State, enjoying the fruits of all his own possessions. If he has done damage to the wounded man, he shall pay for it in full to

[370] Cp. *Plat. Laws 770b*, *Plat. Laws 846b*, *Plat. Laws 846c.*

[371] For "daemon" in this sense of tutelary Genius or Guardian-angel, cp. *Plat. Laws 732c*, *Plat. Rep. 619d ff*, *Plat. Rep. 619e.*

him that is damaged; and the damage shall be assessed by the court which decides the case, which court shall consist of those who would have tried the culprit for murder if the man had died of the wound he received. If in like manner, deliberately, a son wound his parents or a slave his master, death shall be the penalty; and if a brother wound in like manner a brother or sister, or a sister wound a brother or sister, and be convicted of wounding deliberately, death shall be the penalty. A wife that has wounded her husband, or a husband his wife, with intent to kill, shall be exiled for life: if they have sons or daughters who are still children, the guardians shall administer their property, and shall take charge of the children as orphans; but if they be already grown men, the offspring shall be compelled to support their exiled parent, and they shall possess his property. If any person overtaken by such a disaster be childless, the kinsfolk on both sides, both male and female, as far as cousins' children, shall meet together and appoint an heir for the house in question—the 5040th in the State,—taking counsel with the Law-wardens and priests; and they shall bear in mind this principle, that no house of the 5040 belongs as much, either by private or public right, to the occupier or to the whole of his kindred as it belongs to the State; and the State must needs keep its own houses as holy and happy as possible.

Ath. Therefore, whenever any house is at once unhappy and unholy, in that the owner thereof leaves no children, but—being either unmarried or, though married, childless—dies, after having been convicted of willful murder or of some other offence against gods or citizens for which death is the penalty expressly laid down in the law; or else if any man who is without male issue be exiled for life;—then they shall be in duty bound, in the first place, to make purifications and expiations for this house, and, in the next place, the relatives, as we said just now, must meet together and in consultation with the Law-wardens consider what family there is in the State which is pre-eminent for goodness, and prosperous withal, and containing several children. Then from the family selected they shall adopt one child on behalf of the dead man's father and ancestors to be a son of theirs, and they shall name him after one of them, for the sake of the omen—with a prayer that in this wise he may prove to them a begetter of offspring, a hearth-master and a minister in holy and sacred things, and be blest with happier fortune than his (official) father; him they shall thus establish legally as lot-holder, and the offender they shall suffer to be nameless and childless and portionless, whenever such calamities overtake him. It is not the fact, as it would seem, that in the case of

all objects boundary is contiguous with boundary; but where there is a neutral strip, which lies between the two boundaries, impinging on each, it will be midway between both. And that is precisely the description we gave[372] of the passionate action as one which lies midway between involuntary and voluntary actions. So let the law stand thus respecting wounding committed in anger:—If a person be convicted, in the first place he shall pay double the damage, in case the wound prove to be curable, but four times the damage in case of incurable wounds. And if the wound be curable, but cause great shame and disgrace to the wounded party, the culprit shall pay three times the damage. And if ever a person, in wounding anyone, do damage to the State as well as to the victim, by rendering him incapable of helping his country against its enemies, such a person, in addition to the rest of the damages, shall pay also for the damage done to the State: in addition to his own military service, he shall do service also as a substitute for the incapacitated man, and carry out his military duties in his place, or, if he fails to do so, he shall by law be liable to prosecution for shirking military service, at the hands of anyone who pleases. The due proportion of the damage payable—whether two, three, or four times the actual amount—shall be fixed by the judges who have voted on the case. If a kinsman wound a kinsman in the same way as the person just mentioned, the members of his tribe and kin, both males and females, as far as cousins' children on both the male and female side, shall meet together and, after coming to a decision, shall hand over the case to the natural parents for assessment of the damage; and if the assessment be disputed, the kindred on the male side shall be authorized to make a binding assessment; and if they prove unable to do so, they shall refer the matter finally to the Law-wardens.

Ath. When woundings of this kind are inflicted by children on parents, the judges shall be, of necessity, men over sixty years of age who have genuine, and not merely adopted, children of their own; and if a person be convicted, they shall assess the penalty—whether such a person ought to be put to death, or ought to suffer some other punishment still more severe, or possibly a little less severe: but none of the relatives of the culprit shall act as a judge, not even if he be of the full age stated in the law. If a slave wound a free man in rage, his owner shall hand over the slave to the wounded man to be dealt with just as he pleases; and if he do not hand over the slave, he shall himself make good the damage to the full. And if any man alleges that the deed was

[372] *Plat. Laws 867a.*

a trick concocted by the slave in collusion with the wounded party, he shall dispute the case: if he fail to win it, he shall pay three times the damage, but if he win, he shall hold liable for kidnapping the man who contrived the trick in collusion with the slave. Whoever wounds another involuntarily shall pay a single equivalent for the damage (since no lawgiver is able to control fortune), and the judges shall be those designated to act in cases of the wounding of parents by children; and they shall assess the due proportion of damage payable. All the cases we have now dealt with are of suffering due to violence, and the whole class of cases of "outrage" involve violence. Regarding such cases, the view that should be held by everyone,—man, woman and child,—is this, that the older is greatly more revered than the younger, both among the gods and among those men who propose to keep safe and happy. An outrage perpetrated by a younger against an older person is a shameful thing to see happening in a State, and a thing hateful to God: when a young man is beaten by an old man, it is meet that, in every case, he should quietly endure his anger, and thus store up honor for the time of his own old age. Therefore let the law stand thus:—Everyone shall reverence his elder both by deed and word; whosoever, man or woman, exceeds himself in age by twenty years he shall regard as a father or a mother, and he shall keep his hands off that person, and he shall ever refrain himself, for the sake of the gods of birth, from all the generation of those who are potentially his own bearers and begetters. So likewise he shall keep his hands off a Stranger, be he long resident or newly arrived; neither as aggressor nor in self-defence shall he venture at all to chastise such an one with blows. If he deems that a Stranger has shown outrageous audacity in beating him and needs correction, he shall seize the man and take him before the bench of the city-stewards (but refrain from beating him), so that he may flee the thought of ever daring to strike a native. And the city-stewards shall take over the Stranger and examine him—with due respect for the God of Strangers;[373] and if he really appears to have beaten the native unjustly, they shall give the Stranger as many strokes of the scourge as he himself inflicted, and make him cease from his foreign forwardness; but if he has not acted unjustly, they shall threaten and reprove the man who arrested him, and dismiss them both.

Ath. If a man of a certain age beat a man of his own age, or one above his own age who is childless,— whether it be a case of an old man beating an old man, or of a young man beating a young man,—the man

[373]For the respect due to Strangers as a religious duty, cp. *Plat. Laws 729e.*

attacked shall defend himself with bare hands, as nature dictates, and without a weapon. But if a man over forty ventures to fight, whether as aggressor or in self-defence, he shall be called a knave and a boor, and if he finds himself incurring a degrading sentence, he will be getting his deserts. Any man who lends a ready ear to such exhortations will prove easy to manage; but he that is intractable and pays no regard to the prelude will hearken readily to a law to this effect:—If anyone beats a person who is twenty or more years older than himself, in the first place, whoever comes upon them, if he be neither of equal age nor younger, shall try to separate them, or else be held to be a coward in the eyes of the law; and if he be of a like age with the man assaulted or still younger, he shall defend him who is wronged as he would a brother or a father or a still older progenitor. Further, he that dares to strike the older man in the way described shall be liable also to an action for outrage, and if he be convicted, he shall be imprisoned for not less than a year; and if the judges assess the penalty at a longer period, the period so assessed shall be binding on him. And if a Stranger or a resident alien beat a man older than himself by twenty or more years, the same law regarding help from bystanders shall be equally binding; and he that is cast in a suit of this kind, if he be a non-resident Stranger, shall be imprisoned for two years and fulfil this sentence; and he that is a resident alien and disobeys the laws shall be imprisoned for three years, unless the court assess his penalty at a longer period. And the man who is a bystander in any of these cases of assault, and who fails to give help as the law prescribes, shall be penalized by a fine of a mina, if he be a man of the highest property-class; of fifty drachmae, if he be of the second class; of thirty drachmae, if of the third; and of twenty drachmae, if of the fourth class. And the court for such cases shall consist of the generals, taxiarchs, phylarchs, and hipparchs. Laws, it would seem, are made partly for the sake of good men, to afford them instruction as to what manner of intercourse will best secure for them friendly association one with another, and partly also for the sake of those who have shunned education, and who, being of a stubborn nature, have had no softening treatment[374] to prevent their taking to all manner of wickedness. It is because of these men that the laws which follow have to be stated,—laws which the lawgiver must enact of necessity, on their account, although wishing that the need for them may never arise.

Ath. Whosoever shall dare to lay hands on father or mother, or

[374] Cp. *Plat. Laws 853d.*

their progenitors, and to use outrageous violence, fearing neither the wrath of the gods above nor that of the Avengers (as they are called) of the underworld, but scorning the ancient and worldwide traditions (thinking he knows what he knows not at all), and shall thus transgress the law,—for such a man there is needed some most severe deterrent. Death is not a most severe penalty; and the punishments we are told of in Hades for such offences, although more severe than death and described most truly, yet fail to prove any deterrent to souls such as these,—else we should never find cases of matricide and of impiously audacious assaults upon other progenitors. Consequently, the punishments inflicted upon these men here in their lifetime for crimes of this kind must, so far as possible, fall in no way short of the punishments in Hades. So the next pronouncement shall run thus:—Whosoever shall dare to beat his father or mother, or their fathers or mothers, if he be not afflicted with madness,—in the first place, the bystander shall give help, as in the former cases, and the resident Stranger who helps shall be invited to a first-row seat at the public games, but he who fails to help shall be banished from the country for life; and the non-resident Stranger shall receive praise if he helps, and blame if he does not help; and the slave who helps shall be made free, but if he fails to help he shall be beaten with 100 stripes of a scourge by the market-stewards, if the assault occur in the market, and if it occur in the city, but outside the market-place, the punishment shall be inflicted by the city-steward in residence, and if it occur in any country district, by the officers of the country-stewards. And the bystander who is a native—whether man, woman, or boy—shall in every case drive off the attacker, crying out against his impiety; and he that fails to drive him off shall be liable by law to the curse of Zeus, guardian-god of kinship and parentage. And if a man be convicted on a charge of outrageous assault upon parents, in the first place he shall be banished for life from the city to other parts of the country, and he shall keep away from all sacred places and if he fails to keep away, the country-stewards shall punish him with stripes, and in any other way they choose, and if he returns again he shall be punished with death. And if any free man voluntarily eat or drink or hold any similar intercourse with such an one, or even give him merely a greeting when he meets him, he shall not enter any holy place or the market or any part of the city until he be purified, but he shall regard himself as having incurred a share of contagious guilt;

Ath. and should he disobey the law and illegally defile sacred things and the State, any magistrate who notices his case and fails to bring him up for trial shall have to face this omission as one of the heaviest

charges against him at his audit. If it be a slave that strikes the free man—stranger or citizen—the bystander shall help, failing which he shall pay the penalty as fixed according to his assessment;[375] and the bystanders together with the person assaulted shall bind the slave, and hand him over to the injured person, and he shall take charge of him and bind him in fetters, and give him as many stripes with the scourge as he pleases, provided that he does not spoil his value to the damage of his master, to whose ownership he shall hand him over according to law. The law shall stand thus:—Whosoever, being a slave, beats a free man without order of the magistrates,—him his owner shall take over in bonds from the person assaulted, and he shall not loose him until the slave have convinced the person assaulted that he deserves to live loosed from bonds. The same laws shall hold good for all such cases when both parties are women, or when the plaintiff is a woman and the defendant a man, or the plaintiff a man and the defendant a woman.

[375] Cp. *Plat. Laws 880d.*

Book 10

Ath. Next after cases of outrage we shall state for cases of violence one universally inclusive principle of law, to this effect:—No one shall carry or drive off anything which belongs to others, nor shall he use any of his neighbor's goods unless he has gained the consent of the owner; for from such action proceed all the evils above mentioned—past, present and to come. Of the rest, the most grave are the licentious and outrageous acts of the young; and outrages offend most gravely when they are directed against sacred things, and they are especially grave when they are directed against objects which are public as well as holy, or partially public, as being shared in by the members of a tribe or other similar community.

Ath. Second, and second in point of gravity, come offences against sacred objects and tombs that are private; and third, offences against parents, when a person commits the outrage otherwise than in the cases already described.[376] A fourth[377] kind of outrage is when a man, in defiance of the magistrates, drives or carries off or uses any of their things without their own consent; and a fifth kind will be an outrage against the civic right of an individual private citizen which calls for judicial vindication. To all these severally one all-embracing law must be assigned. As to temple-robbing, whether done by open violence or secretly, it has been already stated summarily what the punishment should be; and in respect of all the outrages, whether of word or deed, which a man commits, either by tongue or hand, against the gods, we must state the punishment he should suffer, after we have first delivered the admonition. It shall be as follows:—No one who believes,

[376] Cp. *Plat. Laws 868c ff.*, *Plat. Laws 877b ff.*, *Plat. Laws 930e ff.*

[377] Cp. *Plat. Laws 941d*, *Plat. Laws 941e.*

as the laws prescribe, in the existence of the gods has ever yet done an impious deed voluntarily, or uttered a lawless word: he that acts so is in one or other of these three conditions of mind—either he does not believe in what I have said; or, secondly, he believes that the gods exist, but have no care for men; or, thirdly, he believes that they are easy to win over when bribed by offerings and prayers.[378]

Clin. What, then, shall we do or say to such people?

Ath. Let us listen first, my good sir, to what they, as I imagine, say mockingly, in their contempt for us.

Clin. What is it?

Ath. In derision they would probably say this:

"O Strangers of Athens, Lacedaemon and Crete, what you say is true. Some of us do not believe in gods at all; others of us believe in gods of the kinds you mention. So we claim now, as you claimed in the matter of laws, that before threatening us harshly, you should first try to convince and teach us, by producing adequate proofs, that gods exist, and that they are too good to be wheedled by gifts and turned aside from justice. For as it is, this and such as this is the account of them we hear from those who are reputed the best of poets, orators, seers, priests, and thousands upon thousands of others; and consequently most of us, instead of seeking to avoid wrong-doing, do the wrong and then try to make it good. Now from lawgivers like you, who assert that you are gentle rather than severe, we claim that you should deal with us first by way of persuasion; and if what you say about the existence of the gods is superior to the arguments of others in point of truth, even though it be but little superior in eloquence, then probably you would succeed in convincing us. Try then, if you think this reasonable, to meet our challenge."

Clin. Surely it seems easy, Stranger, to assert with truth that gods exist?

Ath. How so?

Clin. First, there is the evidence of the earth, the sun, the stars, and all the universe, and the beautiful ordering of the seasons, marked out by years and months; and then there is the further fact that all Greeks and barbarians believe in the existence of gods.

Ath. My dear sir, these bad men cause me alarm—for I will never call it "awe"—lest haply they scoff at us. For the cause of the corruption in their case is one you are not aware of; since you imagine that it is solely by their incontinence in regard to pleasures and desires that

[378] Cf. *Plat. Rep. 364b ff.*

their souls are impelled to that impious life of theirs.

Clin. What other cause can there be, Stranger, besides this?

Ath. One which you, who live elsewhere, could hardly have any knowledge of or notice at all.

Clin. What is this cause you are now speaking of?

Ath. A very grievous unwisdom which is reputed to be the height of wisdom.

Clin. What do you mean?

Ath. We at Athens have accounts[379] preserved in writing (though, I am told, such do not exist in your country, owing to the excellence of your polity), some of them being in a kind of meter, others without meter, telling about the gods: the oldest of these accounts relate how the first substance of Heaven and all else came into being, and shortly after the beginning they go on to give a detailed theogony, and to tell how, after they were born, the gods associated with one another. These accounts, whether good or bad for the hearers in other respects, it is hard for us to censure because of their antiquity; but as regards the tendance and respect due to parents, I certainly would never praise them or say that they are either helpful or wholly true accounts. Such ancient accounts, however, we may pass over and dismiss: let them be told in the way best pleasing to the gods. It is rather the novel views of our modern scientists[380] that we must hold responsible as the cause of mischief. For the result of the arguments of such people is this,—that when you and I try to prove the existence of the gods by pointing to these very objects—sun, moon, stars, and earth—as instances of deity and divinity, people who have been converted by these scientists will assert that these things are simply earth and stone, incapable of paying any heed to human affairs, and that these beliefs of ours are speciously tricked out with arguments to make them plausible.

Clin. The assertion you mention, Stranger, is indeed a dangerous one, even if it stood alone; but now that such assertions are legion, the danger is still greater.

Ath. What then? What shall we say? What must we do? Are we to make our defence as it were before a court of impious men, where someone had accused us of doing something dreadful by assuming in our legislation the existence of gods? Or shall we rather dismiss the whole subject and revert again to our laws, lest our prelude prove actually more lengthy than the laws? For indeed our discourse would

[379] By Hesiod, Pherecydes, etc.

[380] Materialists such as Democritus.

be extended in no small degree if we were to furnish those men who desire to be impious with an adequate demonstration by means of argument concerning those subjects which ought, as they claimed, to be discussed, and so to convert them to fear of the gods, and then finally, when we had caused them to shrink from irreligion, to proceed to enact the appropriate laws.

Clin. Still, Stranger, we have frequently (considering the shortness of the time) made[381] the very statement,—that we have no need on the present occasion to prefer brevity of speech to lengthiness (for, as the saying goes, "no one is chasing on our heels"); and to show ourselves choosing the briefest in preference to the best would be mean and ridiculous. And it is of the highest importance that our arguments, showing that the gods exist and that they are good and honor justice more than do men, should by all means possess some degree of persuasiveness; for such a prelude is the best we could have in defence, as one may say, of all our laws. So without any repugnance or undue haste, and with all the capacity we have for endowing such arguments with persuasiveness, let us expound them as fully as we can, and without any reservation.

Ath. This speech of yours seems to me to call for a prefatory prayer, seeing that you are so eager and ready; nor is it possible any longer to defer our statement. Come, then; how is one to argue on behalf of the existence of the gods without passion? For we needs must be vexed and indignant with the men who have been, and now are, responsible for laying on us this burden of argument, through their disbelief in those stories which they used to hear, while infants and sucklings, from the lips of their nurses and mothers—stories chanted to them, as it were, in lullabies, whether in jest or in earnest; and the same stories they heard repeated also in prayers at sacrifices, and they saw spectacles which illustrated them, of the kind which the young delight to see and hear when performed at sacrifices; and their own parents they saw showing the utmost zeal on behalf of themselves and their children in addressing the gods in prayers and supplications, as though they most certainly existed; and at the rising and setting of the sun and moon they heard and saw the prostrations and devotions of all the Greeks and barbarians, under all conditions of adversity and prosperity, directed to these luminaries, not as though they were not gods, but as though

[381] Cp. *Plat. Laws 701c*, *Plat. Laws 701d*; *Plat. Laws 858a ff.*: all this discussion is supposed to have taken place on one and the same day,—hence the ref. to "shortness of time."

they most certainly were gods beyond the shadow of a doubt—

Ath. all this evidence is contemned by these people, and that for no sufficient reason, as everyone endowed with a grain of sense would affirm; and so they are now forcing us to enter on our present argument. How, I ask, can one possibly use mild terms in admonishing such men, and at the same time teach them, to begin with, that the gods do exist? Yet one must bravely attempt the task; for it would never do for both parties to be enraged at once,—the one owing to greed for pleasure, the other with indignation at men like them. So let our prefatory address to the men thus corrupted in mind be dispassionate in tone, and, quenching our passion, let us speak mildly, as though we were conversing with one particular person of the kind described, in the following terms:

"My child, you are still young, and time as it advances will cause you to reverse many of the opinions you now hold: so wait till then before pronouncing judgment on matters of most grave importance; and of these the gravest of all—though at present you regard it as naught—is the question of holding a right view about the gods and so living well, or the opposite. Now in the first place, I should be saying what is irrefutably true if I pointed out to you this signal fact, that neither you by yourself nor yet your friends are the first and foremost to adopt this opinion about the gods; rather is it true that people who suffer from this disease are always springing up, in greater or less numbers. But I, who have met with many of these people, would declare this to you, that not a single man who from his youth has adopted this opinion, that the gods have no existence, has ever yet continued till old age constant in the same view; but the other two false notions about the gods do remain—not, indeed, with many, but still with some,—the notion, namely, that the gods exist, but pay no heed to human affairs, and the other notion that they do pay heed, but are easily won over by prayers and offerings. For a doctrine about them that is to prove the truest you can possibly form you will, if you take my advice, wait, considering the while whether the truth stands thus or otherwise, and making enquiries not only from all other men, but especially from the lawgiver; and in the meantime do not dare to be guilty of any impiety in respect of the gods. For it must be the endeavor of him who is legislating for you both now and hereafter to instruct you in the truth of these matters."

Clin. Our statement thus far, Stranger, is most excellent.

Ath. Very true, O Megillus and Clinias; but we have plunged unawares into a wondrous argument.

Clin. What is it you mean?

Ath. That which most people account to be the most scientific of all arguments.

Clin. Explain more clearly.

Ath. It is stated by some that all things which are coming into existence, or have or will come into existence, do so partly by nature, partly by art, and partly owing to chance.

Clin. Is it not a right statement?

Ath. It is likely, to be sure, that what men of science say is true. Anyhow, let us follow them up, and consider what it is that the people in their camp really intend.

Clin. By all means let us do so.

Ath. It is evident, they assert, that the greatest and most beautiful things are the work of nature and of chance, and the lesser things that of art,—for art receives from nature the great and primary products as existing, and itself molds and shapes all the smaller ones, which we commonly call "artificial."

Clin. How do you mean?

Ath. I will explain it more clearly. Fire and water and earth and air, they say, all exist by nature and chance, and none of them by art; and by means of these, which are wholly inanimate, the bodies which come next—those, namely, of the earth, sun, moon and stars—have been brought into existence. It is by chance all these elements move, by the interplay of their respective forces, and according as they meet together and combine fittingly,—hot with cold, dry with moist, soft with hard, and all such necessary mixtures as result from the chance combination of these opposites,—in this way and by those means they have brought into being the whole Heaven and all that is in the Heaven, and all animals, too, and plants—after that all the seasons had arisen from these elements; and all this, as they assert, not owing to reason, nor to any god or art, but owing, as we have said, to nature and chance.[382] As a later product of these, art comes later; and it, being mortal itself and of mortal birth, begets later playthings which share but little in truth, being images of a sort akin to the arts themselves—images such as painting begets, and music, and the arts which accompany these. Those arts which really produce something serious are such as share their effect with nature,—like medicine, agriculture, and gymnastic.

[382] This is a summary of the doctrines of the Atomists (Leucippus and Democritus) who denied the creative agency of Reason. Similar views were taught, later, by Epicurus and Lucretius.

Politics too, as they say, shares to a small extent in nature, but mostly in art; and in like manner all legislation which is based on untrue assumptions is due, not to nature, but to art.

Clin. What do you mean?

Ath. The first statement, my dear sir, which these people make about the gods is that they exist by art and not by nature,—by certain legal conventions[383] which differ from place to place, according as each tribe agreed when forming their laws. They assert, moreover, that there is one class of things beautiful by nature, and another class beautiful by convention[384]; while as to things just, they do not exist at all by nature, but men are constantly in dispute about them and continually altering them, and whatever alteration they make at any time is at that time authoritative, though it owes its existence to art and the laws, and not in any way to nature. All these, my friends, are views which young people imbibe from men of science, both prose-writers and poets, who maintain that the height of justice is to succeed by force; whence it comes that the young people are afflicted with a plague of impiety, as though the gods were not such as the law commands us to conceive them; and, because of this, factions also arise, when these teachers attract them towards the life that is right "according to nature," which consists in being master over the rest in reality, instead of being a slave to others according to legal convention.[385]

Clin. What a horrible statement you have described, Stranger! And what widespread corruption of the young in private families as well as publicly in the States!

Ath. That is indeed true, Clinias. What, then, do you think the lawgiver ought to do, seeing that these people have been armed in this way for a long time past? Should he merely stand up in the city and threaten all the people that unless they affirm that the gods exist and conceive them in their minds to be such as the law maintains[386] and so likewise with regard to the beautiful and the just and all the greatest things, as many as relate to virtue and vice, that they must regard and perform these in the way prescribed by the lawgiver in his

[383] A view ascribed to Critias.

[384] Cp. *Aristot. Nic. Eth. 1094 b 14 ff.*

[385] This antithesis between Nature (*φύσις*) and Convention (*νόμος*) was a familiar one in ethical and political discussion from the time of the Sophists. The supremacy of "Nature," as an ethical principle, was maintained (it is said) by Hippias and Prodicus; that of "Convention," by Protagoras and Gorgias: Plato goes behind both to the higher principle of Reason (*νοῦς*), cp. Introduction. p. xiv.

[386] Cp. *Plat. Laws 634d*, *Plat. Laws 634e*; *Plat. Laws 859b*, al.

writings; and that whosoever fails to show himself obedient to the laws must either be put to death or else be punished, in one case by stripes and imprisonment, in another by degradation, in others by poverty and exile? But as to persuasion, should the lawgiver, while enacting the people's laws, refuse to blend any persuasion with his statements, and thus tame them so far as possible?

Clin. Certainly not, Stranger; on the contrary, if persuasion can be applied in such matters in even the smallest degree, no lawgiver who is of the slightest account must ever grow weary, but must (as they say)

"leave no stone unturned"[387] to reinforce the ancient saying that gods exist, and all else that you recounted just now; and law itself he must also defend and art, as things which exist by nature or by a cause not inferior to nature, since according to right reason they are the offspring of mind, even as you are now, as I think, asserting; and I agree with you.

Ath. What now, my most ardent Clinias? Are not statements thus made to the masses difficult for us to keep up with in argument, and do they not also involve us in arguments portentously long?

Clin. Well now, Stranger, if we had patience with ourselves when we discoursed at such length on the subjects of drinking and music,[388] shall we not exercise patience in dealing with the gods and similar subjects? Moreover, such a discourse is of the greatest help for intelligent legislation, since legal ordinances when put in writing remain wholly unchanged, as though ready to submit to examination for all time, so that one need have no fear even if they are hard to listen to at first, seeing that even the veriest dullard can come back frequently to examine them, nor yet if they are lengthy, provided that they are beneficial. Consequently, in my opinion, it could not possibly be either reasonable or pious for any man to refrain from lending his aid to such arguments to the best of his power.[389]

Meg. What Clinias says, Stranger, is, I think, most excellent.

Ath. Most certainly it is, Megillus; and we must do as he says. For if the assertions mentioned had not been sown broadcast well-nigh over the whole world of men, there would have been no need of counter-arguments to defend the existence of the gods; but as it is, they are necessary. For when the greatest laws are being destroyed by wicked men, who is more bound to come to their rescue than the lawgiver?

[387] Literally, utter every voice (leave nothing unsaid).

[388] In Books I and II.

[389] Cp. *Plat. Laws 811d.*

Meg. No one.

Ath. Come now, Clinias, do you also answer me again, for you too must take a hand in the argument: it appears that the person who makes these statements holds fire, water, earth and air to be the first of all things, and that it is precisely to these things that he gives the name of "nature," while soul he asserts to be a later product therefrom. Probably, indeed, he does not merely "appear" to do this, but actually makes it clear to us in his account.

Clin. Certainly.

Ath. Can it be then, in Heaven's name, that now we have discovered, as it were, a very fountain-head of irrational opinion in all the men who have ever yet handled physical investigations? Consider, and examine each statement. For it is a matter of no small importance if it can be shown that those who handle impious arguments, and lead others after them, employ their arguments not only ill, but erroneously. And this seems to me to be the state of affairs.

Clin. Well said; but try to explain wherein the error lies.

Ath. We shall probably have to handle rather an unusual argument.

Clin. We must not shrink, Stranger. You think, I perceive, that we shall be traversing alien ground, outside legislation, if we handle such arguments. But if there is no other way in which it is possible for us to speak in concert with the truth, as now legally declared, except this way, then in this way, my good sir, we must speak.

Ath. It appears, then, that I may at once proceed with an argument that is somewhat unusual; it is this. That which is the first cause of becoming and perishing in all things, this is declared by the arguments which have produced the soul of the impious to be not first, but generated later, and that which is the later to be the earlier; and because of this they have fallen into error regarding the real nature of divine existence.

Clin. I do not yet understand.

Ath. As regards the soul, my comrade, nearly all men appear to be ignorant of its real nature and its potency, and ignorant not only of other facts about it, but of its origin especially,—how that it is one of the first existences, and prior to all bodies, and that it more than anything else is what governs all the changes and modifications of bodies. And if this is really the state of the case, must not things which are akin to soul be necessarily prior in origin to things which belong to body, seeing that soul is older than body?[390]

[390] Cp. *Plat. Tim. 34d ff.*

Clin. Necessarily.

Ath. Then opinion and reflection and thought and art and law will be prior to things hard and soft and heavy and light; and further, the works and actions that are great and primary will be those of art, while those that are natural, and nature itself which they wrongly call by this name—will be secondary, and will derive their origin from art and reason.

Clin. How are they wrong?

Ath. By "nature" they intend to indicate production of things primary; but if soul shall be shown to have been produced first (not fire or air), but soul first and foremost,—it would most truly be described as a superlatively "natural" existence. Such is the state of the case, provided that one can prove that soul is older than body, but not otherwise.

Clin. Most true.

Ath. Shall we then, in the next place, address ourselves to the task of proving this?

Clin. Certainly.

Ath. Let us guard against a wholly deceitful argument, lest haply it seduce us who are old with its specious youthfulness, and then elude us and make us a laughing-stock, and so we get the reputation of missing even little things while aiming at big things. Consider then. Suppose that we three had to cross a river that was in violent flood, and that I, being the youngest of the party and having often had experience of currents, were to suggest that the proper course is for me to make an attempt first by myself—leaving you two in safety—to see whether it is possible for you older men also to cross, or how the matter stands, and then, if the river proved to be clearly fordable, I were to call you, and, by my experience, help you across, while if it proved impassable for such as you, in that case the risk should be wholly mine,—such a suggestion on my part would have sounded reasonable. So too in the present instance; the argument now in front of us is too violent, and probably impassable, for such strength as you possess;

Ath. so, lest it make you faint and dizzy as it rushes past and poses you with questions you are unused to answering,[391] and thus causes an unpleasing lack of shapeliness and seemliness, I think that I ought now to act in the way described—question myself first, while you remain listening in safety, and then return answer to myself, and in this way proceed through the whole argument until it has discussed in full the

[391] Cp. *Plat. Laws 886b.*

subject of soul, and demonstrated that soul is prior to body.[392]

Clin. Your suggestion, Stranger, we think excellent; so do as you suggest.

Ath. Come then,—if ever we ought to invoke God's aid, now is the time it ought to be done. Let the gods be invoked with all zeal to aid in the demonstration of their own existence. And let us hold fast, so to speak, to a safe cable as we embark on the present discussion. And it is safest, as it seems to me, to adopt the following method of reply when questions such as this are put on these subjects; for instance, when a man asks me—

"Do all things stand still, Stranger, and nothing move? Or is the exact opposite the truth? Or do some things move and some remain at rest?" My answer will be,

"Some things move, others remain at rest."[393]

"Then do not the standing things stand, and the moving things move, in a certain place?"

"Of course."

"And some will do this in one location, and others in several."

"You mean," we will say,

"that those which have the quality of being at rest at the center move in one location, as when the circumference of circles that are said to stand still revolves?"

"Yes. And we perceive that motion of this kind, which simultaneously turns in this revolution both the largest circle and the smallest, distributes itself to small and great proportionally, altering in proportion its own quantity; whereby it functions as the source of all such marvels as result from its supplying great and small circles simultaneously with harmonizing rates of slow and fast speeds—a condition of things that one might suppose to be impossible."

"Quite true."

"And by things moving in several places you seem to me to mean all things that move by locomotion, continually passing from one spot to another, and sometimes resting on one axis[394] and sometimes, by revolving, on several axes. And whenever one such object meets another, if the other is at rest, the moving object is split up; but if they collide with others moving to meet them from an opposite direction, they form a combination which is midway between the two."

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[392]Cp. *Plat. Laws 896b*, *Plat. Laws 896c.*

[393]Cp.*Plat. Soph. 255 ff.;* Timaeus *57 ff.*

[394]i.e. with a forward gliding motion, as opposed to rolling forward (like a car wheel).

"Yes, I affirm that these things are so, just as you describe."

Ath.

"Further, things increase when combined and decrease when separated in all cases where the regular constitution[395] of each persists; but if this does not remain, then both these conditions cause them to perish. And what is the condition which must occur in everything to bring about generation? Obviously whenever a starting-principle receiving increase comes to the second change, and from this to the next, and on coming to the third admits of perception by percipients.[396] Everything comes into being by this process of change and alteration; and a thing is really existent whenever it remains fixed, but when it changes into another constitution it is utterly destroyed." Have we now, my friends, mentioned all the forms of motion, capable of numerical classification,[397] save only two?

Clin. What two?

Ath. Those, my good sir, for the sake of which, one may say, the whole of our present enquiry was undertaken.

Clin. Explain more clearly.

Ath. It was undertaken, was it not, for the sake of soul?

Clin. Certainly.

Ath. As one of the two let us count that motion which is always able to move other things, but unable to move itself; and that motion which always is able to move both itself and other things,—by way of combination and separation, of increase and decrease, of generation and corruption,—let us count as another separate unit in the total number of motions.

Clin. Be it so.

Ath. Thus we shall reckon as ninth on the list that motion which always moves another object and is moved by another; while that motion which moves both itself and another, and which is harmoniously adapted to all forms of action and passion, and is termed the real change and motion of all that really exists,—it, I presume, we shall

[395] i.e. as solid, liquid, or gaseous substance.

[396] This account of the derivation of the sense-world from the starting-principle (*ἀρχή*) is obscure. It is generally interpreted as a "geometrical allegory," the stages of development being from point to line, from line to surface, from surface to solid,—this last only being perceptible by the senses (cp. *Aristot. Soul 404 b 18 ff.*).

[397] The 8 kinds of motion here indicated are—(1) circular motion round a fixed center; (2) locomotion (gliding or rolling); (3) combination; (4) separation; (5) increase; (6) decrease; (7) becoming; (8) perishing. The remaining two kinds (as described below) are—(9) other-affecting motion (or secondary causation); and (10) self-and-other-affecting motion (or primary causation).

call the tenth.

Clin. Most certainly.

Ath. Of our total of ten motions, which shall we most correctly adjudge to be the most powerful of all and excelling in effectiveness?

Clin. We are bound to affirm that the motion which is able to move itself excels infinitely, and that all the rest come after it.

Ath. Well said. Must we, then, alter one or two of the wrong statements we have now made?

Clin. Which do you mean?

Ath. Our statement about the tenth seems wrong.

Clin. How?

Ath. Logically it is first in point of origin and power; and the next one is second to it, although we absurdly called it ninth a moment ago.

Clin. What do you mean?

Ath. This: when we find one thing changing another, and this in turn another, and so on,—of these things shall we ever find one that is the prime cause of change? How will a thing that is moved by another ever be itself the first of the things that cause change? It is impossible.

Ath. But when a thing that has moved itself changes another thing, and that other a third, and the motion thus spreads progressively through thousands upon thousands of things, will the primary source of all their motions be anything else than the movement of that which has moved itself?

Clin. Excellently put, and we must assent to your argument.

Ath. Further, let us question and answer ourselves thus:—Supposing that the Whole of things were to unite and stand still,—as most of these thinkers[398] venture to maintain,—which of the motions mentioned would necessarily arise in it first? That motion, of course, which is self-moving; for it will never be shifted beforehand by another thing, since no shifting force exists in things beforehand. Therefore we shall assert that inasmuch as the self-moving motion is the starting-point of all motions and the first to arise in things at rest and to exist in things in motion, it is of necessity the most ancient and potent change of all, while the motion which is altered by another thing and itself moves others comes second.

Clin. Most true.

Ath. Now that we have come to this point in our discourse, here is

[398] E.g. Anaxagoras, who taught, originally, "all things were together (*ὁμοῦ*);" and the Eleatic School (Parmenides, etc.) asserted that the Real World (*τὸ ὄν*) is One and motionless; cp. *Plat. Theaet. 180e.*

a question we may answer.

Clin. What is it?

Ath. If we should see that this motion had arisen in a thing of earth or water or fire, whether separate or in combination, what condition should we say exists in such a thing?

Clin. What you ask me is, whether we are to speak of a thing as "alive" when it moves itself?

Ath. Yes.

Clin. It is alive, to be sure.

Ath. Well then, when we see soul in things, must we not equally agree that they are alive?

Clin. We must.

Ath. Now stop a moment, in Heaven's name! Would you not desire to observe three points about every object?

Clin. What do you mean?

Ath. One point is the substance, one the definition of the substance, and one the name;[399] and, moreover, about everything that exists there are two questions to be asked.

Clin. How two?

Ath. At one time each of us, propounding the name by itself, demands the definition; at another, propounding the definition by itself, he demands the name.

Clin. Is it something of this kind we mean now to convey?

Ath. Of what kind?

Clin. We have instances of a thing divisible into two halves, both in arithmetic and elsewhere; in arithmetic the name of this is "the even," and the definition is "a number divisible into two equal parts."

Ath. Yes, that is what I mean. So in either case it is the same object, is it not, which we describe, whether, when asked for the definition, we reply by giving the name, or, when asked for the name, we give the definition,—describing one and the same object by the name "even," and by the definition "a number divisible into two halves"?

Clin. Most certainly.

Ath. What is the definition of that object which has for its name "soul"? Can we give it any other definition than that stated just now—"the motion able to move itself"?

Clin. Do you assert that "self-movement" is the definition of that very same substance which has "soul" as the name we universally apply to it?

[399] Cp. *Epistles* 7, 342 A, B.

Ath. That is what I assert. And if this be really so, do we still complain that it has not been sufficiently proved that soul is identical with the prime origin and motion of what is, has been, and shall be, and of all that is opposite to these, seeing that it has been plainly shown to be the cause of all change and motion in all things?

Clin. We make no such complaint; on the contrary, it has been proved most sufficiently that soul is of all things the oldest, since it is the first principle of motion.

Ath. Then is not that motion which, when it arises in one object, is caused by another, and which never supplies self-motion to anything, second in order—or indeed as far down the list as one cares to put it,—it being the change of a really soulless body?

Clin. True.

Ath. Truly and finally, then, it would be a most veracious and complete statement to say that we find soul to be prior to body, and body secondary and posterior, soul governing and body being governed according to the ordinance of nature.

Clin. Yes, most veracious.

Ath. We recollect, of course, that we previously agreed[400] that if soul could be shown to be older than body, then the things of soul also will be older than those of body.

Clin. Certainly we do.

Ath. Moods and dispositions and wishes and calculations and true opinions and considerations and memories will be prior to bodily length, breadth, depth and strength, if soul is prior to body.

Clin. Necessarily.

Ath. Must we then necessarily agree, in the next place, that soul is the cause of things good and bad, fair and foul, just and unjust, and all the opposites, if we are to assume it to be the cause of all things?

Clin. Of course we must.

Ath. And as soul thus controls and indwells in all things everywhere that are moved, must we not necessarily affirm that it controls Heaven also?

Clin. Yes.

Ath. One soul, is it, or several? I will answer for you—"several." Anyhow, let us assume not less than two—the beneficent soul and that which is capable of effecting results of the opposite kind.

Clin. You are perfectly right.

Ath. Very well, then. Soul drives all things in Heaven and earth

[400] *Plat. Laws 892a*, *Plat. Laws 892b*.

and sea by its own motions, of which the names are wish, reflection, forethought, counsel, opinion true and false, joy, grief, confidence, fear, hate, love, and all the motions that are akin to these or are prime-working motions; these, when they take over the secondary motions of bodies, drive them all to increase and decrease and separation and combination,[401] and, supervening on these, to heat and cold, heaviness and lightness, hardness and softness, whiteness and blackness, bitterness and sweetness, and all those qualities which soul employs, both when it governs all things rightly and happily as a true goddess, in conjunction with reason, and when, in converse with unreason, it produces results which are in all respects the opposite. Shall we postulate that this is so, or do we still suspect that it may possibly be otherwise?

Clin. By no means.

Ath. Which kind of soul, then, shall we say is in control of Heaven and earth and the whole circle? That which is wise and full of goodness, or that which has neither quality? To this shall we make reply as follows?

Clin. How?

Ath. If, my good sir, we are to assert that the whole course and motion of Heaven and of all it contains have a motion like to the motion and revolution and reckonings of reason,[402] and proceed in a kindred manner, then clearly we must assert that the best soul regulates the whole cosmos and drives it on its course, which is of the kind described.

Clin. You are right.

Ath. But the bad soul, if it proceeds in a mad and disorderly way.

Clin. That also is right.

Ath. Then what is the nature of the motion of reason? Here, my friends, we come to a question that is difficult to answer wisely; consequently, it is fitting that you should now call me in to assist you with the answer.

Clin. Very good.

Ath. In making our answer let us not bring on night, as it were, at midday, by looking right in the eye of the sun,[403] as though with mortal eyes we could ever behold reason and know it fully; the safer way to behold the object with which our question is concerned is by looking at an image of it.

Clin. How do you mean?

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[401] Cp. *Plat. Laws 894b*, *Plat. Laws 894c.*

[402] i.e. the uniform revolution of a sphere in the same spot and on its own axis: cp. *Plat. Laws 898a*; *Plat. Tim. 34a ff*, *Plat. Tim. 34b ff*; *Plat. 90c, d.*

[403] Cp. *Plat. Rep. 516a ff.*

Ath. Let us take as an image that one of the ten motions which reason resembles; reminding ourselves of which[404] I, along with you, will make answer.

Clin. You will probably speak admirably.

Ath. Do we still recollect thus much about the things then described, that we assumed that, of the total, some were in motion, others at rest?

Clin. Yes.

Ath. And further, that, of those in motion, some move in one place, others move in several places?

Clin. That is so.

Ath. And that, of these two motions, the motion which moves in one place must necessarily move always round some center, being a copy of the turned wheels; and that this has the nearest possible kinship and similarity to the revolution of reason?[405]

Clin. How do you mean?

Ath. If we described them both as moving regularly and uniformly in the same spot, round the same things and in relation to the same things, according to one rule and system—reason, namely, and the motion that spins in one place (likened to the spinning of a turned globe),—we should never be in danger of being deemed unskillful in the construction of fair images by speech.

Clin. Most true.

Ath. On the other hand, will not the motion that is never uniform or regular or in the same place or around or in relation to the same things, not moving in one spot nor in any order or system or rule—will not this motion be akin to absolute unreason?

Clin. It will, in very truth.

Ath. So now there is no longer any difficulty in stating expressly that, inasmuch as soul is what we find driving everything round, we must affirm that this circumference of Heaven is of necessity driven round under the care and ordering of either the best soul or its opposite.

Clin. But, Stranger, judging by what has now been said, it is actually impious to make any other assertion than that these things are driven round by one or more souls endowed with all goodness.

Ath. You have attended to our argument admirably, Clinias. Now attend to this further point.

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[404] Cp. *Plat. Laws 893b.*; the motion to which reason is likened is the first of the ten.

[405] Cp. *Plat. Tim. 33b ff*, *Plat. Tim. 34a ff*; *Plat. Rep. 436b ff.*

Clin. What is that?

Ath. If soul drives round the sum total of sun, moon and all other stars, does it not also drive each single one of them?

Clin. Certainly.

Ath. Then let us construct an argument about one of these stars which will evidently apply equally to them all.

Clin. About which one?

Ath. The sun's body is seen by everyone, its soul by no one. And the same is true of the soul of any other body, whether alive or dead, of living beings. There is, however, a strong suspicion that this class of object, which is wholly imperceptible to sense, has grown round all the senses of the body,[406] and is an object of reason alone. Therefore by reason and rational thought let us grasp this fact about it,—

Clin. What fact?

Ath. If soul drives round the sun, we shall be tolerably sure to be right in saying that it does one of three things.

Clin. What things?

Ath. That either it exists everywhere inside of this apparent globular body and directs it, such as it is, just as the soul in us moves us about in all ways; or, having procured itself a body of fire or air (as some argue), it in the form of body pushes forcibly on the body from outside; or, thirdly, being itself void of body, but endowed with other surpassingly marvellous potencies, it conducts the body.

Clin. Yes, it must necessarily be the case that soul acts in one of these ways when it propels all things.

Ath. Here, I pray you, pause. This soul,—whether it is by riding in the car of the sun,[407] or from outside, or otherwise, that it brings light to us all—every man is bound to regard as a god. Is not that so?

Clin. Yes; everyone at least who has not reached the uttermost verge of folly.

Ath. Concerning all the stars and the moon, and concerning the years and months and all seasons, what other account shall we give than this very same,—namely, that, inasmuch as it has been shown that they are all caused by one or more souls, which are good also with all goodness, we shall declare these souls to be gods, whether it be that they order the whole heaven by residing in bodies, as living creatures, or whatever the mode and method? Is there any man that

[406] i.e. envelopes the body and its sense-organs (like circum-ambient air).

[407] Cp. *Plat. Tim. 41d ff*, *Plat. Tim. 41e ff*, where the Creator is said to apportion a soul to each star, in which it rides "as though in a chariot."

agrees with this view who will stand hearing it denied that "all things are full of gods"?[408]

Clin. There is not a man, Stranger, so wrong-headed as that.

Ath. Let us, then, lay down limiting conditions for the man who up till now disbelieves in gods, O Megillus and Clinias, and so be quit of him.

Clin. What conditions?

Ath. That either he must teach us that we are wrong in laying down that soul is of all things the first production, together with all the consequential statements we made,—or, if he is unable to improve on our account, he must believe us, and for the rest of his life live in veneration of the gods. Let us, then, consider whether our argument for the existence of the gods addressed to those who disbelieve in them has been stated adequately or defectively.

Clin. Anything rather than defectively, Stranger.

Ath. Then let our argument have an end, in so far as it is addressed to these men. But the man who holds that gods exist, but pay no regard to human affairs,—him we must admonish.

"My good sir," let us say,

"the fact that you believe in gods is due probably to a divine kinship drawing you to what is of like nature, to honor it and recognize its existence; but the fortunes of evil and unjust men, both private and public,—which, though not really happy, are excessively and improperly lauded as happy by public opinion,—drive you to impiety by the wrong way in which they are celebrated, not only in poetry, but in tales of every kind. "

Ath. "Or again, when you see men attaining the goal of old age, and leaving behind them children's children in the highest offices, very likely you are disturbed, when amongst the number of these you discover—whether from hearsay or from your own personal observation—some who have been guilty of many dreadful impieties, and who, just because of these, have risen from a small position to royalty and the highest rank; then the consequence of all this clearly is that, since on the one hand you are unwilling to hold the gods responsible for such things because of your kinship to them, and since on the other hand you are driven by lack of logic and inability to repudiate the gods, you have come to your present morbid state of mind, in which you opine that the gods exist, but scorn and neglect human affairs. In order, therefore, that your present opinion may not grow to a greater height

[408] A dictum of Thales: *Aristot. Soul 411 a 7 ff.*

of morbid impiety, but that we may succeed in repelling the onset of its pollution (if haply we are able) by argument, let us endeavor to attach our next argument to that which we set forth in full to him who utterly disbelieves gods, and thereby to employ the latter as well." And do you, Clinias and Megillus, take the part of the young man in answering, as you did before; and should anything untoward occur in the course of the argument, I will make answer for you, as I did just now, and convey you across the stream.[409]

Clin. A good suggestion! We will do our best to carry it out; and do you do likewise.

Ath. Well, there will probably be no difficulty in proving to this man that the gods care for small things no less than for things superlatively great. For, of course, he was present at our recent argument, and heard that the gods, being good with all goodness, possess such care of the whole as is most proper to themselves.

Clin. Most certainly he heard that.

Ath. Let us join next in enquiring what is that goodness of theirs in respect of which we agree that they are good. Come now, do we say that prudence and the possession of reason are parts of goodness, and the opposites of these of badness?

Clin. We do say so.

Ath. And further, that courage is part of goodness, and cowardice of badness?

Clin. Certainly.

Ath. And shall we say that some of these are foul, others fair?

Clin. Necessarily.

Ath. And shall we say that all such as are mean belong to us, if to anyone, whereas the gods have no share in any such things, great or small?

Clin. To this, too, everyone would assent.

Ath. Well then, shall we reckon neglect, idleness and indolence as goodness of soul? Or how say you?

Clin. How could we?

Ath. As the opposite, then?

Clin. Yes.

Ath. And the opposites of these as of the opposite quality of soul?

Clin. Of the opposite quality.

Ath. What then? He who is indolent, careless and idle will be in our eyes what the poet described[410]—"a man most like to sting-less

[409] Cp. *Plat. Laws 892d*, *Plat. Laws 892e.*

drones"?

Clin. A most true description.

Ath. That God has such a character we must certainly deny, seeing that he hates it; nor must we allow anyone to attempt to say so.

Clin. We could not possibly allow that.

Ath. When a person whose duty it is especially to act and care for some object has a mind that cares for great things, but neglects small things, on what principle could we praise such a person without the utmost impropriety? Let us consider the matter in this way: the action of him who acts thus, be he god or man, takes one of two forms, does it not?

Clin. What forms?

Ath. Either because he thinks that neglect of the small things makes no difference to the whole, or else, owing to laziness and indolence, he neglects them, though he thinks they do make a difference. Or is there any other way in which neglect occurs? For when it is impossible to care for all things, it will not in that case be neglect of great things or small when a person—be he god or common man—fails to care for things which he lacks the power and capacity to care for.

Clin. Of course not.

Ath. Now to us three let these two men make answer, of whom both agree that gods exist, but the one asserts that they can be bribed, and the other that they neglect the small. First, you both assert that the gods know and hear and see all things,[411] and that nothing of all that is apprehended by senses or sciences can escape their notice; do you assert that this is so, or what?

Clin. That is what we assert.[412]

Ath. And further, that they can do all that can be done by mortal or immortal?

Clin. They will, of course, admit that this also is the case.

Ath. And it is undeniable that all five of us agreed that the gods are good, yea, exceeding good.

Clin. Most certainly.

Ath. Being, then, such as we agree, is it not impossible to allow that they do anything at all in a lazy and indolent way? For certainly amongst us mortals idleness is the child of cowardice, and laziness of idleness and indolence.

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[410] *Hes. WD 303.*:*τῷ δὲ θεοὶ νεμεσῶσι καὶ ἀνέρες ὅς κεν ἀεργὸς|ζώῃ, κηφήνεσσι κοθούροις εἴκελος ὁρμήν.*

[411] Cp. *Plat. Laws 641e.*

[412] Here, and in what follows, Clinias is answering on behalf of the two misbelievers.

Clin. Very true.

Ath. None, then, of the gods is neglectful owing to idleness and laziness, seeing that none has any part in cowardice.

Clin. You are very right.

Ath. Further, if they do neglect the small and scant things of the All, they will do so either because they know that there is no need at all to care for any such things or—well, what other alternative is there except the opposite of knowing?

Clin. There is none.

Ath. Shall we then assume, my worthy and excellent sir, that you assert that the gods are ignorant, and that it is through ignorance that they are neglectful when they ought to be showing care,—or that they know indeed what is needful, yet act as the worst of men are said to do, who, though they know that other things are better to do than what they are doing, yet do them not, owing to their being somehow defeated by pleasures or pains?

Clin. Impossible.

Ath. Do not human affairs share in animate nature, and is not man himself, too, the most god-fearing of all living creatures?

Clin. That is certainly probable.

Ath. We affirm that all mortal creatures are possessions of the gods, to whom belongs also the whole heaven.

Clin. Of course.

Ath. That being so, it matters not whether a man says that these things are small or great in the eyes of the gods; for in neither case would it behove those who are our owners to be neglectful, seeing that they are most careful and most good. For let us notice this further fact—

Clin. What is it?

Ath. In regard to perception and power,—are not these two naturally opposed in respect of ease and difficulty?

Clin. How do you mean?

Ath. It is more difficult to see and hear small things than great; but everyone finds it more easy to move, control and care for things small and few than their opposites.

Clin. Much more.

Ath. When a physician is charged with the curing of a whole body, if, while he is willing and able to care for the large parts, he neglects the small parts and members, will he ever find the whole in good condition?

Clin. Certainly not.

Ath. No more will pilots or generals or house-managers, nor yet

statesmen or any other such persons, find that the many and great thrive apart from the few and small; for even masons say that big stones are not well laid without little stones.

Clin. They cannot be.

Ath. Let us never suppose that God is inferior to mortal craftsmen who, the better they are, the more accurately and perfectly do they execute their proper tasks, small and great, by one single art,—or that God, who is most wise, and both willing and able to care, cares not at all for the small things which are the easier to care for—like one who shirks the labor because he is idle and cowardly,—but only for the great.

Clin. By no means let us accept such an opinion of the gods, Stranger: that would be to adopt a view that is neither pious nor true at all.

Ath. And now, as I think, we have argued quite sufficiently with him who loves to censure the gods for neglect.

Clin. Yes.

Ath. And it was by forcing him by our arguments to acknowledge that what he says is wrong. But still he needs also, as it seems to me, some words of counsel to act as a charm upon him.

Clin. What kind of words, my good sir?

Ath. Let us persuade the young man by our discourse that all things are ordered systematically by Him who cares for the World—all with a view to the preservation and excellence of the Whole, whereof also each part, so far as it can, does and suffers what is proper to it. To each of these parts, down to the smallest fraction, rulers of their action and passion are appointed to bring about fulfillment even to the uttermost fraction; whereof thy portion also, O perverse man, is one, and tends therefore always in its striving towards the All, tiny though it be. But thou failest to perceive that all partial generation is for the sake of the Whole, in order that for the life of the World-all blissful existence may be secured,—it not being generated for thy sake, but thou for its sake. For every physician and every trained craftsman works always for the sake of a Whole, and strives after what is best in general, and he produces a part for the sake of a whole, and not a whole for the sake of a part; but thou art vexed, because thou knowest not how what is best in thy case for the All turns out best for thyself also, in accordance with the power of your common origin. And inasmuch as soul, being conjoined now with one body, now with another, is always undergoing all kinds of changes either of itself or owing to another soul, there is left for the draughts-player no further task,—save only to shift

the character that grows better to a superior place, and the worse to a worse, according to what best suits each of them, so that to each may be allotted its appropriate destiny.

Clin. In what way do you mean?

Ath. The way I am describing is, I believe, that in which supervision of all things is most easy for the gods. For if one were to shape all things, without a constant view to the Whole, by transforming them (as, for instance, fire into water), instead of merely converting one into many or many into one, then when things had shared in a first, or second, or even third generation,[413] they would be countless in number in such a system of transformations; but as things are, the task before the Supervisor of the All is wondrous easy.

Clin. How do you mean?

Ath. Thus:—Since our King saw that all actions involve soul, and contain much good and much evil, and that body and soul are, when generated, indestructible but not eternal,[414] as are the gods ordained by law (for if either soul or body had been destroyed, there would never have been generation of living creatures), and since He perceived that all soul that is good naturally tends always to benefit, but the bad to injure,—observing all this, He designed a location for each of the parts, wherein it might secure the victory of goodness in the Whole and the defeat of evil most completely, easily, and well. For this purpose He has designed the rule which prescribes what kind of character should be set to dwell in what kind of position and in what regions;[415] but the causes of the generation of any special kind he left to the wills of each one of us men.[416] For according to the trend of our desires and the nature of our souls, each one of us generally becomes of a corresponding character.

Clin. That is certainly probable.

Ath. All things that share in soul change, since they possess within themselves the cause of change, and in changing they move according to the law and order of destiny; the smaller the change of character, the less is the movement over surface in space, but when the change is great and towards great iniquity, then they move towards the deep and the so-called lower regions, regarding which—under the names of

[413]This seems to refer to three stages of the soul's incarnation; see p. 367, n. 2.

[414]Cp. *Plat. Tim 37c ff.*

[415]Cp. *Plat. Tim 42b ff.* where it is said that the soul of the good man returns at death to its native star, while that of the bad takes the form of a woman in its second, and that of a beast in its third incarnation.

[416]Cp. *Plat. Rep. 617e.*

Hades and the like—men are haunted by most fearful imaginings, both when alive and when disparted from their bodies. And whenever the soul gets a specially large share of either virtue or vice, owing to the force of its own will and the influence of its intercourse growing strong, then, if it is in union with divine virtue, it becomes thereby eminently virtuous, and moves to an eminent region, being transported by a holy road to another and a better region; whereas, if the opposite is the case, it changes to the opposite the location of its life's abode.

Ath. "This is the just decree of the gods who inhabit Olympus,"*Hom. Od. 19.43*O thou child and stripling who thinkest thou art neglected by the gods,—the decree that as thou becomest worse, thou goest to the company of the worse souls, and as thou becomest better, to the better souls; and that, alike in life and in every shape of death, thou both doest and sufferest what it is befitting that like should do towards like.[417] From this decree of Heaven neither wilt thou nor any other luckless wight ever boast that he has escaped; for this decree is one which the gods who have enjoined it have enjoined above all others, and meet it is that it should be most strictly observed. For by it thou wilt not ever be neglected, neither if thou shouldest dive, in thy very littleness, into the depths of the earth below, nor if thou shouldest soar up to the height of Heaven above; but thou shalt pay to the gods thy due penalty, whether thou remainest here on earth, or hast passed away to Hades, or art transported to a region yet more fearsome. And the same rule, let me tell thee, will apply also to those whom thou sawest growing to great estate from small after doing acts of impiety or other such evil,—concerning whom thou didst deem that they had risen from misery to happiness, and didst imagine, therefore, that in their actions, as in mirrors, thou didst behold the entire neglect of the gods, not knowing of their joint contribution and how it contributes to the All. And surely, O most courageous of men, thou canst not but suppose that this is a thing thou must needs learn. For if a man learns not this, he can never see even an outline of the truth, nor will he be able to contribute an account of life as regards its happiness or its unhappy fortune. If Clinias here and all our gathering of elders succeed in convincing thee of this fact, that thou knowest not what thou sayest about the gods, then God Himself of His grace will aid thee; but shouldest thou still be in need of further argument, give ear to us while we argue with the third unbeliever, if thou hast sense at all. For we have proved, as I would maintain, by

[417] Cp. *Plat. Laws 728b.*, *Plat. Laws 837a.*

fairly sufficient argument that the gods exist and care for men; the next contention, that the gods can be won over by wrongdoers,[418] on the receipt of bribes, is one that no one should admit, and we must try to refute it by every means in our power.

Clin. Admirably spoken: let us do as you say.

Ath. Come now, in the name of these gods themselves I ask—in what way would they come to be seduced by us, if seduced they were? Being what in their essence and character? Necessarily they must be rulers, if they are to be in continual control of the whole heaven.

Clin. True.

Ath. But to which kind of rulers are they like? Or which are like to them, of those rulers whom we can fairly compare with them, as small with great? Would drivers of rival teams resemble them, or pilots of ships? Or perhaps they might be likened to rulers of armies; or possibly they might be compared to physicians watching over a war against bodily disease, or to farmers fearfully awaiting seasons of wonted difficulty for the generation of plants, or else to masters of flocks. For seeing that we have agreed[419] among ourselves that the heaven is full of many things that are good, and of the opposite kind also, and that those not good are the more numerous, such a battle, we affirm, is undying, and needs a wondrous watchfulness,—the gods and daemons being our allies, and we the possession[420] of the gods and daemons; and what destroys us is iniquity and insolence combined with folly, what saves us, justice and temperance combined with wisdom, which dwell in the animate powers of the gods, and of which some small trace may be clearly seen here also residing in us. But there are certain souls that dwell on earth and have acquired unjust gain which, being plainly bestial, beseech the souls of the guardians—whether they be watch-dogs or herdsmen or the most exalted of masters—trying to convince them by fawning words and prayerful incantations that (as the tales of evil men relate) they can profiteer among men on earth without any severe penalty: but we assert that the sin now mentioned, of profiteering or "over-gaining," is what is called in the case of fleshly bodies "disease,"[421] in that of seasons and years "pestilence," and in

[418] Cp. *Hom. Il. 9.497 ff.*, *τοὺς θεοὺς . . . λοιβῇ τε κνίσῃ τε παρατρωπῶς' ἄνθρωποι κτλ.*

[419] Cp. *Plat. Laws 904a ff.*, *Plat. Laws 896c ff.*, *Plat. Rep. 379c.*

[420] Cp. *Plat. Phaedo 62b.*

[421] Cp. *Plat. Rep. 609 ff*, *Plat. Sym. 188a ff.*, where the theory is stated that health depends upon the "harmony," or equal balance, of the constituent elements of the body ("heat" and "cold," "moisture" and "dryness,"); when any of these (opposite)

that of States and polities, by a verbal change, this same sin is called "injustice."

Clin. Certainly.

Ath. Such must necessarily be the account of the matter given by the man who says that the gods are always merciful to unjust men and those who act unjustly, provided that one gives them a share of one's unjust gains; it is just as if wolves were to give small bits of their prey to watch-dogs, and they being mollified by the gifts were to allow them to go ravening among the flocks. Is not this the account given by the man who asserts that the gods are open to bribes?

Clin. It is.

Ath. To which of the guardians aforementioned might a man liken the gods without incurring ridicule? Is it to pilots, who, when warped themselves by wine's "flow and flavor,"[422] overturn both ships and sailors?

Clin. By no means.

Ath. And surely not to drivers ranged up for a race and seduced by a gift to lose it in favor of other teams?

Clin. If that was the account you gave of them, it would indeed be a horrible comparison.

Ath. Nor, surely, to generals or physicians or farmers or herdsmen; nor yet to dogs charmed by wolves?

Clin. Hush! That is quite impossible.

Ath. Are not all gods the greatest of all guardians, and over the greatest things?

Clin. Yes, by far.

Ath. Shall we say that those who watch over the fairest things, and who are themselves eminently good at keeping watch, are inferior to dogs and ordinary men, who would never betray justice for the sake of gifts impiously offered by unjust men?

Clin. By no means; it is an intolerable thing to say, and whoever embraces such an opinion would most justly be adjudged the worst and most impious of all the impious men who practice impiety in all its forms.

Ath. May we now say that we have fully proved our three propositions,—namely, that the gods exist, and that they are careful, and that they are wholly incapable of being seduced to transgress

elements is in excess (*πλεονεκτεῖ*), disease sets in. So, too, in the "body politic," the excess of due measure by any element, or member, is injustice.

[422] *Hom. Il. 9.500* (quoted above, p. 371, n. 1).

justice?

Clin. Certainly we may; and in these statements you have our support.

Ath. And truly they have been made in somewhat vehement terms, in our desire for victory over those wicked men; and our desire for victory was due to our fear lest haply, if they gained the mastery in argument, they should suppose they had gained the right to act as they chose—those men who wickedly hold all those false notions about the gods. On this account we have been zealous to speak with special honor; and if we have produced any good effect, however small, in the way of persuading the men to hate themselves and to feel some love for an opposite kind of character, then our prelude to the laws respecting impiety will not have been spoken amiss.

Clin. Well, there is hope; and if not, at any rate no fault will be found with the lawgiver in respect of the nature of the argument.

Ath. After the prelude it will be proper for us to have a statement of a kind suitable to serve as the laws' interpreter, forewarning all the impious to quit their ways for those of piety. For those who disobey, this shall be the law concerning impiety:—If anyone commits impiety either by word or deed, he that meets with him shall defend the law by informing the magistrates, and the first magistrates who hear of it shall bring the man up before the court[423] appointed to decide such cases as the laws direct; and if any magistrate on hearing of the matter fail to do this, he himself shall be liable to a charge of impiety at the hands of him who wishes to punish him on behalf of the laws.

Ath. And if a man be convicted, the court shall assess one penalty for each separate act of impiety. Imprisonment shall be imposed in every case; and since there are three prisons in the State (namely, one public prison near the market for most cases, to secure the persons of the average criminals; a second, situated near the assembly-room of the officials who hold nightly assemblies,[424] and named the "reformatory"; and a third, situated in the middle of the country, in the wildest and loneliest spot possible, and named after "retribution"[425]), and since men are involved in impiety from the three causes which we have described, and from each such cause two forms of impiety result—consequently those who sin in respect of religion fall into six classes which require to be distinguished, as needing penalties that are neither

[423] Cp. *Plat. Laws 767c*, *Plat. Laws 767d*, *Plat. Laws 855c.*

[424] Cp. *Plat. Laws 909a*, *Plat. Laws 961a.*

[425] Cp. *Plat. Laws 704b.*

equal nor similar. For while those who, though they utterly disbelieve in the existence of the gods, possess by nature a just character, both hate the evil and, because of their dislike of injustice, are incapable of being induced to commit unjust actions, and flee from unjust men and love the just, on the other hand, those who, besides holding that the world is empty of gods, are afflicted by incontinence in respect of pleasures and pains, and possess also powerful memories and sharp wits—though both these classes share alike in the disease of atheism, yet in respect of the amount of ruin they bring on other people, the latter class would work more and the former less of evil. For whereas the one class will be quite frank in its language about the gods and about sacrifices and oaths, and by ridiculing other people will probably convert others to its views, unless it meets with punishment, the other class, while holding the same opinions as the former, yet being specially "gifted by nature" and being full of craft and guile, is the class out of which are manufactured many diviners and experts in all manner of jugglery; and from it, too, there spring sometimes tyrants and demagogues and generals, and those who plot by means of peculiar mystic rites of their own, and the devices of those who are called "sophists." Of these there may be many kinds; but those which call for legislation are two, of which the "ironic"[426] kind commits sins that deserve not one death only or two, while the other kind requires both admonition and imprisonment.

Ath. Likewise also the belief that the gods are neglectful breeds two other kinds of impiety; and the belief in their being open to bribes, other two. These kinds being thus distinguished, those criminals who suffer from folly,[427] being devoid of evil disposition and character, shall be placed by the judge according to law in the reformatory for a period of not less than five years, during which time no other of the citizens shall hold intercourse with them, save only those who take part in the nocturnal assembly,[428] and they shall company with them to minister to their souls' salvation by admonition; and when the period of their incarceration has expired, if any of them seems to be reformed, he shall dwell with those who are reformed, but if not, and if he be convicted again on a like charge, he shall be punished by death. But as to all those who have become like ravening beasts, and who, besides holding that the gods are negligent or open to bribes, despise men, charming

[426] i.e. "hypocritical," hiding impiety under a cloak of religion.

[427] Cp. *Plat. Laws 863b*, *Plat. Laws 863c.*

[428] Cp. *Plat. Laws 908a.*

the souls of many of the living, and claiming that they charm the souls of the dead, and promising to persuade the gods by bewitching them, as it were, with sacrifices, prayers and incantations,[429] and who try thus to wreck utterly not only individuals, but whole families and States for the sake of money,—if any of these men be pronounced guilty, the court shall order him to be imprisoned according to law in the mid-country jail, and shall order that no free man shall approach such criminals at any time, and that they shall receive from the servants a ration of food as fixed by the Law-wardens. And he that dies shall be cast outside the borders without burial; and if any free man assist in burying him, he shall be liable to a charge of impiety at the hands of anyone who chooses to prosecute. And if the dead man leaves children fit for citizenship, the guardians of orphans shall take them also under their charge from the day of their father's conviction, just as much as any other orphans. For all these offenders one general law must be laid down, such as will cause the majority of them not only to offend less against the gods by word and deed, but also to become less foolish, through being forbidden to trade in religion illegally. To deal comprehensively with all such cases the following law shall be enacted:—No one shall possess a shrine in his own house: when any one is moved in spirit to do sacrifice, he shall go to the public places to sacrifice, and he shall hand over his oblations to the priests and priestesses to whom belongs the consecration thereof; and he himself, together with any associates he may choose, shall join in the prayers.

Ath. This procedure shall be observed for the following reasons—It is no easy task to found temples and gods, and to do this rightly needs much deliberation; yet it is customary for all women especially, and for sick folk everywhere, and those in peril or in distress (whatever the nature of the distress), and conversely for those who have had a slice of good fortune, to dedicate whatever happens to be at hand at the moment, and to vow sacrifices and promise the founding of shrines to gods and demi-gods and children of gods; and through terrors caused by waking visions or by dreams, and in like manner as they recall many visions and try to provide remedies for each of them, they are wont to found altars and shrines, and to fill with them every house and every village, and open places too, and every spot which was the scene of such experiences. For all these reasons their action should be governed by the law now stated; and a further reason is this—to prevent impious men from acting fraudulently in regard to these matters also, by setting

[429] Cp. *Plat. Laws 933a,, Plat. Rep. 364b ff.*

up shrines and altars in private houses, thinking to propitiate the gods privily by sacrifices and vows, and thus increasing infinitely their own iniquity, whereby they make both themselves and those better men who allow them guilty in the eyes of the gods, so that the whole State reaps the consequences of their impiety in some degree—and deserves to reap them. The lawgiver himself, however, will not be blamed by the god; for this shall be the law laid down:—Shrines of the gods no one must possess in a private house; and if anyone is proved to possess and worship at any shrine other than the public shrines—be the possessor man or woman,—and if he is guilty of no serious act of impiety, he that notices the fact shall inform the Law-wardens, and they shall give orders for the private shrines to be removed to the public temples, and if the owner disobeys the order, they shall punish him until he removes them. And if anyone be proved to have committed an impious act, such as is not the venial offence of children, but the serious irreligion of grown men, whether by setting up a shrine on private ground, or on public ground, by doing sacrifice to any gods whatsoever, for sacrificing in a state of impurity he shall be punished with death. And the Law-wardens shall judge what is a childish or venial offence and what not, and then shall bring the offenders before the court, and shall impose upon them the due penalty for their impiety.

Book 11

Ath. In the next place our business transactions one with another will require proper regulation. The following will serve for a comprehensive rule:—as far as possible, no one shall touch my goods nor move them in the slightest degree, if he has in no wise at all got my consent; and I must act in like manner regarding the goods of all other men, keeping prudent mind. As the first of such things let us mention treasure: that which a man has laid by in store for himself and his family (he not being one of my parents), I must never pray to the gods to find, nor, if I do find it, may I move it, nor may I ever tell of it to the soothsayers (so-called), who are certain to counsel me to take up what is laid down in the ground. For never should I gain so much pecuniary profit by its removal, as I should win increase in virtue of soul and in justice by not removing it; and by preferring to gain justice in my soul rather than money in my purse, I should be winning a greater in place of a lesser gain, and that too in a better part of me. The rule,[430] "Thou shalt not move the immovable," is rightly applicable to many cases; and the case before us is one of them. And men ought also to believe the stories told about these matters,—how that such conduct is injurious to the getting of children. But if any man proves to be both regardless of children and neglectful of the legislator, and, without the consent of the depositor, takes up a treasure which neither he himself nor any of his forefathers has deposited, and thus breaks a law most fair, and that most comprehensive ordinance of the noble man[431] who said,

"Take not up what you laid not down,"—the man who despises these two lawgivers and takes up what he has not laid down himself, it

[430] Cp. *Plat. Laws 684e*, *Plat. Laws 843a.*

[431] Solon.

being no small thing but sometimes a vast quantity of treasure,—what penalty should such a man suffer?

Ath. God knows what, at the hands of gods; but the man that first notices an act of this kind shall report it, if it occur in the city, to the city-stewards, or if in a public market, to the market-stewards; and if it occur in the country outside, he shall declare it to the rural stewards and their officers. And when such declarations are made, the State shall send to Delphi;[432] and whatever the god pronounces concerning the goods and him that moved them, that the State shall execute, acting as agent on behalf of the oracles of the god. And if the informer be a free man, he shall win a reputation for virtue, but for vice if he fail to inform; and if he be a slave, as a reward for informing it will be right that he should be set free, by the State offering his price to his master, whereas he shall be punished by death if he fail to give information. Following on this there should come next a similar rule about matters great and small, to reinforce it. If a man, whether willingly or unwillingly, leaves any of his goods behind, he that happens on them shall let them lie, believing that the Goddess of the Wayside[433] guards them, as things dedicated to her divinity by the law. Should anyone transgress this rule and disobediently take such things and carry them home, he being a slave and the article of small value, then the man who meets with him, being over thirty years old, shall scourge him with many stripes; but if he be a free man, he shall not only be accounted illiberal and a rebel against the laws, but he shall in addition buy back ten times the value of the article moved to the man who left it behind. And if one man charges another with possessing any of his goods, be it great or small, and the man so charged allows that he has the article, but denies that it is the other man's,—then, if the article in question has been registered[434] with the magistrates according to law, the plaintiff shall summon the man who possesses it before the magistrate, and he shall produce it in court. And the article being thus exhibited, if it be clearly recorded in the records to which of the disputants it belongs, he shall take it and depart; but should it belong to another third party, not then present, whichever of the two claimants produces a sufficient guarantor shall take it away on behalf of the absent party, in pursuance of his right of removal, to hand it over to him. But if the article in dispute be not registered with the

[432] Cp. *Plat. Laws 759c.*, *Plat. Laws 772d.*

[433] Hecate (=Artemis)

[434] Cp. *Plat. Laws 745a*, *Plat. Laws 745b.*

magistrates, it will be kept in charge of the three senior magistrates up to the time of the trial; and if the article in pledge be a beast, the man that loses the case concerning it shall pay the magistrates for its keep; and the magistrates shall decide the case within three days. Any person—provided that he be in his senses—may lay hands, if he wishes, on his own slave, to employ him for any lawful purpose; and on behalf of another man (one of his relatives or friends) he may lay hands on the runaway slave, to secure his safe-keeping. And if a man tries to remove to freedom anyone who is being carried off as a slave, the man who is carrying him off shall let him go, and he that is removing him shall do so on the production of three substantial sureties, but not otherwise;

Ath. and if anyone removes a slave contrary to these conditions, he shall be liable for assault, and if convicted he shall pay double his registered due to the man deprived. And a man may arrest also a freedman, if in any case he fails to attend, or to attend sufficiently, on those who have freed him; and such tendance shall consist in the coming of the freedman three times a month to the home of the man that freed him, and there undertaking to do those duties which are both just and feasible, and in regard to marriage also to act as may seem good also to his former master. The freedman shall not be permitted to be more wealthy than the man who freed him; and, if he is, the excess shall be made to his master. He that is let go free shall not remain in the country more than twenty years, but shall depart, like all other foreigners,[435] taking with him all the property he owns, unless he gains the consent of the magistrates and also of the man who freed him. And if a freedman, or any other foreigner, acquired property exceeding in amount the third evaluation,[436] within thirty days from the day on which he acquires this excess he shall take his own property and depart, and he shall have no further right to request from the magistrates permission to remain; and if he disobeys these rules and is summoned before the court and convicted, he shall be punished by death, and his goods shall be confiscated. Such cases shall be tried before the tribal courts, unless the parties first get a settlement of their charges against one another before neighbors or chosen jurors. If anyone claims as his own the beast of any other man, or any other of his chattels, the man who holds it shall refer the matter to the person who, as being its substantial and lawful owner, sold it, or gave it, or made it over to him in some other way; and this he shall do within

[435] Cp. *Plat. Laws 850b.*

[436] Cp. *Plat. Laws 744c*, *Plat. Laws 744e*, *Plat. Laws 756d.*

thirty days, if the reference be made to a citizen or metic in the city, or, in the case of a foreign delivery, within three months, of which the middle month shall be at which includes the summer solstice.[437] And when the man makes an exchange with another by an act buying or selling, the exchange shall be made by transfer of the article in the place appointed therefore in the market, and nowhere else, and by payment the price on the spot, and no purchase or sale shall be made on credit;[438] and if anyone makes an exchange with another otherwise or in other places, trusting the man with whom he is dealing, he shall do so on the understanding that there are no suits by law touching things not sold according to the laws now prescribed.[439] As regards club-collections,[440] whoso wishes may collect as a friend among friends; but if any dispute arises concerning the collection, they must act on the understanding that in regard to these matters no legal actions are possible.

Ath. If any man receives for the sale of any article a price not less than fifty drachmae, he shall be compelled to remain in the city for ten days, and the seller's residence shall be made known to the buyer, because of the charges which are commonly brought in connection with such transactions, and because of the acts of restitution permitted by law. Such legal restitution, or non-restitution, shall be on this wise:—If a man sell a slave who is suffering from phthisis or stone or strangury or the "sacred disease"[441] (as it is called), or from any other complaint, mental or physical, which most men would fail to notice, although it be prolonged and hard to cure,—in case the purchaser be a doctor or a trainer, it shall not be possible for him to gain restitution for such a case, nor yet if the seller warned the purchaser of the facts. But if any professional person sell any such slave to a lay person, the buyer shall claim restitution within six months, saving only in the case of epilepsy, for which disease he shall be permitted to claim within twelve months. The action shall be tried before a bench of doctors nominated and chosen by both the parties; and the party that loses his case shall pay double the selling price of the slave. If a lay person sells to a lay person, there shall be the same right of restitution and trial as in the cases just mentioned; but the losing party shall pay the

[437] Cp. *Plat. Laws 952e.*

[438] Cp. *Plat. Laws 849e.*

[439] Cp. *Plat. Rep. 556b.*

[440] i.e. of subscriptions due from members of a (dining) club, or of money raised as a loan to a member in time of need.

[441] i.e. epilepsy.

selling price only. If a man wittingly sells a murderer, if the buyer is aware of the fact, he shall have no claim to restitution for the purchase of such an one; but if the buyer be ignorant, he shall have right of restitution as soon as the fact is perceived, and the trial shall take place before a court of the five youngest Law-wardens, and if it be decided that the seller acted wittingly, he shall purify the houses of the buyer as ordained by the interpreters,[442] and he shall pay three times the selling price to the buyer. He that exchanges for money either money or anything else, living or not living, shall give and receive every such article unadulterated, conforming to the law; and touching all knavery of this sort, as in the case of other laws, let us hearken to a prelude. Adulteration should be regarded by every man as coming under the same head as falsehood and fraud—a class of actions concerning which the mob are wont to say, wrongly, that any such action will generally be right if it be done opportunely: but the proper "opportunity," the when and the where, they leave unprescribed and undefined, so that by this saying they often bring loss both to themselves and to others. But it is not fitting for the lawgiver to leave this matter undefined; he must always declare clearly the limitations, great or small, and this shall now be, done:—

Ath. No man, calling the gods to witness, shall commit, either by word or deed, any falsehood, fraud or adulteration, if he does not mean to be most hateful to the gods; and such an one is he who without regard of the gods swears oaths falsely, and also who lies in the presence of his superiors. Now the better are the superiors of the worse, and the older in general of the younger; wherefore also parents are superior to their offspring, men to women and children, rulers to ruled.[443] And it will be proper for all to revere all these classes of superiors, whether they be in other positions of authority or in offices of State above all; and to enforce this is just the purpose of our present discourse. For everyone who adulterates any market commodity, lies and deceives and, calling Heaven to witness, takes an oath in front of the laws and cautions of the market-stewards, neither regarding men nor revering gods. Certainly it is a good practice to refrain from sullying lightly divine names, and to behave with such purity and holiness as most of us generally exhibit in matters of religion; if however this rule is disobeyed, the law runs thus:—He that sells any article in the market

[442]The officials in charge of (Delphic) religious rites; cp. *Plat. Laws 759c*, *Plat. Laws 828b.*

[443]Cp. *Plat. Laws 690a.*

shall never name two prices for what he is selling; he shall name one price only, and if he fails to get this, he will be entitled to take the article away; but he shall not put any other price, greater or less, upon it on that day; and there shall be no puffing or taking of oaths about anything put up for sale. If any man disobeys these rules, any townsman who is present, not being under thirty years of age, shall punish with a beating the seller who swears, and he shall do so with impunity; but if he is disobedient and neglects to do so, he shall be liable to reprobation for betraying the laws. And if a man is selling an adulterated article, and is incapable of obeying our present rules, any person who is present and aware of the fact and able to expose him shall take for himself the adulterated article, if he expose him before a magistrate, he being himself a slave or a metic,—but if he be a citizen, he shall be declared to be wicked, as a robber of the gods, if he fail to expose the guilty man; while if he does expose him, he shall offer the article to the gods who preside over the market. He that is found out in selling any such article, in addition to being deprived of the adulterated article, shall be beaten in the market-place with stripes—one stripe for every drachma in the price he asks for the article— after that the herald has first proclaimed the crimes for which the seller is to be beaten. Touching acts of fraud and wrongful acts done by sellers, the market-stewards and the Law-wardens, after making enquiry from experts in each trade, shall write out rules as to what the seller ought to do or avoid doing, and shall post them up on a pillar in front of the stewards office, to serve as written laws and clear instructors for those engaged in business in the market.

Ath. The duties of the city-stewards have been fully stated already;[444] in case any addition seems to be required, they shall inform the Law-wardens, and write out what seems to be wanting; and they shall post up on the pillar at the city-stewards office both the primary and the secondary regulations pertaining to their office. Following close upon practices of adulteration follow practices of retail trading; concerning which, as a whole, we shall first offer counsel and argument, and then impose on it a law. The natural purpose for which all retail trading comes into existence in a State is not loss, but precisely the opposite; for how can any man be anything but a benefactor if he renders even and symmetrical the distribution of any kind of goods which before was unsymmetrical and uneven? And this is, we must say, the effect produced by the power of money, and we must declare that

[444]Cp. *Plat. Laws 759a.*, *Plat. Laws 849e.*, *Plat. Laws 881c.*

the merchant is ordained for this purpose. And the hireling and the innkeeper and the rest—some more and some less respectable trades,—all have this function, namely, to provide all men with full satisfaction of their needs and with evenness in their properties.[445] Let us see then wherein trade is reputed to be a thing not noble nor even respectable, and what has caused it to be disparaged, in order that we may remedy by law parts of it at least, if not the whole. This is an undertaking, it would seem, of no slight importance, and one that calls for no little virtue.

Clin. How do you mean?

Ath. My dear Clinias, small is the class of men—rare by nature and trained, too, with a superlative training—who, when they fall into diverse needs and lusts, are able to stand out firmly for moderation, and who, when they have the power of taking much wealth, are sober, and choose what is of due measure rather than what is large. The disposition of the mass of mankind is exactly the opposite of this; when they desire, they desire without limit, and when they can make moderate gains, they prefer to gain insatiably; and it is because of this that all the classes concerned with retail trade, commerce, and innkeeping are disparaged and subjected to violent abuse. Now if anyone were to do what never will be done (Heaven forbid !)—but I shall make the supposition, ridiculous though it is— namely, compel the best men everywhere for a certain period to keep inns or to peddle or to carry on any such trade, or even to compel women by some necessity of fate to take part in such a mode of life,—then we should learn how that each of these callings is friendly and desirable; and if all these callings were carried on according to a rule free from corruption, they would be honored with the honor which one pays to a mother or a nurse.

Ath. But as things are now, whenever a man has planted his house, with a view to retail trade, in a desert place and with all the roads from it lengthy, if in this welcome lodging he receives travellers in distress, providing tranquillity and calm to those buffeted by fierce storms or restful coolness after torrid heat,—the next thing is that, instead of treating them as comrades and providing friendly gifts as well as entertainment, he holds them ransom, as if they were captive foemen in his hands, demanding very high sums of unjust and unclean ransom-money; it is criminal practices such as this, in the case of all these trades, that afford grounds of complaint against this way of

[445] i.e. by equalizing the distribution of goods throughout the community. Cp. *Aristot. Pol. 1257a 14 ff.*

succoring distress. For these evils, then, the lawgiver must in each case provide a medicine. It is an old and true saying that it is hard to fight against the attack of two foes[446] of opposite quarters, as in the case of diseases and many other things; and indeed our present fight in this matter is against two foes, poverty and plenty,[447] of which the one corrupts the soul of men with luxury, while the other by means of pain plunges it into shamelessness. What remedy, then, is to be found for this disease in a State gifted with understanding? The first is to employ the trading class as little as possible; the second, to assign to that class those men whose corruption would prove no great loss to the State; the third, to find a means whereby the dispositions of those engaged in these callings may not quite so easily become infected by shamelessness and meanness of soul. After the declarations now made, let our law on these matters (Heaven prosper it!) run in this wise:—Amongst the Magnesians,[448] whom the god is restoring and founding afresh, none of all the landholders who belong to the houses shall, either willingly or unwillingly, become a retail trader or a merchant, or engage in any menial service for private persons who do not make an equal return to himself, save only for his father and mother and those of a still earlier generation, and all that are elder than himself, they being gentlemen[449] and his a gentleman's service. What is becoming, what unbecoming a gentleman it is not easy to fix by law; it shall, however, be decided by those persons who have achieved public distinction[450] for their aversion to the one and their devotion to the other.

Ath. If any citizen in any craft engages in ungentlemanly peddling, whoso will shall indict him for shaming his family before a bench of those adjudged to be the first in virtue, and if it be held that he is sullying his paternal hearth by an unworthy calling, he shall be imprisoned for a year and so restrained therefrom; if he repeats the offence, he shall get two years' imprisonment, and for each subsequent conviction the period of imprisonment shall go on being doubled. Now comes a second law:—Whosoever intends to engage in retail trade must be a resident alien or a foreigner. And thirdly, this third law:—In order that such an one may be as good as possible, or as little as possible bad, he being a resident in our State, the Law-wardens must bear

[446]Cp. *Plat. Phaedo 89c ff*: *πρὸς δύο λέγεται οὐδ' ὁ Ἡρακλῆς οἷός τε εἶναι.*

[447]Cp. *Plat. Laws 679b*, *Plat. Laws 705b.*

[448]Cp. *Plat. Laws 702b ff.*, *Plat. Laws 848c.*

[449]Literally free men,—the Greek word connoting generosity, culture and dignity, like our "gentle."

[450]Cp. *Plat. Laws 914a*, *Plat. Laws 922a ff.*

in mind that they are guardians not only of those who, being well-trained both by birth and nurture, are easy to guard from lawless and evil ways, but also of those who are otherwise, and who follow pursuits which greatly to urge them on the road to vice; and these must regard the more. Accordingly, with respect to retail trading, which is a multifarious occupation, embracing many callings of a similar nature,—with respect (I mean) to so many branches as are allowed to exist, as being deemed absolutely necessary to the State, concerning these the procedure shall be the same as that previously described in the case of the kindred matter of adulteration:[451] the Law-wardens must meet in consultation with experts in every branch of retail trade, and at their meetings they must consider what standard of profits and expenses produces a moderate for the trader, and the standard of profits and expenses thus arrived at they must prescribe in writing; and this they must insist on—the market-stewards, the city-stewards, and the rural stewards, each in their own sphere. So possibly, by this means, retail trade would be of benefit to all classes, and would do but little damage to those in the States who practise it. Touching agreements, whenever a man undertakes and fails to fulfil his agreement—unless it be such as is forbidden by the laws or by a decree, or one made under forcible and unjust compulsion, or when the man is involuntarily prevented from fulfilling it owing to some unforeseen accident,—in all other cases of unfulfilled agreements, actions may be brought before the tribal courts, if the parties are unable to come to a previous settlement before arbitrators or neighbors. Sacred to Hephaestus and Athena is the class of craftsmen who have furnished our life with the arts, and to Ares and Athena belong those who safeguard the products of these craftsmen by other defensive arts; rightly is this class also sacred to these deities. These all continually serve both the country and the people: the one class are leaders in the contests of war, the others produce for pay instruments and works;

Ath. and it would be unseemly for these men to lie concerning their crafts, because of their reverence for their ancestors. If any craftsman fail to execute his work within the time named, owing to baseness—he not revering the god who gives him his livelihood, but deeming him (in his blindness of mind) to be merciful because of his kinship,—he shall, in the first place, pay a penalty to the god, and, secondly, there shall be a law enacted to suit his case:—He shall owe the price of the works regarding which he has lied to the person who gave him

[451] Cp. *Plat. Laws 917e.*

the order, and within the stated time he shall execute them all over again gratis. And as it counselled the seller, so the law counsels the contractor who undertakes a work not to give in too high an estimate for it, but to estimate it simply at its real worth; this same charge the law gives, I say, to the contractor, for he as a craftsman certainly knows what its worth is. In States composed of gentlemen it is wrong for a craftsman to try by his art (which is essentially truthful and sincere) to impose artfully upon lay persons; and in such cases the wronged shall be entitled to prosecute the wrongdoer. If, on the other hand, a man who has given an order to a craftsman fails to pay him his wage duly according to the legal agreement, and sets at naught Zeus, the Patron of the State, and Athena, who are partners in the constitution,—thereby dissolving great partnerships through love of a little gain,—then, with the help of the gods, this law shall lend aid to the bonds that unite the State:—Whosoever has previously received the work ordered and fails to pay the price within the period agreed shall be bound to pay double the price; and if a year have elapsed, although all other monies on loan are barren,[452] this man shall pay as interest one obol on each drachma for every month[453] of arrears; and actions for these cases shall take place before the tribal courts. And now that we have made mention of craftsmen in general, it is right to allude in passing to those whose craft is military security, that is to say, military commanders and all experts in such matters. As to the former craftsmen, so to these men, as craftsmen of another sort,—whenever any of them, either voluntarily or under orders, undertakes any public work and executes it well,—whosoever shall duly pay to these men those honors which are the soldier's wages, him the law will never weary of lauding;

Ath. but if he has previously received some noble work of a military kind and fails to pay for it, the law will blame him. So, touching this matter, let there be laid down this law, coupled with laudation,—a law which counsels rather than compels the mass of citizens to honor as second in merit those brave men who, either by bold deeds or by military devices, are protectors of the State; for first in merit come those on whom the greatest reward must be bestowed—namely, those who have proved themselves able pre-eminently to honor the written code of the good lawgivers.[454] We have now made regulations for most of

[452]i.e. bear no interest. Cp. *Plat. Laws c*; *Plat. Rep. a*; *Aristot. Pol. 1258b 5 ff.*

[453]As a drachma = 6 obols, the interest would amount to 200 p.c. per annum.

[454]Cp. *Plat. Laws 919d*, *Plat. Laws 919e.*

the more important business dealings between man and man, excepting those regarding orphans and the care of orphans by their guardians; so, after those now dealt with, these matters must necessarily receive some kind of regulation. All these have their starting-points either in the desire of those at the point of death to devise their property, or in the accidental cases of those who die without making a testament; and it was in view of the complex and difficult nature of these cases, Clinias, that I made use of the word "necessarily." And it is, indeed, impossible to leave them without regulation; for individuals might set down many wishes both at variance with one another and contrary to the laws as well as to the dispositions of the living, and also to their own former dispositions in the days before they proposed making a will, if any will that a man makes were to be granted absolute and unconditional validity, no matter what his state of mind at the end of his life. For most of us are more or less in a dull and enfeebled state of mind, when we imagine that we are nearly at the point of death.

Clin. What do you mean by this, Stranger?

Ath. A man at the point of death, Clinias, is a difficult subject, and overflowing with speech that is most alarming and vexatious to a lawgiver.

Clin. How so?

Ath. Since he claims to be lord of all he has, he is wont to speak angrily.

Clin. What will he say?

Ath.

"Good heavens!" he cries,

"what a monstrous shame it is, if I am not to be allowed at all to give, or not give, my own things to whomsoever I will—and more to one, less to another, according as they have proved themselves good to me or bad, when fully tested in times of sickness, or else in old age and in other happenings of every kind."

Clin. And do you not think, Stranger, that what they say is right?

Ath. What I think, Clinias, is this—that the old lawgivers were cowardly, and gave laws with a short view and a slight consideration of human affairs.

Clin. How do you mean?

Ath. It was through fear, my dear sir, of that angry speech that they made the law allowing a man unconditionally to dispose by will of his goods exactly how he pleases. But you and I will make a more suitable answer to those in your State who are at the point of death.

Clin. In what way?

Ath. O friends, we will say, for you, who are literally but creatures of a day, it is hard at present to know your own possessions and, as the Pythian oracle declares,[455] your own selves, to boot. So I, as lawgiver, make this ruling—that both yourself and this your property are not your own, but belong to the whole of your race, both past and future, and that still more truly does all your race and its property belong to the State; and this being so, I will not willingly consent if anyone persuades you to make a will contrary to what is best, by fawning on you and helping you when afflicted by disease or age; rather will I legislate with a general view to what is best for your whole race and State, justly accounting of minor importance the interest of the individual. May it be that you will feel kindly disposed and at peace with us as you journey towards that bourne whither, by the natural law of our human life, you now are traveling: the rest of your affairs shall be our care, and we will watch over them all, without exception, to the best of our power. This shall serve, Clinias, alike for consolation and for prelude for both the living and the dying, and the law shall run as follows:— Whosoever writes a will disposing of his property, if he be the father of children, he shall first write down the name of whichever of his sons he deems worthy to be his heir, and if he offers any one of his other children to another man to be adopted by him, this also he shall write down; and if he has any son besides that is not adopted for any lot,[456] of whom he has hopes that he will be sent out by law to a colony, to him the father shall be allowed to give so much of his other property as he wishes, saving only the ancestral lot and all the equipment of that lot; and if there be several more sons, the father shall divide among them the surplus, over and above the lot, in whatever way he chooses. And if a son already possesses a house, he shall not assign him goods, and so likewise in the case of a daughter, if she is betrothed to a husband, he shall not assign goods, but if not so betrothed, he shall assign. And if, after the will is made, it is discovered that one of the sons or daughters owns a lot in the district, then that person shall resign his legacy in favor of the heir of him that made the will. If the testator leave no male children, but females, he shall bequeath to whichever daughter he chooses a husband, and to himself a son, and write him down as his heir;[457]

Ath. and if a man has a son, whether his own or adopted, who

[455] Alluding to the dictum "Know thyself"; cp. *Plat. Prot. 343b ff*

[456] i.e. one of the 5040 allotments, cp. *Plat. Laws 737c.*

[457] i.e. he shall select a citizen to become his heir by marrying one of his daughters.

dies in childhood before reaching man's estate, in this case also, when making his will, he shall state in writing who is to be his son's successor, and with happier luck. If any testator be wholly childless, he shall take out a tenth part of his surplus property and shall give it to any person, if he so chooses; but all the rest he shall hand over to his adopted heir, and him he shall make his son with mutual good-will and the blessing of the law. When a man's children need guardians, if he die after making a will and naming what persons and how many he desires to act as guardians to his children, and if they are willing and consent act, then the choice of guardians in this document shall be final; but if a man dies either wholly intestate or having omitted from his will the choice of guardians, then the nearest of kin on both the father's and the mother's side, two from each side, together with one of the friends of the deceased, shall act as official guardians, and these the Law-wardens shall appoint in the case of each orphan that requires them. All that appertains to guardianship and the orphans shall be supervised by fifteen of the Law-wardens, who shall be the eldest of the whole body, and shall divide themselves into threes according to seniority, three acting one year and another three a second year, until five yearly periods have passed in rotation; and this process shall go on, so far as possible, without a break. And if any man die wholly intestate, leaving children that require guardianship, his unfriended children shall share in these same laws. And if a man meets with some unforeseen mischance and leaves daughters, he shall pardon the lawgiver if he regulates the betrothal of the daughters with an eye to two points out of three—namely, nearness of kinship and the security of the lot—and omits the third point, which a father would take into consideration,—namely, the selecting out of all the citizens of a person suited by character and conduct to be a son to himself and a spouse for daughter,—if, I say, the lawgiver passes this over owing to the impossibility of taking it into consideration. Accordingly, the law that we shall enact, as the best in our power touching such matters, will be this:—If a man dies intestate and leaves daughters, that brother who is born of the same father or of the same mother and who is without a lot shall take the daughter[458] and the lot of the deceased; failing a brother, if there be a brother's son, the procedure shall be the same, provided that the parties be of an age suited the one to the other; failing one of these, the same rule shall hold for a sister's son; then, fourthly, for a

[458] i.e. in marriage: the "lot" is to pass on always to the next of kin, cf. *Plat. Laws 925d*, *Plat. Laws 925e*.

father's brother; and, fifthly, for his son; and, sixthly, for the son of a father's sister.

Ath. In like manner, if a man leaves female children, the right of kinship shall proceed always by degrees of consanguinity, going up through brothers and brother's children, first the males, and secondly the females in one line. The suitability or otherwise of the time of marriage the judge shall decide by inspection, viewing the males naked and the females naked down to the navel. And if there be in the family a lack of kinsmen as far as brother's grandchildren, and likewise as far as grandfather's children, whomsoever of the other citizens the girl, aided by her guardians, shall choose, that man (if both he and the girl are willing) shall become the heir of the deceased and the spouse of his daughter. But obstacles often occur, and there might be times when there was an unusual dearth of such men in the city itself: so if any girl, being at a loss to find a spouse on the spot, sees one that has emigrated to a colony and desires that he should become heir to her father's property, if so be that he is related, he shall proceed to the lot, according to the ordinance of the law; but if he be outside the kin, and there be no one of near kin in the State, then by the choice of the guardians and of the daughter of the deceased he shall be entitled to marry and to take the lot of the intestate man on his return home. Whosoever dies intestate, being without any issue, male or female, in his case all other matters shall be governed by the previous law; and a man and woman from the family shall in each such instance go into the deserted house as joint assignees, and their claim to the lot shall be made valid; and the female claims to inheritance shall come in this order—first, a sister; second, a brother's daughter; third, a sister's daughter; fourth, a father's sister; fifth, a father's brother's daughter; sixth, a father's sister's daughter; and these shall share the home with the male kinsmen according to the degree of relationship and right, as we previously enacted. Now we must not fail to notice how burdensome such a law may prove, in that sometimes it harshly orders the next of kin to the deceased to marry his kinswoman, and that it appears to overlook the thousands of impediments which in human life prevent men from being willing to obey such orders and cause them to prefer any other alternative, however painful, in cases where either of the parties ordered to marry is suffering from diseases or defects of mind or body. Some might suppose that the lawgiver is paying no heed to these considerations, but they would be wrong.

Ath. On behalf, therefore, of the lawgiver as well as of him to whom the law applies let a kind of general prelude be uttered, requesting those

to the order is given to pardon the lawgiver because it is impossible for him, in his care for the public interests, to control also the private misfortunes which befall individuals, and requesting pardon also for the subjects of the law, inasmuch as they are naturally unable at times to carry out ordinances of the lawgiver laid down by him in ignorance.

Clin. As regards this, Stranger, what would be the most rational course of action to adopt?

Ath. It is necessary, Clinias, that for laws of this kind, and those whom they affect, arbitrators should be chosen.

Clin. How do you mean?

Ath. It might happen that a nephew, who has a rich father, would be loth to take to wife his uncle's daughter, giving himself airs and being minded to make a grander match. Or again, when what the lawgiver enjoins would be a fearful calamity, a man might be compelled to disobey the law—for instance, when the law would force him to enter into an alliance with madness or some other dire affliction of body or soul, such as makes life intolerable for the person so allied. This statement of ours shall now be laid down as a law in the following terms:—If any man have a complaint against the ordained laws concerning testaments in respect of any detail, and especially of those relating to marriage; and if he affirms on oath that of a truth the lawgiver himself, were he alive and present, would never have compelled the parties to act as they are now being compelled to act in respect of marrying and giving in marriage; and if, on the other hand, some relative or guardian supports the compulsion of the law; what we declare is that the lawgiver has left us the fifteen Law-wardens to act for the orphans, male and female, as both arbitrators and parents, and to these all who dispute about any such matters shall go for judgment, and their verdict shall be carried out as final. If, however, anyone maintains that this is to confer too much power on the Law-wardens, he shall summon his opponents before the court of select judges[459] and secure a decision regarding the points in dispute. On him that is defeated there shall be imposed by the lawgiver censure and disgrace,—a penalty heavier than a large fine in the eyes of a man of right mind. Accordingly, orphan children will undergo a kind of second birth.[460] How in each case they should be reared and trained after their first birth we have already described;[461] and now we must contrive some means whereby, after

[459] Cp. *Plat. Laws 775d.*, *Plat. Laws 855c.*

[460] i.e. be "born again" as children of the State, with the Law-wardens as their new official parents, as explained below.

their second birth in which they are destitute of parents, their orphan condition may be as free as possible from piteous misery for those who have become orphans. In the first place, to act in the room of their begetters, as parents of no inferior kind, we must legally appoint the Law-wardens; and we charge three of these, year by year[462], to care for the orphans as their own, having already given both to these men and to the guardians a suitable prelude of directions concerning the nurture of orphans.

Ath. Opportune, indeed, as I think, was the account we previously gave[463] of how the souls of the dead have a certain power of caring for human affairs after death. The tales which contain this doctrine are true, though long; and while it is right to believe the other traditions about such matters, which are so numerous and exceeding old, we must so believe those who lay it down by law that these are facts, unless it is plain that they are utter fools. So if this is really the state of the case, the guardians shall fear, first, the gods above who pay regard to the solitude of orphans; and, secondly, the souls of the dead, whose natural instinct it is to care especially for their own offspring, and to be kindly disposed those who respect them and hostile to those who disrespect them; and, thirdly, they shall fear the souls of the living who are old and who are held in most high esteem; since where the State flourishes under good laws, their children's children revere the aged with affection and live in happiness. These old people are keen of eye and keen of ear to mark such matters, and while they are gracious towards those who deal justly therein, they are very wroth with those who despitefully entreat orphans and waifs, regarding these as a trust most solemn and sacred. To all these authorities the guardian and official—if he has a spark of sense—must pay attention; he must show as much care regarding the nurture and training of the orphans as if he were contributing to his own support and that of his own children, and he must do them good in every way to the utmost of his power. He, then, that obeys the tale prefixed to the law and in no wise misuses the orphan will have no direct experience of the anger of the lawgiver against such offences; but the disobedient and he that wrongs any who has lost father or mother shall in every case pay a penalty double of that due from the man who offends against a child with both parents living. As regards further legal directions either to

[461] In Books II. and VII.

[462] Cp. *Plat. Laws 924c.*

[463] *Plat. Laws 865e.*

guardians concerning orphans or to magistrates concerning the supervision of the guardians,—if they did not already possess a pattern of the way to nurture free children in the way they themselves nurture their own children and supervise their household goods, and if they did not also possess laws regulating these same affairs in detail, then it would have been reasonable enough to lay down laws concerning guardianship, as a peculiar and distinct branch of law, marking out with special regulations of its own the life of the orphan as contrasted with the non-orphan; but, as the matter stands, the condition of orphanhood in all these respects does not differ greatly with us from the condition of parental control, although as a rule in respect of public estimation and of the care bestowed on the children they are on quite a different level.

Ath. Consequently, in its regulations concerning orphans the law has emphasized this very point both by admonition and by threat. A threat, moreover, of the following kind will be extremely opportune:—Whosoever is guardian of a male or female child, and whosoever of the Law-wardens is appointed supervisor of a guardian, shall show as much affection for the child whom Fate has made an orphan as for his own children, and he shall zealously care for the goods of his nursling as much as for his own goods—or rather, more. Every guardian shall observe this one law in the discharge of his office; and if any act in such matters contrary to this law, the magistrate shall punish him if he be a guardian, and, if he be a magistrate, the guardian shall summon him before the court of the select judges, and fine him double the penalty adjudged by the court. And if a guardian be held by the child's relatives, or by any other citizen, to be guilty of neglecting or maltreating his ward, they shall bring him before the same court, and he shall pay four times the damages assessed, and of this amount one half shall go to the child, the other half to the successful prosecutor. When an orphan has reached full age, if he thinks that he has been badly cared for, he shall be allowed to bring an action concerning the guardianship within a period of five years after the date of its expiration; and if the guardian lose his case, the court shall assess the amount of his penalty or fine; and if it be a magistrate that is held to have injured the orphan by neglect, the court shall assess what sum he shall pay to the child, but if the injury be due to unjust dealing, in addition to the fine he shall be removed from his office of Law-warden, and the public authority of the State shall appoint another in his place to act as Law-warden for the country and the State. Between fathers and their children, and children and their fathers, there arise

differences greater than is right, in the course of which fathers, on the one hand, are liable to suppose that the lawgiver should give them legal permission to proclaim publicly by herald, if they so wish, that their sons have legally ceased to be their sons; while the sons, on the other hand, claim permission to indict their fathers for insanity when they are in a shameful condition owing to illness or old age. These results are wont to occur among men who are wholly evil of character, since where only half of them are evil—the son being evil and the father not, or vice versa—such enmity does not issue in calamitous consequences.

Ath. Now, whereas under another polity a son when disinherited would not necessarily cease to be a citizen, it is necessary in our State (of which these are to be the laws) that the fatherless man should emigrate to another State, since it is impossible that a single household should be added to our 5040; consequently it is necessary that the person upon whom this punishment is to be inflicted legally should be disinherited, not by his father only, but by the whole family. Such cases should be dealt with according to a law such as this:—If any man is urged by a most unhappy impulse of anger to desire, rightly or wrongly, to expel from his own kindred one whom he has begotten and reared, he shall not be permitted to do this informally and immediately, but he shall, first of all, assemble his own kinsfolk as far as cousins and likewise his son's kinsfolk on the mother's side, and in the presence of these he shall accuse his son, showing how he deserves at the hands of all to be expelled from the family, and he shall grant to the son an equal length of time for arguing that he does not deserve to suffer any such treatment; and if the father convinces them and gains the votes of more than half the family (votes being given by all the other adults of both sexes, save only the father, the mother, and the son who is defendant), in this way and on these conditions, but not otherwise, the father shall be permitted to disinherit his son. And as regards the man disinherited, if any citizen desires to adopt him as his son, no law shall prevent him from doing so, (for the characters of the young naturally undergo many changes during their life); but if within ten years no one offers to adopt the disinherited man, then the controllers of the surplus children designed for emigration shall take control of these persons also, in order that they may be duly included in the same scheme of emigration. And if a man becomes unusually demented owing to illness or old age or crabbedness, or a combination of these complaints, but his condition remains unnoticed by all except those who are living with him, and if he regards himself as master of his own property and wastes his goods, while his son feels at a loss and scruples to indict him for insanity,—in

such a case a law shall be enacted on behalf of the son whereby he shall, in the first instance, go to the eldest of the Law-wardens and report to them his father's condition, and they, after full enquiry, shall advise whether or not he ought to bring an indictment; and if they advise him to bring an indictment, they shall act for him, when he brings it, both as witnesses and advocates; and the father that is convicted shall thenceforward have no power to administer even the smallest tittle of his property, and shall be counted as a child in the house for the rest of his life.

Ath. If a man and his wife, being of unhappy dispositions, in no wise agree together, it is right that they should be under the constant control of ten members of the Board of Law-wardens, of middle age, together with ten of the women in charge of marriage.[464] If these officials are able to bring about a reconciliation, this arrangement shall hold good; but if their passions rage too high for harmony, the officials shall, so far as possible, seek out other suitable unions for each of them. And since it is probable that such persons are not of a gentle disposition, they must endeavor to yoke with them dispositions that are more gentle and sedate[465]. If those who quarrel are childless, or have but few children, they must form unions with a view to children; but if they have children enough, then the object both of the separation and of the new union should be to obtain companionship and mutual assistance in old age. If a man's wife dies, leaving both male and female children, there shall be a law, advisory rather than compulsory, directing the husband to rear the children without introducing a step-mother; but if there be no children, the widower must of necessity marry, until he has begotten children sufficient alike for his household and the State. And if the husband dies, leaving sufficient children, the mother of the children shall remain there and rear them; but if it be deemed that she is unduly young to be able to live healthfully without a husband, the relatives shall report the case to the women in charge of marriage, and shall take such action as may seem good to them and to themselves; and if there be a lack of children, they shall also act with a view to the supply of children; and the number which constitutes a bare sufficiency of children shall be fixed by the law at one of each sex. Whenever, in spite of agreement as to who a child's parents are, a decision is required as to which parent the child should follow, the rule is this[466]: in all cases where a slave-woman has been mated with

[464] Cp. *Plat. Laws 784a.*, *Plat. Laws 794b.*

[465] Cp. *Plat. Laws 773c.*

a slave or with a free man or a freedman, the child shall belong to the slave-woman's master; but if a free woman mates with a slave, the issue shall belong to the slave's master; and if the child be a master's by his own slave-woman, or a mistress's by her own slave, and the facts of the case are quite clear, then the women officials shall send away the woman's child, together with its father, to another country, and the Law-wardens shall send away the man's child, together with its mother. Neglect of parents is a thing that no god nor any right-minded man would ever recommend to anyone; and one ought to recognize how fitly a prelude of the following kind, dealing with worship paid to the gods, would apply to the honors and dishonors paid to parents:—

Ath. The ancient laws of all men concerning the gods are two-fold: some of the gods whom we honor we see clearly[467], but of others we set up statues as images, and we believe that when we worship these, lifeless though they be, the living gods beyond feel great good-will towards us and gratitude. So if any man has a father or a mother, or one of their fathers or mothers, in his house laid up bed-ridden with age, let him never suppose that, while he has such a figure as this upon his hearth, any statue could be more potent, if so be that its owner tends it duly and rightly.

Clin. And what do you say is the right way?

Ath. I will tell you: for in truth, my friends, matters of this sort deserve a hearing.

Clin. Say on.

Ath. Oedipus, when he was dishonored (so our story runs), invoked upon his children curses[468] which, as all men allege, were granted by Heaven and fulfilled; and we tell how Amyntor in his wrath cursed his son Phoenix,[469] and Theseus cursed Hippolytus,[470] and countless other parents cursed countless other sons, which curses of parents upon sons it is clearly proved that the gods grant; for a parent's curse laid upon his children is more potent than any other man's curse against any other, and most justly so. Let no man suppose, then, that when a father or a mother is dishonored by the children, in that case it is

[466]The object of this rule dealing with irregular connections between free citizens and slaves is to prevent any of slave descent acquiring rights of property in the State.

[467]i.e. the stars; cp. *Plat. Laws 821b.*

[468]Cp. *Aesch. Seven 709 ff.*; *Soph. OC 1432 ff.*

[469]Cp. *Hom. Il. 9.446 ff.*: Phoenix, to avenge his neglected mother, seduced his father's mistress.

[470]Cp. *Plat. Laws 687e*, *Eur. Hipp. 884 ff.* : Hippolytus was falsely charged with dishonoring his step-mother, Phaedra.

natural for God to hearken especially to their prayers, whereas when the parent is honored and is highly pleased and earnestly prays the gods, in consequence, to bless his children—are we not to suppose that they hearken equally to prayers of this kind, and grant them to us? For if not, they could never be just dispensers of blessings; and that, as we assert, would be most unbecoming in gods.

Clin. Most, indeed.

Ath. Let us maintain, then,—as we said a moment ago—that in the eyes of the gods we can possess no image more worthy of honor, than a father or forefather laid up with old age, or a mother in the same condition; whom when a man worships with gifts of honor, God is well pleased, for otherwise He would not grant their prayers. For the shrine which is an ancestor is marvellous in our eyes, far beyond that which is a lifeless thing; for while those which are alive pray for us when tended by us and pray against us when dishonored, the lifeless images do neither; so that if a man rightly treats his father and forefather and all such ancestors, he will possess images potent above all others to win for him a heaven-blest lot.[471]

Clin. Most excellent!

Ath. Every right-minded man fears and respects the prayers of parents, knowing that many times in many cases they have proved effective. And since this is the ordinance of nature, to good men aged forefathers are a heavenly treasure while they live, up to the very last hours of life, and when they depart they are sorely regretted; but to the bad are truly fearsome. Therefore let every man, in obedience to these counsels, honor his own parents with all the due legal honors. If however, "report convicts"[472] any of deafness to such preludes, the following law will be enacted rightly to deal with them:—If any person in this State be unduly neglectful of his parents,[473] and fail to consider them in all things more than his sons or any of his offspring, or even himself, and to fulfil their wishes, let the parent who suffers any such neglect report it, either in person or by a messenger, to the three eldest Law-wardens, and to three of the women in charge of marriage; and these shall take the matter in hand, and shall punish the wrongdoers with stripes and imprisonment if they are still young—up to the age of thirty if they are men, while if they are women they shall suffer similar punishment up to the age of forty. And if, when they have

[471] Cp. *Plat. Laws 931a.*

[472] Alluding to Pindar's phrase (*Ol.* 7. 18) *ὁ δ' ὄλβιος ὃν φᾶμαι κατέχοντ' ἀγαθαί.* Cp. *Eur. Hipp. 1466.*

[473] Cp. *Plat. Laws 717d*, *Plat. Laws 881d.*

passed these limits of age, they do not desist from the same acts of neglect towards their parents, but in some cases maltreat them, they shall be summoned before a court of 101 citizens, who shall be the oldest citizens all; and if a man be convicted, the court shall assess what his fine or punishment must be, regarding no penalty as excluded which man can suffer or pay. If any parent when maltreated is unable to report the fact, that free man who hears of it shall inform the magistrate, failing which he shall be esteemed base, and shall be liable to an action for damage at the hands of anyone who chooses. If a slave gives information he shall be set free: he shall be set free by the Board of Magistrates if he be a slave of either the injured party or the injurers; but if he belong to any other citizen, the State Treasury shall pay his owner a price for him; and the magistrates shall take care that no one does injury to such a man in revenge for his giving information. We have already[474] dealt fully with cases where one man injures another by poisons so that death is the result; but we have not as yet dealt fully with any of the minor cases in which willful and deliberate injury is caused by means of potions, foods, and unguents. A division in our treatment of poisoning cases is required by the fact that, following the nature of mankind, they are of two distinct types.

Ath. The type that we have now expressly mentioned is that in which injury is done to bodies by bodies according to nature's laws. Distinct from this is the type which, by means of sorceries and incantations and spells (as they are called), not only convinces those who attempt to cause injury that they really can do so, but convinces also their victims that they certainly are being injured by those who possess the power of bewitchment. In respect of all such matters it is neither easy to perceive what is the real truth, nor, if one does perceive it, is it easy to convince others. And it is futile to approach the souls of men who view one another with dark suspicion if they happen to see images of molded wax at doorways, or at points where three ways meet, or it may be at the tomb of some ancestor, to bid them make light of all such portents, when we ourselves hold no clear opinion concerning them. Consequently, we shall divide the law about poisoning under two heads, according to the modes in which the attempt is made,[475] and, as a preliminary, we shall entreat, exhort, and advise that no one must attempt to commit such an act, or to frighten the mass of men, like children, with bogeys, and so compel the legislator and the judge

[474] *Plat. Laws 869e.*

[475] i.e. attacking the mind or body.

to cure men of such fears, inasmuch as, first, the man who attempts poisoning knows not what he is doing either in regard to bodies (unless he be a medical expert) or in respect of sorceries (unless he be a prophet or diviner). So this statement shall stand as the law about poisoning:—Whosoever shall poison any person so as to cause an injury not fatal either to the person himself or to his employes, or so as to cause an injury fatal or not fatal to his flocks or to his hives,—if the agent be a doctor, and if he be convicted of poisoning, he shall be punished by death; but if he be a lay person, the court shall assess in his case what he shall suffer or pay. And if it be held that a man is acting like an injurer by the use of spells, incantations, or any such mode of poisoning, if he be a prophet or diviner, he shall be put to death; but if he be ignorant of the prophetic art, he shall be dealt with in the same way as a layman convicted of poisoning,—that is to say, the court shall assess in his case also what shall seem to them right for him to suffer or pay.

Ath. In all cases where one man causes damage to another by acts of robbery[476] or violence, if the damage be great, he shall pay a large sum as compensation to the damaged party, and a small sum if the damage be small; and as a general rule, every man shall in every case pay a sum equal to the damage done, until the loss is made good; and, in addition to this, every man shall pay the penalty which is attached to his crime by way of corrective. The penalty shall be lighter in the case of one who has done wrong owing to another's folly—the wrong-doer being overpersuaded because of his youth or for some such reason; and it shall be heavier when man has done wrong owing to his own folly, because of his incontinence in respect of pleasures and pains and the overpowering influence of craven fears or of incurable desires, envies and rages. And he shall pay the penalty, not because of the wrongdoing,—for what is done can never be undone,—but in order that for the future both he himself and those who behold his punishment may either utterly loathe his sin or at least renounce[477] to a great extent such lamentable conduct. For all these reasons and with a view to all these objects, the law, like a good archer, must aim in each case at the amount of the punishment, and above all at its fitting amount; and the judge must assist the lawgiver in carrying out this same task, whenever the law entrusts to him the assessment of what the defendant is to suffer or pay, while the lawgiver, like a draughtsman, must give a sketch in outline

[476] Cp. *Plat. Laws 857a.*
[477] Cp. *Plat. Laws 862d.*

of cases which illustrate the rules of the written code. And that, O Megillus and Clinias, is the task which we must now execute as fairly and well as we can: we must state what penalties should be ordained for all cases of robbery and violence, in so far as the gods and sons of gods may suffer us to ordain them by law. If any be a madman, he shall not appear openly in the city; the relatives of such persons shall keep them indoors, employing whatever means they know of, or else they shall pay a penalty; a person belonging to the highest property-class shall pay a hundred drachmae, whether the man he is neglecting be a free man or a slave,—one belonging to the second class shall pay four-fifths of a mina—one of the third class, three-fifths,—and one of the fourth class, two-fifths. There are many and various forms of madness: in the cases now mentioned it is caused by disease, but cases also occur where it is due to the natural growth and fostering of an evil temper, by which men in the course of a trifling quarrel abuse one another slanderously with loud cries— a thing which is unseemly and totally out of place in a well-regulated State. Concerning abuse there shall be this one law to cover all cases:—No one shall abuse anyone. If one is disputing with another in argument, he shall either speak or listen, and he shall wholly refrain from abusing either the disputant or the bystanders.

Ath. For from those light things, words, there spring in deed things most heavy to bear, even hatreds and feuds, when men begin by cursing one another and foully abusing one another in the manner of fish-wives; and the man who utters such words is gratifying a thing most ungracious and sating his passion with foul foods, and by thus brutalizing afresh that part of his soul which once was humanized by education, he makes a wild beast of himself through his rancorous life, and wins only gall for gratitude from his passion. In such disputes all men are commonly wont to proceed to indulge in ridicule of their opponent; but everyone who has ever yet indulged in this practice has either failed to achieve a virtuous disposition, or else has lost in great measure his former high-mindedness. No man, therefore, shall ever in any wise utter such words in any holy place or at any public sacrifice or public games, or in the market or the court or any public assembly; in every such case the magistrate concerned shall punish the offender; or, if he fail to do so, he shall be disqualified for any public distinction because of his neglect of the laws and his failure to execute the injunctions of the lawgiver. And if in other places a man abstains not from such language—whether he be the aggressor or acting in self-defence—whosoever meets with him, if he be an older man, shall vindicate the

law by driving off with stripes the man who pamper passion, that evil comrade; or, if he fail to do so, he shall be liable to the appointed penalty. We are now asserting that a man who is gripped by the habit of abuse cannot avoid trying to indulge in ridicule; and this is a thing we abuse when it is uttered in passion. What then? Are we to countenance the readiness to ridicule people which is shown by comic writers,[478] provided that in their comedies they employ this sort of language about citizens without any show of passion? Or shall we divide ridicule under the two heads of jest and earnest, and allow anyone to ridicule any other in jest and without passion,[479] but forbid anyone (as we have already said) to do so in real earnest and with passion? We must by no means go back on what we said; but we must determine by law who is to be granted this permission, and who refused.

Ath. A composer of a comedy or of any iambic or lyric song shall be strictly forbidden to ridicule any of the citizens either by word or by mimicry,[480] whether with or without passion; and if anyone disobeys, the Presidents of the Games shall on the same day banish him wholly from the country, failing which they shall be fined three minas, dedicated to the god whose festival is being held. Those to whom permission has been given, as we previously said,[481] to write songs about one another shall be allowed to ridicule others in jest and without passion; but they shall not be allowed to do so with passion and in earnest. The task of making this distinction shall be entrusted to the minister in charge of the general education of the young: whatever he shall approve, the composer shall be allowed to produce in public, but whatever he shall disapprove, the composer shall be forbidden either personally to exhibit to anyone or to be found teaching to any other person, free man or slave; and if he does so, he shall be held to be a base man and disobedient to the laws. The man who suffers from hunger or the like is not the man who deserves pity, but he who, while possessing temperance or virtue of some sort, or a share thereof gains in addition evil fortune; wherefore it would be a strange thing indeed if in a polity and State that is even moderately well organized, a man of this kind (be he slave or free man) should be so entirely neglected as to come to utter beggary. Wherefore the Lawgiver will be safe in enacting for such cases some such law as this:— There shall be no beggar in our State; and if anyone attempts to beg, and to collect a livelihood by

[478] Cp. *Plat. Rep. 394 ff.*, *Plat. Rep. 606 ff.*
[479] Cp. *Plat. Phileb. 49e ff.*
[480] Cp. *Aristot. Nic. Eth. 1128a 20 ff.*; *Aristot. Pol. 1336b.2ff.*
[481] Cp. *Plat. Laws 816e*, *Plat. Laws 829c*, *Plat. Laws 829d.*

ceaseless prayers, the market-stewards shall expel him from the market, and the Board of city-stewards from the city, and from any other district he shall be driven across the border by the country-stewards, to the end that the land may be wholly purged of such a creature. If a slave, male or female, do any injury to another man's goods, when the injured man himself has had no share in causing the injury through his own clumsy or careless handling, then the master of him that has done the injury shall fully make good the damage, or else shall hand over the person of the injurer: but if the master brings a charge affirming that the claim is made in order to rob him of his slave by a privy agreement between the injurer and the injured party, then he shall prosecute the man who claims that he has been injured on the charge of conspiracy; and if he wins his case, he shall receive double the price at which the court shall assess the slave, but if he loses he shall not only make good the damage, but he shall also hand over the slave. And if it be a mule or horse or dog any other animal that causes damage to any property belonging to a neighbor, its master shall in like manner pay compensation.

Ath. If anyone is unwilling to act as witness, the man who requires his evidence shall summon him, and the man so summoned shall attend the trial, and if he knows the facts and is willing to give evidence, he shall give it; but in case he denies knowledge, he shall take an oath by the three gods, Zeus, Apollo, and Themis, that of a truth he has no knowledge, and this done, he shall be dismissed from the suit. And if a man summoned as witness does not attend with his summoner, he shall be legally liable to be sued for damages. And if one of the judges be summoned as a witness, he shall not vote at the trial after giving evidence. A free woman, if she be over forty years old, shall be allowed to give evidence to support a plea, and if she have no husband, she shall be allowed to bring an action; but if she have a husband alive, she shall only be allowed to give evidence. A male or female slave and a child shall be allowed to give evidence and support a plea in murder cases only, provided that they furnish a substantial security that, if their evidence be denounced as false, they will remain until the trial. Either of the opposing parties in a suit may denounce all or part of the evidence, provided that he claims that false witness has been given before the action is finally decided; and the magistrates shall keep the denunciations, when they have been sealed by both parties, and shall produce them at the trial for false witness. If any person be twice convicted of false witness, no law shall compel him any longer to bear witness, and if thrice, he shall not be allowed to bear witness

any longer; and if after three convictions, a man dare to bear witness, whoso wishes shall report him to the magistrates, and they shall hand him over to the court, and if he be found guilty, he shall be punished with death. In the case of all those whose evidence is condemned at the trial,—they being adjudged to have given false witness and thus to have caused the victory of the winner,—if more than the half of their evidence be condemned, the action that was lost because of them shall be annulled, and there shall be a disputation and a trial as to whether the action was or was not decided on the evidence in question; and by the verdict then given, whichever way it goes, the result of the previous actions shall be finally determined. Although there are many fair things in human life, yet to most of them there clings a kind of canker which poisons and corrupts them. None would deny that justice between men is a fair thing, and that it has civilized all human affairs. And if justice be fair, how can we deny that pleading is also a fair thing? But these fair things are in disrepute owing to a kind of foul art, which, cloaking itself under a fair name,[482] claims, first, that there exists a device for dealing with lawsuits, and further, that it is the one which is able, by pleading and helping another to plead, to win the victory, whether the pleas concerned be just or unjust;

Ath. and it also asserts that both this art itself and the arguments which proceed from it are a gift offered to any man who gives money in exchange. This art—whether it be really an art or merely an artless trick got by habit and practice[483]—must never, if possible, arise in our State; and when the lawgiver demands compliance and no contradiction of justice, or the removal of such artists to another country,—if they comply, the law for its part shall keep silence, but if they fail to comply, its pronouncement shall be this:—If anyone be held to be trying to reverse the force of just pleas in the minds of the judges, or to be multiplying suits unduly or aiding others to do so, whoso wishes shall indict him for perverse procedure or aiding in perverse procedure, and he shall be tried before the court of select judges; and if he be convicted, the court shall determine whether he seems to be acting from avarice or from ambition; and if from the latter, the court shall determine for how long a period such an one shall be precluded from bringing action against anyone, or aiding anyone to do so; while if avarice be his motive, if he be an alien he shall be sent out of the country and forbidden to return on pain of death, but if he be a citizen

[482] i.e. "Rhetoric."

[483] Cp. *Plat. Gorg. 463b ff.*

he shall be put to death because of his unscrupulous devotion to the pursuit of gain. And anyone who has twice been pronounced guilty of committing such an act from ambition shall be put to death.

Book 12

Ath. If anyone, while acting as ambassador or herald, conveys false messages from his State to another State, or fails to deliver the actual message he was sent to deliver, or is proved to have brought back, as ambassador or herald, either from a friendly or hostile nation, their reply in a false form,—against all such there shall be laid an indictment for breaking the law by sinning against the sacred messages and injunctions of Hermes[484] and Zeus, and an assessment shall be made of the penalty they shall suffer or pay, if convicted. Theft of property is uncivilized, open robbery is shameless: neither of these has any of the sons of Zeus practiced, through delight in fraud or force. Let no man, therefore, be deluded concerning this or persuaded either by poets or by any perverse myth-mongers into the belief that, when he thieves or forcibly robs, he is doing nothing shameful, but just what the gods themselves do.[485] That is both unlikely and untrue; and whoever acts thus unlawfully is neither a god at all nor a child of gods; and this the lawgiver, as it behoves him, knows better than the whole tribe of poets. He, therefore, that hearkens to our speech is blessed, and deserves blessing for all time; but he that hearkens not shall, in the next place, be holden by this law:—If anyone steals any piece of public property, he shall receive the same punishment, be it great or small. For he that steals a small thing steals with equal greed, though with less power, while he that takes a large thing which he has not deposited does wrong to the full; wherefore the law deems it right not to inflict a less penalty on the one offender than on the other on the ground that his theft is smaller, but rather because the one is possibly still curable,

[484] Son, and herald, of Zeus, and a master of speech (and of lies).

[485] Cp. *Plat. Rep 378 ff.*, *Plat. Rep. 388 ff.* Hermes is specially in mind, as notorious for his thefts and frauds; cp. Homer *Iliad* 5. 390; 24. 395, etc.

the other incurable.

Ath. So if anyone convict in a court of law either a resident alien or a slave of stealing any piece of public property, in his case, since he is probably curable, the court shall decide what punishment he shall suffer or what fine he shall pay. But in the case of a citizen, who has been reared in the way he is to be reared,—if he be convicted of plundering or doing violence to his fatherland, whether he has been caught in the act or not, he shall be punished by death,[486] as being practically incurable. Military organization is the subject of much consultation and of many appropriate laws. The main principle is this—that nobody, male or female, should ever be left without control, nor should anyone, whether at work or in play, grow habituated in mind to acting alone and on his own initiative, but he should live always, both in war and peace, with his eyes fixed constantly on his commander and following his lead; and he should be guided by him even in the smallest detail of his actions—for example, to stand at the word of command, and to march, and to exercise, to wash and eat, to wake up at night for sentry-duty and despatch-carrying, and in moments of danger to wait for the commander's signal before either pursuing or retreating before an enemy; and, in a word, he must instruct his soul by habituation to avoid all thought or idea of doing anything at all apart from the rest of his company, so that the life of all shall be lived en masse and in common; for there is not, nor ever will be, any rule superior to this or better and more effective in ensuring safety and victory in war. This task of ruling, and being ruled by, others must be practiced in peace from earliest childhood;[487] but anarchy must be utterly removed from the lives of all mankind, and of the beasts also that are subject to man. Moreover, with a view to excellence in war, they shall dance all kinds of dances,[488] and with the same object they shall cultivate in general suppleness and dexterity, and endurance also in the matter of foods and drinks and cold and heat and hard beds; and, what is most important, they shall accustom themselves not to spoil the natural powers of head and feet by wrapping them in coverings of alien material, and thereby ruining the production and growth of their own natural hair and soles.

Ath. For when these extremities are conserved, they keep at its highest the power of the whole body, but they effect the opposite

[486] But cp. *Plat. Laws 857a*, b.

[487] Cp. *Plat. Laws 803c*, *Plat. Laws 803d*; *Sophocles Ant. 668 ff.*

[488] Cp. *Plat. Laws 795d.*, *Plat. Laws 829b*, *Plat. Laws 829c.*

when spoiled; and of these two extremities, the one is the chief minister of the whole body, and the other the chief master, inasmuch as, by the ordinance of nature, it contains all the leading senses of the body. Such is the laudation of the military life to which, as we hold, the youth ought to hearken, and its laws are these:—He that is enrolled or put on some rota must perform military service. If anyone, through cowardice, fail to present himself without leave from the commanders, he shall be indicted for desertion before the military officers when they return from camp, and each class of those who have served shall sit by themselves as judge—that is, hoplites, cavalry, and each of the other branches,— and they shall summon hoplites before the hoplites, cavalrymen before the cavalry, and all others in like manner before soldiers of their own class; and any man that is convicted shall be debarred from ever competing for any distinction and from ever prosecuting another for shirking service, or acting as accuser in connection with such charges; and, in addition to this, what he ought to suffer or pay shall be determined by the court. Next, when the suits for shirking service have been fully decided, the officers shall again hold a review of each class of soldiers, and he who wishes shall be tried before a court of his own colleagues on his claim for an award of merit; but any proof or verbal testimony which the claimant produces must have reference, not to any previous war, but solely to that campaign in which they have just been engaged. The prize for each class shall be a wreath of olive leaves; and this the recipient shall hang up, along with an inscription, in whatever temple of the war-gods he chooses, to serve throughout his life as a proof that he has won the first, second or third prize, as the case may be. If a man goes on military service, but returns home without leave from the officers, he shall be liable to be indicted for desertion before the same court which deals with cases of shirking service, and the same penalties which have been already prescribed shall be imposed upon him, if he is convicted. Every man, when bringing an action against another, ought rightly to dread bringing upon him, whether intentionally or unintentionally, a wrongful punishment (for Justice is, and has been truly named,[489] the daughter of Reverence, and falsehood and wrong are naturally detested by Reverence and Justice); and he should beware also of trespassing against Justice in any matter, and especially in respect of loss of arms in battle, lest by mistakenly abusing such losses as shameful, when they are really unavoidable, he

[489] Cp. *Hes. WD 192 ff.*, *Hes. WD 254 ff.*, *ἡ δὲ τε παρθένος ἐστὶ Δίκη . . . κυδρή τ' αἰδοίη τε θεοῖς κτλ.*

may bring undeserved charges against an undeserving man.

Ath. It is by no means easy to draw distinctions between such cases; but none the less the law ought to try by some means to distinguish case from case. In illustration we may cite the story of Patroclus:[490] suppose that he had been brought to his tent without his arms and had recovered—as has happened in the case of thousands,—while the arms he had had (which, as the poet relates, had been given to Peleus by the gods, as a dowry with Thetis) were in the hands of Hector,—then all the base men of those days would have been free to abuse Menoetios' son for loss of arms. Moreover, there are instances of men losing their arms through being flung down from cliffs, or on the sea, or in ravines, when overwhelmed by a sudden great rush of water, or from other mishaps, countless in number, which one could mention by way of consolation, and thereby justify an evil which lends itself to calumny. It is right, therefore, to separate, as best one can, the greater and more serious evil from its opposite. As a rule, indeed, the employment of the names in question by way of abuse admits of a distinction; for the term "shield-flinger" would not properly be applied in all cases, but rather the term "arms-dropper." For the man who by a fair amount of violence is stripped of his arms will not be as much of a "shield-flinger" as the man who has voluntarily thrown them away—rather there is a vast difference between the two cases. So let the pronouncement of the law be this:—If a man is overtaken by his enemies and, having arms, instead of turning and defending himself, voluntarily drops his arms or flings them away, thereby gaining for himself a life that is shameful by speed of foot, rather than by bravery a noble and blessed death,—concerning the arms flung away in a loss of this sort a trial shall be held, but the judge shall pass over in his enquiry a case of the kind previously described. For the bad man one must always punish, in order to better him, but not the luckless man; for that profits not. What, then, would be a proper penalty for the man who has thrown away for naught such powerful weapons of defence? A god, it is said, once changed Kaineus the Thessalian[491] from woman's shape to man's; but it is beyond human power to do the opposite of this; otherwise, the converse transformation—changing him from a man into a woman—would be, perhaps, the most appropriate of all penalties for a "shield-flinger."

[490]Cp. *Hom. Il. 16., 17. 125 ff., 18. 84 ff.* Patroclus (son of Menoetios) was wearing the arms of Achilles (son of Peleus) when slain by Hector.

[491]Cp. Ovid, *Met.* 8. 305 ff., 12. 189 ff. *Timaeus* 90 E.

Ath. As it is, to get the nearest possible approach to this, because of the man's love of life at any price, and to secure that for the rest of his life he may run no risk, but may live saddled with this disgrace as long as possible,—the law dealing with such cases shall be this:—If any man be convicted on a charge of shamefully throwing away his military weapons, no general or other military officer shall ever employ him as a soldier or post him to any rank; otherwise, the examiner shall fine the officer who posts the coward 1000 drachmae, if he be of the highest property-class,—if of the second class, five minas,—if of the third, three minas,—if of the fourth, one mina. And the soldier who is convicted of the charge, in addition to being debarred, as his own nature requires, from manly risks, shall also pay back his wage—1000 drachmae, if he be of the highest class,—if of the second, five minas,— if of the third, three,—and if of the fourth, one mina, just as in the previous cases. Respecting examiners,[492] what would be a proper statement for us to make, seeing that some of the magistrates are appointed by the hazard of the lot and for a year, while others are appointed for several years and chosen out of a number of selected persons? Of such, who will be a competent examiner, in the event of any one of them acting at all crookedly through being burdened by the weight of his office and his own inability to support it worthily? It is by no means easy to find an officer of officers, who surpasses them in excellence, but still one must try to find some examiners of a divine quality. In fact, the case stands thus:—The dissolution of a polity, like that of a ship's frame, depends upon many critical factors: these (in the case of a ship) though one in nature are separated into many parts, and we call them by many names—such as stays, under-girders, bracing-ropes. For the preservation, or dissolution and disappearance, of a polity the office of examiner is such a critical factor, and that of the gravest kind. For if those who act as examiners of the magistrates are better men than they, and if they act blamelessly with blameless justice, then the whole of the State and country flourishes and is happy; but if the examination of the magistrates is carried out otherwise, then the bond of justice which binds all political elements into one is dissolved, and in consequence every office is torn apart from every other, and they no longer tend all to the same end; and thus out of one State they make many,[493] and by filling it with civil strife they speedily bring it to ruin.

[492] i.e. persons appointed to audit the accounts and scrutinize the conduct of public officials at the expiry of their term of office. Note the play on the literal sense of *εὐθυντής*, straightener (of "crooked" actions).

Wherefore it is most necessary that the examiners should be men of admirably complete virtue.

Ath. Let us contrive to bring them into being in some such way as this:—Every year, after the summer solstice,[494] the whole State must assemble at the common precincts of Helios and Apollo, there to present before the god the names of three out of their own number,—each citizen proposing that man, not less than fifty years old, whom (with the exception of himself) he regards as in all respects the best. Of those so nominated they shall choose out those who have gained most votes—half of the total number nominated, if that number be even, but if it be an odd number, they shall reject the one who has least votes and retain the even half, marking them off according to the number of the votes received; and if several have an equal number of votes, thus causing the upper half-section to be too large, they shall remove the excess by rejecting those that are youngest; the rest being retained on the list, they shall vote again on these, and they shall continue the same process until three be left with an unequal number of votes. If, however, all of these, or two of them, have equal votes, they shall commit the matter to good luck and chance, and distinguish by lot between the first, the second, and the third, and crown them with olive-wreaths; and when they have thus awarded the distinctions, they shall make this public proclamation:—The State of the Magnetes,—which, by God's grace, has again won salvation,—has presented to Helios the three best of its own men, and now it dedicates them, according to the ancient law, as a joint offering to Apollo and Helios of its choicest first fruits, for so long a time as they pursue their judicial task. Twelve such examiners shall be appointed in the first year, until each of them has come to the age of seventy-five; and thereafter three shall be added annually. And they, after dividing all the public offices into twelve sections, shall employ all tests, of a gentlemanly kind, in investigating them. So long as they are serving as examiners, they shall reside within the precincts of Apollo and Helios, where they were chosen. When they have judged—either each one singly or in consultation with one another—the State officials, they shall publish, by means of records placed in the market, a statement concerning what each official should suffer or pay according to the decision of the examiners. If any official claims that he has not been judged justly, he shall summon the examiners before the select judges;[495] and if he be acquitted in respect

[493] Cp. *Plat. Rep. 422e.*

[494] Cp. *Plat. Laws 767c*, *Plat. Laws 767d.*

of the examiners' charges, he shall, if he wishes, prosecute the examiners themselves; but if he be convicted, in case the penalty imposed on him by the examiners be death, he shall simply be put to death (one death only being possible), but in the case of other penalties which admit of being doubled, he shall pay a double penalty. As regards the examinations of these examiners themselves, it is right for us to hear what they are to be, and how they are to be conducted.

Ath. During their lifetime these men, who have been deemed worthy of the highest distinction by the whole State, shall have the front seats at every festival; and from their number, too, shall be chosen the heads of every sacred mission sent out to take part in any public sacrifices, congresses or other such sacred assemblies of the Hellenes; and these alone of all the citizens shall be adorned with a crown of laurel; and they all shall be priests of Apollo and Helios, and every year that one of them who has been adjudged first of those appointed in that year shall be the high-priest, and his name they shall inscribe at the head of the year, that it may serve as a measure of the date, so long as the State remains. When they die, their laying-out, funeral and interment shall be different from that of other citizens: nothing but white raiment shall be used at it, and there shall be no dirges or lamentations; a choir of girls and another of boys shall stand round the bier, and they shall chant alternately a laudation for the priests in the form of a hymn in verse, glorifying them with their hymnody all the day long; and at the next dawn the bier itself shall be borne to the tomb by a hundred of the young men who attend the gymnasia,—they being selected by the relatives of the dead man,—and the procession shall be led by the men of war, all clad in their proper military garb,—cavalry with their horses, hoplites with their weapons, and the rest in like manner; and round about the bier the boys, being in front, shall sing their national anthem, and behind them the girls shall follow singing, and all the women who have passed the age of child-bearing; and next shall follow the priests and priestesses as to a tomb that is sanctified—yea, though they be debarred from approaching all other tombs,—if so be that the voice of the Pythian [496] approves that thus it shall be. Their tomb shall be constructed under ground, in the form of an oblong vault of spongy stone, as long-lasting as possible, and fitted with couches of stone set side by side; in this when they have laid him who is gone to his rest, they shall make a mound in a circle round it and plant thereon

[495] Cp. *Plat. Laws 855c*, *Plat. Laws 926d.*

[496] The priestess of Apollo at Delphi; cp. *Plat. Rep. 461e.*

a grove of trees, save only at one extremity, so that at that point the tomb may for all time admit of enlargement, in case there be need of additional mounds for the buried. And every year contests of music, gymnastics and horse-racing shall be held in their honor.

Ath. These shall be the rewards for those who have passed the scrutiny of examiners. But if any of these examiners, relying on the fact of his election, shall give proof of human frailty by becoming evil after his election, the law shall enjoin on him who wishes to indict him, and the trial shall take place in the court after this manner:— The court shall be composed first of Law-wardens, next of the living[497] members of the body of examiners themselves, and, in addition to these, of the Bench of select judges;[498] and he who indicts anyone shall state in his indictment that the person in question is unworthy of his distinctions and of his office; and if the defendant be convicted, he shall be deprived of his office and of his tomb, and of the other privileges granted to him; but if the prosecutor fails to gain one-fifth of the votes, he shall pay twelve minas if he be of the highest class,— if of the second, eight,— if of the third, six,—and if of the fourth, two minas. Rhadamanthys deserves admiration for the way in which, as we are told, he judged cases of law, in that he perceived that the men of his time had a clear belief in the existence of gods,—and naturally so, seeing that most men at that time were the offspring of gods, he himself among others, as the story declares. Probably he thought that he ought not to entrust lawsuits to any man, but only to gods, from whom he obtained verdicts that were both simple and speedy; for he administered an oath to the disputants regarding each matter in dispute, and thus secured a speedy and safe settlement. But nowadays, when, as we say,[499] a certain section of mankind totally disbelieve in gods, and others hold that they pay no regard to us men, while a third party, consisting of the most and worst of men, suppose that in return for small offerings and flatteries the gods lend them aid in committing large robberies, and often set them free from great penalties,—under such conditions, for men as they now are, the device of Rhadamanthys would no longer be appropriate in actions at law. Since, therefore, the opinions of men about the gods have changed, so also must their laws change. In legal actions laws that are framed intelligently ought to debar both litigants from taking oaths; he that is bringing an action against anyone ought

[497] i.e. after superannuation.

[498] Cp. *Plat. Laws 855c.*

[499] Cp. *Plat. Laws 886d ff.*, *Plat. Laws 891b.*

to write down his charges, but swear no oath, and the defendant in like manner ought to write down his denial and hand it to the magistrates without an oath. For truly it is a horrible thing to know full well that, inasmuch as lawsuits are frequent in a State, well-nigh half the citizens are perjurers, although they have no scruple in associating with one another at common meals and at other public and private gatherings.

Ath. So it shall be laid down by law that a judge shall take an oath when he is about to give judgment, and likewise oaths shall be taken by him who is appointing public officials by voting under oath or by bringing his votes from a sacred spot, and by the judge of choirs or of any musical performance, and by the presidents and umpires of gymnastic and horse-racing contests, or of any matters which do not, in human opinion, bring gain to him who commits perjury. But in all cases where it obviously appears that a large gain will accrue to him who denies stoutly and swears ignorance, all the contending parties must be judged by trials without oaths. And in general, during a trial, the presidents of the court shall not permit a man to speak under oath for the sake of gaining credence, or to imprecate curses upon himself and his family, or to make use of unseemly supplications and womanish sobbings, but only and always to state and hear what is just in proper language;[500] otherwise, the magistrate shall check him for digressing from the point, and shall call him back to deal with the matter in hand. In the case of resident aliens dealing with aliens, it shall be permitted them, as now, to give and receive oaths of a binding character one from another, if so they choose,— for these men will not grow old in the State[501] nor, as a rule, will they make their nest in it, and rear up others like themselves to become naturalized in the country; and in respect of the private actions they bring against one another, they shall all have the same privilege during the trial. In all cases where a free man disobeys the State, not by acts deserving of stripes, imprisonment or death, but in respect of matters such as attendance at festivals or processions or public ceremonies of a similar kind— matters involving either a sacrifice in peace or a contribution in time of war,— in all such cases the first necessity is to assess the penalty; in case of disobedience, those officers whom the State and the law appoint to exact the penalty shall take a pledge; and if any disregard the pledgings, the things pledged shall be sold, and the price shall go to the State; and if a greater penalty be required, the official proper in each case shall

[500] Cp. *Plat. Laws 934e.*
[501] Cp. *Plat. Laws 850b.*

impose on the disobedient the suitable penalties and shall summon them before the court, until they consent to do what they are bidden. For a State which makes no money except from the produce of its soil, and which does not engage in commerce, it is necessary to determine what action it ought to take regarding the emigration of its citizens to outside countries and the admission of aliens from elsewhere. In giving counsel concerning these matters the lawgiver must begin by using persuasion, so far as he can.

ΑΘ. The intermixture of States with States naturally results in a blending of characters of every kind, as strangers import among strangers novel customs:[502] and this result would cause immense damage to peoples who enjoy a good polity under right laws; but the majority of States are by no means well governed, so that to them it makes no difference if their population is mixed through the citizens admitting strangers and through their own members visiting other States whenever any one of them, young or old, at any time or place, desires to go abroad. Now for the citizens to refuse altogether either to admit others or to go abroad themselves is by no means a possible policy, and, moreover, it would appear to the rest of the world to be both churlish and cross-grained, since they would get the reputation of adopting harsh language, such as that of the so-called "Aliens Expulsion Acts,"[503] and methods both tyrannical and severe; and reputation in the eyes of others, whether for goodness or the reverse, is a thing that should never be lightly esteemed. For the majority of men, even though they be far removed from real goodness themselves, are not equally lacking in the power of judging whether others are bad or good; and even in the wicked there resides a divine and correct intuition,[504] whereby a vast number even of the extremely wicked distinguish aright, in their speech and opinions, between the better men and the worse. Accordingly, for most States, the exhortation to value highly a good public reputation is a right exhortation. The most correct and most important rule is this,—that the man who pursues after a good reputation should himself be truly good, and that he should never pursue it without goodness (if he is to be really a perfect man); and furthermore, as regards the State we are founding in Crete, it would well become it to gain for itself in the eyes of the rest of the world the best and noblest reputation possible for goodness; and if it develop according

[502]Cp. *Plat. Laws 704e.*

[503]By a law of Lycurgus, strangers were forbidden to reside at Sparta; cp. Aristophanes *Av.* 1012 *ὥσπερ ἐν Λακεδαίμον ξενηλατοῦνται.*

[504]Cp.*Plat. Meno 99b ff*, *Plat. Meno 99c ff.*

to plan, there is every hope that, as is natural, it (and but few others) will be numbered among the well-ordered States and countries upon which the Sun and all the other gods look down. In regard, therefore, to the question of going abroad to other lands and places and of the admission of foreigners we must act as follows:—First, no man under forty years old shall be permitted to go abroad to any place whatsoever; next, no man shall be permitted to go abroad in a private capacity, but in a public capacity permission shall be granted to heralds, embassies, and certain commissions of inspection. Military expeditions in war it would be improper to reckon among official visits abroad.

AΘ. It is right that embassies should be sent to Apollo at Pytho and to Zeus at Olympia, and to Nemea and the Isthmus, to take part in the sacrifices and games in honor of these gods; and it is right also that the ambassadors thus sent should be, so far as is practicable, as numerous, noble and good as possible,—men who will gain for the State a high reputation in the sacred congresses of peace, and confer on it a glorious repute that will rival that of its warriors; and these men, when they return home, will teach the youth that the political institutions of other countries are inferior to their own. Also, they ought to send out other inspecting commissioners (when they have obtained leave from the Law-wardens) of the following kind:—If any of the citizens desire to survey the doings of the outside world in a leisurely way, no law shall prevent them; for a State that is without experience of bad men and good would never be able (owing to its isolation) to become fully civilized and perfect, nor would it be able to safeguard its laws unless it grasped them, not by habit only, but also by conviction.[505] Amongst the mass of men there always exist—albeit in small numbers—men that are divinely inspired; intercourse with such men is of the greatest value, and they spring up in badly-governed States just as much as in those that are well governed. In search of these men it is always right for one who dwells in a well-ordered State to go forth on a voyage of enquiry by land and sea, if so be that he himself is incorruptible, so as to confirm thereby such of his native laws as are rightly enacted, and to amend any that are deficient. For without this inspection and enquiry a State will not permanently remain perfect, nor again if the inspection be badly conducted.

Clin. How, then, might both these objects be secured?

Ath. In this way. First, our overseas inspector shall be more than fifty years old; secondly, he shall have proved himself a man of high

[505] Cp. *Plat. Rep. 619a.*

repute both in military and other affairs, if it is intended that he shall be despatched into other States with the approval of the Law-wardens; but when he has passed sixty years of age, he shall cease to act as inspector. When he has been inspecting for as many years out of the ten as he wishes and has returned home, he shall go to the synod[506] of those who supervise the laws; and this synod shall be a mixed body of young men and old which is obliged to meet every day between dawn and sunrise;[507] it shall consist, first, of the priests who have gained the award of merit,[508] and secondly, of the ten senior Law-wardens; and it shall also include the President of Education who has been last appointed, and his predecessors in office as well. None of these members shall go alone, but each of them shall bring with him a companion—a young man, selected by himself, between thirty and forty years old.

Ath. Their conference and discourse shall deal always with the subject of laws and of their own State, and with anything important they may have learnt elsewhere which bears on this subject, or any branches of knowledge which are thought likely to assist in their enquiry, in that the learning of them helps towards a clearer view of legal matters, whereas ignorance of them conduces to a view that is dim and blurred. Whatsoever of these matters are approved by the elder members the younger shall learn with all diligence; and should any of the young men invited to attend be deemed unworthy, the person who has invited him shall be censured by the whole synod, but such of them as are held in good repute shall be watched over by the rest of the citizens, who shall regard and observe them with special care, honoring them when they do right, but dishonoring them more than other men if they turn out worse than most. To this synod he that has inspected the legal institutions of other peoples shall repair immediately after his return home; and if he has discovered any persons able to declare any oracle regarding legislation or education or nurture, or if he has brought back any personal observations of his own, he shall communicate them to the whole synod; and if it appear that he has come back in no respect worse (nor yet any better) than when he went, still because of his extreme zeal he shall be commended; while if it appear that he has come back much better, he shall be much more highly commended during his life, and when dead, due honors shall be paid to him by the

[506] Cp. *Plat. Laws 908a*, *Plat. Laws 909a.*
[507] Cp. *Plat. Laws 807.*
[508] Cp. *Plat. Laws 946e.*

synod's authority. But if, on the other hand, such an inspector appear to be corrupted on his return, in spite of his pretensions to wisdom, he shall be forbidden to associate with anyone, young or old; wherein if he obeys the magistrates, he shall live as a private person, but if not, he shall be put to death—if, that is to say, he be convicted in a court of law of being a meddler in respect of education and the laws. And if, when such an one deserves to be summoned before a court, none of the magistrates summons him, the magistrates shall be censured at the adjudication of awards of merit. Such, then, shall be the character and the procedure of him that travels abroad. Next to him we must deal in friendly wise with the visitor from abroad. There are four types of stranger which call for mention. The first and inevitable immigrant is the one who chooses summer,[509] as a rule, for his annual visits, in the fashion of migratory birds— and, like birds, the most of these cross the sea, just as if they had wings, for the sake of making gain by their trading, and fly over to foreign cities during the summer season;

Ath. this stranger must be received, when he comes to the city, at the markets, harbors, and public buildings outside the city, by the officials in charge thereof; and they shall have a care lest any such strangers introduce any innovation, and they shall duly dispense justice to them, and shall hold such intercourse as is necessary with them, but to the least extent possible. The second type of stranger is he who is an inspector, in the literal sense, with his eyes, and with his ears also of all that appertains to musical exhibitions: for all such there must be lodgings provided at the temples, to afford them friendly accommodation, and the priests and temple-keepers must show them care and attention, until they have sojourned for a reasonable length of time and have seen and heard all that they intended; after which, if no harm has been done or suffered by them, they shall be dismissed. And for these the priests shall act as judges, in case anyone injures one of them or one of them injures anyone else, if the claim does not exceed fifty drachmae; but if any greater claim is made, the trial for such strangers must take place before the market-stewards. The third type which requires a public reception is he who comes from another country on some public business: he must be received by none but the generals, hipparchs and taxiarchs, and the care of a stranger of this kind must be entirely in the hands of the official with whom he lodges, in conjunction with the prytaneis. The fourth type of stranger comes rarely, if ever: should there, however, come at any time from another

[509] Cp. *Plat. Laws 915d.*

country an inspector similar to those we send abroad, he shall come on these conditions:—First, he shall be not less than fifty years old; and secondly, his purpose in coming must be to view some noble object which is superior in beauty to anything to be found in other States, or else to display to another State something of that description. Every visitor of this kind shall go as an unbidden guest to the doors of the rich and wise, he being both rich and wise himself; and he shall go also to the abode of the General Superintendent of Education, believing himself to be a proper guest for such a host, or to the house of one of those who have won a prize for virtue; and when he has communed with some of these, by the giving and receiving of information, he shall take his departure, with suitable gifts and distinctions bestowed on him as a friend by friends. Such are the laws in conformity with which they must receive all strangers, of either sex, from another country, and send out their own citizens; thus doing honor to Zeus, Patron of Strangers, instead of expelling strangers by means of meats and ceremonies[510] (as is now done by the nurslings of the Nile), or else by savage proclamations.[511]

Ath. If anyone gives a security, he shall give it in express terms, setting forth the whole transaction in a written record; and this he shall do before not less than three witnesses, if the amount be under 1,000 drachmae, and before not less than five, if it be over 1,000. The broker in a sale shall act as security for the seller should the latter have no real right to the goods sold or be quite unable to guarantee their possession; and the broker shall be legally liable equally with the seller. If anyone wishes to make a search[512] on any man's premises, he shall strip to his shirt and wear no girdle, and when he has first taken an oath by the appointed gods that of a truth he expects to find the object, he shall make his search; and the other man shall grant him the right to search his house, including things both sealed and unsealed. But if, when a man desires to search, the other party refuses leave, the man so prevented shall take legal proceedings, assessing the value of the object sought; and any man thus convicted shall pay as damages twice the value of the object assessed. And if the master of the house happens to be away from home, the occupants shall allow the claimant to search what is unsealed, and he that searches shall counter-seal what

[510] i.e. by forbidding their presence at ceremonial feasts; or, because (as Grote says) "the Egyptian habits as to eating and sacrifice were intolerably repulsive to a foreigner."

[511] Cp. *Plat. Laws 950a*, *Plat. Laws 950b.*

[512] Cp. Aristophanes *Nub.* 500, 966.

is sealed, and shall set any man he chooses to stand guard over it for five days; and if the master be absent longer, the claimant shall call in the city-stewards, and so make his search, in which he shall open also what is sealed, and he shall seal this up again in the same way in the presence of the household and of the city-stewards. In cases of disputed claims there must be a limit of time, after which it shall be no longer possible to dispute the claim of the person in possession. In our State no dispute is possible in respect of lands or houses; but in respect of anything else which a man has acquired, if the possessor be seen to be using it in the city, market, and temple, and if no one lays claim to it,—then if some man asserts that he has been looking for it all this time, while it is plain that its possessor has made no concealment of it, and if this goes on for a year, the possessor still keeping the article and the other man still seeking, at the expiration of the year no one shall be allowed to lay claim to its possession. And if a man uses an article openly in the country—although not in the city or market,—and if no claimant confronts him within five years, after the expiration of the five years no claim to such a possession shall be allowed. And if a man uses an article indoors in the city, the time-limit shall be three years; if he uses it in a concealed place in the country, it shall be ten years; while if it he in a foreign country, there shall be no limit of time set to making a claim, whenever it is found.

Ath. If any man forcibly prevent any person from appearing at an action at law—whether it be the person himself or his witnesses,—in case that person be a slave of his own or of another man, the action shall be null and void; and in case the person so prevented be a free man, in addition to the annulment of the action, the offender shall be imprisoned for a year and shall be liable to a charge of kidnapping at the hands of anyone who chooses. And if anyone forcibly prevents a rival competitor at a gymnastic, musical or other contest from appearing, whoso wishes shall report the fact to the Presidents of the Games, and they shall allow him that wishes to contend to enter for the contest free; but should they prove unable, in case he who prevented the competitor wins, they shall give the prize to the man prevented and shall inscribe his name as victor in whatever temples he chooses, whereas the preventer shall be forbidden to put up any tablet or inscription regarding such a contest, and he shall be liable to pay damages, whether he be defeated at the contest or be victorious. If anyone knowingly receive any stolen article, he shall be liable to the same penalty as the thief; and for the crime of receiving an exile the penalty shall be death. Everyone shall regard the friend or enemy of the State as his

own personal friend or enemy; and if anyone makes peace or war with any parties privately and without public consent, in his case also the penalty shall be death; and if any section of the State makes peace or war on its own account with any parties, the generals shall summon the authors of this action before the court, and the penalty for him who is convicted shall be death. Those who are performing any act of service to the State must do it without gifts; and it shall be no excuse nor laudable plea to argue that for good deeds a man ought to receive gifts, though not for bad: to decide wisely, and firmly to abide by one's decision, is no easy thing, and the safest course is for a man to listen and obey the law, which says, "Perform no service for gifts." Whoso disobeys, if convicted by the court, shall be put to death once for all. Touching money-contributions to the public treasury, not only must the property of every man be valued, for many reasons, but the tribesmen also must furnish an annual record of the year's produce to the land-wardens, so that the Treasury may adopt whichever it may prefer of the two existing methods of contribution, and may determine year by year whether it will require a proportion of the whole assessed value, or a proportion of the current yearly income, exclusive of the taxes paid for the common meals.

Ath. As regards votive offerings to the gods, it is proper for a reasonable man to present offerings of reasonable value. The soil and the hearth are in all cases sacred to all the gods; wherefore no one shall consecrate afresh what is already sacred. Gold and silver, which in other States are used both privately and in temples, are objects liable to cause envy; and ivory, which comes from a body bereft of soul, is not a pure offering;[513] while iron and bronze are instruments of war; of wood forming a single piece a man may offer in the public temples whatsoever he wishes, and of stone likewise, and of woven stuff an amount not exceeding a month's output by one woman. For woven stuff and other materials, white will be a color befitting the gods; but dyes they must not employ, save only for military decorations. Birds and statues make most godlike gifts, and they should be no larger than what one sculptor can complete in a single day; and all other votive offerings shall be modelled on similar lines. And now that we have stated in detail what and how many the divisions of the State as a whole must be, and have also stated to the best of our power the laws regarding all the most important business transactions,[514] it will be

[513] Cp. Levit. 19. 11: "He that toucheth the dead body of any man shall be unclean seven days."

proper to deal next with judicial procedure.[515] Of law courts the first will be composed of selected judges, selected jointly by both plaintiff and defendant, and these will be called "arbitrators," as being a more suitable name than "judges." The second court shall be formed of the villagers and tribesmen (the tribes being divided into twelve parts); and if the cause be not decided in the first court, they shall come before these judges to fight a case involving a greater injury, and if at the second trial the defendant is defeated, he shall pay as an extra penalty the fifth part of the assessed amount of the penalty recorded; and if, dissatisfied with his judges, he desires to fight his case before a court a third time, he shall bring it before the select judges, and if he be again worsted, he shall pay one and a half times the assessed amount. Again, if the plaintiff, when worsted in the first court, does not rest satisfied, but goes to the second court, in case he wins, he shall receive the fifth part, but in case he loses, he shall pay the same fraction of the penalty. And if, through dissatisfaction with the previous verdict, they proceed to the third court, the defendant (as we have said) shall pay, if worsted, one and a half times the penalty, and the prosecutor one-half of it. As regards the allotting of courts, the filling of vacancies, the appointing of sergeants for the several boards of magistrates, the times prescribed for performing each of these duties, the recording of votes, adjournments, and all other necessary judicial arrangements,—such as the fixing by lot of the order of trials, rules about counter-pleadings and counter-attendances, and all matters cognate thereto,— all these we have dealt with previously,[516] but nevertheless it is a proper thing to reiterate twice,—yea, thrice,—the truth.[517]

Ath. The old lawgiver, however, may pass over all such legal observances as are trivial and easy of discovery, and the young lawgiver shall fill up his omissions. In dealing with the private law courts this method would be reasonable, but in connection with the public courts of the State, and all those which the officials have to use in managing the affairs which belong to their several offices, there exist in many States quite a number of admirable ordinances of worthy men;[518] and from these the Law-wardens must construct a code which is suitable to the polity we are now framing, partly by comparing and amending them, partly by submitting them to the test of experience, until each such

[514] Cp. *Plat. Laws 922a.*
[515] Cp. *Plat. Laws 766d.*
[516] Cp. *Plat. Laws 766d ff.*, *Plat. Laws 846b ff.*
[517] Cp. *Plat. Laws 754c.*
[518] Alluding, probably, to Athenian law in particular.

ordinance be deemed satisfactory; and when they have been finally approved, and have been sealed as absolutely unchangeable, then the magistrates shall put them into practice all their life long. All rules regarding silence and discreet speech, and the opposite of these, on the part of the judges, and all else that differs from the rules which obtain in the other States concerning justice and goodness,—all these have been stated in part,[519] and in part they will be stated at the end. To all these matters he that purposes to be a righteous and just judge must attend, and that written exposition of them which he possesses he must learn. For of all studies, that of legal regulations, provided they be rightly framed, will prove the most efficacious in making the learner a better man; for were it not so, it would be in vain that our divine and admirable law bears a name akin to reason.[520] Moreover, of all other speeches— whether they be of personal praise or blame, composed in verse or prose, written down or uttered from day to day at some gathering by way of controversy or by way of consent (often of a very futile character),—of all such speeches the writings of the lawgiver[521] will serve as a test; and inasmuch as he possesses these within himself, as a talisman against other speeches, the good judge will guide both himself and the State aright; for the good he will secure both the permanence and the increase of what is just, and for the bad a change as great as possible from their ignorance, intemperance and cowardice, and, in short, from their general iniquity,—that is to say, for all the bad whose opinions are curable;

Ath. but for those whose opinions are really fixed by Fate,[522]—if they assigned death as a cure for souls in this condition (a statement that deserves to be often repeated), such judges and leaders of judges would merit praise from the whole State. When all the lawsuits for the year have been finally adjudged, we must have laws for the execution of the verdicts to this effect:—First, the magistrate who is acting as judge shall assign to the victorious party all the goods of the party convicted, excepting such as the latter must necessarily retain in his possession; and this he shall do in each case immediately after the voting has taken place by means of a herald's proclamation made in the hearing of the judges; and unless the loser settle with the victor to their mutual satisfaction by the end of the month next to those in which the courts are sitting, the magistrate who has tried the case shall,

[519] Cp. *Plat. Laws 766d*, *Plat. Laws 855d.*

[520] *νόμος=νοῦς*; cp. *Plat. Laws 714a.*

[521] Cp. *Plat. Laws 811d*, *Plat. Laws 858c.*

[522] i.e. men whose false beliefs are ineradicable, beyond hope of conversion.

at the instance of the victor, hand over to him the goods of the loser. And if the means are not forthcoming, and there be a deficiency of not less than a drachma, the loser in question shall be precluded from suing anyone else until he has paid to the full his whole debt to the victor; but others may bring valid actions against him. If anyone, when condemned, obstructs the court which condemned him, the officials thus wrongfully obstructed shall summon him before the court of the Law-wardens, and anyone who is cast in such an action, as being guilty of subverting the whole State and its laws, shall be punished by death. Next, when a man has been born and reared, and has himself begotten and reared up children, and has engaged reasonably in the transactions of business, giving or receiving (as the case may be) compensation for wrongs done,—when he has thus duly grown old in a law-abiding life, his end will come in the course of nature. Touching the dead, male or female, what the sacred rites are which require to be performed in respect of the gods of the underworld, or of this world, shall be declared by the Interpreters as the final authorities: no tombs, however, shall be put in places that are tilled,—whether the monument be small or great,—but they shall fill up those places where the soil is naturally fitted for this purpose only,— namely, to receive and hide the bodies of the dead with the least hurt to the living; but as regards all the places which of their own nature desire to produce food for mankind, of these no one, living or dead, shall deprive us who are alive.

Ath. And they shall not pile up a mound to a height greater than can be made by five men in five days; nor shall they erect stone pillars of a size more than is required to hold, at the most, a eulogy of the dead man's life consisting of not more than four heroic lines. And as to the laying-out of the corpse, first, it shall remain in the house only for such a time as is required to prove that the man is not merely in a faint, but really dead; and accordingly, in a normal case, the third will be the proper day for the carrying out to burial. As in other matters it is right to trust the lawgiver, so too we must believe him when he asserts that the soul is wholly superior to the body, and that in actual life what makes each of us to be what he is is nothing else than the soul, while the body is a semblance which attends on each of us, it being well said that the bodily corpses are images of the dead, but that which is the real self of each of us, and which we term the immortal soul, departs to the presence of other gods,[523] there (as the ancestral law declares) to render its account,—a prospect to be faced with courage by the good,

[523] Cp. *Plat. Phaedo 63b ff.*

but with uttermost dread by the evil. But to him who is dead no great help can be given; it was when he was alive that all his relatives should have helped him, so that when living his life might have been as just and holy as possible, and when dead he might be free during the life which follows this life from the penalty for wickedness and sin. This being so, one ought never to spend extravagantly on the dead, through supposing that the carcass of flesh that is being buried is in the truest sense one's own relative; but one ought rather to suppose that the real son or brother—or whoever else it may be that a man fancies himself to be mournfully burying—has departed in furtherance and fulfillment of his own destiny, and that it is our duty to make a wise use of what we have and to spend in moderation,[524] as it were on a soulless altar to the gods below:[525] and what constitutes moderation the lawgiver will most properly divine. Let this, then, be the law:—An expenditure on the whole funeral not exceeding five minas for a man of the highest property-class, three minas for one of the second class, two for one of the third, and one mina for one of the fourth class, shall be held to be moderate amounts. The Law-wardens must of necessity perform many other duties and supervise many other matters, but by no means the least of their duties is to live keeping a constant watch over children and men and people of every age; and at the end of his life above all everyone must have some one Law-warden to take charge of him—that one who is called in as overseer by the relatives of the dead man; and it shall stand to his credit if the arrangements about the dead man are carried out in a proper and moderate way, but if improperly, to his discredit.

Ath. The laying-out of the corpse and the other arrangements shall be carried out in accordance with the custom concerning such matters, but it is right that custom should give way to the following regulations of State law:—Either to ordain or to prohibit weeping for the dead is unseemly, but we shall forbid loud mourning and lamentation outside the house, and we shall prohibit the carrying out of the dead on to the open roads and making lamentation while he is borne through the streets, and the funeral party must be outside the city-bounds before day-break. These shall be the legal regulations regarding such matters: he that obeys them shall be free from penalty, but he that disobeys a single one of the Law-wardens shall be penalized by them all with

[524]Cp. *Plat. Laws 717e Plat. Laws 719d.*

[525]i.e. the corpse is like an altar which has no "real presence" to sanctify it; hence it is less worthy of costly offerings.

the penalty adjudged by all in common. All other interments of the dead, or disposal of corpses without interment in the cases of parricides, temple-robbers, and all such criminals,—have been previously[526] dealt with and laid down by law, so that our task of legislation has nearly come to an end. But in every case, the full end does not consist in the doing, gaining or founding of an object; rather our view should be that it is only when we have discovered a means of salvation, endless and complete, for our creation, that we are at length justified in believing that we have done all that ought to be done: until then, we must believe, the whole of our creation is incomplete.

Clin. You say well, Stranger; but explain to us yet more clearly the purport of your last observation.

Ath. O Clinias, many of the sayings of old time have been nobly uttered, and of these not the least, I may say, are the titles given to the Fates.

Clin. What titles, pray?

Ath. That the first of them is Lachesis, the second Clotho, and Atropos the savior-third [527]—she that bestows on the dooms ratified by Clotho the quality of irreversibility. She it is that must furnish also to the State and its citizens, not merely health and salvation for their bodies, but also right legality in their souls, or rather the salvation of the laws. And this, as it seems clear to me, is what our laws still lack—namely, a right mode of naturally implanting in them this irreversible quality.

Clin. The point you mention is a serious one, if it is really impossible to discover a means whereby everything may acquire some such quality.

Ath. Nay, but it is possible, as I now perceive quite clearly.

Clin. Then let us by no means desist until we have secured this very quality for the laws we have stated; for it would be ridiculous for us to have wasted all this labor on an object, and then not base it on any firm foundation.

Ath. You are right in your exhortation, and you will find me as ready as yourself to proceed.

Clin. Very good. Then what is it you say will prove a means of salvation to our polity and its laws, and how will it do so?

Ath. Did we not say[528] that we must have in our State a synod

[526] Cp. *Plat. Laws 854d.*, *Plat. Laws 873c.*

[527] Cp. *Plat. Rep. 620e.* Atropos is called "the savior-third" (cp. *τὸ τρίτον τῷ Σωτῆρι*) because she completes the work of the other fates by making the thread of life (doom) spun by them irreversible. (*ἄ-τροπος*=unturnable.)

of the following kind:—The ten senior members, at the moment, of the body of Law-wardens shall form the synod, in company with all who have won the award of merit; and, moreover, those inspectors who have gone abroad[529] to discover if they could hear of anything pertinent to the safekeeping of laws, and who, in the belief that they have succeeded, have come safely home again, shall, after undergoing a searching test, be deemed worthy to take part in the synod? In addition to these, every member must bring with him one of the young men, not less than thirty years old, whom he has first selected as being both by nature and training a suitable person; after selecting him, he shall introduce him among the members, and if they also approve, he shall keep him as a colleague, but if they disapprove, the fact of his original selection must be concealed from all the rest, and especially from the person thus rejected. The synod must meet at an early hour, when everyone has his time most free from other business, private or public. Was it not some such organization as this that we described in our previous discourse?

Clin. It was.

Ath. Resuming, then, the subject of this synod, I will say this:—If one were to lay this down as an anchor for the whole State, possessing all the requisite conditions,—then, I affirm, it would secure the salvation of all that we desire.

Clin. How so?

Ath. Now will be the time for us to display no lack of zeal in declaring truly what follows.

Clin. Excellently spoken! Proceed as you propose.

Ath. One ought to observe, Clinias, in regard to every object, in each of its operations, what constitutes its appropriate savior—as, for example, in an animal, the soul and the head are eminently such by nature.

Clin. How do you mean?

Ath. Surely it is the goodness of those parts that provides salvation to every animal.

Clin. How?

Ath. By the existence of reason in the soul, in addition to all its other qualities, and by the existence of sight and hearing, in addition to all else, in the head; thus, to summarize the matter, it is the combination of reason with the finest senses, and their union in one, that

[528]Cp. *Plat. Laws 951d ff.*

[529]Cp. *Plat. Laws 951a ff.*

would most justly be termed the salvation of each animal.

Clin. That is certainly probable.

Ath. It is probable. But what kind of reason is it which, when combined with senses, will afford salvation to ships in stormy weather and calm? On shipboard is it not the pilot and the sailors who, by combining the senses with the pilot reason, secure salvation both for themselves and for all that belongs to the ship?

Clin. Of course.

Ath. There is no need of many examples to illustrate this. Consider, for instance, what would be the right mark for a general to set up to shoot at in the case of an army, or the medical profession in the case of a human body, if they were aiming at salvation. Would not the former make victory his mark, and mastery over the enemy, while that of the doctors and their assistants would be the providing of health to the body?

Clin. Certainly.

Ath. But if a doctor were ignorant of that bodily condition which we have now called "health," or a general ignorant of victory, or any of the other matters we have mentioned, could he possibly be thought to possess reason about any of these things?

Clin. How could he?

Ath. What, now, shall we say about a State? If a man were to be plainly ignorant as regards the political mark to be aimed at, would he, first of all, deserve the title of magistrate, and, secondly, would he be able to secure the salvation of that object concerning the aim of which he knows nothing at all?

Clin. How could he?

Ath. So now, in our present case, if our settlement of the country is to be finally completed, there must, it would seem, exist in it some element which knows, in the first place, what that political aim, of which we are speaking, really is, and, secondly, in what manner it may attain this aim, and which of the laws, in the first instance, and secondly of men, gives it good counsel or bad. But if any State is destitute of such an element, it will not be surprising if, being thus void of reason and void of sense, it acts at haphazard always in all its actions.

Clin. Very true.

Ath. In which, then, of the parts or institutions of our State have we now got anything so framed as to prove an adequate safeguard of this kind? Can we answer that question?

Clin. No, Stranger; at least, not clearly. But if I must make a guess,

it seems to me that this discourse of yours is leading up to that synod which has to meet at night, as you said just now.

Ath. An excellent reply, Clinias! And, as our present discourse shows, this synod must possess every virtue; and the prime virtue is not to keep shifting its aim among a number of objects,[530] but to concentrate its gaze always on one particular mark, and at that one mark to shoot, as it were, all its arrows continually.

Clin. Most certainly.

Ath. So now we shall understand that it is by no means surprising if the legal customs in States keep shifting, seeing that different parts of the codes in each State look in different directions. And, in general, it is not surprising that, with some statesmen, the aim of justice is to enable a certain class of people to rule in the State (whether they be really superior, or inferior), while with others the aim is how to acquire wealth (whether or not they be somebody's slaves); and others again direct their efforts to winning a life of freedom. Still others make two objects at once the joint aim of their legislation,—namely, the gaining of freedom for themselves, and mastery over other States; while those who are the wisest of all, in their own conceit, aim not at one only, but at the sum total of these and the like objects, since they are unable to specify any one object of preeminent value towards which they would desire all else to be directed.

Clin. Then, Stranger, was not the view we stated long ago the right one? We said[531] that all our laws must always aim at one single object, which, as we agreed, is quite rightly named "virtue."

Ath. Yes.

Clin. And we stated that virtue consists of four things.

Ath. Certainly.

Clin. And that the chief of all the four is reason,[532] at which the other three, as well as everything else, should aim.

Ath. You follow us admirably, Clinias; and now follow us in what comes next. In the case of the pilot, the doctor, and the general, reason is directed, as we said, towards the one object of aim which is proper in each case; and now we are at the point of examining reason in the case of a statesman, and, addressing it as a man, we shall question it thus:—

"O admirable sir, what is your aim? Medical reason is able to state

[530] Cp. *Plat. Laws 705e*, *Plat. Laws 934b*.

[531] Cp. *Plat. Laws 630e ff.*

[532] Cp. *Plat. Laws 631c ff.*: "reason" (or "wisdom") as the most "divine" stands first, the others being temperance, justice and courage.

clearly the one single object at which it aims; so will you be unable to state your one object—you who are superior, as perhaps you will say, to all the wise?" Can you two, Megillus and Clinias, define that object on his behalf, and tell me what you say it is, just as I, on behalf of many others, defined their objects for you?

Clin. We are totally unable to do so.

Ath. Well then, can you declare that we need zeal in discerning both the object itself as a whole and the forms it assumes?

Clin. Illustrate what you mean by "the forms" you speak of.

Ath. For example, when we said that there are four forms of virtue, obviously, since there are four, we must assert that each is a separate one.

Clin. Certainly.

Ath. And yet we call them all by one name: we assert that courage is virtue, and wisdom virtue, and the other two likewise, as though they were really not a plurality, but solely this one thing—virtue.

Clin. Very true.

Ath. Now it is not hard to explain wherein these two (and the rest) differ from one another, and how they have got two names; but to explain why we have given the one name "virtue" to both of them (and to the rest) is no longer an easy matter.

Clin. How do you mean?

Ath. It is not hard to make clear my meaning. Let one of us adopt the role of questioner, the other of answerer.[533]

Clin. In what way?

Ath. Do you ask me this question—why, when calling both the two by the single name of "virtue," did we again speak of them as two—courage and wisdom? Then I shall tell you the reason,—which is, that the one of them has to do with fear, namely courage,[534] in which beasts also share, and the characters of very young children; for a courageous soul comes into existence naturally and without reasoning, but without reasoning there never yet came into existence, and there does not nor ever will exist, a soul that is wise and rational, it being a distinct kind.

Clin. That is true.

Ath. Wherein they differ and are two you have now learnt from my reply. So do you, in turn, inform me how it is that they are one and identical. Imagine you are also going to tell me how it is that, though four, they are yet one; and then, after you have shown me how they

[533] Cp. *Plat. Laws 893a.*

[534] Cp. *Plat. Lach. 196d ff.*, *Plat. Prot. 349b ff.*

are one, do you again ask me how they are four. And after that, let us enquire regarding the person who has full knowledge of any objects which possess both a name and a definition, whether he ought to know the name only, and not know the definition, or whether it is not a shameful thing for a man worth anything to be ignorant of all these points in regard to matters of surpassing beauty and importance.

Clin. It would certainly seem to be so.

Ath. For the lawgiver and the Law-warden, and for him who thinks he surpasses all men in virtue and who has won prizes for just such qualities, is there anything more important than these very qualities with which we are now dealing—courage, temperance, justice, and wisdom?

Clin. Impossible.

Ath. In regard to these matters, is it not right that the interpreters, the teachers, the lawgivers, as the wardens of the rest, in dealing with him that requires knowledge and information, or with him that requires punishment and reproof for his sin, should excel all others in the art of instructing him in the quality of vice and virtue and exhibiting it fully? Or is some poet who comes into the State, or one who calls himself a trainer of youth, to be accounted evidently superior to him that has won prizes for all the virtues? In a State like that, where there are no wardens who are competent both in word and deed, and possessed of a competent knowledge of virtue,—is it surprising, I ask, if such a State, all unwarded as it is, suffers the same fate as do many of the States which exist today?

Clin. Not at all, I should say.

Ath. Well then, must we do what we now propose, or what? Must we contrive how our wardens shall have a more accurate grasp of virtue, both in word and deed, than the majority of men? For otherwise, how shall our State resemble a wise man's head and senses, on the ground that it possesses within itself a similar kind of wardenship?

Clin. What is this resemblance we speak of and wherein does it consist?

Ath. Evidently we are comparing the State itself to the skull; and, of the wardens, the younger ones, who are selected as the most intelligent and nimble in every part of their souls, are set, as it were, like the eyes, in the top of the head, and survey the State all round;

Ath. and as they watch, they pass on their perceptions to the organs of memory,—that is, they report to the elder wardens all that goes on in the State,— while the old men, who are likened to the reason because of their eminent wisdom in many matters of importance, act as

counsellors, and make use of the young men as ministers and colleagues also in their counsels, so that both these classes by their co-operation really effect the salvation of the whole State. Is this the way, or ought we to contrive some other? Should the State, do you think, have all its members equal instead of having some more highly trained and educated?

Clin. Nay, my good sir, that were impossible.

Ath. We must proceed, then, to expound a type of education that is higher than the one previously described.

Clin. I suppose so.

Ath. Will the type which we hinted at just now[535] prove to be that which we require?

Clin. Certainly.

Ath. Did we not say[536] that he who is a first-class craftsman or warden, in any department, must not only be able to pay regard to the many, but must be able also to press towards the One[537] so as to discern it and, on discerning it, to survey and organize all the rest with a single eye to it?

Clin. Quite right.

Ath. Can any man get an accurate vision and view of any object better than by being able to look from the many and dissimilar to the one unifying form?

Clin. Probably not.

Ath. It is certain, my friend, rather than probable, that no man can possibly have a clearer method than this.

Clin. I believe you, Stranger, and I assent; so let us employ this method in our subsequent discourse.

Ath. Naturally we must compel the wardens also of our divine polity to observe accurately, in the first place, what that identical element is which pervades all the four virtues, and which,—since it exists as a unity in courage, temperance, justice and wisdom,— may justly be called, as we assert, by the single name of "virtue." This element, my friends, we must now (if we please) hold very tight, and not let go until we have adequately explained the essential nature of the object to be aimed at—whether, that is, it exists by nature as a

[535] *Plat. Laws 962e*, *Plat. Laws 963b ff.*

[536] Cp. *Plat. Laws 903c*, *Plat. Laws 903d*, *Plat. Laws 961e.*

[537] Cp. *Plat. Rep. 537b ff.*, where the "dialectic" method is described as a kind of induction (*συναγωγή*) whereby the mind ascends from "the many" particulars to "the one" universal concept or "idea": a comprehensive view (*σύνοψις*) of the whole is what marks the dialectician (*ὁ συνοπτικὸς διαλεκτικός*).

unity, or as a whole, or as both, or in some other way. Else, if this eludes us, can we possibly suppose that we shall adequately grasp the nature of virtue, when we are unable to state whether it is many or four or one? Accordingly, if we follow our own counsel, we shall contrive somehow, by hook or by crook, that this knowledge shall exist in our State. Should we decide, however, to pass it over entirely—pass it over we must.

Clin. Nay, Stranger, in the name of the Stranger's God, we must by no means pass over a matter such as this, since what you say seems to us most true. But how is this to be contrived?

Ath. It is too early to explain how we are to contrive it: let us first make sure that we agree among ourselves as to whether or not we ought to do so.

Clin. Well, surely we ought, if we can.

Ath. Very well then; do we hold the same view about the fair and the good? Ought our wardens to know only that each of these is a plurality, or ought they also to know how and wherein they are each a unity?

Clin. It is fairly obvious that they must necessarily also discern how these are a unity.

Ath. Well then, ought they to discern it, but be unable to give a verbal demonstration of it?

Clin. Impossible! The state of mind you describe is that of a slave.

Ath. Well then, do we hold the same view about all forms of goodness, that those who are to be real wardens of the laws must really know the true nature of them, and be capable both of expounding it in word and conforming to it in deed, passing judgment on fair actions and foul according to their real character?

Clin. Certainly.

Ath. And is not one of the fairest things the doctrine about the gods, which we expounded earnestly,[538]—to know both that they exist, and what power they manifestly possess, so far as a man is capable of learning these matters; so that while one should pardon the mass of the citizens if they merely follow the letter of the law, one must exclude from office those who are eligible for wardenship, unless they labor to grasp all the proofs there are about the existence of gods? Such exclusion from office consists in refusing ever to choose as a Law-warden, or to number among those approved for excellence, a man who is not divine himself, nor has spent any labor over things divine.

[538]In Book X.

Clin. It is certainly just, as you say, that the man who is idle or incapable in respect of this subject should be strictly debarred from the ranks of the noble.

Ath. Are we assured, then, that there are two causes, amongst those we previously discussed,[539] which lead to faith in the gods?

Clin. What two?

Ath. One is our dogma about the soul,—that it is the most ancient and divine of all the things whose motion, when developed into "becoming," provides an ever-flowing fount of "being"; and the other is our dogma concerning the ordering of the motion of the stars[540] and all the other bodies under the control of reason, which has made a "cosmos" of the All.

Ath. For no man that views these objects in no careless or amateurish way has ever proved so godless as not to be affected by them in a way just the opposite of that which most people expect. For they imagine that those who study these objects in astronomy and the other necessary allied arts become atheists through observing, as they suppose, that all things come into being by necessary forces and not by the mental energy of the will aiming at the fulfillment of good.

Clin. What in fact is the real state of the case?

Ath. The position at present is, as I said, exactly the opposite of what it was when those who considered these objects considered them to be soulless. Yet even then they were objects of admiration, and the conviction which is now actually held was suspected by all who studied them accurately—namely, that if they were soulless, and consequently devoid of reason, they could never have employed with such precision calculations so marvellous; and even in those days there were some who dared to hazard the statement[541] that reason is the orderer of all that is in the heavens. But the same thinkers, through mistaking the nature of the soul and conceiving her to be posterior, instead of prior, to body, upset again (so to say) the whole universe, and most of all themselves; for as regards the visible objects of sight, all that moves in the heavens appeared to them to be full of stones, earth and many other soulless bodies which dispense the causes of the whole cosmos. These were the

[539] Cp. *Plat. Laws 893b.*

[540] Cp. *Plat. Laws 898c.*

[541] An allusion to the saying of Anaxagoras, "All things were together; then Reason (*νοῦς*) came and set them in order." But A. ascribed to Reason only the initiation of a world-order; in all other respects his doctrine was materialistic, and he used purely physical causes and processes in explaining the world, regarding the stars as fiery masses of matter ("full of earth, stones," etc.). Cp. *Phaedo* 91 B ff.

views which, at that time, caused these thinkers to incur many charges of atheism and much odium, and which also incited the poets to abuse them[542] by likening philosophers to "dogs howling at the moon," with other such senseless slanders. But today, as we have said, the position is quite the reverse.

Clin. How so?

Ath. It is impossible for any mortal man to become permanently god-fearing if he does not grasp the two truths now stated,—namely, how that the soul is oldest of all things that partake of generation, and is immortal, and rules over all bodies,—and in addition to this, he must also grasp that reason which, as we have often affirmed, controls what exists among the stars, together with the necessary preliminary sciences;[543] and he must observe also the connection therewith of musical theory, and apply it harmoniously to the institutions and rules of ethics;[544] and he must be able to give a rational explanation of all that admits of rational explanation.

Ath. He that is unable to master these sciences, in addition to the popular virtues,[545] will never make a competent magistrate of the whole State, but only a minister to other magistrates. And now, O Megillus and Clinias, it is time at last to consider whether, in addition to all the previous laws which we have stated, we shall add this also—that the nocturnal synod of magistrates shall be legally established, and shall participate in all the education we have described, to keep ward over the State, and to secure its salvation; or what are we to do?

Clin. Of course we shall add this law, my excellent sir, if we can possibly do so, even to a small extent.

Ath. Then, verily, let us all strive to do so. And herein you will find me a most willing helper, owing to my very long experience and study of this subject; and perhaps I shall discover other helpers also besides myself.

Clin. Well, Stranger, we most certainly must proceed on that path along which God too, it would seem, is conducting us. But what is the right method for us to employ,— that is what we have now got to discover and state.

Ath. It is not possible at this stage, Megillus and Clinias, to enact laws for such a body, before it has been duly framed; when it is, its members must themselves ordain what authority they should possess;

[542] Cp. *Plat. Rep. 607b, c.*
[543] Cp. *Plat. Laws 818a ff.*
[544] Cp. *Plat. Rep. 401d ff, Plat. Rep. 500d ff, Plat. Rep. 531 ff.*
[545] Cp. *Plat. Laws 710a.*

but it is already plain that what is required in order to form such a body, if it is to be rightly formed, is teaching by means of prolonged conferences.

Clin. How so? What now are we to understand by this observation?

Ath. Surely we must first draw up a list of all those who are fitted by age, intellectual capacity, and moral character and habit for the office of warden; but as regards the next point, the subjects they should learn,—these it is neither easy to discover for oneself[546] nor is it easy to find another who has made the discovery and learn from him. Moreover, with respect to the limits of time, when and for how long they ought to receive instruction in each subject, it were idle to lay down written regulations;[547] for even the learners themselves could not be sure that they were learning at the opportune time until each of them had acquired within his soul some knowledge of the subject in question. Accordingly, although it would be wrong to term all these matters "indescribable," they should be termed "imprescribable," seeing that the prescribing of them beforehand does nothing to elucidate the question under discussion.

Clin. What then must we do, Stranger, under these circumstances?

Ath. Apparently, my friends, we must "take our chance with the crowd" (as the saying is), and if we are willing to put the whole polity to the hazard and throw (as men say) three sixes or three aces, so it must be done; and I will go shares with you in the hazard by declaring and explaining my views concerning education and nurture, the subject now started anew in our discourse; but truly the hazard will be no small one, nor comparable to any others. And you, Clinias, I specially exhort to take good heed to this matter. For as concerns the State of the Magnesians—or whoever else, by the god's direction, gives your State its name,[548]—if you frame it aright, you will achieve most high renown, or at any rate you will inevitably gain the reputation of being the boldest of all your successors. If so be that this divine synod actually comes into existence, my dear colleagues, we must hand over to it the State; and practically all our present lawgivers agree to this without dispute. Thus we shall have as an accomplished fact and waking reality that result which we treated but a short while ago in our discourse as a mere dream, when we constructed a kind of picture of the union of the reason and the head,[549]—if, that is to say, we have

[546]Cp. *Plat. Rep. 528b ff.*

[547]Cp.*Epp.* 7. 341 C.

[548]i.e. if the god should direct the State to be named, not after the Magnetes, but after some other person or place: cp. *Plat. Laws 704a*, *Plat. Laws 919d.*

the members carefully selected and suitably trained, and after their training quartered in the acropolis of the country, and thus finally made into wardens, the like of whom we have never before seen in our lives for excellence in safeguarding.

Meg. My dear Clinias, from all that has now been said it follows that either we must forgo the idea of settling the State, or else we must detain this Stranger here, and by prayers and every possible means secure his cooperation in the task of settling the State.

Clin. That is most true, Megillus; I will do as you say, and do you yourself assist me.

Meg. Assist you I will.

[549]Cp. *Plat. Laws 964d*x.

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